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FraminghamMA.gov/Boards

BOARD OF LICENSE COMMISSIONERS

AGENDA
November 2, 2026 7:00 PM
Remote

BOARD MEMBERS

Stuart Pologe, Chair | Joseph Sturniolo, Vice Chair | Laura Medrano, Clerk | Alycia DeAngelis | Shannon McCullough

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Remote Participation Instructions

Join from PC, Mac, iPad, or Android:

https://us02web.zoom.us/j/86134843803?pwd=Ru8Qi8WWVOSF9XFQOwlbtl8XcEtcSV.1

Passcode:995955

Join via audio:

+1 929 205 6099 US (New York)

Webinar ID: 861 3484 3803

Passcode: 995955

CALL TO ORDER

1. **GENERAL PUBLIC COMMENTS**
2. **LICENSING HEARINGS**
   - 2.a Early Opening Hours Request on Thanksgiving, The Sixes Pub LLC DBA The Sixes Pub, 666 Waverly St
   - 2.b Adding Drivers and Vehicle to Livery License, Kingsley Urakpo DBA Deansgale Livery, LLC, 945 Concord St
   - 2.c Transfer of Class I License from Bernardo Automall, Inc DBA Bernardi Toyota to Balise BTF, Inc. DBA Bernardi Toyota, 1626 Worcester Rd
3. **PUBLIC HEARINGS**
   - 3.a New Common Victualer License, Space Cafe Inc DBA Space Cafe, 121 Concord St - **Continued from 10/19**
   - 3.b Change of Manager, Officer/Directors/LLC Manager, and Ownership Interest, World Market of Massachusetts LLC DBA Cost Plus World Market, 1 Worcester Rd
4. **COMMISSIONERS' REPORTS/CONCERNS**
5. **LICENSE COORDINATOR UPDATES**

6. **MINUTES**

6.a 10/5 Minutes

6.b 10/19 Minutes

ADJOURNMENT

THE SIXES PUB

Date: October 9, 2026

To: City of Framingham Board of License Commissioners
Framingham, Massachusetts

Subject: Request for Early Alcohol Service – Thanksgiving Day 2026

Dear Members of the Board of License Commissioners,

On behalf of The Sixes Pub, we are respectfully requesting permission to begin serving alcoholic beverages at **8:00 AM on Thursday, November 26, 2026, Thanksgiving Day**.

We would like to accommodate our patrons who wish to gather at our establishment during the Thanksgiving holiday. We believe this early opening will provide an opportunity for members of our community to enjoy the holiday in a welcoming and responsible

environment.

The Sixes Pub will continue to follow all applicable liquor licensing regulations and will ensure that our staff maintains responsible alcohol service practices throughout the day.

We respectfully ask the Board to consider and approve our request for this one-day exception to our regular alcohol service hours.

Thank you for your time and consideration. We appreciate your attention to this request and look forward to your response.

Sincerely,

Matthew C. Lopez and Tracy Gallagher
The Sixes Pub

The Sixes Pub Early Alcohol Service on Thanksgiving - 666 Waverly St

TM Tyson E. Mohr
To: Michael Royce
Cc: Wilfred A. Gingras

Hi Mike,
The PD wouldn't have an issue with that. Thanks.

Lieutenant Tyson E. Mohr, #329
Licensing Bureau Commander
Framingham Police Department
1 William Welch Way
Framingham, MA 01702
Office: 508.532.5917
Fax: 508.872.3506
Email: tem@framinghamma.gov

The Sixes Pub Early Alcohol Service on Thanksgiving - 666 Waverly St

WG Wilfred A. Gingras
To: Michael Royce; Tyson E. Mohr

Michael,

FFD has no objections to this one-day change.

Will

WILL GINGRAS | DEPUTY CHIEF
Framingham Fire Department
10 Loring Drive, Framingham, MA 01702
508-532-5930

CITY OF FRAMINGHAM
LICENSING DEPARTMENT

Michael Royce
Licensing Coordinator

o 508-532-5402
f 508-532-5769
e licensing@framinghamma.gov
w www.framinghamma.gov

MEMORIAL BUILDING
150 Concord Street, Room 213
Framingham, MA 01702

Agenda Item 2b

Adding Drivers and a Vehicle to Livery License

Kingsley Urakpo
DBA Deansgale Livery, LLC
945 Concord Street
Framingham, MA 01702

Hearing Date: November 2, 2026

1. Draft License (Updated)
2. Luis Barbosa Campos – Driver's License, CORI, Driving Record
3. William Mercurio – Driver's License, CORI, Driving Record
4. Scott Paisner – Driver's License, CORI, Driving Record
5. Signed Lease
6. City Department Approvals
    a. Pending Building

COMMONWEALTH OF MASSACHUSETTS
THE BOARD OF LICENSE COMMISSIONERS OF THE CITY OF FRAMINGHAM
HEREBY GRANTS A
LIVERY LICENSE

To: Kingsley Urakpo
At: 945 CONCORD ST in said city.
For: 2 vehicle/s

Cadillac Vistiq Luxury Trim 2026 and Cadillac Lyriq Sport Tim 2027 Plate Number: LVB9114 (Vistiq) and LVC2804 (Lyriq). Vehicle 1 will be garaged at 74 Carter Drive. Vehicle 2 and beyond will be garaged at 40 Speen Street (5 allocated parking spaced)

3 Additional Drivers: Luis Barbosa Campos, William Mercurio, & Scott Paisner

UNTIL MARCH 31, 2027

THIS LICENSE IS NOT TRANSFERABLE UNTIL APPROVED BY THE BOARD OF LICENSING COMMISSIONERS

IN TESTIMONY WHEREOF, the undersigned have hereunto affixed their official signatures,
Issued November 2, 2026

Stuart Pologe, Chair

Joseph Sturniolo, Vice Chair

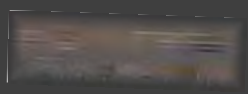
Laura Medrano, Clerk

Alycia DeAngelis, Member

Shannon McCullough, Member

FEE: $50.00

FRA: LIV-26-3



The following information must be completed by each driver.

Have you ever been convicted of any crime, felony or misdemeanor in the Commonwealth of Massachusetts, or any other state, or violation of any municipal ordinance or by-law?

Yes ____ No √

If yes, please state offense: _____

_____

What was the disposition? _____

_____

I, the undersigned, understand that any false statements or misrepresentation is just cause for denial of license or permit. I grant authorization for the Framingham Police Department to conduct a criminal records check (CORI).

Signature : Luis Claudio B. Campos

Print Name: Luis Claudio Barbosa Campos

Date of Birth [redacted] Social Security # [redacted]

Address: [redacted]

Phone: [redacted]

Drivers must apply to the Framingham Police Department for a Hackney License.

Attach copy of driver's license.

REGISTRY OF MOTOR VEHICLES

DRIVER HISTORY REPORT

Date: 09/09/2026

Customer ID: [redacted]

LUIS CLAUDIO BARBOSA CAMPOS
[redacted]

[redacted]

Letter ID: [redacted]

USPS ID: [redacted]

I hereby certify that the annexed instrument(s) are true copy(s) of the driving history and notice(s) of suspension/revocation/disqualification as appearing in the Registrar's records in accordance with the provisions of G.L. Chapter 90, Section 22.

COMMONWEALTH OF MASSACHUSETTS
REGISTRY OF MOTOR VEHICLES
Colleen J Ogilvie
REGISTRAR

Standard Driving Record - True & Attested

The following is a list of all publicly available violations and sanctions on file.

Section 1a - Customer Information

BARBOSA CAMPOS, LUIS C

[redacted]

Driver License Status: Active

CDL Status:

Earliest License Issue Date (Electronic): 03-Jun-2025

Eye Color: Green

Organ Donor: No

Height: 5' 7"

Sex: Male

Current Credential

Class D Passenger License

Issue: [redacted] | Expire: [redacted] | Endorsements: None | Restrictions: None | REAL ID: Yes

Section 1b - CDL Self Certification Information

Self Certification Type:

Commence:

Cease:

Examiner Information

Name:

License Number:

Posted:

Variance:

Variance Issue:

Variance Expire:

Phone:

Registry:

Status:

SPE:

SPE Issue:

SPE Expire:

State:

Issue Date:

Expire Date:

Corr Len: Hear Aid:

Exempt Intracity:

Quality Operator:

Section 2 - Violations

No verdicts on record

Section 3 - Sanctions

No sanctions on record

Section 4 - Record Requests

Report [redacted]	**PUBLIC DVD REQUESTED** Report Request Date: 14-Jul-2026 | Requester: TESSERA DATA INC
Report [redacted]	**PUBLIC DVD REQUESTED** Report Request Date: 06-Jul-2026 | Requester: SAFETY HOLDINGS, INC.
Report [redacted]	**PUBLIC DVD REQUESTED** Report Request Date: 02-Jul-2026 | Requester: TESSERA DATA INC
Report [redacted]	**PUBLIC DVD REQUESTED** Report Request Date: 10-Jun-2026 | Requester: LEXISNEXIS RISK SOLUTIONS INC
Report [redacted]	**PUBLIC DVD REQUESTED** Report Request Date: 22-May-2026 | Requester: SAFETY HOLDINGS, INC.
Report [redacted]	**PUBLIC DVD REQUESTED** Report Request Date: 20-Jan-2026 | Requester: LEXISNEXIS RISK SOLUTIONS INC
Report [redacted]	**PUBLIC DVD REQUESTED** Report Request Date: 28-Dec-2025 | Requester: EXPLORE INFORMATION SERVICES LLC
Report [redacted]	**PUBLIC DVD REQUESTED** Report Request Date: 26-Dec-2025 | Requester: TESSERA DATA INC
Report [redacted]	**PUBLIC DVD REQUESTED** Report Request Date: 26-Dec-2025 | Requester: SAFETY HOLDINGS, INC.
Report 0[redacted]	**PUBLIC DVD REQUESTED** Report Request Date: 30-Aug-2025 | Requester: LEXISNEXIS RISK SOLUTIONS INC
Report [redacted]	**PUBLIC DVD REQUESTED** Report Request Date: 23-Jul-2025 | Requester: TESSERA DATA INC
Report [redacted]	**PUBLIC DVD REQUESTED** Report Request Date: 25-Jun-2025 | Requester: TESSERA DATA INC
Report [redacted]	**PUBLIC DVD REQUESTED** Report Request Date: 24-Jun-2025 | Requester: LEXISNEXIS RISK SOLUTIONS INC
Report [redacted]	**PUBLIC DVD REQUESTED** Report Request Date: 19-Jun-2025 | Requester: TESSERA DATA INC

Report [redacted]	**PUBLIC DVD REQUESTED** Report Request Date: 16-Jun-2025 | Requester: SAFETY HOLDINGS, INC.
Report [redacted]	**PUBLIC DVD REQUESTED** Report Request Date: 16-Jun-2025 | Requester: SAFETY HOLDINGS, INC.

Section 5 - Required Courses

No courses on record

MASSACHUSETTS
DRIVER'S LICENSE
4a ISS
4d NUMBER
D
NONE
NONE
1 MERCURIO
2 WILLIAM JOSEPH
18 EYES BLU
15 SEX M
16 HGT 5'-08"
5 DD 03/31/2024 Rev 02/22/2016

The following information must be completed by each driver.

Have you ever been convicted of any crime, felony or misdemeanor in the Commonwealth of Massachusetts, or any other state, or violation of any municipal ordinance or by-law?

Yes ____ No X

If yes, please state offense: _____

_____

What was the disposition? _____

_____

I, the undersigned, understand that any false statements or misrepresentation is just cause for denial of license or permit. I grant authorization for the Framingham Police Department to conduct a criminal records check (CORI).

Signature : _____

Print Name: William Mercurio

Date of Birth [redacted] Social Security [redacted]

Address: [redacted]

Phone: [redacted]

Drivers must apply to the Framingham Police Department for a Hackney License.

Attach copy of driver's license.

REGISTRY OF MOTOR VEHICLES

DRIVER HISTORY REPORT - myRmv

Date: 08/13/2026

WILLIAM JOSEPH MERCURIO
[redacted]

Customer [redacted]
[redacted]
Letter ID: [redacted]

Standard Driving Record

The following is a list of all publicly available violations and sanctions on file.

Section 1a - Customer Information

MERCURIO, WILLIAM J
[redacted]
Driver License Status: Active
CDL Status:
Earliest License Issue Date (Electronic): 23-Jul-1999

Eye Color: Blue
Organ Donor: Yes
Height: 5' 8"
Sex: Male

Current Credential

Class D Passenger License

Issue: [redacted] | Endorsements: None | Restrictions: None | REAL ID: Yes

Section 1b - CDL Self Certification Information

Self Certification Type:	Commence:	Cease:

Examiner Information

Name:	Phone:	State:
License Number:	Registry:	Issue Date:
Posted:	Status:	Expire Date:
Variance:	SPE:	Corr Len: Hear Aid:
Variance Issue:	SPE Issue:	Exempt Intracity:

Variance Expire: SPE Expire: Quality Qperator:

Section 2 - Violations

Accident [redacted]

SURCHARGEABLE ACCIDENT - COLLISION

Posted Date: 08-Mar-2006 | Incident Date: 07-Feb-2006 | Finding Date: 07-Mar-2006
Disposition: R | SDIP Points: 4

Violation [redacted]

90/17/A - SPEEDING * C90 §17

Posted Date: 19-Feb-2004 | Violation Date: 09-Feb-2004 | Finding Date: 13-Mar-2004
Disposition: R | Location: Chelsea | SDIP Points: 2
Citation Number: M0909688

Violation [redacted]

90/18/A - SPEEDING IN VIOL SPECIAL REGULATION * C90 §18

Posted Date: 02-Jan-2004 | Violation Date: 23-Dec-2003 | Finding Date: 28-Jan-2004
Disposition: R | Location: Saugus | SDIP Points: 2
Citation Number: K4260790

Violation [redacted]

90/17/A - SPEEDING * C90 §17

Posted Date: 03-Sep-2003 | Violation Date: 23-Aug-2003 | Finding Date: 05-Nov-2003
Disposition: R | Location: Peabody | SDIP Points: 2
Citation Number: K4448784

Accident [redacted]

SURCHARGEABLE ACCIDENT - COLLISION

Posted Date: 06-May-2002 | Incident Date: 15-Apr-2002 | Finding Date: 25-Apr-2002
Disposition: R | SDIP Points: 4

Accident [redacted]

SURCHARGEABLE ACCIDENT - COLLISION

Posted Date: 14-Mar-2002 | Incident Date: 03-Mar-2002 | Finding Date: 12-Mar-2002
Disposition: R | SDIP Points: 3

Accident [redacted]

SURCHARGEABLE ACCIDENT - PROPERTY DAMAGE LIABILITY

Posted Date: 19-Dec-2000 | Incident Date: 17-Jun-2000 | Finding Date: 15-Dec-2000
Disposition: R | SDIP Points: 4

Section 3 - Sanctions

Sanction [redacted]

THREE SPEEDING OFFENSES

Suspended: 25-Mar-2004 to 24-Apr-2004 | Reinstated: 26-Apr-2004
Source Violation ID: 0-049-828-572

Sanction [redacted]

PAYMENT DEFAULT

Pending Period: 28-Jan-2004 to 20-Feb-2004 | Cleared: 20-Feb-2004
Source Violation ID: 0-049-828-571
Citation Number: K4260790

Sanction [redacted]

PAYMENT DEFAULT

Pending Period: 11-Dec-2003 to 22-Dec-2003 | Cleared: 22-Dec-2003
Source Violation ID: 0-049-828-570
Citation Number: K4448784

Section 4 - Record Requests

Report [redacted]

PUBLIC DVD REQUESTED

Report Request Date: 06-Dec-2022 | Requester: TESSERA DATA INC

Report [redacted]

PUBLIC DVD REQUESTED

Report Request Date: 27-Jun-2021 | Requester: SAFETY HOLDINGS, INC.

Report [redacted]

Legacy Report Request

Requested Date: 6/26/2014 | Requester: W MERCURIO

Report [redacted]

Legacy Report Request

Requested Date: 1/10/2014 | Requester: INS INFO EXCH

Report [redacted]

Legacy Report Request

Requested Date: 8/19/2011 | Requester: W MERCURIO

Report [redacted]

Legacy Report Request

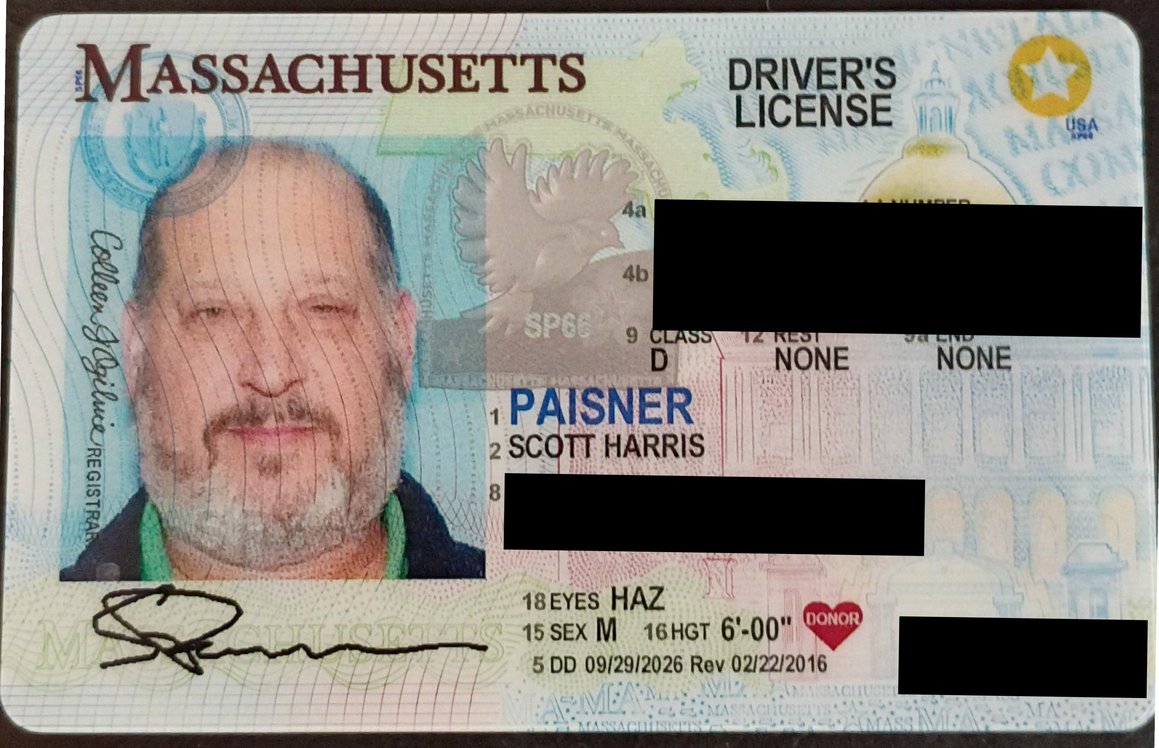
Requested Date: 10/7/2008 | Requester: AMER DRIV RECS

Section 5 - Required Courses

Certificate [redacted]

COMPLETE NSC COURSE

Clearance Date 22-May-2004 | Posted Date: 22-May-2004


MASSACHUSETTS
DRIVER'S LICENSE
USA
4a
4b
9 CLASS
D
12 REST
NONE
9a END
NONE
1 PAISNER
2 SCOTT HARRIS
8
Colleen G. Gilmo
REGISTRAR
18 EYES HAZ
15 SEX M
16 HGT 6'-00"
DONOR
5 DD 09/29/2026 Rev 02/22/2016

The following information must be completed by each driver.

Have you ever been convicted of any crime, felony or misdemeanor in the Commonwealth of Massachusetts, or any other state, or violation of any municipal ordinance or by-law?

Yes X No ____

If yes, please state offense: 1995 - Driving with a suspended license

What was the disposition? Plead guilty and paid a fine

I, the undersigned, understand that any false statements or misrepresentation is just cause for denial of license or permit. I grant authorization for the Framingham Police Department to conduct a criminal records check (CORI).

Signature :

Print Name: _____

Date of Birth [redacted] Social Security # [redacted]

Address: [redacted]

[redacted]

Phone: [redacted]

Drivers must apply to the Framingham Police Department for a Hackney License.

Attach copy of driver's license.

REGISTRY OF MOTOR VEHICLES

DRIVER HISTORY REPORT - myRmv

Date: 08/12/2026

SCOTT HARRIS PAISNER

[redacted]

[redacted]

Standard Driving Record

The following is a list of all publicly available violations and sanctions on file.

Section 1a - Customer Information

PAISNER, SCOTT H

[redacted]

Driver License Status: Active

CDL Status:

Earliest License Issue Date (Electronic): 24-May-1993

Eye Color: Hazel

Organ Donor: Yes

Height: 6' 0"

Sex: Male

Current Credential

Class D Passenger License

[redacted]: None | Restrictions: None | REAL ID: Yes

Section 1b - CDL Self Certification Information

Self Certification Type:	Commence:	Cease:

Examiner Information

Name:	Phone:	State:	
License Number:	Registry:	Issue Date:	
Posted:	Status:	Expire Date:	
Variance:	SPE:	Corr Len:	Hear Aid:
Variance Issue:	SPE Issue:	Exempt Intracity:	

Variance Expire: SPE Expire: Quality Qperator:

Section 2 - Violations

Administrative Action [redacted]
RDF - PAYMENT DEFAULT
Posted Date: 19-Feb-2020 | Decision Date: 19-Feb-2020
Citation Number: T1911236

Violation [redacted]
89/4A - MARKED LANES VIOLATION * C89 §4A
Posted Date: 24-Sep-2019 | Violation Date: 03-Sep-2019 | Finding Date: 16-Dec-2019
Disposition: R | Location: Leominster | SDIP Points: 2
Citation Number: T1911236

Violation [redacted]
700CMR709/RR - MASS PIKE - SPEEDING OVER POSTED LIMIT * 700 CMR §7.09(6)(C)
Posted Date: 13-Dec-2018 | Violation Date: 13-Dec-2018 | Finding Date: 15-Jan-2019
Disposition: R | Location: Framingham | SDIP Points: 2
Citation Number: 245909AA

Violation [redacted]
700CMR708/LL - MASS PIKE - SIGN, FAIL OBEY * 700 CMR §7.08(1)(A)
Posted Date: 02-Aug-2016 | Violation Date: 07-Jul-2016 | Finding Date: 09-Aug-2016
Disposition: R | Location: Boston | SDIP Points: 2
Citation Number: R7618794

Violation [redacted]
700CMR708/PP - MASS PIKE - SPEEDING * 700 CMR §7.08(6)(A)
Posted Date: 20-Apr-2016 | Violation Date: 29-Mar-2016 | Finding Date: 04-May-2016
Disposition: R | Location: South Boston | SDIP Points: 2
Citation Number: R7175563

Violation [redacted]
89/9 - STOP/YIELD, FAIL TO * C89 §9
Posted Date: 01-Jun-2015 | Violation Date: 11-May-2015 | Finding Date: 07-Oct-2015
Disposition: R | Location: Brookline | SDIP Points: 2
Citation Number: R5919222

Violation [redacted]
90/13A - SEAT BELT, FAIL WEAR * C90 §13A
Posted Date: 05-Dec-2013 | Violation Date: 05-Nov-2013 | Finding Date: 25-Nov-2013
Disposition: R | Location: Newton
Citation Number: R3041321

Violation [redacted]
730CMR708/PP - MASS PIKE--SPEEDING * 730 CMR §7.08(6)(A)
Posted Date: 06-Nov-2013 | Violation Date: 13-Oct-2013 | Finding Date: 28-Jan-2014
Disposition: R | Location: Boston | SDIP Points: 2
Citation Number: R3955878

Accident [redacted]
SURCHARGEABLE ACCIDENT - PROPERTY DAMAGE LIABILITY
Posted Date: 28-Jul-2008 | Incident Date: 30-Mar-2006 | Finding Date: 24-Jul-2008
Disposition: R | SDIP Points: 4

Accident [redacted]
SURCHARGEABLE ACCIDENT - PROPERTY DAMAGE LIABILITY
Posted Date: 20-Jul-2006 | Incident Date: 01-Dec-2005 | Finding Date: 18-Jul-2006
Disposition: R | SDIP Points: 3

Accident [redacted]

SURCHARGEABLE ACCIDENT - PROPERTY DAMAGE LIABILITY

Posted Date: 23-Feb-2006 | Incident Date: 29-Dec-2005 | Finding Date: 21-Feb-2006
Disposition: R | SDIP Points: 4

Violation [redacted]

90/20/B - INSPECTION/STICKER, NO * C90 §20

Posted Date: 15-Dec-2005 | Violation Date: 10-Nov-2005 | Finding Date: 29-Mar-2006
Disposition: R | Location: Canton | SDIP Points: 2
Citation Number: M2732844

Violation [redacted]

89/2 - PASSING VIOLATION * C89 §2

Posted Date: 15-Dec-2005 | Violation Date: 10-Nov-2005 | Finding Date: 29-Mar-2006
Disposition: R | Location: Canton | SDIP Points: 2
Citation Number: M2732844

Violation [redacted]

730CMR708/Q - MASS PIKE--INSPECTION STICKER, NO * 730 CMR §7.08(26)

Posted Date: 12-Jul-2005 | Violation Date: 30-Jun-2005 | Finding Date: 23-Feb-2006
Disposition: R | Location: Brighton | SDIP Points: 2
Citation Number: M2416207

Violation [redacted]

90/7/D - EQUIPMENT VIOLATION, MISCELLANEOUS MV * C90 §7

Posted Date: 13-Jun-2005 | Violation Date: 24-May-2005 | Finding Date: 25-Apr-2006
Disposition: R | Location: Brighton
Citation Number: M2223639

Violation [redacted]

90/20/B - INSPECTION/STICKER, NO * C90 §20

Posted Date: 13-Jun-2005 | Violation Date: 24-May-2005 | Finding Date: 25-Apr-2006
Disposition: R | Location: Brighton | SDIP Points: 2
Citation Number: M2223639

Violation [redacted]

90/18/A - SPEEDING IN VIOL SPECIAL REGULATION * C90 §18

Posted Date: 23-Mar-2005 | Violation Date: 18-Mar-2005 | Finding Date: 16-Jun-2005
Disposition: R | Location: Waltham | SDIP Points: 2
Citation Number: M1919610

Violation [redacted]

89/9 - STOP/YIELD, FAIL TO * C89 §9

Posted Date: 01-Jun-2004 | Violation Date: 21-May-2004 | Finding Date: 28-Jun-2004
Disposition: R | Location: Brookline | SDIP Points: 2
Citation Number: M0462089

Violation [redacted]

89/9 - STOP/YIELD, FAIL TO * C89 §9

Posted Date: 15-Oct-2003 | Violation Date: 07-Oct-2003 | Finding Date: 12-Apr-2004
Disposition: R | Location: Newton | SDIP Points: 2
Citation Number: K4025073

Violation [redacted]

555555 - MISCELLANEOUS MUNIC MOTOR VEHICLE ORDINANCE/BYLAW VIOL

Posted Date: 30-Sep-2003 | Violation Date: 24-Sep-2003 | Finding Date: 06-Apr-2004
Disposition: R | Location: Newton | SDIP Points: 2
Citation Number: K4202061

Violation [redacted]

720CMR906/A - STATE HWAY--SIGNAL/SIGN/MARKINGS VIOL * 720 CMR §9.06

Posted Date: 16-Apr-2002 | Violation Date: 27-Nov-2001 | Finding Date: 12-Mar-2002
Disposition: R | Location: Burlington | SDIP Points: 2
Citation Number: K1762748

NDR Violation [redacted]	**NDR VIOLATION** Reported Date: 10-Sep-2001 Disposition: R | Jurisdiction Code: NH
Out of State Violation [redacted]	**S93 - SPEEDING - NH** Posted Date: 02-Aug-2001 | Violation Date: 16-May-2001 | Finding Date: 25-Jun-2001 Disposition: R | SDIP Points: 2 Citation Number: D9301482913
Accident [redacted]	**SURCHARGEABLE ACCIDENT - COLLISION** Posted Date: 11-Dec-1995 | Incident Date: 25-Aug-1995 | Finding Date: 13-Oct-1995 Disposition: R | SDIP Points: 3
Violation [redacted]	**90/23/D - LICENSE SUSPENDED, OP MV WITH C90 §23** Posted Date: 13-Mar-1995 | Violation Date: 14-Feb-1995 | Finding Date: 15-Feb-1995 Disposition: G | Location: Wilmington | SDIP Points: 5 Citation Number: E0842772
Violation [redacted]	**90/18/A - SPEEDING IN VIOL SPECIAL REGULATION * C90 §18** Posted Date: 13-Mar-1995 | Violation Date: 14-Feb-1995 | Finding Date: 15-Feb-1995 Disposition: R | Location: Wilmington | SDIP Points: 2 Citation Number: E0842772
Violation [redacted]	**90/23/H - REGISTRATION SUSPENDED, OP MV WITH C90 §23** Posted Date: 13-Mar-1995 | Violation Date: 14-Feb-1995 | Finding Date: 15-Feb-1995 Disposition: G | Location: Wilmington | SDIP Points: 2 Citation Number: E0842772
Administrative Action [redacted]	**CIT - IMMEDIATE THREAT** Posted Date: 28-Feb-1995 | Decision Date: 28-Feb-1995
Accident [redacted]	**SURCHARGEABLE ACCIDENT - PROPERTY DAMAGE LIABILITY** Posted Date: 06-Jan-1995 | Incident Date: 28-May-1993 | Finding Date: 22-Dec-1994 Disposition: R | SDIP Points: 3
Accident [redacted]	**SURCHARGEABLE ACCIDENT - PROPERTY DAMAGE LIABILITY** Posted Date: 08-Jun-1994 | Incident Date: 28-Mar-1994 | Finding Date: 20-May-1994 Disposition: R | SDIP Points: 3
Violation [redacted]	**730CMR305/D - SUMNR/CALHN TUNL—$20 VIOLATION 730 CMR §** Posted Date: 26-Apr-1994 | Violation Date: 01-Apr-1994 | Finding Date: 09-May-1994 Disposition: R | Location: East Boston | SDIP Points: 2 Citation Number: D1990225
Violation [redacted]	**740CMR2151/A - LOGAN—SPEEDING OVER POSTED LIMIT 740 CMR** Posted Date: 16-Feb-1994 | Violation Date: 01-Feb-1994 | Finding Date: 09-Mar-1994 Disposition: R | Location: South Boston | SDIP Points: 2 Citation Number: D0067207
Accident [redacted]	**SURCHARGEABLE ACCIDENT - COLLISION** Posted Date: 04-Feb-1994 | Incident Date: 09-Nov-1993 | Finding Date: 13-Dec-1993 Disposition: R | SDIP Points: 4

Violation [redacted]

90/9/B - UNREGISTERED MOTOR VEHICLE * C90 §9

Posted Date: 15-Nov-1993 | Violation Date: 21-May-1993 | Finding Date: 02-Nov-1993
Disposition: R | Location: Needham | SDIP Points: 2
Citation Number: D0731205

Violation [redacted]

555555 - MISCELLANEOUS MUNIC MOTOR VEHICLE ORDINANCE/BYLAW VIOL

Posted Date: 08-Dec-1992 | Violation Date: 03-Dec-1992 | Finding Date: 19-Jan-1993
Disposition: R | Location: Lexington | SDIP Points: 2
Citation Number: C2074099

Accident [redacted]

SURCHARGEABLE ACCIDENT - COLLISION

Posted Date: 06-Dec-1991 | Incident Date: 11-Oct-1991 | Finding Date: 19-Nov-1991
Disposition: R | SDIP Points: 4

Violation [redacted]

90/17/A - SPEEDING * C90 §17

Posted Date: 04-Dec-1985 | Violation Date: 18-Oct-1985 | Finding Date: 31-Oct-1985
Disposition: R | Location: Dudley | SDIP Points: 2
Citation Number: 133971W

Violation [redacted]

90/17/A - SPEEDING * C90 §17

Posted Date: 11-May-1984 | Violation Date: 27-Feb-1984 | Finding Date: 08-Mar-1984
Disposition: R | Location: Brookline | SDIP Points: 2
Citation Number: 058942L

Violation [redacted]

90/16 - OPERATION OF MOTOR VEHICLE, IMPROPER * C90 §16

Posted Date: 10-Aug-1983 | Violation Date: 03-May-1983 | Finding Date: 13-May-1983
Disposition: R | Location: Brookline | SDIP Points: 2
Citation Number: 015052O

Section 3 - Sanctions

Sanction [redacted]

PAYMENT DEFAULT

Pending Period: 19-Feb-2020 to 30-Mar-2020 | Suspended: 30-Mar-2020 to 04-Aug-2022 |
Reinstated: 04-Aug-2022
Source Violation ID: 0-161-541-023
Citation Number: T1911236

Sanction [redacted]

PAYMENT DEFAULT

Pending Period: 04-May-2016 to 03-Jun-2016 | Cleared: 03-Jun-2016
Source Violation ID: 0-076-865-593
Citation Number: R7175563

Sanction [redacted]

PAYMENT DEFAULT

Pending Period: 12-Nov-2015 to 11-Dec-2015 | Cleared: 11-Dec-2015
Source Violation ID: 0-076-865-592
Citation Number: R5919222

Sanction [redacted]

PAYMENT DEFAULT

Suspended: 14-Apr-2014 to 07-May-2014 | Reinstated: 07-May-2014
Source Violation ID: 0-076-865-589
Citation Number: R3955878

Sanction [redacted]	**SEVEN SURCHARGEABLE EVENTS** Suspended: 28-Aug-2008 to 27-Oct-2008 | Reinstated: 31-Oct-2008 | BOA Order Source Violation ID: 0-076-865-604
Sanction [redacted]	**PAYMENT DEFAULT** Suspended: 10-Jul-2006 to 18-Aug-2006 | Reinstated: 18-Aug-2006 Source Violation ID: 0-076-865-583 Citation Number: M2223639
Sanction [redacted]	**PAYMENT DEFAULT** Pending Period: 04-May-2006 to 25-May-2006 | Cleared: 25-May-2006 Source Violation ID: 0-076-865-586 Citation Number: M2732844
Sanction [redacted]	**SEVEN SURCHARGEABLE EVENTS** Suspended: 02-Jun-2006 to 19-Jun-2006 | Reinstated: 19-Jun-2006 | BOA Order Source Violation ID: 0-076-865-583
Sanction [redacted]	**SEVEN SURCHARGEABLE EVENTS** Suspended: 26-May-2006 to 19-Jun-2006 | Reinstated: 19-Jun-2006 | BOA Order Source Violation ID: 0-076-865-586
Sanction [redacted]	**PAYMENT DEFAULT** Pending Period: 31-Mar-2006 to 26-Apr-2006 | Cleared: 26-Apr-2006 Source Violation ID: 0-076-865-584 Citation Number: M2416207
Sanction [redacted]	**PAYMENT DEFAULT** Suspended: 07-Aug-2004 to 18-Aug-2004 | Reinstated: 18-Aug-2004 Source Violation ID: 0-076-865-580 Citation Number: M0462089
Out of State Sanction [redacted]	**SANCTION IN NH FOR W00 - NON-ACD***** Suspended: 10-Oct-2001 to 06-Dec-2001 | History Only | Jurisdiction Code: NH Source Violation ID: 0-076-865-605
Sanction 0[redacted]	**LICENSE SUSPENDED, OP MV WITH C90 §23** Suspended: 13-Mar-1995 to 08-Jun-1995 | Reinstated: 08-Jun-1995 Source Violation ID: 0-076-865-564
Sanction [redacted]	**IMMEDIATE THREAT** Suspended: 28-Feb-1995 to 08-Jun-1995 | Reinstated: 08-Jun-1995 Source Violation ID: 0-076-865-596
Sanction [redacted]	**FSU __ 5 SURCHARGE EVENTS** Suspended: 31-Aug-1994 to 06-Jun-1995 | Reinstated: 06-Jun-1995 Source Violation ID: 0-076-865-597
Sanction [redacted]	**PAYMENT DEFAULT** Suspended: 18-Jun-1994 to 25-May-1995 | Reinstated: 25-May-1995 Source Violation ID: 0-076-865-563 Citation Number: D1990225

Sanction [redacted]

PAYMENT DEFAULT

Suspended: 18-Apr-1994 to 25-May-1995 | Reinstated: 25-May-1995
Source Violation ID: 0-076-865-562
Citation Number: D0067207

Sanction [redacted]

PAYMENT DEFAULT

Suspended: 28-Feb-1993 to 24-May-1993 | Reinstated: 24-May-1993
Source Violation ID: 0-076-865-559
Citation Number: C2074099

Section 4 - Record Requests

Report [redacted]

STANDARD DRIVING RECORD

Report Request Date: 20-Nov-2025 | Requester: FIRST CHOICE LIMOUSINE AND TRANSPORTATION SERVICE INC.

Report [redacted]

STANDARD DRIVING RECORD

Report Request Date: 14-Nov-2024 | Requester: FIRST CHOICE LIMOUSINE AND TRANSPORTATION SERVICE INC.

Report [redacted]

STANDARD DRIVING RECORD

Report Request Date: 13-Nov-2023 | Requester: PAISNER, SCOTT H

Report [redacted]

PUBLIC DVD REQUESTED

Report Request Date: 10-Aug-2022 | Requester: LEXISNEXIS RISK SOLUTIONS INC

Report [redacted]

PUBLIC DVD REQUESTED

Report Request Date: 16-Jan-2020 | Requester: SAFETY HOLDINGS, INC.

Report [redacted]

PUBLIC DVD REQUESTED

Report Request Date: 24-Dec-2019 | Requester: SAFETY HOLDINGS, INC.

Report [redacted]

PUBLIC DVD REQUESTED

Report Request Date: 24-Oct-2019 | Requester: SAFETY HOLDINGS, INC.

Report [redacted]

PUBLIC DVD REQUESTED

Report Request Date: 22-May-2019 | Requester: SAFETY HOLDINGS, INC.

Report [redacted]

Legacy Report Request

Requested Date: 8/23/2016 | Requester: AMER DRIV RECS

Report [redacted]

Legacy Report Request

Requested Date: 1/31/2016 | Requester: S PAISNER

Report [redacted]

Legacy Report Request

Requested Date: 7/29/2015 | Requester: S PAISNER

Report [redacted]	**Legacy Report Request** Requested Date: 1/12/2015 | Requester: S PAISNER
Report [redacted]	**Legacy Report Request** Requested Date: 10/2/2013 | Requester: S PAISNER
Report [redacted]	**Legacy Report Request** Requested Date: 9/9/2008 | Requester: ADVOCATE RMV 1
Report [redacted]	**Legacy Report Request** Requested Date: 5/5/2008 | Requester: CHOICEPOINT
Report [redacted]	**Legacy Report Request** Requested Date: 8/23/2006 | Requester: SP FOXBORO
Report [redacted]	**Legacy Report Request** Requested Date: 6/1/2006 | Requester: ADVOCATE RMV 1
Report [redacted]	**Legacy Report Request** Requested Date: 3/14/2002 | Requester: WOBURN DA
Report 4[redacted]	**Legacy Report Request** Requested Date: 12/3/2001 | Requester: BURLINGTON PD
Report [redacted]	**Legacy Report Request** Requested Date: 6/13/2001 | Requester: SCOTT H PAISNER
Report [redacted]	**Legacy Report Request** Requested Date: 2/10/1999 | Requester: TML
Report [redacted]	**Legacy Report Request** Requested Date: 3/7/1995 | Requester: WILMINGTON PD
Report [redacted]	**Legacy Report Request** Requested Date: 10/29/1993 | Requester: NEEDHAM PD

Section 5 - Required Courses

Certificate [redacted]	**COMPLETE NSC COURSE** Clearance Date 03-Nov-2016 | Posted Date: 03-Nov-2016
Certificate [redacted]	**COMPLETE NSC COURSE** Clearance Date 22-May-2006 | Posted Date: 22-May-2006

Certificate [redacted]	**COMPLETE NSC COURSE** Clearance Date 03-Jun-1995 | Posted Date: 03-Jun-1995

LEASE

by and between

RCP, LLC,
a Massachusetts limited liability company

as Landlord and

Deansgale Livery LLC,

as Tenant

for space at

40 Speen Street, Framingham, MA

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LEASE

THIS LEASE ("Lease") is dated as of the 23rd day of September, 2026 (the "Execution Date") and is entered into by and between Landlord and Tenant named below.

NOW THEREFORE, in consideration of the mutual covenants and agreements set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto hereby agree as follows:

ARTICLE 1.
DEFINITIONS AND EXHIBITS

1.1 Definitions. Whenever used herein, the following terms shall have the following meanings:

Commencement Date:	**October 1, 2026. The Term shall expire on October 31, 2029. Base Rent shall commence November 1, 2026.**
Landlord:	RCP, LLC, a Massachusetts limited liability company
Address of Landlord:	RCP, LLC 4[redacted] Attention: Keith Pabian
Tenant:	**Deansgale Livery LLC, a Massachusetts limited liability company**
Address of Tenant:	**Deansgale Livery LLC** [redacted] Attention: Kingsley Urakpo, Chief Executive Officer / Managing Member
Broker:	**R.W. Holmes Realty (Craig S. Johnston)**
Term:	**Three (3) years and one (1) month, commencing October 1, 2026 and expiring October 31, 2029 (the "Expiration Date"), unless sooner terminated or extended as provided herein.**
Lease Year:	Each period of twelve (12) full consecutive calendar months during the Term, with the first (1st) Lease Year commencing on the Commencement Date; provided, however, that **(a)** if the Commencement Date falls on a day other than the first (1st) day of a calendar month, then the first (1st) Lease Year shall also include the

partial calendar month in which the Commencement Date occurs, and **(b)** the last Lease Year shall in any event end on the Expiration Date (and may thus be a partial Lease Year).

Land: That certain real property, having an address of 40 Speen Street, Framingham, MA, on which the Building is located. A legal description of the Land is annexed hereto as **Exhibit A**.

Building: The Building, commonly known as and numbered 40 Speen Street, located on the Land, containing a total of approximately 32,673 rentable square feet of space.

Property: The Land and the Building, together with any and all other structures and improvements located thereon from time to time during the Term, including, without limitation, the Common Area (as defined in Section 2.1).

Premises: Approximately 916 rentable square feet of space located on the first (1st) floor of the Building, known as Suite 106, as approximately shown on Exhibit A. The parties agree that the square footage of the Premises and Property shall be fixed and not subject to dispute or remeasurement except as expressly provided herein.

Permitted Use: Professional business office and ancillary administrative uses in connection with Tenant's livery business, consistent with the character of an office building. Vehicle parking is subject to Section 2.1 and Exhibit B. No vehicle maintenance, repair, washing, fueling or storage of hazardous materials is permitted at the Property. All uses remain subject to applicable Legal Requirements and Landlord's reasonable rules and regulations.

Base Rent: Base Rent shall be payable according to the following schedule. October 2026 shall be free of Base Rent only; the rent commencement date is November 1, 2026.

Period	Annual Base Rental Rate / PSF	Monthly Installmen
Nov. 1, 2026 – Oct. 31, 2027	[redacted]	[redacted]
[redacted] – [redacted]		

Tenant's Proportionate Share: 2.8035% (916 divided by 32,673 rentable square feet), subject to the provisions of this Lease concerning changes in Building area.

Electrical Expense: Tenant shall pay for electricity serving the Premises as Additional Rent. Until separately metered or otherwise reasonably determined

by Landlord, electricity shall be estimated at [redacted] per rentable square foot annually, equal to [redacted] month, subject to adjustment and reconciliation to actual or reasonably allocated costs. Landlord may separately meter the Premises at Tenant's cost as provided in Section 5.1. Electricity shall not be charged twice through Operating Expenses.

Parking Spaces Allocated to Tenant:

Tenant shall be entitled to use up to five (5) parking spaces within the area highlighted on the site plan attached hereto as Exhibit C (the "Designated Parking Area"), subject to the terms and provisions of Section 2.1 below. Such allocation includes all vehicles associated with Tenant, including Tenant's business vehicles and the personal vehicles of Tenant's owners, members, managers, employees, agents and invitees. The allocation is an aggregate limit of five (5) vehicles at any one time and shall not be construed as permitting five (5) business vehicles in addition to personal vehicles. Overnight parking is permitted within the Designated Parking Area, subject to the terms of this Lease.

Tenant shall not park or permit more than five (5) vehicles associated with Tenant to be parked on the Property at any one time without Landlord's prior written consent. If Tenant exceeds its allocation, Landlord may provide written notice requiring removal of the excess vehicle or vehicles. If any excess vehicle remains on the Property more than twenty-four (24) hours after such notice, Tenant shall pay Landlord an additional parking charge of Fifty Dollars ($50.00) per excess vehicle per day, or portion thereof, until the violation is cured. Such charge shall constitute Additional Rent and shall be payable within ten (10) days after demand. Payment of such charge shall not grant Tenant the right to use additional parking spaces, and Landlord reserves all rights and remedies available under this Lease and applicable law.

Security Deposit:

[TO BE DETERMINED following Landlord's review of Tenant's financial statements.]

Operating Expenses:

The aggregate costs and expenses incurred by Landlord in the operation, repair, replacement, maintenance and management of the Property, including, for example, but without limitation, all costs, expenses, fees, premiums and payments (of any kind whatsoever) incurred or made by Landlord in connection with and/or for the following: the repair and maintenance of the Building's heating, ventilation, air conditioning, plumbing, electrical, utility, and life safety systems (to the extent not performed by Tenant at Tenant's sole cost and expense); gardening and landscaping; snow and ice removal; utility, water and sewage services for the Common Area; maintenance of signs (other than tenants' signs); insurance premiums, including

special form coverage, together with loss of rent endorsements, the part of any claim required to be paid under the deductible portion of any insurance policies carried by Landlord, commercial general insurance and any other insurance carried by Landlord (all such insurance shall be in such amounts as may be required by Landlord's Mortgagee (as defined herein) or as Landlord may reasonably determine); personal property taxes but only to the extent not within the definition of Taxes below; except as otherwise provided herein, rented or leased personal property used in the operation or maintenance of the Common Area; required licenses and permits; routine maintenance and repair of the roof membrane, flashings, gutters, downspouts, roof drains, skylights and waterproofing; maintenance of paved areas (including sweeping, striping, repairing, resurfacing, and repaving); general maintenance, painting, lighting, cleaning, refuse removal, security and similar items with respect to the Common Area; security of the Common Areas; capital repairs and/or improvements (subject to the limitations thereon set forth below); commercially reasonable reserves for roof replacement, exterior painting and other appropriate reserves; a property management fee not to exceed more than five (5%) percent of the gross revenue collected from the Building; labor costs, including wages and other payments, costs to Landlord of worker's compensation and disability insurance, payroll taxes, employment taxes, general welfare benefits, pension payments, medical and surgical benefits, fringe benefits, and all legal fees and other costs or expenses incurred in resolving any labor dispute; and legal, accounting, inspection, and other consultation fees (including, without limitation, fees charged by consultants retained by Landlord for services that are designed to produce a reduction in Operating Expenses or to reasonably improve the operation, maintenance or state of repair of the Building) incurred in the ordinary course or in connection with making the computations required hereunder or in any audit of operations. Landlord may cause any or all of such services to be provided by third parties and the cost of such services shall be included in Operating Expenses. With respect to any Operating Expenses which are included for the benefit of the Property and other property, Landlord shall make a reasonable allocation of such cost between the Property and such other property. In the event that during all or any portion of any Lease Year or any base year, the Building is not fully rented and occupied Landlord shall make an appropriate adjustment in occupancy-related Occupancy Expenses for such year for the purpose of avoiding distortion of the amount of such Operating Expenses to be attributed to Tenant by reason of variation in total occupancy of the Building, by employing consistent and sound accounting and management principles to determine Operating Expenses that would have been paid or incurred by Landlord had the Building been ninety-five percent (95%) rented and occupied, and the amount so determined shall be deemed to have been Operating Expenses for such Lease Year.

Operating Expenses shall not include, however: the cost of capital replacements and capital improvements, provided, however, that such capital replacements and capital improvements shall be amortized (on a straight line basis) over the useful life thereof in accordance with generally accepted accounting principles and included in Operating Expenses hereunder only to the extent that said useful life occurs during the then remaining balance of the Term; principal or interest payments on any mortgages or other financing arrangements; leasing commissions; depreciation for the Property (except as set forth above); costs and disbursements and other expenses incurred in connection with negotiations or disputes with tenants, other occupants, or prospective tenants or occupants; costs of renovating or otherwise improving, decorating, painting or redecorating space for tenants or other occupants of the Building which is not Common Area; and overhead and profit increment paid to subsidiaries or affiliates of Landlord for services, to the extent only that the costs of such services exceed competitive rates for the provision of such services were they not so rendered by a subsidiary or affiliate.

Taxes: All taxes, assessments (special, betterment, or otherwise), levies, fees, rent taxes, excises, impositions, charges, water and sewer rents and charges, and all other government levies, charges and fees, general and special, ordinary and extraordinary, foreseen and unforeseen, which are imposed or levied upon or assessed against the Property or any rentals or other sums payable by any tenants or occupants thereof. Taxes shall include Landlord's costs and expenses of contesting any Taxes, provided, however that nothing herein shall be deemed to obligate Landlord to contest, or seek a reduction in, Taxes. If at any time during the term the present system of ad valorem taxation of real property shall be changed so that in lieu of the whole or any part of the ad valorem tax on real property, or in lieu of increases therein, there shall be assessed on Landlord a capital levy or other tax on the gross rents received with respect to the Property or a federal, state, county, municipal, or other local income, franchise, excise or similar tax, assessment, levy, or charge (distinct from any now in effect) measured by or based, in whole or in part, upon gross rents, then all of such taxes, assessments, levies, or charges, to the extent so measured or based, shall be included in Taxes. In no event shall Taxes include any net federal or state income taxes levied or assessed on Landlord, unless such taxes are a specific substitute for real property taxes.

Operating Expense Base Year: **Fiscal year 2026 [fiscal-year dates to be confirmed].**

Taxes Base Year: **Fiscal year 2027 (July 1, 2026 through June 30, 2027).**

1.2 Exhibits. The exhibits listed in this Section and attached to this Lease are incorporated by reference and are a part of this Lease.

Exhibit A: Floor Plan
Exhibit B: Rules and Regulations

ARTICLE 2.
PREMISES, LEASE TERM AND COMMENCEMENT OF LEASE TERM

2.1 Premises; Common Area; Parking. Landlord hereby leases to Tenant the Premises, for the Term, subject to and with the benefit of the terms, covenants, conditions and provisions of this Lease, together with the use, in common with others now or hereafter entitled thereto from time to time, of the Common Area (defined below), all subject to the rules and regulations set forth in **Exhibit B** as the same may be supplemented or modified by Landlord in its reasonable discretion from time to time (the "**Rules and Regulations**") and all of the other provisions of this Lease. Subject to the provisions of this Lease, Tenant shall have access to the Premises during the Term twenty-four hours a day, seven days a week, three hundred sixty-five days a year with access outside of Business Hours by means of a card access system.

As used in this Lease, "**Common Area**" shall mean, collectively, all areas within the Property which are available for the common use of tenants or occupants of the Property and which are not leased or held for the exclusive use of Tenant or other tenants or occupants, including, but not limited to, parking areas, driveways, sidewalks, access roads, and landscaped areas, hallways, stairways, entryways, elevators, common bathrooms. Landlord, from time to time, may change the size, configuration, location, nature, and use of any of the Common Area, convert Common Area into leasable areas, construct additional parking facilities (including parking structures) in the Common Area, and increase or decrease Common Area land or facilities. Tenant acknowledges that such activities may result in inconvenience to Tenant. Such changes to the Common Area are permitted, provided that they do not materially adversely affect Tenant's use of the Premises, rights under this Lease and/or permanently, materially, and adversely affect access to the Premises through the Common Areas as in effect as of the date of this Lease.

Tenant shall have the non-exclusive right (in common with other tenants and all others to whom Landlord has granted or may grant such rights) to use the Common Area for the purposes intended therefor. Tenant shall abide by all Rules and Regulations and shall use its best efforts to cause others who use the Common Area with Tenant's express or implied permission to abide by the Rules and Regulations and the other provisions of this Lease regarding the use of the Common Areas (including the parking and driveway areas). At any time, Landlord may close any Common Area to perform any acts in the Common Area as, in Landlord's commercially reasonable judgment, are desirable to operate, maintain, repair or improve the Property, to prevent the dedication thereof for public purposes or to prevent prescriptive use thereof, and/or otherwise perform Landlord's obligations under this Lease. Tenant shall not interfere with the rights of Landlord, other tenants, or any other person entitled to use the Common Area.

Tenant shall be entitled to park up to five (5) vehicles in the area designated by Landlord, without additional parking rent. Overnight parking is permitted. Landlord may reasonably designate or relocate the parking area, provided the allocation is maintained. Parking shall not obstruct access or fire lanes. Vehicle maintenance, repairs, washing and fueling are prohibited. Parking is at Tenant's sole risk except to the extent caused by Landlord's gross negligence or willful misconduct. All parking remains subject to applicable law and Exhibit B.

2.2 Commencement Date; Early Access. The Commencement Date shall be October 1, 2026. Landlord shall deliver the Premises AS-IS, with carpets shampooed. Tenant shall be responsible for voice, data, security and furniture installation at its sole cost. Any early access requires Landlord's consent and required insurance and shall not advance the Rent Commencement Date. All other applicable Lease obligations shall apply during early access.

ARTICLE 3.
BASE RENT AND ADDITIONAL RENT

3.1 Base Rent. Tenant covenants and agrees to pay, during the Term, to Landlord, or to such other person as Landlord by written notice instructs Tenant to make such payments for Landlord's benefit and account, without prior notice, presentment or demand (except as otherwise herein expressly provided), which payments shall be made by check delivered to the address of Landlord set forth in Section 1.1, by ACH transfer pursuant to directions to be provided in writing by Landlord, or at such other place (or to such account) as Landlord may by written notice to Tenant direct, commencing on the Commencement Date and continuing thereafter on the first day of each calendar month of the Term, the Base Rent in equal monthly installments, paid in advance. Rent shall be pro-rated for any portion of a calendar month included at the beginning or end of the Term, 1/30 of a monthly payment being due for each day of a partial month (notwithstanding the actual number of days in the applicable calendar month).

The first full month's Base Rent shall be due November 1, 2026.

3.2 Additional Rent. If in any calendar year during the Term, (i) Operating Expenses paid or incurred shall exceed Operating Expenses paid or incurred in the Operating Expense Base Year and/or (ii) Taxes paid or incurred by Landlord in any Lease Year shall exceed the amount of such Taxes which became due and payable in the Taxes Base Year, Tenant shall pay as Additional Rent for such Lease Year Tenant's Proportionate Share of each such excess amount. Notwithstanding the foregoing, the CAM charges payable by Tenant shall not increase by more than five percent (5%) per calendar year on a cumulative basis, regardless of the actual increase in CAM expenses incurred by Landlord

(a) Prior to the Commencement Date, and thereafter within one hundred twenty (120) days (or as soon thereafter as is reasonably practicable for Landlord) following the end of each calendar year included in whole or in part in the Term, Landlord shall deliver to Tenant Landlord's good faith estimate of Tenant's liability for Operating Expenses and Taxes for the current calendar year of the Term. Beginning on the Commencement Date, and on the first day of each calendar month thereafter, Tenant shall pay to Landlord, as Additional Rent, an amount equal to 1/12th of Tenant's Proportionate Share of the amount shown in Landlord's most current estimate of Tenant's liability for Operating Expenses and Taxes.

(b) Within one hundred twenty (120) days after the end of each calendar year or portion thereof included in the Term (or as soon thereafter as is reasonably practicable for Landlord), Landlord shall deliver to Tenant a statement setting forth the actual Operating Expenses for the immediately preceding calendar year. If the total estimated amount paid for excess Operating Expenses by Tenant for such preceding calendar year or portion thereof during the Term exceeds the actual amount due therefor as shown on Landlord's statement, the overpayment shall be credited against the monthly installments of Additional Rent next due (or promptly refunded to Tenant if the Term has expired). If the total estimated amount paid by Tenant for any preceding year or portion thereof during the Term is less than the actual excess amount due therefor as shown on Landlord's statement, then Tenant shall pay the difference to Landlord within thirty (30) days after receipt of such statement from Landlord. Tenant's and Landlord's rights and obligations under this Section 3.2 shall survive the expiration or sooner termination of this Lease. For purposes of calculating Tenant's Proportionate Share of Operating Expenses excess, a year shall mean a full calendar year except for the first year, which shall begin on the Commencement Date, and the last year, which shall end on the Expiration Date. From time to time Landlord may reasonably re-estimate the Operating Expenses to be due by Tenant and deliver a copy of the re-estimate to Tenant. Thereafter, the monthly installments of Operating Expenses shall be appropriately adjusted in accordance with the new estimations so that, by the end of the calendar year in question, Tenant shall have paid all of the excess Operating Expenses for such calendar year as reasonably estimated by Landlord.

(c) In addition to the foregoing, if and to the extent that Taxes are required to be paid in advance on a quarterly, semi-annual or annual basis for any Tax Year to avoid a penalty or a late charge to Landlord, then Landlord may elect to bill Tenant for such excess Taxes on a quarterly, semi-annual or annual basis, as the case may be, and each of Tenant's installments on account thereof shall be due in its entirety within twenty (20) days after Landlord's invoicing Tenant therefor (in lieu of monthly payments as hereinabove provided).

(d) Provided that Tenant shall have first paid all amounts due and payable by Tenant pursuant to this Section 3.2 and Tenant is not otherwise in default under this Lease beyond any applicable notice or cure periods, within thirty (30) days after receiving Landlord's statement of actual Operating Expenses and Taxes for a particular calendar year, Tenant shall have the right to provide Landlord with written notice (the "**Review Notice**") of its intent to review Landlord's books and records relating to the Operating Expenses and Taxes for such calendar year. Within a reasonable period of time after receipt of a timely Review Notice, but in no event more than forty five (45) days, Landlord shall make such books and records available to Tenant or Tenant's agent for its review at either Landlord's office or at the Property, provided that if Tenant retains an agent to review Landlord's books and records for any calendar year, such agent must be a certified public accountant licensed to do business in the state in which the Property is located and must not be compensated on a so-called contingent fee basis. Tenant shall be solely responsible for any and all costs, expenses and fees incurred by Tenant or Tenant's agent in connection with such review, unless the results of such review or audit confirm an overstatement of Operating Expenses and/or Taxes by Landlord for the applicable calendar year in excess of ten percent (10%). If Tenant gives a Review Notice in accordance herewith, then within thirty (30) days after Landlord's books and records are made available to Tenant, Tenant shall have the right to give Landlord written notice stating in reasonable detail any objection to Landlord's statement of actual Operating Expenses and/or Taxes for such calendar year. If Tenant fails to give Landlord

written notice of objection within such thirty (30) day period or fails to provide Landlord with a Review Notice within the thirty (30) day period provided above, Tenant shall be deemed to have approved Landlord's statement of Operating Expenses and Taxes for such calendar year in all respects and shall thereafter be barred from raising any claims with respect thereto. Upon Landlord's receipt of a timely objection notice from Tenant, Landlord and Tenant shall work together in good faith to resolve the discrepancy between Landlord's statement and Tenant's review. If Landlord and Tenant in good faith reasonably determine that Operating Expenses and/or Taxes for the calendar year in question are less than reported, Landlord shall forthwith provide Tenant with a credit against Additional Rent next due (or promptly refund to Tenant if the Term has expired) in the amount of any overpayment by Tenant. Likewise, if Landlord and Tenant determine that Operating Expenses and/or Taxes for the calendar year in question are greater than reported, Tenant shall pay to Landlord within thirty (30) days the amount of underpayment by Tenant. Any information obtained by Tenant pursuant to the provisions of this Section shall be treated as confidential and may not be disclosed by Tenant to anyone (other than (i) to Tenant's agent performing such review, legal counsel and advisors, provided each of them are bound to so keep the same confidential or (ii) as required by law or applicable court order). Tenant shall have the right to perform such review or audit of the Landlord's books, records and documents as provided for herein not more than once during each calendar year, only for the immediately preceding calendar year and only during a period when Tenant is not in default under this Lease beyond any applicable notice or cure periods.

3.3 Rent. References in this Lease to "**Rent**" or "**rent**" shall be deemed to include both Base Rent and Additional Rent when the context so allows. All monetary obligations of Tenant under this Lease, except for the obligation to pay Base Rent, shall be deemed obligations to pay "**Additional Rent**". Landlord may apply any payments received from Tenant to any obligations of Tenant then accrued (including Rent) in any order and without regard to how Tenant may characterize or designate such payments or obligations.

3.4 In the event of any dispute regarding whether any amount is owed to Landlord, the amount claimed by Landlord shall be paid to Landlord pending resolution of such dispute, and failure to pay such amount shall constitute a default hereunder. Landlord's obligations under this Lease shall be limited solely to the specific, express obligations set forth herein and all other matters affecting the Premises (or the Property, as the case may be) or Tenant's use thereof shall be the obligation of Tenant.

3.5 Independent Covenants; Waiver. Tenant waives all rights to **(i)** any abatement, off-set, suspension, deferment, reduction or deduction of or from Rent, and/or **(ii)** quit, terminate or surrender this Lease or the Premises or any part thereof, except, in either case, as expressly provided herein. Tenant hereby acknowledges and agrees that the obligations of Tenant and Landlord hereunder shall be separate and independent covenants and agreements, that Rent shall continue to be payable in all events and that the obligations of Tenant and Landlord hereunder shall continue unaffected, unless the requirement to pay or perform the same shall have been terminated or abated pursuant to an express provision of this Lease. Tenant agrees that Tenant shall not take any action to terminate, to rescind or to avoid this Lease notwithstanding any default by Landlord hereunder. Landlord and Tenant each acknowledges and agrees that the independent nature of the obligations of Tenant hereunder represents fair, reasonable and accepted commercial practice with respect to the type of property subject to this Lease, and that this agreement is the

product of free and informed negotiation during which both Landlord and Tenant were represented by counsel skilled in negotiating and drafting commercial leases and Tenant hereby expressly waives the benefit of any currently existing or hereinafter enacted statute or caselaw to the contrary, including, without limitation, Wesson v. Leone Enterprises, Inc., 437 Mass. 708 (2002). Such acknowledgements, agreements and waivers by Tenant are a material inducement to Landlord's entering into this Lease.

3.6 Late Charge. Tenant agrees that if any monthly installment of Base Rent or Additional Rent or any other sum due to Landlord is not paid within ten (10) days of the date due, an administrative late charge shall be imposed in an amount equal to eight percent (8%) of the unpaid amount (such amount constituting a fair and reasonable estimate of the costs to Landlord, including inconvenience, of having to administer Tenant's late payment). The amount of the late charge to be paid by Tenant shall be reassessed and added to Tenant's obligation for each successive monthly period until paid. The provisions of this Section shall in no way relieve Tenant of the obligation to pay the monthly installment(s) of Base Rent or Additional Rent or other sum on or before the date(s) on which they are due, nor do the terms of this Section in any way affect Landlord's remedies pursuant to Article 10 in the event said monthly installment(s) of Base Rent, Additional Rent or other sum are unpaid after the date due.

ARTICLE 4.
SECURITY DEPOSIT

4.1 Security Deposit. Upon Tenant's execution and delivery of this Lease, Tenant shall deliver to Landlord a security deposit in the amount identified as the Security Deposit in Section 1.1. Except as provided for in this Section 4.1, Landlord shall hold the same throughout the Term as security for the performance by Tenant of all obligations on the part of Tenant hereunder. The Security Deposit is not an advance payment of Rent or a measure or limit of Landlord's damages upon an Event of Default (defined in Section 10.1). Landlord shall have the right from time to time, without prejudice to any other remedy Landlord may have on account thereof, to apply such Security Deposit or any part thereof, to Landlord's damages arising from, or to cure (in whole or in part), any Event of Default by Tenant. If Landlord shall so apply any or all of such Security Deposit, Tenant shall immediately upon demand deposit with Landlord the amount so applied to be held as security hereunder. Landlord shall return the Security Deposit, or so much thereof as shall have theretofore not been applied in accordance with the terms of this Lease, to Tenant on the date ("**Refund Date**") that is thirty (30) days after the later to occur of **(i)** the Expiration Date or earlier termination of the Term and the surrender of possession of the Premises by Tenant to Landlord at such time, provided that there is then existing no Event of Default (nor any circumstance which, with the passage of time or the giving of notice, or both, would constitute an Event of Default) or **(ii)** the date after the Expiration Date or earlier termination of the Term (and the surrender of possession of the Premises by Tenant to Landlord at such time) on which Tenant pays to Landlord any reconciliation amounts due under Section 3.2(b) above, provided that there is then existing no Event of Default of Tenant (nor any circumstance which, with the passage of time or the giving of notice, or both, would constitute an Event of Default). While Landlord holds such Security Deposit, Landlord shall have no obligation to pay interest on the same and shall have the right to commingle the same with Landlord's other funds. If Landlord conveys Landlord's interest under this Lease, the Security Deposit, or any part thereof not previously applied, shall be turned over by Landlord to Landlord's grantee, and, if so turned over, Tenant agrees to look solely to such grantee for proper application of the Security Deposit in accordance with the terms of this

Section 4.1 and the return thereof in accordance herewith. Landlord's Mortgagee shall not be responsible to Tenant for the return or application of any such Security Deposit, regardless of whether it succeeds to the position of Landlord hereunder, unless such deposit shall have been actually received by such Landlord's Mortgagee.

ARTICLE 5.
UTILITIES AND SERVICES

5.1 Utilities. The Landlord shall provide electricity to the Premises at no additional cost to the Tenant, provided that such usage remains within reasonable limits consistent with standard usage for comparable businesses in similar commercial spaces. In the event the Tenant's electricity consumption exceeds typical industry standards, as reasonably determined by the Landlord based on utility data or other comparable benchmarks, the Tenant agrees to pay the excess cost as additional rent. All costs for other utilities shall be included in Operating Expenses, and Tenant shall be responsible for Tenant's Proportionate Share thereof. Landlord reserves the right hereunder, at Tenant's sole cost and expense, to separately meter any utilities serving the Premises at any time to the extent such utilities are not now so separately metered. Landlord shall be under no obligation to furnish any utilities or services to the Premises and shall not be liable for any interruption or failure, for any reason whatsoever, in the supply of any such utilities or services to the Premises. In no event shall Tenant's connected electrical load in the Premises exceed the Building's electrical specifications, nor shall Tenant in any other way exceed Tenant's share of the existing capacities of the Building's systems or services, unless Landlord first consents in writing, in Landlord's sole and absolute discretion.

Notwithstanding the foregoing, if Tenant is prevented from using, and does not use, the Premises or a substantial portion thereof as a result of any negligent failure by Landlord to provide utility services to the Premises, and such failure was not caused directly or indirectly by the negligence or willful misconduct of Tenant, its employees, agents, contractors, subcontractors, visitors, guests, invitees or licensees (an "**Abatement Event**"), then Tenant shall give written notice of such Abatement Event to Landlord. If the Abatement Event continues for five (5) consecutive days (the "**Abatement Period**") after Landlord's receipt of Tenant's written notice, then Base Rent shall be abated or reduced after expiration of the Abatement Period, for such time that Tenant continues (as a result of the Abatement Event) to be so prevented from using, and does not use, the Premises or a substantial portion thereof, in the proportion that the rentable area of the portion of the Premises that Tenant is prevented from using, and does not use, bears to the total rentable area of the Premises

5.2 Landlord's Services. Landlord, during the Term, shall provide (or contract for the provision of) the following services (nothing in the following prevents Landlord from providing, in its sole and absolute discretion, services in addition to the following) the cost of which shall be included in Operating Expenses except as expressly noted below:

(i) the repair and maintenance of the structural components of the Premises, the Property, and Building systems in accordance with Section 7.3 below;

(ii) the repair and maintenance of the Common Area (including, without limitation, the removal of snow and ice);

(iii) the management of the Property;

(iv) Common Area lighting;

(v) Heating, ventilation and air-conditioning ("HVAC") during Business Hours for the reasonably comfortable occupancy of the Premises. "Business Hours" shall be Monday through Friday from 7:00 AM to 6:00 PM and Saturday from 8:00 AM to 1:00 PM, excluding holidays for the state of Massachusetts and Federal holidays. Upon 24 hours prior request to Landlord, Landlord shall provide after-hours HVAC services at a charge of $125.00 per hour, which amount may be reasonably changed by Landlord from time to time with notice to Tenant;

(vi) Water for lavatories and sinks within the Premises;

(vii) Building standard amounts of electricity;

(viii) An elevator for access to the Premises, if necessary.

5.3 Cleaning. On business days, Landlord shall provide nightly janitorial services for the Premises and Common Area consistent with class A buildings in the Framingham market.

ARTICLE 6. INSURANCE

6.1 Required Coverage. Tenant covenants and agrees with Landlord that during the Term the following insurance shall be obtained by Tenant and carried at Tenant's sole cost and expense:

(a) commercial general liability insurance on an occurrence basis with limits of liability in an amount not less than One Million Dollars ($1,000,000) combined single limit for each occurrence, and Two Million Dollars ($2,000,000) in the annual aggregate, or such higher limits in any case as may reasonably be required in case of increase in risk or as may be customarily carried in the geographic market in which the Property is located by prudent occupants of similar properties, as determined by Landlord in its commercially reasonable discretion, and/or as may be required by Landlord's Mortgagee. The commercial general liability insurance policy shall include contractual liability coverage covering Tenant's liabilities under this Lease including, without limitation, Tenant's indemnification obligations under Section 7.5;

(b) Workers Compensation Insurance, as required by law;

(c) Automobile Liability Insurance, including, but not limited to, passenger liability, on all owned, non-owned, and hired vehicles used in connection with the Premises, with a combined single limit per occurrence of not less than One Million Dollars ($1,000,000) for Bodily Injury and Property Damage;

(d) a policy of Special Form property insurance which shall be primary on any Alterations, other leasehold improvements made by either party as well as Tenant's personal property, including, without limitation, its goods, furniture, fixtures, equipment and inventory, in an amount adequate to cover their full replacement cost, including a vandalism and malicious mischief endorsement, and sprinkler leakage coverage. Any proceeds from such insurance shall be used for the repair or replacement of the property, Alterations or Landlord's Work, as applicable, damaged or destroyed, unless this Lease is terminated under an applicable provision hereof. If the Premises are not repaired or restored following damage or destruction in accordance with other provisions herein, Landlord shall receive any proceeds from such insurance allocable to any Alterations, and Landlord's Work;

(e) At all times when any work is in process in connection with any Alterations being made by Tenant, Tenant shall require all contractors and subcontractors to maintain the insurance described in Sections 6.1 (a), (b) and (c); and

(g) Such additional insurance as Landlord or Landlord's Mortgagee shall reasonably require.

6.2 Writing and Disposition of Insurance Policies. All policies of insurance required hereunder shall be procured by Tenant from responsible insurance companies licensed to do business in the state in which the Property is located with an A.M. Best Rating at A/IX or better and reasonably satisfactory to Landlord. Tenant shall furnish Landlord with certificates of said policies upon Tenant's execution of this Lease. All such policies shall name Landlord, the Property manager and Landlord's Mortgagee as additional insureds or loss payees, as applicable, as their respective interests may appear.

All such policies shall be endorsed to provide that Tenant's policy is primary and that any insurance covered by Landlord is excess and not contributing with any Tenant insurance requirement hereunder. Tenant agrees that if Tenant does not take out and maintain such insurance or furnish Landlord with renewals or binders, Landlord may (but shall not be required to) procure said insurance on Tenant's behalf and charge Tenant the cost thereof, which amount shall be payable by Tenant upon demand with interest thereon at the Interest Rate (as defined below) from the date such sums are expended. All such insurance shall provide that it cannot be canceled except upon thirty (30) days prior written notice to Landlord. Tenant shall comply with all rules and directives of any insurance board, company or agency determining rates of hazard coverage for the Premises, including, but not limited to, the installation of any equipment and/or the correction of any condition necessary to prevent any increase in such rates.

6.3 Mutual Waiver of Subrogation. Landlord and Tenant each hereby releases the other, its officers, directors, shareholders, employees and agents, from any and all liability or responsibility (to the other or anyone claiming through or under them by way of subrogation or otherwise) for any loss or damage to property covered by insurance which either party is required to maintain under this Lease, even if such loss or damage shall have been caused by the fault or negligence of the other party, or anyone for whom such party may be responsible. However, this release shall be applicable and in force and effect only with respect to loss or damage occurring during such time as the releasor's insurance policies shall contain a clause or endorsement to the effect that any such release shall not adversely affect or impair said policies or prejudice the right of the releasor to recover thereunder. Landlord and Tenant each agrees that any property insurance

policies will include such a clause or endorsement as long as the same shall be obtainable without extra costs, or, if extra cost shall be charged therefor, so long as the other party pays such extra cost. If extra cost shall be chargeable therefor, each party shall advise the other party and of the amount of the extra cost, and the other party, at its election, may pay the same, but shall not be obligated to do so.

6.4 Blanket Policies. Nothing contained herein shall prevent Tenant from taking out insurance of the kind and in the amounts provided for herein under a blanket insurance policy or policies covering properties other than the Premises, provided however, that any such policy or policies of blanket insurance **(a)** shall specify therein, or Tenant shall furnish Landlord with the written statement from the insurer(s) under such policy or policies specifying the amount of the total insurance allocated to the Premises, which amounts shall not be less than the amounts required herein and **(b)** amounts so specified shall be sufficient to prevent any of the insureds from being a co-insurer within the terms of the applicable policy or policies, and provided further, however, that any such policy or policies of blanket insurance shall, as to the Premises, otherwise comply as to endorsements and coverage with the provisions herein.

6.5 Landlord's Insurance. During the Term, Landlord shall maintain Special Form property and commercial general liability insurance covering the Building and the Property. The Special Form property insurance policy shall cover all structures and improvements for full replacement value, with replacement cost endorsement, above foundation walls, and such other insurance as Landlord may from time to time elect to carry with respect to the Property and its operations thereon as is customary of commercial landlords owning real property in the Framingham area. The commercial general liability insurance shall insure against claims for bodily injury, death, and property damage occurring in or about the Property. Such insurance may be included in blanket policies carried by Landlord so long as such blanket policies do not reduce the amount of insurance available to pay any claim with respect to the Property. Tenant's Proportionate Share of the cost of such insurance shall be paid by Tenant as an Operating Expense.

ARTICLE 7.
TENANT'S ADDITIONAL COVENANTS

Tenant covenants and agrees during the Term and such further time as Tenant occupies the Premises or any part thereof as follows:

7.1 Performing Obligations. Tenant shall perform fully, faithfully and punctually all of the obligations of Tenant set forth in this Lease; and pay when due Rent and all charges, rates and other sums which by the terms of this Lease are to be paid by Tenant.

7.2 Use. Tenant shall use the Premises only for the Permitted Use, and for no other purpose. Nothing in the foregoing constitutes a representation or warranty by Landlord that such use complies with Legal Requirements.

7.3 Maintenance and Repair. At Tenant's expense, and except for reasonable wear and tear and damage from insured fire or other casualty, Tenant shall keep the Premises, including, without limitation, all interior glass, all utilities, pipes, conduits, drains, loading docks and other installations located within the demising walls of the Premises and exclusively serving the Premises, in as good condition, order and repair as the same are at the Commencement Date or

such better conditions as they thereafter may be put, and to arrange for, or enter into contracts regarding the provision of, such services as are necessary to do so including, without limitation, replacement of all light bulbs and ballasts as necessary. Without limiting the foregoing, Tenant shall be responsible, at its sole expense, for maintaining (but not replacement as and when applicable) all supplemental heating, ventilation and air conditioning ("**HVAC**") exclusively serving the Premises, if any.

Except for Landlord's Work, Landlord shall have no obligation to alter, remodel, improve, repair, decorate or paint the interior of the Premises, except that Landlord shall, subject to reimbursement as a portion of Operating Expenses, repair and maintain the structural and mechanical portions and systems of the Building and/or the Property, including the foundation, roof, exterior walls, load bearing walls, support beams, exterior doors, if any, exterior windows, the basic plumbing, air conditioning, life safety systems, heating and electrical systems installed or furnished by Landlord and the parking lot. By taking possession of the Premises, Tenant accepts them as being in good order, condition and repair and in the condition in which Landlord is obligated to deliver them. It is hereby understood and agreed that no representations respecting the condition of the Premises or the Building have been made by Landlord to Tenant, except as specifically set forth in this Lease.

7.4 Compliance with Laws. The term **"Legal Requirements"** means all present and future laws, ordinances, orders, rules, regulations and requirements of all federal, state and municipal governments, departments, commissions, boards and officials, foreseen and unforeseen, ordinary as well as extraordinary, which may be applicable to the Property, the Premises or to Tenant's use, occupancy or presence in or at the Premises or the Property, including without limitation the Americans with Disabilities Act. Tenant shall comply promptly with all Legal Requirements applicable to the Premises. However, Tenant shall not be required to comply with any Legal Requirements (a) requiring structural repairs, or repairs or improvements located outside of and not exclusively serving the Premises, or (b) required to make the Premises comply with the provisions of the Americans with Disabilities Act in effect and applicable to the Premises prior to the date of this Lease, in each case, unless the need for such compliance arises from any work or alterations performed for or on behalf of Tenant, Tenant's particular manner of use of the Premises, or the negligence or willful misconduct of Tenant, its employees, agents or contractors.

7.5 Indemnity. Without limiting any other provisions hereof, but subject to the provisions of Section 6.3 hereof, Tenant agrees to defend, protect, indemnify and hold harmless Landlord and its partners, affiliates, officers, agents, servants and employees and Landlord's management, leasing and redevelopment agents from and against all claims, liabilities, judgments, demands, causes of action, losses, damages, costs and expenses (including reasonable attorney's fees) for damage to any property or injury to or death of any person to the extent caused by **(i)** any act or omission (including, without limitation, construction and repair of the Premises arising out of any alterations) of Tenant, its agents, contractors, employees, customers, and invitees, or **(ii)** any breach or default in the performance of any obligation on Tenant's part to be performed under the terms of this Lease. To the extent not prohibited by law, and subject to the waiver of subrogation contained in Section 6.3, and except to the extent resulting from the negligence or willful misconduct of Landlord and/or its agents contractors, employees, or agents, Landlord and its partners, affiliates, officers, agents, servants and employees shall not be liable, and Tenant waives all claims against Landlord and assumes all risk, for any damage either to person, property (including without limitation, all of Tenant's personal property, fixtures, machinery equipment,

inventory and the like from time to time upon the Premises or any other portion of the Property, as well as all Landlord's Work and Alterations (regardless of whether Landlord has the right to require such Landlord's Work and Alterations to remain at the Premises upon the expiration or sooner termination of this Lease)) or business resulting from the loss of the use thereof sustained by Tenant or by other persons due to the Building or the Property or any part thereof or any appurtenances thereto becoming out of repair, or due to the happening of any accident or event in or about the Building or the Property, including the Premises, or due to any act or neglect of any tenant or occupant of the Building or the Property or of any other person who is not an indemnitee hereunder. This provision shall apply particularly, but not exclusively, to damage caused by gas, electricity, snow, ice, frost, steam, sewage, sewer gas or odors, fire, water or by the bursting or leaking of pipes, faucets, sprinklers, plumbing fixtures and windows, and except as provided above, shall apply without distinction as to the person whose act or neglect was responsible for the damage and shall apply whether the damage was due to any of the causes specifically enumerated above or to some other cause of an entirely different kind.

7.6 Reserved.

7.7 Notice of Accidents and Adverse Events. Tenant shall give notice to Landlord, promptly after Tenant learns thereof, of any accident, emergency, or occurrence which might materially adversely affect the Premises or the Property, or for which Landlord might be responsible for repairs. Without limiting the foregoing, Tenant shall promptly notify Landlord of any material water leak in or about the Premises of which it becomes aware, even if Tenant believes that such leak has been contained. Notwithstanding anything in this Lease to the contrary, Tenant shall be responsible for the cost of any and all damage to the Premises or the Property to the extent caused by Tenant, or its employees, agents, contractors or invitees, reasonable wear and tear and damage by fire or casualty or taking excepted.

7.8 Yield Up. At the expiration or earlier termination of the Term, Tenant shall peaceably yield up the Premises (together will all systems, including, without limitation if applicable, all electrical, HVAC, plumbing, lift, elevator, alarm and life safety systems within and/or exclusively serving the Premises) broom clean and in good order, repair and condition, and in conformance with all Legal Requirements, reasonable wear and tear and damage by insured fire or casualty or taking only excepted, and to deliver to Landlord all keys, passcards or security codes to or for the Premises or any part thereof. Any alteration, addition or improvement in, on, or to the Premises made or installed by Tenant shall become a part of the realty and belong to Landlord without compensation to Tenant upon the expiration or sooner termination of the Term, at which time title shall pass to Landlord under this Lease as if by a bill of sale. Notwithstanding the foregoing, any and all trade equipment (including but not limited to manufacturing and processing equipment), trade fixtures, furniture, wires, cables and other data lines, inventory and business equipment, in each case located in the Premises or its appurtenances (collectively, "**Tenant's Equipment**"), shall remain Tenant's property and shall be removed by Tenant at the expiration or earlier termination of this Lease. In the event Tenant fails so to remove any such Tenant's Equipment or fails to repair any such damage to the Premises or the Property, Landlord may do so and Tenant shall reimburse Landlord for the cost of such removal and repair upon demand. In any event, any trade fixtures, equipment, furniture and other personal property of Tenant which remain in the Premises following the expiration or earlier termination of the Term, at the Landlord's option, shall be deemed abandoned by Tenant and may thereafter be removed and stored at the cost of the Tenant or retained as the property of the Landlord or sold or otherwise disposed of by the Landlord,

in any such case without any liability to or recourse by the Tenant or anyone claiming by, through or under the Tenant. At Landlord's option all or part of such property may be conclusively deemed to have been conveyed hereunder by Tenant to Landlord as if by bill of sale without payment by Landlord. The Tenant hereby waives, to the maximum extent allowable, the benefit of all laws now or hereafter in force in the state in which the Premises is located or elsewhere exempting property from liability for rent or for debt.

7.9 Rights of Mortgagees.

(i) This Lease shall be subordinate to any mortgage, deed of trust, ground lease, master lease or similar encumbrance (and to any modifications, amendments, refinancings, or replacements thereof) (collectively, a "**Mortgage**") from time to time encumbering the Premises, whether executed and delivered prior to or subsequent to the date of this Lease, unless the holder of such Mortgage ("**Landlord's Mortgagee**") shall elect otherwise. Notwithstanding the foregoing, a condition precedent to Tenant's agreement to subordinate this Lease to any future Mortgage, shall be the receipt by Tenant of a subordination non-disturbance and attornment agreement in a commercially reasonable form provided by the applicable Landlord Mortgagee, which requires such Landlord Mortgagee to accept this lease, and not to disturb tenant's possession, so long as an event of default has not occurred and be continuing (an "**SNDA**") executed by Landlord and the appropriate Landlord Mortgage. If this Lease is subordinate to any Mortgage and Landlord's Mortgagee or any other party that shall succeed to the interest of Landlord pursuant to the Mortgage (such Mortgagee or other party, a "**Successor**"), at the election of the Successor, Tenant shall attorn to the Successor and this Lease shall continue in full force and effect between the Successor and Tenant. Not more than ten (10) days after Landlord's written request, Tenant agrees to execute such commercially reasonable instruments of subordination or attornment in confirmation of the foregoing agreement as the Successor reasonably may request.

(ii) With reference to any assignment by Landlord of Landlord's interest in this Lease, or the rents payable hereunder, conditional in nature or otherwise, which assignment is made to the holder of a Mortgage on property which includes the Premises, Tenant agrees that the execution thereof by Landlord, and the acceptance thereof by Landlord's Mortgagee shall never be treated as an assumption by Landlord's Mortgagee of any of the obligations of Landlord hereunder unless Landlord's Mortgagee shall, by written notice sent to Tenant, specifically otherwise elect and, except as aforesaid, Landlord's Mortgagee shall be treated as having assumed Landlord's obligations hereunder only upon foreclosure of such Mortgage or deed in lieu and the taking of possession of the Premises. In no event shall the acquisition of Landlord's interest in the Property by a purchaser which, simultaneously therewith, leases Landlord's entire interest in the Property back to the seller thereof be treated as an assumption by operation of law or otherwise, of Landlord's obligations hereunder, but Tenant shall look solely to such seller-lessee, and its successors from time to time in title, for performance of Landlord's obligations hereunder. In any such event, this Lease shall be subject and subordinate to the lease to such purchaser. For all purposes, such seller-lessee, and its successors in title, shall be the Landlord hereunder unless and until Landlord's position shall have been assumed by such purchaser- lessor. All references in this Lease to Landlord's Mortgagee shall also be deemed to refer to such purchaser-lessor. Except as provided herein, in the event of any transfer of title to the Property by Landlord, Landlord shall thereafter be entirely freed and relieved from the performance and observance of all covenants and obligations hereunder accruing after the date of such transfer.

(iii) Tenant shall not seek to enforce any remedy it may have for any default on the part of Landlord without first giving written notice by certified mail, return receipt requested, specifying the default in reasonable detail to any Landlord's Mortgagee whose address has been given in writing to Tenant, and affording such Landlord's Mortgagee a reasonable opportunity to perform Landlord's obligations hereunder. Notwithstanding any such attornment or subordination of a mortgage to this Lease, the Landlord's Mortgagee shall not be liable for any acts of any previous landlord, shall not be obligated to install any tenant improvements or pay any tenant improvement allowance, and shall not be bound by any amendment to which it did not consent in writing nor any payment of rent made more than one month in advance.

(iv) Notwithstanding anything to the contrary in this Lease, in any instance where the consent of Landlord's Mortgagee is required, Landlord shall not be required to provide any consent under this Lease if such approval has not first been obtained from Landlord's Mortgagee.

(v) Landlord shall, at no cost to Landlord, use commercially reasonable efforts to obtain a subordination, nondisturbance and attornment agreement for Tenant on Landlord's lender's standard form.

7.10 Estoppel Certificates. From time to time, upon not less than ten (10) days' prior written request by Landlord Tenant shall execute and acknowledge and deliver to Landlord, for delivery to a prospective purchaser, investor or mortgagee of the Premises or the Property or to any assignee of any Mortgage of the Premises or the Property, or to any other similar party (any thereof being the "**Reliance Parties**") a statement in writing certifying: **(a)** that this Lease is unamended (or, if there have been any amendments, stating the amendments); **(b)** that it is then in full force and effect and neither Tenant nor Landlord is in default thereunder, if that be the fact; **(c)** the dates to which Rent and any other payments to Landlord have been paid; and **(d)** such other information as may reasonably be requested. Any such statement may be conclusively relied upon by such Reliance Parties and by Landlord (each of whom shall be deemed to have paid good and valuable consideration therefor), and their respective successors or assigns.

7.11 Nuisance. At all times during the Term and such further time as Tenant occupies the Premises, Tenant shall not do or permit anything that, in Landlord's reasonable judgment, would: injure, overload, deface or otherwise harm the Premises; or constitute a nuisance or waste; or emit any unreasonably objectionable noise or odor; or materially impair or interfere with any Building services, or unreasonably disturb the use and enjoyment of other tenants or occupants at the Property; or make any use of the Premises which is improper or contrary to any Legal Requirement or which will invalidate (or cause any increase in the cost of, or otherwise compromise or adversely affect) any insurance policy covering the Premises or any portion thereof, including, without limitation, the handling, storage and disposal of any Hazardous Materials (as defined in Article 19).

7.12 Changes and Alterations. Except as otherwise explicitly set forth herein, Tenant shall have no authority, without the express written consent of Landlord, which consent shall not be unreasonably withheld, conditioned or delayed by Landlord (provided it shall be deemed reasonable for Landlord to withhold its consent to any requested Alteration [as defined below] which adversely affects the structural portions or the systems or equipment of the Building or is visible from the exterior of the Building), to alter, remodel, reconstruct, demolish, add to, improve or otherwise change the Premises or any portion of the Property, including the installation of any

exterior signs ("**Alterations**"), except that Tenant may, without the consent of Landlord, install within the Premises reasonable trade fixtures and equipment that clearly will have no effect on either **(a)** the structure, roof (including, without limitation, the roof membrane and all other components of the roof), or foundation of the Building, or **(b)** the plumbing, HVAC, mechanical, electrical, life safety or other systems or services in the Building and/or serving the Property. Without derogating from Landlord's rights set forth above in this Section 7.12, Tenant shall not perform any Alterations to the Premises without having first submitted to Landlord plans and specifications therefor for Landlord's approval, which approval shall not be unreasonably withheld, conditioned, or delayed provided, however, that if the following conditions are not fully satisfied, then Landlord may withhold its approval and shall not be deemed to have unreasonably withheld its approval:

(i) if the Alteration involves an exterior sign or will otherwise be visible from the exterior then the Alteration must be compatible with the architectural and aesthetic qualities of the Building and the Land; and

(ii) the Alteration must be non-structural and have no effect on **(A)** the structure, roof (including, without limitation, the roof membrane and all other components of the roof), or foundation of the Building, or **(B)** the plumbing, HVAC, mechanical, electrical, life safety or other systems or services in the Building, and the Alteration (except for approved exterior signs) must be entirely within the Premises; and

(iii) the Alteration, when completed, will not adversely affect the value of the Property; and

(iv) Tenant demonstrates to Landlord's satisfaction that the Alteration will be made in accordance with all Legal Requirements using good quality materials and good quality construction practices and will not result in any liens on the Property; and

(v) the Alterations shall be performed by contractor(s) approved by Landlord, which approval shall not be unreasonably withheld, conditioned, or delayed; and

(vi) as soon as such work is completed, Tenant will have prepared and provided Landlord with "as-built" plans (in form acceptable to Landlord) showing all such work; and

(vii) Tenant will comply with any rules or requirements reasonably promulgated by Landlord in connection with the doing of any work, and if the value of such work exceeds Ten Thousand Dollars ($10,000.00) then, Tenant will obtain and maintain Builder's Risk insurance in connection with such work, in forms and in amounts reasonably satisfactory to Landlord.

Tenant shall have the right to make minor Alterations from time to time in the Premises without obtaining Landlord's prior written consent therefor, provided that all of such work conforms to all of the above requirements in all respects, and further provided that Tenant provides Landlord with a written description of such work (and such other data as Landlord may request) prior to commencing any such Alteration, and further provided that the aggregate cost of such

minor alterations may not exceed $10,000.00 in any twelve (12) month period.

All contractors and subcontractors shall be required to procure and maintain insurance against such risks, in such amounts, and with such companies as Landlord may reasonably require, including, without limitation, the insurance required under Sections 6.1 (a), (b) and (c) of this Lease. Certificates of such insurance, with paid receipts therefor, must be received by Landlord before the applicable Alteration is commenced.

Except as otherwise provided herein, Tenant shall pay promptly when due the entire cost of any Alteration at or on the Premises undertaken by, or on behalf of, Tenant so that the Premises and the Property shall at all times be free of liens for labor and materials. Tenant shall procure all necessary permits before undertaking any Alteration; shall perform all Alterations supervised by Tenant in a good and workmanlike manner, employing materials of good quality; shall comply with all Legal Requirements; and shall save Landlord and Landlord's Mortgagee and all parties claiming by, through, or under Landlord, harmless and indemnified from and against all injury, loss, claim, damage, cost or expense (including attorneys' fees) to any person or property occasioned by or growing out of the applicable Alteration except to the extent the same arises or results from any negligent or willful act or omission by Landlord and/or its agents, contractors, employees, or representatives.

7.13 Holding Over. If Tenant remains in the Premises beyond the expiration of the Term, or sooner following an early termination as provided for herein, such holding over shall not be deemed to create any tenancy, but Tenant shall be a tenant at sufferance only, subject to all of Tenant's obligations set forth herein except that Base Rent shall be payable at a daily rate equal to one hundred twenty five percent (125%) of the Base Rent otherwise provided for herein thereafter until the thirtieth (30th) day of any such holdover, then one hundred fifty percent (150%) until the one hundred eightieth (180th) day of any such holdover, and two hundred percent (200%) of the Base Rent thereafter. The acceptance of a purported rent check following termination shall not constitute the creation of a tenancy at will, it being agreed that Tenant's status shall remain that of a tenant at sufferance, at the aforesaid daily rate. Any reference in this Lease to Tenant's obligations continuing during the period of any holdover shall not be deemed to grant Tenant the right to a holdover or imply Landlord's consent to any such holdover. In addition, Tenant shall be liable for all costs, claims, liabilities and damages arising from or in any manner related to any such holdover including, without limitation, damages payable to the subsequent tenant or related to the loss of a tenant.

ARTICLE 8.
QUIET ENJOYMENT

Landlord covenants that Tenant, on paying the Rent and performing Tenant's obligations under this Lease, shall peacefully and quietly have, hold and enjoy the Premises throughout the Term, or until it is terminated as in this Lease provided, without hindrance by Landlord or by anyone claiming by, through or under Landlord, subject, however, to all of the terms and conditions of this Lease. The foregoing covenant of quiet enjoyment is in lieu of any other covenant of quiet enjoyment, express or implied.

ARTICLE 9.

DAMAGE AND EMINENT DOMAIN

9.1 Fire and Other Casualty. If the Premises, the Building, or the Property (including material machinery or equipment used in its operation) shall be damaged by fire or other casualty and if such damage does not cause a termination of this Lease as described in the following sentences, then Landlord shall repair and restore the damage with reasonable promptness, subject to reasonable delays for insurance adjustments, Legal Requirements, and permits, and delays caused by matters beyond Landlord's commercially reasonable control, but Landlord shall not be obligated to expend for repairing or restoring the damage an amount in excess of the proceeds of insurance actually received by Landlord with respect to the damage. If in Landlord's estimate the Premises cannot be restored within one hundred eighty (180) days from the date of such fire or casualty, then Landlord shall give notice to Tenant of such estimate within sixty (60) days after such fire or casualty. Tenant may elect in writing sixty (60) days following the date of such notice from Landlord to terminate this Lease effective as of the date of Tenant's notice. If any such damage: **(i)** renders 25% of the Building untenantable; or **(ii)** renders general Building systems inoperable and such systems cannot be repaired in Landlord's reasonable estimate within one hundred eighty (180) days from the date of such damage, or **(iii)** occurs within the last two (2) Lease Years, then Landlord shall have the right, in Landlord's sole and absolute discretion, to terminate this Lease as of the date of such damage upon giving written notice to the Tenant at any time within ninety (90) days after the date of such damage. Landlord shall have no liability to Tenant, and Tenant shall not be entitled to terminate this Lease, by virtue of any delays in completion of such repairs and restoration except to the extent the same arises or results from any grossly negligent or willful act or omission of Landlord and/or its agents, contractors, employees or representatives. Rent, however, shall abate on those portions of the Premises as are, from time to time, untenantable as a result of such damage. If this Lease is so terminated, Landlord shall receive any proceeds from Tenant's insurance allocable to any Alterations and Landlord's Work.

Notwithstanding anything to the contrary herein set forth, Landlord shall have no duty pursuant to this Section 9.1 to repair or restore any portion of any Alterations in the Premises (including, without limitation, Landlord's Work) or the decorations thereto, except to the extent that the proceeds of the insurance carried by Tenant are timely received by Landlord, and in no event shall Landlord be obligated to expend for any such repairs or restoration an amount in excess of the proceeds of insurance therefor actually received by Landlord. If Tenant desires any other additional repairs or restoration, and if Landlord consents thereto, it shall be done at Tenant's sole cost and expense subject to all of the applicable provisions of the Lease. Tenant acknowledges that Landlord shall be entitled to the full proceeds of any insurance coverage whether carried by Landlord or Tenant, for damage to any Alterations in the Premises or decorations which would become the Landlord's property upon the termination of the Lease.

9.2 Eminent Domain. If the Land or the Building (or any portion thereof, the loss of which would require reconfiguration or restoration of the Building which Landlord, in Landlord's sole and absolute but commercially reasonable discretion, estimates will cost in excess of 25% of the current replacement cost of the Building) shall be taken or condemned by any competent authority for any public or quasi- public use or purpose, Landlord shall have the right, exercisable at its sole and absolute direction, to cancel the Lease upon not less than sixty (60) days' notice prior to the date of cancellation designated in the notice. No money or other consideration shall be payable by Landlord to Tenant for the right of cancellation and Tenant shall have no right to share in the condemnation award or in any judgment for damages caused by such taking or condemnation,

except for any such separate award or claim as may be available to Tenant for its loss of its fixtures or from relocation expenses so long as such separate award does not reduce the amounts otherwise payable to Landlord for such taking or condemnation. If more than 25% of the rentable square feet of the Premises is taken, or if all reasonable access to and/or the use of the Premises is substantially impaired, in each case for a period in excess of one hundred eighty (180) days, Tenant shall have the option to terminate this Lease effective as of the date possession is required to be surrendered to the authority. Tenant shall not because of such taking assert any claim against Landlord or the authority for any compensation because of such taking and Landlord shall be entitled to the entire award or payment in connection therewith, except that Tenant shall have the right to file any separate claim available to Tenant for any taking of Tenant's personal property and fixtures belonging to Tenant and removable by Tenant upon expiration of the Lease Term pursuant to the terms of this Lease, and for moving expenses, so long as such claims do not diminish the award available to Landlord or its mortgagee, and such claim is payable separately to Tenant. All Rent shall be apportioned as of the date of such termination. If any part of the Premises shall be taken, and this Lease shall not be so terminated, the Rent shall be proportionately abated.

ARTICLE 10.
DEFAULTS BY TENANT AND REMEDIES

10.1 Event of Default. Each of the following shall be an event of default ("**Event of Default**") hereunder: **(A)** if Tenant shall fail to pay any installment of Base Rent, Additional Rent or any other payment as and when due under this Lease, and such failure shall continue for a period of five (5) days following Landlord's notice of same to Tenant, provided that such notice from Landlord shall not be in lieu of, and not in addition to, any notice of default required by applicable law, and further provided that Landlord shall be obligated to give only two (2) such notices per any twelve (12) month period; **(B)** if Tenant or any guarantor or surety of Tenant's obligations hereunder shall **(i)** make a general assignment for the benefit of creditors; **(ii)** commence any proceeding for relief, or seeking reorganization, arrangement, adjustment, liquidation, dissolution or composition of it or its debts or seeking appointment of a receiver, trustee, custodian or other similar official for it or for all or of any substantial part of its property; **(iii)** become the subject of any such proceeding which is not dismissed within sixty (60) days after its filing or entry; or **(iv)** die or suffer a legal disability (if Tenant, guarantor or surety is an individual) or be dissolved or otherwise fail to maintain its legal existence (if Tenant, guarantor or surety is a corporation, partnership or other entity); **(C)** Tenant shall fail to discharge or bond over any lien placed upon the Premises, the Building or the Property or any portion thereof within thirty(30) days after receipt of notice that any such lien or encumbrance is filed or recorded; **(D)** if Tenant shall fail to comply with any provision of this Lease, other than those specifically referred to above in this Section 10.1 and, except as otherwise expressly provided therein, such default shall continue for more than thirty (30) days after Landlord shall have given Tenant written notice of such default, or such longer period (but not to exceed an additional sixty (60) days) if such default cannot be reasonably cured within such thirty (30) day period, provided that Tenant diligently commences the cure within the thirty (30) day period and diligently prosecutes such cure to completion; **(E)** if the Premises becomes deserted or abandoned or if Tenant fails to take occupancy for business purposes within sixty (60) days after the Commencement Date ; **(F)** if Tenant fails to execute, acknowledge and deliver any instrument that it is required for delivery pursuant to Sections 7.9 or 7.10, within the time periods respectively set forth therein, time being of the essence; and **(E)** if any representation or warranty made by Tenant under this Lease shall prove to be either untrue or

misleading in any material respect.

10.2 Landlord's Remedies. Upon any Event of Default, Landlord may, in addition to all other rights and remedies afforded Landlord hereunder or by law or equity, take any one or more of the following actions:

(a) Terminate this Lease by giving Tenant written notice thereof, in which event Tenant shall pay to Landlord the sum of **(1)** all Rent accrued hereunder through the date of termination, **(2)** all amounts due under Section 10.2(c) below and **(3)** an amount equal to **(A)** the total Rent that Tenant would have been required to pay for the remainder of the Term discounted to present value at a per annum rate equal to the "Prime Rate" as published on the date this Lease is terminated by The Wall Street Journal, Northeast Edition, in its listing of "Money Rates" minus one percent, minus **(B)** the then present fair rental value of the Premises for such period as reasonably determined by Landlord, similarly discounted;

(b) Terminate Tenant's right to possess the Premises without terminating this Lease by giving written notice thereof to Tenant, in which event Tenant shall pay to Landlord **(1)** all Rent and other amounts accrued hereunder to the date of termination of possession, **(2)** all amounts due from time to time under Section 10.2(c) below, and **(3)** all Rent and other net sums required hereunder to be paid by Tenant during the remainder of the Term (at the time otherwise required hereunder for payment of such Rent and other net sums), diminished by any net sums thereafter received by Landlord through reletting the Premises during such period, after deducting all reasonable costs incurred by Landlord in reletting the Premises; and/or

(c) Require that Tenant pay to Landlord all reasonable costs incurred by Landlord (including court costs and reasonable attorneys' fees and expenses) in **(1)** obtaining possession of the Premises, **(2)** removing and storing Tenant's or any other occupant's property, **(3)** repairing and restoring the Premises, **(4)** performing Tenant's obligations which accrued prior to the termination of the Lease and Tenant failed to perform, **(5)** enforcing its rights, remedies, and recourses arising out of the Event of Default, and **(6)** any reletting of all or any part of the Premises (including brokerage commissions, cost of tenant finish work, the cost of any tenant improvement allowance or other commercially reasonable concessions and other costs related to such reletting); plus, an amount equal to the unamortized portion of Landlord's costs incurred to enter into this Lease (which costs shall be amortized equally over the initial Term), including, without limitation, the brokerage commission, legal fees, and the unamortized value of any tenant improvements in the Premises that were either paid for by Landlord directly, or funded by Landlord through a construction allowance to Tenant. The reimbursement from Tenant shall be due and payable within thirty (30) days following written notice from Landlord that an expense has been incurred with documentation substantiating such expenses.

Any and all remedies set forth in this Lease: **(i)** shall be in addition to any and all other remedies Landlord may have at law or in equity; **(ii)** shall be cumulative; and **(iii)** may be pursued successively or concurrently as Landlord may elect. The exercise of any remedy by Landlord shall not be deemed an election of remedies or preclude Landlord from exercising any other remedies in the future. Notwithstanding the foregoing, Landlord shall only recover its damages allowed hereunder once. If Landlord prevails in any litigation brought against Tenant, then Tenant shall reimburse Landlord for all of Landlord's attorneys' fees, court costs, experts fees, and other costs

and expenses incurred in connection therewith.

Upon exercising either of its rights under (a) or (b) above, Landlord may re-enter the Premises, remove Tenant, or cause Tenant to be removed from the Premises in such lawful manner as Landlord may deem advisable, with or without legal process, and using such reasonable force as may be lawful and necessary.

Regardless of whether Landlord terminates this Lease, Landlord shall have the right, as Landlord chooses in its sole and absolute discretion, **(i)** to terminate any or all subleases, licenses, concessions and other agreements entered into by Tenant in connection with its occupancy of the Premises and/or **(ii) to maintain any or all such agreements in effect and succeed to Tenant's** interests in connection therewith (in which event Tenant shall cease to have any interest in any such agreement).

Tenant hereby expressly waives any and all rights of redemption granted by or under any Legal Requirement in the event of Tenant's being evicted or dispossessed, or in the event of Landlord's obtaining possession of the Premises, by reason of an Event of Default.

10.3 Claims in Bankruptcy. Nothing herein shall limit or prejudice the right of Landlord to prove and obtain in a proceeding for bankruptcy, insolvency, arrangement or reorganization, by reason of the termination, an amount equal to the maximum allowed by law, regardless of whether the amount is greater to, equal to, or less than the amount of the loss or damage which Landlord has suffered.

10.4 Landlord's Right to Cure Defaults. Landlord may, but shall not be obligated to cure, at any time, any default by Tenant under this Lease after the applicable notice and/or cure period (if any) has expired. In curing such defaults, Landlord may enter upon the Premises and take such action thereon as may be reasonably necessary to perform such cure. Notwithstanding the foregoing, in the case of an emergency threatening material injury to persons or property, Landlord may cure a default without notice. All costs and expenses incurred by Landlord in curing a default, **including reasonable attorneys' fees actually incurred, together with interest thereon at the Interest** Rate shall be paid by Tenant to Landlord on demand. Landlord may use the Security Deposit (or draw on any Letter of Credit) to effectuate any such cure.

10.5 No Waiver. Exercise by Landlord of any one or more remedies hereunder granted or otherwise available shall not be deemed to be an acceptance of surrender of the Premises and/or a termination of this Lease by Landlord, whether by agreement or by operation of law, it being understood that such surrender and/or termination can be effected only by a written acknowledgment of Landlord. Tenant and Landlord further agree that forbearance or waiver by either party to enforce its rights pursuant to this Lease, or at law or in equity, shall not be a waiver **of such party's right to enforce one or** more of its rights in connection with any subsequent default. A receipt by Landlord of rent with knowledge of the breach of any covenant hereof shall not be deemed a waiver of such breach, and no waiver by Landlord of any provision of this Lease shall be deemed to have been made unless expressed in writing and signed by Landlord. No payment by Tenant, or acceptance by Landlord, of a lesser amount than is due from Tenant to Landlord shall be treated otherwise than as a payment on account of the earliest installment of any payment due from Tenant under the provisions hereof. The acceptance by Landlord of a check for a lesser amount with an endorsement or statement thereon, or upon any letter accompanying such check,

that such lesser amount is payment in full, shall be given no effect, and Landlord may accept such check without prejudice to any other rights or remedies which Landlord may have against Tenant.

No waiver of any provisions of this Lease shall be implied by any failure of Landlord to enforce any remedy on account of the violation of such provisions, even if such violation is continued or repeated subsequently, and no express waiver shall affect any provision other than the particular matter specified in such waiver and that one only for the time and in the manner specifically stated. No receipt of monies by Landlord from Tenant after the termination of this Lease shall in any way alter the length of the Term or Tenant's right of possession hereunder or shall reinstate, continue or extend the Term or affect any notice given Tenant prior to the receipt of such monies, it being agreed that after the service of notice or the commencement of a suit or after final judgment for possession of the Premises, Landlord may receive and collect any Rent due, and the payment of said Rent shall not waive or affect said notice, suit or judgment.

10.6 Default Interest. If any payment of Base Rent, Additional Rent or any other payment payable hereunder by Tenant to Landlord shall not be paid when due, Landlord may impose, at its election, interest on the overdue amount from the date when the same was payable until the date paid at a rate (the "**Interest Rate**") equal to the lesser of **(a)** eight percent (8%) per annum, or **(b)** the highest lawful rate of interest which Landlord may charge to Tenant without violating any applicable law. Such interest shall constitute Additional Rent payable hereunder.

ARTICLE 11.
ASSIGNMENT AND SUBLETTING

11.1 Prohibition. Tenant covenants and agrees that subject to Section 11.4 below, **(i)** neither this Lease nor the term and estate hereby granted, nor any interest herein or therein, will be assigned, mortgaged, pledged, encumbered or otherwise transferred, whether directly or indirectly, voluntarily or involuntarily or by operation of law; **(ii)** Tenant shall not permit any other entity to become Tenant hereunder by merger, consolidation, or other reorganization; and (iii) neither the Premises, nor any part thereof will be encumbered in any manner by reason of any act or omission on the part of Tenant, or used or occupied, by anyone other than Tenant, or for any use or purpose other than as stated herein, or be sublet, whether directly or indirectly, voluntarily or involuntarily or by operation of law, without the prior written consent of Landlord in each and every case, which consent shall not be unreasonably withheld, delayed or conditioned (each, a "**Transfer**"). Any transfer, or series of related transfers, of ownership in Tenant (unless Tenant is a publicly traded company) that results in a change of 50% or more of the ownership or voting power of Tenant, or otherwise results in a change in the current control of Tenant (except in the case of an ownership interest that is transferred pursuant to a public offering or the sale of publicly traded securities) shall be considered an assignment.

Tenant's request for Landlord's consent to subletting or assignment shall be submitted in writing no later than sixty (60) days in advance of the proposed effective date of such proposed assignment or sublease, which request shall be accompanied by the following information in reasonable detail where applicable (the "**Required Information**"): **(i)** the name, current address and business of the proposed assignee or subtenant; **(ii)** in the event of a sublease, the precise square footage and location of the portion of the Premises proposed to be so subleased; **(iii)** the effective date and term of the proposed assignment or subletting; **(iv)** the rent and other consideration to be paid to Tenant by such proposed assignee or subtenant; **(v)** such other major

terms of the assignment or sublease as may be material or as Landlord may reasonably request, **(vi)** financial statements and other information as Landlord may request, prepared in accordance with generally accepted accounting principles, not more than ninety (90) days old when delivered to Landlord, indicating the Tangible Net Worth (defined below), liquidity and creditworthiness of the proposed assignee or subtenant in order to permit Landlord to evaluate the proposed assignment or sublease; **(vii)** verification that the Premises will be used for the Permitted Use (and if the Permitted Use allows more than one (1) type of use, then Tenant shall specify the precise use that the Premises will be used for); and **(viii)** such other information as Landlord may reasonably request (including, without limitation, a copy of the proposed sublease or assignment instrument). Landlord will endeavor to provide notice of whether or not it consents to the proposed transfer within thirty (30) days after all the Required Information has been delivered to Landlord. Tenant agrees to reimburse Landlord for reasonable legal fees and any other reasonable expenses and costs incurred by Landlord in connection with any proposed assignment or subletting, regardless of whether the same is consummated up to a total amount of $3,500.00 per proposed assignment or subletting.

"**Tangible Net Worth**" means the excess of total assets over total liabilities, in each case as determined in accordance with generally accepted accounting principles consistently applied ("**GAAP**"), excluding, however, from the determination of total assets all assets which would be classified as intangible assets under GAAP including goodwill, licenses, patents, trademarks, trade names, copyrights, and franchises.

11.2 Conditions to Consent. Notwithstanding anything to the contrary contained herein, it shall not be unreasonable for Landlord to withhold its consent to any proposed assignment or sublease if **(i)** Tenant proposes to assign this Lease or sublease the Premises or any portion thereof to any person or entity with whom Landlord is then negotiating (or with whom Landlord has negotiated during the previous six (6) months) for the rental of space in the Building or who is a tenant in the Building; or **(ii)** the Tangible Net Worth of any such proposed assignee or subtenant is less than the greater of **(a)** the Tangible Net Worth of Tenant on the date hereof or **(b)** the Tangible Net Worth of Tenant upon the date of any such assignment or sublease; or **(iii)** the proposed use **(a)** is not limited to the Permitted Use, **(b)** would constitute a use that is incompatible with the uses of other occupants of the Property in Landlord's commercially reasonable judgment, **(c)** would violate any restrictive use covenant binding on Landlord or the Property, **(d)** would involve an increased risk to Landlord due to the nature thereof (including the use of Hazardous Materials) or **(e)** would disproportionately (as compared to Tenant's use) burden the Property's existing facilities or resources or add to Landlord's costs; or **(iv)** as a result of the proposed sublease there would be more than a total of two (2) subleases (or, if Tenant remains in occupancy of any portion of the Premises, more than one (1) sublease) in effect at the Premises at any given time; or **(v)** the proposed sublease is for a portion of the Premises of less than 25% of the rentable square feet of the Premises; or **(vi)** any such proposed assignee or subtenant is not creditworthy or of sufficient character or business reputation in Landlord's reasonable judgment; or **(vii)** any such proposed assignee or subtenant is a governmental entity, or subdivision or agency thereof; or **(viii)** any assignment is of less than Tenant's entire interest in this Lease; or **(ix)** an Event of Default exists or any circumstance has occurred which, with the passage of time or the giving of notice, or both, would constitute an Event of Default, provided, however, that it is hereby agreed and acknowledged that in no event shall Landlord's right to withhold consent be limited to the bases set forth in clauses (i) through (ix) above. Landlord's consent shall be granted only if the assignee or subtenant shall promptly execute, acknowledge, and deliver to Landlord an agreement in form

and substance satisfactory to Landlord whereby the assignee or subtenant shall agree with Landlord to assume and be bound by all of the covenants, agreements, terms, provisions and conditions set forth in this Lease other than, in the case of a subtenant, the direct payment of Rent hereunder. Tenant authorizes its transferees to make payments of rent directly to Landlord upon receipt of written notice from Landlord to do so following the occurrence of an Event of Default hereunder.

11.3 Excess Rents. If Tenant shall sublet the Premises, at a rental in excess of the Base Rent and Additional Rent due and payable by Tenant under the provisions of this Lease (or, in the case of a sublease of less than all of the Premises, in excess of the Base Rent allocable to the subleased premises on a per square foot basis), fifty (50%) of such excess Base Rent and Additional Rent, net of Tenant's commercially reasonable and necessary legal, brokerage, marketing and remodeling expenses related to the entering into of the sublease (amortized over the term of the sublease) shall be paid by the Tenant to the Landlord, it being agreed, however, that Landlord shall not be responsible for any deficiency if Tenant shall sublet the Premises at a rental less than that provided for herein. This paragraph does not apply to an assignment or sublease to an Affiliate (defined below).

11.4 Assignment or Sublease to an Affiliate. Notwithstanding anything to the contrary contained herein, Tenant shall have the right to assign this Lease or sublet the Premises or any part thereof without the prior consent of Landlord to either **(x)** an entity into or with which Tenant is merged or consolidated, or to which all or substantially all of Tenant's assets are transferred or **(y)** any entity which is controlled by Tenant (the parties described in parts (x) and (y) being referred to as an "**Affiliate**"), provided that in any such event **(i)** the Affiliate has a Tangible Net Worth at least equal to the greater of **(1)** the Tangible Net Worth of Tenant immediately prior to such merger, consolidation or transfer, or **(2)** the Tangible Net Worth of Tenant herein named on the date of this Lease; **(ii)** proof satisfactory to Landlord of such Tangible Net Worth shall have been delivered to Landlord at least ten (10) days prior to the effective date of any such transaction, and **(iii)** the assignee or subtenant agrees directly with Landlord, by written instrument in form satisfactory to Landlord in its reasonable discretion, to be bound by all the obligations of Tenant hereunder, including, without limitation, the covenant against further assignment and subletting. The transactions described in this Section 11.4 are sometimes referred to herein as "**Permitted Transfers**" and the transferees of the Permitted Transfers described in this Section 11.4 are sometimes referred to herein as "**Permitted Transferees**").

11.5 No Waiver; Tenant to Remain Liable. If this Lease is assigned, or if the Premises or any part thereof is sublet or occupied by anybody other than Tenant, Landlord may, after default by Tenant beyond any applicable notice or cure periods, collect Base Rent and Additional Rent from the assignee, subtenant or occupant, and apply the net amount collected to the Base Rent and/or Additional Rent herein reserved, but no such assignment, subletting, occupancy or collection shall be deemed a waiver of this covenant, or the acceptance of the assignee, subtenant or occupant as a tenant, or a release of Tenant from the further performance by Tenant of covenants on the part of Tenant herein contained. The consent by Landlord to an assignment or subletting shall not in any way be construed to relieve Tenant from obtaining the express consent in writing of Landlord to any further assignment or subletting. No act or conduct by Landlord other than its express written consent shall constitute its consent or waiver of its consent rights with respect to a particular Transfer. No Transfer or consent to Transfer will operate to waive Landlord's rights with respect to any future Transfer. Any Transfer made or attempted to be made other than in strict

compliance with this Article 11 shall be void and of no force and effect. No assignment, subletting or use of the Premises shall affect the Permitted Use hereunder. Notwithstanding any permitted assignment or subletting, and also notwithstanding the assumption of Tenant's obligations under this Lease by such assignee or subtenant, Tenant shall at all times remain directly, primarily and fully responsible and liable for the payment of all sums payable hereunder and for compliance with all the obligations of Tenant hereunder. In no event shall any Transfer release any guarantor from its obligations under this Lease, and after any Transfer any guarantor and the transferee shall remain jointly and severally liable therefor. Prior to the effectiveness of any sublease or assignment instrument Tenant shall deliver a true copy thereof to Landlord, who shall have the right to verify that the terms of the instrument are not materially different from those that it consented to and that the instrument complies with the requirements of this Lease or any conditions set forth in Landlord's consent.

11.6 Cancellation. Landlord may, within thirty (30) business days after Tenant's submission of a written request for Landlord's consent to a Transfer, notify Tenant in writing that Landlord elects to cancel this Lease (or, in connection with a partial sublease, as to the portion of the Premises proposed to be sublet as of the date the proposed sublease is to be effective). If Landlord cancels this Lease as to any portion of the Premises, then this Lease shall cease for such portion of the Premises and Tenant shall pay to Landlord on or before the cancellation date (i) all Rent accrued through the cancellation date relating to the portion of the Premises covered by the proposed assignment or sublease, and (ii) in the event of the cancellation of this Lease with respect to only a portion of the Premises (the "Recapture Portion") the amount reasonably estimated by Landlord to be necessary to physically separate the Recapture Portion from the remainder of the Premises and otherwise lawfully demise the Recapture Portion (including, without limitation, the installation of demising walls, separation of utilities and HVAC and provision of entrances, loading facilities and access for the Recapture Portion). Thereafter, Landlord may lease such Recapture Portion to the prospective transferee (or to any other person) without liability to Tenant. Notwithstanding the foregoing, Tenant may, within five (5) business days of receiving Landlord's notice of cancellation, notify Landlord in writing that Tenant rescinds its request for consent to the Transfer, in which case such cancellation shall be nullified. This paragraph does not apply to an assignment or sublease to an Affiliate.

ARTICLE 12.
NOTICES

All notices, consents, approvals, or other communication required by the provisions of this Lease to be given to Landlord or Tenant shall be in writing and shall be served either personally, by nationally recognized overnight carrier, by email or by mailing via U.S. certified or registered mail, postage prepaid, return receipt requested, addressed to the address of the party set forth in Section 1.1 hereof (or to such other address(es) as the party shall have last designated by notice), and shall be deemed given upon (A) personal delivery, (B) upon receipt of an email, provided (i) such email is received prior to 5 p.m. pacific Eastern time on a business day and otherwise upon the next occurring business day and (ii) such notice is concurrently sent pursuant to another method permitted by this Article, or (C) upon the date shown in the return receipt if sent by overnight carrier or by certified or registered mail; provided that if delivery is refused or if delivery is impossible because of a change of address of which no notice was given, notice shall be deemed given upon the date of attempted delivery.

ARTICLE 13.
NOTICE OF LEASE

Tenant agrees that it will not record this Lease. Landlord and Tenant shall, upon the request of either, execute, acknowledge, and deliver a recordable notice of this Lease, in a form reasonably satisfactory to Landlord. At Landlord's request, promptly upon expiration of or earlier termination of the Term, Tenant shall execute and deliver to Landlord a release of any document recorded in the real property records for the location of the Premises evidencing this Lease. The obligations of Tenant under this Article 13 shall survive the expiration or any earlier termination of the Term.

ARTICLE 14.
APPLICABLE LAW, SEVERABILITY, CONSTRUCTION

This Lease shall be governed by and construed in accordance with the laws of the state in which the Property is located and, if any provisions of this Lease shall to any extent be invalid, the remainder of this Lease, and the application of such provisions in other circumstances, shall not be affected thereby. This Lease may be amended only by an instrument in writing executed by Landlord and Tenant. The titles of the several Articles and Sections contained herein are for convenience only and shall not be considered in construing this Lease.

ARTICLE 15.
SUCCESSORS AND ASSIGNS, ETC.

15.1 Successors and Assigns. Subject to Article 11, this Lease shall be binding upon the parties hereto and their respective successors and assigns.

15.2 Limitation on Landlord's Liability. The term Landlord means the then-existing owner of the Premises from time to time. Upon sale or other transfer of its ownership interests herein, the then existing Landlord shall be relieved of all liabilities and obligations hereunder which may accrue after the date of such sale or transfer and the successor Landlord shall, subject to Section 7.9 hereof, be automatically deemed to have assumed all such liabilities and obligations. The obligations of Landlord shall be binding upon the assets of Landlord which comprise the Property, but not upon other assets of Landlord. No trustee, stockholder, officer, director, employee, advisor or beneficiary of Landlord, or any other party claiming by, through, or under Landlord, or any affiliate of Landlord, shall be liable under this Lease. In no event shall Landlord be liable for any damages other than actual and direct damages, nor shall Landlord ever be liable for damages if Tenant has not given Landlord written notice of the applicable default and afforded Landlord at least thirty (30) days to cure, or, if Landlord has commenced such cure within such time period and is diligently pursing the same, then such further time as it takes Landlord, acting diligently, to complete such cure.

ARTICLE 16.
LANDLORD'S ACCESS AND OTHER RESERVED RIGHTS

Landlord and its authorized agents, employees, subcontractors and representatives shall have the right to enter the Premises at any time and without notice during emergencies and otherwise at all reasonable times with no less than twenty four (24) hours prior notice for any of the following purposes: **(a)** to determine whether the Premises are in good condition and whether

Tenant is complying with its obligations under this Lease; **(b)** to do any necessary maintenance and to make such changes, alterations, additions, improvements, repairs or replacements in or to the Premises, the Building or the Property as Landlord has the right or obligation to perform under this Lease, as Landlord may be required to do or make by law, or as Landlord may from time to time deem necessary or desirable provided, however, such alterations, improvements or additions shall not, except in case of emergency repairs, permanently materially adversely affect Tenant's use of the Premises; **(c)** to exhibit the Premises to prospective tenants during the last twelve (12) months of the Term or during any period while an Event of Default exists hereunder; and **(d)** to show the Premises to prospective lenders, brokers, investors, agents, buyers or other similar persons, at any time during the Term. Landlord shall have such access rights even if Tenant is not physically present to let Landlord in, and Tenant shall at all times provide Landlord with a copy of all keys, alarm codes, and pass cards to the Premises. Notwithstanding the foregoing provisions to the contrary, no prior notice shall be required for any services requested by Tenant. Notwithstanding anything to the contrary herein, Landlord shall use commercially reasonable efforts not to unreasonably interfere with Tenant's use of the Premises (to the extent reasonably practicable in light of the scope or work, and provided that in no event will Landlord be required to incur overtime or after hours charges or otherwise incur additional costs or expenses in connection therewith).

Landlord may erect, use and maintain pipes, wires, ducts, conduits and related closets and enclosures in and through the Premises, provided the same do not materially reduce the floor area thereof and/or affect Tenant's use of the Premises.

Landlord reserves the right to make such changes, alterations, additions, improvements, repairs or replacements in or to the Property (including the Premises and/or the Building), as it may deem reasonably necessary or desirable; provided, however, such work and such alterations shall not, except in case of emergency repairs, permanently materially adversely affect Tenant's use of the Premises and/or materially reduce the floor area thereof.

ARTICLE 17.
CONDITION OF PREMISES

Except as expressly set forth herein, Tenant shall accept the Premises on the Commencement Date in its "AS-IS, WHERE IS" condition, subject to all applicable Legal Requirements, covenants and restrictions, and except as expressly set forth herein, Landlord shall have no obligation to perform or pay for any repair or other work therein. TENANT ACKNOWLEDGES AND AGREES THAT, UNLESS OTHERWISE EXPRESSLY SET FORTH IN THIS LEASE **(1)** IT HAS INSPECTED AND ACCEPTS THE PREMISES IN AN "AS IS, WHERE IS" CONDITION, **(2)** THE BUILDING AND IMPROVEMENTS COMPRISING THE SAME ARE SUITABLE FOR THE PERMITTED USE (DEFINED IN SECTION 1.1) AND LANDLORD HAS MADE NO WARRANTY, REPRESENTATION, COVENANT, OR AGREEMENT WITH RESPECT TO THE MERCHANTABILITY OR FITNESS FOR ANY PARTICULAR PURPOSE OF THE PREMISES (INCLUDING, WITHOUT LIMITATION, THE PERMITTED USE) AND TENANT HEREBY WAIVES ANY IMPLIED WARRANTY THAT THE PREMISES ARE HABITABLE OR SUITABLE FOR TENANT'S INTENDED PURPOSES OR ANY OTHER PARTICULAR PURPOSE (INCLUDING, WITHOUT LIMITATION, THE PERMITTED USE), **(3)** THE PREMISES ARE IN GOOD AND SATISFACTORY CONDITION, **(4)** EXCEPTING LANDLORD'S WORK,

NO REPRESENTATIONS, COVENANT, OR AGREEMENT AS TO THE REPAIR OF THE PREMISES, NOR PROMISES TO ALTER, REMODEL OR IMPROVE THE PREMISES HAVE BEEN MADE BY LANDLORD AND **(5)** THERE ARE NO REPRESENTATIONS OR WARRANTIES, EXPRESSED, IMPLIED OR STATUTORY, THAT EXTEND BEYOND THE EXPRESS PROVISIONS OF THIS LEASE. Except as otherwise may expressly be provided herein, in no event shall Landlord have any obligation for any defects in the Premises or any limitation on its use. The taking of possession of the Premises shall be conclusive evidence that Tenant accepts the Premises and that the Premises were in good working order and condition and in compliance with all Legal Requirements at the time possession was taken.
Notwithstanding the foregoing, Landlord shall deliver the Premises with carpets shampooed. Tenant shall be responsible for voice, data, security and furniture installation. No other tenant improvements or improvement allowance are required unless expressly agreed in writing.

ARTICLE 18.
WARRANTY REGARDING BROKER

Each party represents that it has not dealt with any person in connection with the Premises or the negotiation or execution of this Lease other than the Broker and the respective officers, employees and attorneys of Landlord and Tenant. Each party shall indemnify and save harmless the other from and against all claims, liabilities, costs and expenses incurred as a result of any breach of the foregoing representation. Any fee due to Broker shall be payable by Landlord to Broker under separate agreement.

ARTICLE 19.
HAZARDOUS MATERIALS

Tenant shall not cause or permit the escape, disposal, release or threat of release of any Hazardous Materials (as said term is hereafter defined) on, in, upon or under the Premises or the Property. Tenant shall not allow the generation, storage, use or disposal of such Hazardous Materials in any manner, nor allow to be brought into the Premises or the Property any such Hazardous Materials except reasonable quantities of ordinary office cleaning supplies used and stored in compliance with applicable law. For purposes of this Lease, "Hazardous Materials" means, collectively, any hazardous waste, hazardous substances, pollutants or contaminants, petroleum or petroleum products, radioactive materials, asbestos in any form or condition, animal wastes, medical waste, blood, biohazardous materials, or any pollutant or contaminant or hazardous, dangerous or toxic chemicals, materials or substances within the meaning of any applicable federal, state or local law, regulation, ordinance or requirement relating to or imposing liability or standards of conduct concerning any such substances or materials on account of their chemical, radioactive, biological, hazardous or toxic nature, all as now in effect or hereafter from time to time enacted or amended. If any lender or governmental agency shall ever require testing to ascertain whether or not there has been any release of Hazardous Materials, then the reasonable costs thereof shall be reimbursed by Tenant to Landlord upon demand as additional charges, but only if such requirement applies to the Premises and may be the result of the acts or omissions of Tenant. In addition, Tenant shall execute commercially reasonable affidavits, representations and the like, from time to time, at Landlord's request concerning the presence of Hazardous Materials in the Premises or at the Property or any portion thereof or related to Tenant's use of the Property. In all events, Tenant shall indemnify and save Landlord harmless from and against any liability, injury loss, claim, damage, settlement, attorneys' fees, fines, penalties, interest, cost or expense,

of any kind whatsoever, which may be incurred by Landlord arising from any release or threat of release or the presence or existence of any Hazardous Materials on, in, upon or under the Premises, or elsewhere on or about the Property, if caused by Tenant, its employees, agents, contractors or any other person acting under Tenant. The within covenants and indemnity shall survive the expiration of the Term or earlier termination of this Lease. Landlord expressly reserves the right to enter the Premises to perform regular inspections subject to Article 16 above upon prior written notice.

Further, notwithstanding anything in this Article to the contrary, Tenant shall have no obligations or liability to Landlord under this Article with respect to Hazardous Materials existing on, in, upon, or under the Premises, Building, and/or the Property prior to the Commencement Date or such earlier date upon which Tenant has been given access to the Premises for purposes of commencing any work or otherwise occupying the same or conducting business therein (the "**Early Access Date**"), except to the extent that such condition is exacerbated by Tenant (as distinguished from its mere discovery).

The indemnity obligations in this Article shall survive the expiration of or the earlier termination of this Lease.

ARTICLE 20.
FORCE MAJEURE

In the event that Landlord or Tenant shall be delayed from the performance of any act required hereunder other than the payment of any monetary amounts, by reason of strikes, lock-outs, inability to procure materials, failure of power, riots, insurrection, extraordinarily inclement weather, the default of the other party, or other reasonably unforeseeable reason beyond their reasonable control ("**Force Majeure**"), then performance of such act shall be excused for the period of the delay and the period for the performance of any such act shall be extended for a period equivalent to the period of such delay. Force Majeure shall not be construed to excuse Tenant from making any payments due hereunder in a timely manner as set forth in this Lease or from performing any covenant or obligation imposed under this Lease by reason of the financial inability of Tenant, nor shall Force Majeure excuse Tenant's obligation to timely yield up the Premises upon the expiration or earlier termination of the Lease in accordance with Section 7.8 above.

ARTICLE 21.
SIGNAGE

21.1 Tenant shall not place any signs on the Property without Landlord's prior written consent, which consent may be granted or withheld in Landlord's sole and absolute discretion. Notwithstanding the foregoing provision of this Article 21 to the contrary, Landlord shall provide, at Landlord's sole cost, Building standard signage on the ground floor directory and the entrance to the Premises (with the costs of any above-Building standard signage at Tenant's sole cost and expense). All signage shall comply with all Legal Requirements and shall be installed and maintained in good working order and condition by Landlord, at Landlord's sole cost and expense.

21.2 If Landlord elects to construct a monument sign at the Property (such potential monument sign, the "**Future Monument Sign**"), which Landlord may elect to construct or not construct in

its sole discretion, then Tenant shall be entitled, at Landlord's sole cost and expense, to have a panel containing Tenant's name (the "**Tenant Monument Signage**") installed on the Future Monument Sign, in accordance with Property-standard signage specifications. Tenant shall be responsible for all costs associated with the design, fabrication, maintenance, repair and removal of the Tenant Monument Signage. The right to place the Tenant Monument Signage on the Future Monument Sign shall be nonexclusive and Landlord shall have the right to grant others the right to install identification signage on the Future Monument Sign, in locations to be determined by Landlord. The rights to the Tenant Monument Signage shall be personal to the original Tenant named hereunder (the "**Original Tenant**") and any Permitted Transferee and may only be exercised by the Original Tenant or a Permitted Transferee if the Original Tenant or a Permitted Transferee leases not less than the entire Premises. Tenant Monument Signage shall be subject to Landlord's approval (which shall not be unreasonably withheld, conditioned, or delayed) as to, without limitation, size, design, location, graphics, materials, colors and similar specifications and shall be consistent with the exterior design, materials and appearance of the Property and the Property's signage program and shall be further subject to all matters of record and all Legal Requirements, and Tenant's receipt of all permits and other governmental approvals and any applicable covenants, conditions and restrictions (if required). Landlord and Tenant agree to discuss a temporary street sign at Tenant's expense when the Tenant moves into the Building.

ARTICLE 22.
MISCELLANEOUS

22.1 Rules and Regulations. Tenant shall comply with the Rules and Regulations, as same may be reasonably amended by Landlord from time to time upon written notice thereof to Tenant. Landlord shall not be obligated to enforce any such rules or regulations; provided, however, that if Landlord does enforce the Rules and Regulations then it will use reasonable efforts to do so in a non-discriminatory manner among similarly situated tenants. Tenant shall be responsible for the compliance with such Rules and Regulations by its employees, agents, contractors, and, to the extent within Tenant's reasonable control, its invitees. In the event of any conflict between the Rules and Regulations and the other terms and provisions of this Lease, the other terms and provisions of this Lease shall govern.

22.2 No Merger. There shall be no merger of the leasehold estate hereby created with the fee estate in the Premises or any part thereof if the same person acquires or holds, directly or indirectly, this Lease or any interest in this Lease and the fee estate in the leasehold Premises or any interest in such fee estate.

22.3 No Offer. The submission of this Lease to Tenant shall not be construed as an offer, and Tenant shall not have any rights under this Lease unless and until it has signed a copy of this Lease and delivered it to Landlord, and Landlord has signed a copy of this Lease and delivered it to Tenant.

22.4 Entire Agreement. This Lease constitutes the entire agreement between Landlord and Tenant regarding the subject matter hereof and supersedes all oral statements and prior writings relating thereto. Except for those set forth in this Lease, no representations, warranties, or agreements have been made by Landlord or Tenant to the other with respect to this Lease or the obligations of Landlord or Tenant in connection therewith.

22.5 Waiver of Jury Trial. TO THE MAXIMUM EXTENT PERMITTED BY LAW, LANDLORD AND TENANT EACH WAIVE THE RIGHT TO TRIAL BY JURY IN ANY LITIGATION ARISING OUT OF OR WITH RESPECT TO THIS LEASE.

22.6 Time of Essence. Time is of the essence of this Lease and each and every one of its provisions.

22.7 Joint and Several Liability. If Tenant is comprised of more than one (1) party, each such party shall be jointly and severally liable for Tenant's obligations under this Lease.

22.8 Landlord's Review Fees. Whenever Tenant requests that Landlord give any consent or approval required under this Lease, Tenant will reimburse Landlord for Landlord's documented, reasonable out of pocket costs to third parties incurred in reviewing the proposed action for which Tenant is requesting Landlord's consent, including without limitation reasonable attorneys', engineers' or architects' fees, within thirty (30) days after Landlord's delivery to Tenant of a statement of such costs up to a total amount of $3,500.00 per proposed action requiring Landlord's consent. Tenant shall also pay Landlord a reasonable administrative charge for processing of such consent requests as Landlord may require from time to time; provided, however, Tenant's total fees under this Section shall be limited to $3,500.00 per proposed action requiring Landlord's consent. Tenant shall be required to make such reimbursements, and pay such charges, without regard to whether Landlord consents to any proposed action.

22.9 Confidentiality. Tenant acknowledges that the terms and conditions of this Lease are to remain confidential for the Landlord's benefit, and may not be disclosed by Tenant to anyone, by any manner or means, directly or indirectly, without Landlord's prior written consent, not to be unreasonably withheld, conditioned, or delayed if such disclosure has a legitimate and reasonably necessary business purpose; provided, however, Tenant may disclose the same to its financial and legal advisors and lenders. In any event, Landlord may impose reasonable conditions on any such disclosure. The consent by the Landlord to any disclosure shall not be deemed to be a waiver on the part of the Landlord of any prohibition against any subsequent disclosure.

22.10 Commencement Date Letter. Tenant agrees that, within ten (10) days of Landlord's written request therefor, it will execute and deliver to Landlord a Commencement Date Letter setting forth, among other things, the amount and repayment schedule of the Additional Allowance, if any, the actual Commencement Date and date upon which the original Term expires.

22.11 Corporate Approval. Each party or responsible officer thereof has read this Lease and understands the contents hereof. Each party represents and warrants that (a) the person executing the Lease on its behalf retains authority to bind the party purporting to be bound thereby and that the execution of this Lease is a valid and binding obligation of each party, (b) each party has undertaken any and all corporate or other formalities and approvals required to authorize the entry into and performance of this Lease, and (c) that the entry into and the performance of this Lease is not barred, prohibited or impaired by any law, rule, regulation, contract, judgment or decree that binds such party.

22.12 Rules of Construction. The terms "include", "including" and "such as" shall be construed as if followed by the phrase "without being limited to". The words "herein", "hereof", "hereby", "hereunder" and words of similar import shall be construed to refer to this Lease as a whole and

not to any particular Article or Section unless expressly so stated. Neither the expiration of the Term or earlier termination of this Lease shall be asserted as a defense against Landlord's enforcement of those Tenant obligations that by their nature are performable after, or might be enforced by Landlord after, the expiration of this Lease and in all such circumstances this Lease shall be deemed to have inserted the words "such provision shall survive the expiration or sooner termination of this Lease," regardless of whether such words in fact appear, and in any event, all obligations of Tenant hereunder not fully performed at the end of the Term shall survive the end of the Term, including payment obligations with respect to Rent and all obligations concerning the condition and repair of the Premises. This Lease has been negotiated by both parties, each of whom is a sophisticated business person/entity and shall be construed as the product of both of them equally. The use of the singular shall include the plural and vice versa, as appropriate in the circumstances. If there is a guarantor of this Lease then no right otherwise given to Tenant (or any party associated with Tenant) may be exercised if exercise of such right would compromise, in any manner, the continuing full force and effect of such guaranty in accordance with all of its terms and conditions, and this requirement shall be deemed inserted with respect to each and every such right otherwise granted to Tenant (or any party associated with Tenant) in this Lease, whether or not in fact so stated.

22.13 Consents. In all circumstances under this Lease where the prior consent of one party (the "**Consenting Party**"), whether it be Landlord or Tenant, is required before the other party (the "**Requesting Party**") is authorized to take any particular type of action, the requesting party agrees that its sole and exclusive remedy if it believes that consent has been withheld improperly shall be to institute litigation either for a declaratory judgment or for a mandatory injunction requiring that such consent be given (with the requesting party hereby waiving any claim for damages, attorneys' fees or any other remedy unless the consenting party refuses to comply with a court order or judgment requiring it to grant its consent).

22.14 HIPAA. Notwithstanding anything to the contrary herein, the Landlord agrees and acknowledges that Tenant's patient files are confidential to the patients, as provided in accordance with the provisions of the Health Insurance Portability and Accountability Act of 1996 ("HIPAA"). Notwithstanding any default by Tenant and/or the exercise by Landlord of any right of entry into the Premises or of any lien rights or the termination of expiration of this Lease for any reason, the Landlord covenants and agrees to (a) comply with the provisions regarding HIPAA and not access such files and use all reasonable precautions to assure that no employee, agent, or contractor of the Landlord will access such files and (b) provide Tenant with access to Tenant's patient files at all times.

22.15 22.15 Option to Extend. Landlord hereby grants Tenant one (1) option to extend the Term for an additional three (3) years (the "Option Term"), commencing November 1, 2029 and expiring October 31, 2032, upon the following conditions and terms:

(a) Tenant shall give to Landlord, and Landlord shall actually receive, on a date which is at least nine (9) months and not more than fifteen (15) months prior to the then scheduled expiration date of the Lease Term, a written notice of Tenant's exercise of an Option (an "**Option Notice**"), time being of the essence. If an Option Notice is not timely so given and received, the Option, and any subsequent Option (if any), shall automatically expire.

(b) Tenant shall have no right to exercise an Option, notwithstanding any

provision hereof to the contrary, (1) during the time commencing from the date Landlord gives to Tenant a notice of default pursuant to this Lease and continuing until the noncompliance alleged in said notice of default is cured, or (2) during the period of time commencing on the day after a monetary obligation to Landlord is due from Tenant and unpaid (without any necessity for notice thereof to Tenant) and continuing until the obligation is paid, or (3) if, during the 12 month period of time immediately prior to the time that Tenant attempts to exercise the Option, Landlord has given to Tenant two or more notices of default under this Lease, whether or not the defaults are cured, or Tenant has been late on three or more occasions in the payment of a monetary obligation to Landlord (without any necessity for notice thereof to Tenant), or (4) if Tenant has committed any non-curable breach, or is otherwise in default of any of the terms, covenants or conditions of this Lease beyond any applicable notice and cure period, or (5) if as of the date of Tenant's exercise of the Option, Tenant's financial condition is not as strong as Tenant's financial condition as of the date of this Lease, as commercially reasonably determined by Landlord (with Tenant to provide Landlord with such information as may be reasonably requested by Landlord to verify the same).

(c) The period of time within which an Option may be exercised shall not be extended or enlarged by reason of Tenant's inability to exercise the Option because of the provisions of Section 22.15(b) above.

(d) At Landlord's sole election, all Option rights of Tenant under this Section 22.15 shall terminate and be of no further force or effect, notwithstanding Tenant's due and timely exercise of an Option, if, after such exercise, (1) Tenant fails to pay to Landlord a monetary obligation of Tenant for a period of ten (10) days after such obligation becomes due (without any necessity of Landlord to give notice thereof to Tenant), or (2) Tenant fails to commence to cure any other default under this Lease within ten (10) days after the date that Landlord gives notice to Tenant of such default and/or Tenant fails thereafter to diligently prosecute said cure to completion within thirty (30) days after the date of such notice, or (3) Landlord gives to Tenant two (2) or more notices of default under this Lease, or Tenant is late on two (2) or more occasions in the payment of a monetary obligation to Landlord (without any necessity of notice thereof to Tenant), whether or not the defaults are cured, or (4) Tenant has committed any incurable breach, or is otherwise in default of any of the terms, covenants and conditions of this Lease beyond any applicable notice and cure period, or (5) there is a material adverse change in Tenant's financial condition from the date of Tenant's exercise of the Option, as commercially reasonably determined by Landlord (with Tenant to provide Landlord with such information as may be reasonably requested by Landlord in connection therewith).

(e) The Options granted to Tenant in this Lease are personal to the Original Tenant and any Permitted Transferee and may be exercised only by the Original Tenant or a Permitted Transferee while occupying the entire Premises who does so without the intent of thereafter assigning this Lease or subletting the Premises or any portion thereof, and may not be exercised or be assigned, voluntarily or involuntarily, by or to any person or entity other than Tenant. The Options herein granted to Tenant are not assignable separate and apart from this Lease, nor may the Options be separated from this Lease in any manner, either by reservation or otherwise.

(f) All of the terms and conditions of this Lease except where specifically modified by this Section 22.15 or as otherwise stated to be applicable only to the initial Lease Term shall apply during any extended Lease Term.

(g) The monthly Base Rent payable during the Option Term shall equal the then current fair market rental value for the Premises, determined as of the beginning of the Option Term, as follows:

(1) Promptly following receipt by Landlord of Tenant's Option Notice, Landlord and Tenant shall attempt to reach agreement on the Base Rent for the Option Term, which Base Rent shall be set in accordance with the criteria described above. If Landlord and Tenant are able to agree on the Base Rent for the Option Term, Landlord and Tenant shall immediately execute an amendment to this Lease stating the Base Rent for the Option Term.

(2) If the parties are unable to agree on the Base Rent for the Option Term within forty-five (45) days following Landlord's receipt of an Option Notice, then each party, at its cost and by giving notice to the other party, shall have ten (10) days within which to appoint a licensed commercial real estate broker with at least seven (7) years experience in the Framingham real estate market, to determine and set the Base Rent for the Option Term at the then current fair market monthly rental value for the use of the Premises for a term equal to the Option Term. If a party does not appoint a broker within such ten (10) day period, the single broker appointed shall be the sole broker and shall set the Base Rent for the Option Term. If two brokers are appointed by the parties as stated in this paragraph, they shall meet promptly and attempt to set the Base Rent for the Option Term. If they are unable to agree within forty five (45) days after the second broker has been appointed, they shall attempt to select a third broker meeting the qualifications stated in this paragraph within ten (10) days after the last day the two brokers are given to set the Base Rent for the Option Term. If they are unable to agree on the third broker, either of the parties to this Lease, by giving ten (10) days notice to the other party, may apply to the presiding judge of the court of the County in which the Premises are located, for the selection of a third broker who meets the qualifications stated in this paragraph. Each of the parties shall bear the cost of its own broker and one-half (1/2) of the cost of appointing the third broker and of paying the third broker's fee. The third broker, however selected, shall be a person who has not previously acted in any capacity for either party.

(3) Within twenty (20) days after the selection of the third broker, a majority of the brokers shall set the Base Rent for the Option Term. If a majority of the brokers are unable to agree upon the Base Rent within the stipulated period of time, the two closest brokers shall be added together and their total divided by two, and the resulting quotient shall be the Base Rent for the Premises during such Option Term.

(h) If the Base Rent for an Option Term has not been determined by the commencement date of the Option Term, then until such Base Rent is determined, Tenant shall pay Base Rent to Landlord at the rate in effect immediately preceding the Option Term, and if the actual Base Rent for the Option Term is determined to be higher, then within fifteen (15) days after the determination of such higher Base Rent, Tenant shall pay to Landlord the difference for each month of the Option Term for which Base Rent has already become due.

22.16 Anti-Terrorism Representation.

(a) Tenant certifies that:

(i) It is not acting, directly or indirectly, for or on behalf of any person,

group, entity, or nation named by any Executive Order or the United States Treasury Department as a terrorist, "Specially Designated National and Blocked Person," or other banned or blocked person, entity, nation, or transaction pursuant to any Law that is enforced or administered by the Office of Foreign Assets Control; and

(ii) It is not engaged in this transaction, directly or indirectly on behalf of, or instigating or facilitating this transaction, directly or indirectly on behalf of, any such person, group, entity, or nation.

(b) Tenant hereby agrees to defend, indemnify, and hold harmless Landlord from and against any and all claims, damages, losses, risks, liabilities, and expenses (including attorney's fees and costs) arising from or related to any breach of the foregoing certification.

EXECUTED as an instrument under seal as of the date first set forth above.

LANDLORD:

RCP, LLC,
a Massachusetts limited liability company

By: Murray Burwick
Name: Murray Burwick
Title: CFO, duly authorized

TENANT:

Deansgale Livery LLC

By:
Name: Kingsley Urakpo
Title: CEO & Managing Member,

EXHIBIT A

916 SF

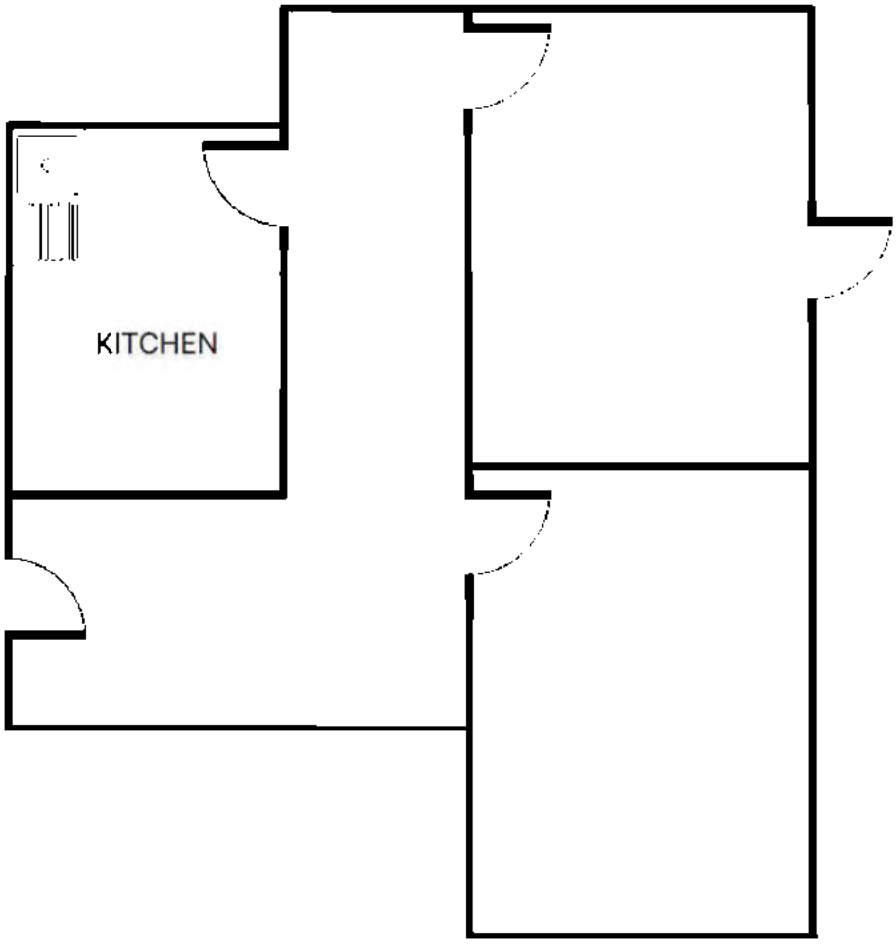


EXHIBIT B

RULES AND REGULATIONS

1. The sidewalks, and public portions of the Building, such as entrances, passages, courts, vestibules, corridors or halls shall not be obstructed or encumbered by any tenant or used for any purpose other than ingress and egress to and from any premises.

2. The water and wash closets and other plumbing fixtures shall not be used for any purpose other than those for which they were constructed, and no sweeping rubbish, rags, or other substances shall be thrown therein. All damages resulting from any misuse of the fixtures shall be borne by the tenant who, or whose servants, employees, agents, visitors or licensees, shall have caused the same.

3. No bicycles, vehicles or animals of any kind (except service animals) shall be brought into or kept in or about the Premises.

4. No tenant shall make, or permit to be made, any unseemly or disturbing noises or disturb or interfere with occupants of the Building or neighboring buildings or premises or those having business with them. Machinery, equipment and apparatus belonging to any tenant which cause noise or vibration that may be transmitted to the structure of the Building to such a degree as to be objectionable to Landlord or other tenants or to cause harm to the Building shall be placed and maintained by the applicable tenant, at tenant's expense, on vibration eliminators or other devices sufficient to eliminate the transmission of such noise and vibration. The tenant shall cease using any such machinery which causes objectionable noise and vibration which cannot be sufficiently mitigated. No tenant shall throw anything out of the doors, or windows or down the passageways.

5. No tenant, nor any of the tenant's servants, employees, agents, visitors or licensees, shall at any time bring or keep upon any premises any inflammable, combustible or explosive fluid, material, chemical or substance or aerosol containers, other than reasonable amounts of cleaning fluids and solvents (stored in proper containers) required in the normal operation of tenant's business offices.

6. No additional locks or bolts of any kind shall be placed upon any of the doors windows by the tenant, nor shall any changes be made in existing locks or the mechanism thereof, without the prior written approval of the Landlord, which shall not be unreasonably withheld, conditioned, or delayed, and unless and until a duplicate key is delivered to Landlord. Each tenant must, upon the termination of his tenancy, restore to the Landlord all keys of stores, offices and toilet rooms, either furnished to, or otherwise procured by, such tenant, and in the event of the loss of any keys, so furnished, such tenant shall pay to Landlord the cost of replacement thereof.

7. Each tenant, before closing and leaving the premises demised to such tenant at any time, shall see that all entrance doors are locked and all windows closed.

8. If the premises demised to any tenant become infested with vermin, such tenant, at its sole cost and expense shall cause its premises to be exterminated, from time to time, to the satisfaction of Landlord, and shall employ such exterminators therefore as shall be approved by Landlord.

9. Landlord may from time to time adopt appropriate systems and procedures for the security or safety of the building, any persons occupying, using, or entering the building, or any equipment, finishing, or content of the building and tenant will comply with Landlord's reasonable systems and procedures.

10. No advertisements, pictures or signs of any sort shall be displayed outside the Premises without the prior written consent of Landlord. Landlord shall have the right to remove any such unapproved item without notice and at Tenant's expense.

11. All window coverings and window films or coatings installed by Tenant and visible from outside of the building require the prior written approval of Landlord. Except for dock shelters and seals as may be expressly permitted by Landlord, no awnings or other projections shall be attached to the outside walls of the building.

12. No tenant shall keep or permit to be used or kept food or other edible materials in or around the Premises in such a manner as to attract rodents, vermin or other pests. There shall be no cooking in or about the Premises other than in microwave ovens. No tenant shall cause or permit any unusual or objectionable odors to be produced upon or emanate from any premises.

13. No tenant shall use or permit the use of its premises for lodging or sleeping, for public assembly, or for any illegal or immoral purpose.

14. The general parking or loading areas shall not be used for the purposes of cleaning or maintaining motor vehicles.

15. Motor vehicles shall be parked only in those general parking areas as designated by Landlord except for active loading and unloading. No tenant shall unreasonably interfere with traffic flow within the business park, public streets or loading areas of other tenants.

16. No tenant shall disturb, solicit or canvas any occupant of the Building or business park and shall cooperate to prevent same.

17. No person shall go on the roof of the Property without Landlord's permission.

18. All goods, including material used to store goods, delivered to the premises of a tenant shall be immediately moved into the premises and shall not be left in parking or exterior loading areas overnight.

19. Tractor trailers must be parked in a way to prevent damage to the asphalt paving surfaces. No parking or storing of such trailers will be permitted in the auto parking areas of the business park, on streets adjacent thereto or loading areas of other tenants.

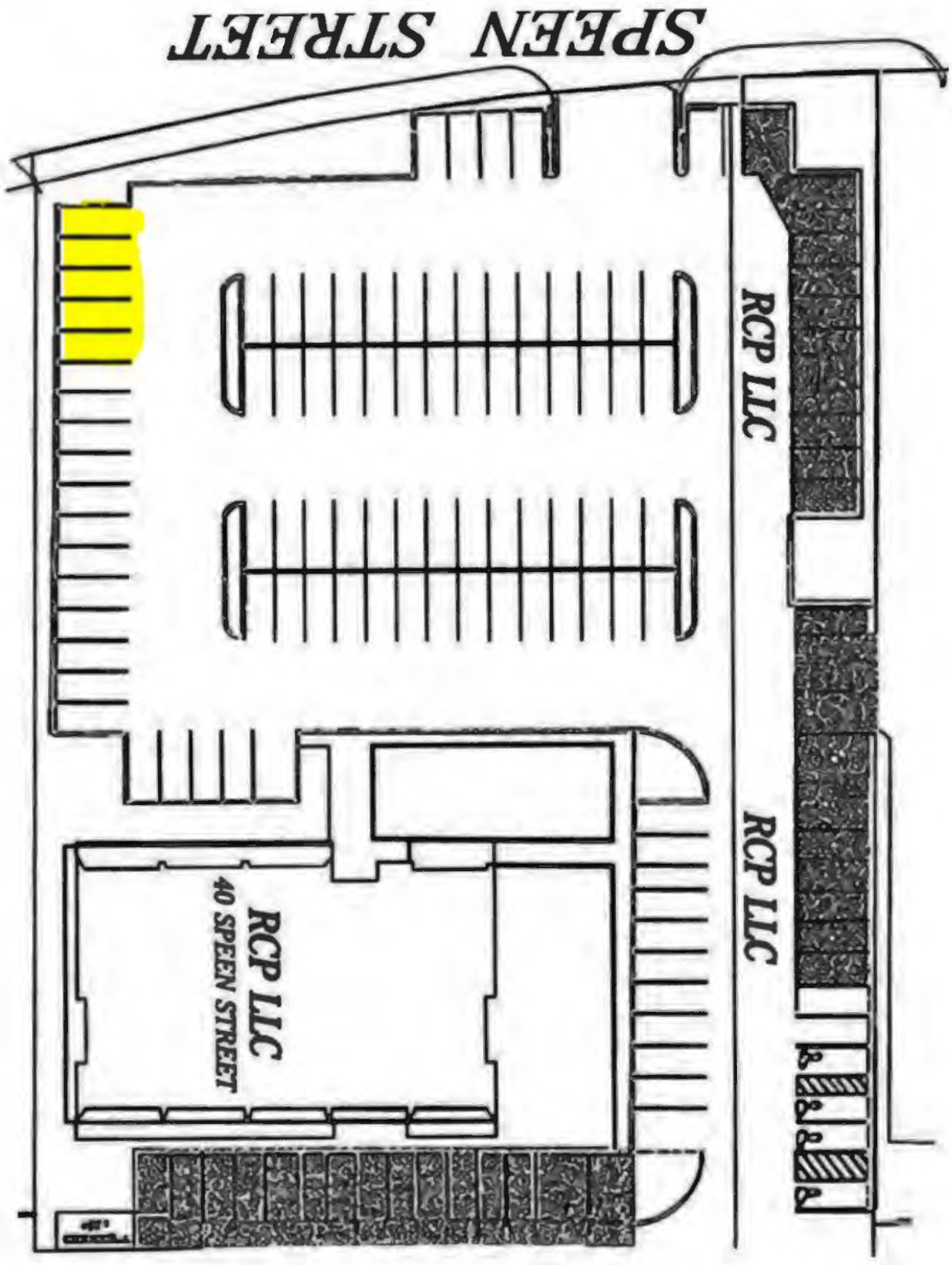
20. Each tenant shall be responsible for the storage and removal of all trash and refuse generated by it and/or at its premises. All such trash and refuse shall be contained in suitable receptacles stored behind screened enclosures at locations approved by Landlord. Landlord reserves the right to remove, at tenant's expense and without further notice, any trash or refuse left elsewhere outside of the premises or on the Property.

21. No tenant shall store or permit the storage or placement of goods or merchandise in or around the Common Area surrounding its premises. No displays or sales of merchandise shall be allowed in the parking lots or other Common Area.

22. Each tenant shall appoint an Emergency Coordinator who shall be responsible for assuring notification of the local fire department in the event of an emergency. If fire safety or sprinkler equipment is located within the premises, tenant shall not store or permit the storage or placement of goods or merchandise in or around fire safety or sprinkler equipment.

Whenever and to the extent that the above rules conflict with any of the rights or obligations of Tenant pursuant to the provisions of this Lease, the provisions of this Lease shall govern.

EXHIBIT C



[redacted] Framingham, MA

October 22, 2026

Police Approval

Record No.LIV-26-4

Status Completed

Became Active October 16, 2026

Type Approval

Due Date None

Assignee Tyson Mohr

Record No: LIV-26-4

Livery License

Status: Active

Submitted On: 10/6/2026

Messages

Michael Royce [redacted] **Internal**

October 16, 2026 at 8:47 am

Adding 3 more Drivers to their license

Tyson Mohr [redacted] **Internal**

October 19, 2026 at 9:43 am

Provided the
requirements of other City departments are met, the Framingham Police approve
the application submitted by Kingsley Urakpo. Additionally, this is contingent upon the new drivers obtaining hackney licenses through the Framingham Police Department.

CITY OF FRAMINGHAM
LICENSING DEPARTMENT

Michael Royce
Licensing Coordinator

o 508-532-5402
f 508-532-5769
e licensing@framinghamma.gov
w www.framinghamma.gov

MEMORIAL BUILDING
150 Concord Street, Room 213
Framingham, MA 01702

Agenda Item 2c

Transfer of Class I License

From
Bernardi Automall, Inc
DBA Bernardi Toyota

To
Balise BTF, Inc.
DBA Bernardi Toyota
1626 Worcester Rd
Framingham, MA 01702

Hearing Date: November 2, 2026

1. OpenGov Application
2. Draft License
3. Purchase & Sales Agreement
4. Letter Regarding Missing Documents
5. Articles of Organization
6. Dealer Plates
7. City Department Approvals

Framingham, MA

October 22, 2026

Record No: AUTO-26-2

Auto Dealer License

Class I, II, III

Status Active

Submitted On: 10/2/2026

Primary Location

1626 WORCESTER RD
FRAMINGHAM, MA 01702

Owner

No owner information

Applicant

James Balise

jeb@baliseauto.com

Zip Code*

[redacted]

Contact Person Information

Contact Person*

Beckie Bragga

Contact Phone*

[redacted]

Contact Email*

bbragga@baliseauto.com

Establishment Information

Establishment Name*

Balise BTF, Inc.

Maximum Number of Vehicles*

275

D/B/A*

Bernardi Toyota

EIN Number*

-*0213

Dealer Plates?*

Yes

Number of Dealer Plates*

26

Has any licensed issued to you under MGL. Chapter 140 or 90, Sec 5. ever been suspended or revoked? *

No

Have any complaint(s) been registered with the Attorney General's office concerning your dealership within the past year?*

No

Hours of Operation

Sunday Open*

closed

Sunday Close*

closed

Monday Open*

9a

Monday Close*

8p

Tuesday Open*

9a

Tuesday Close*

8p

Wednesday Open*

9a

Wednesday Close*

8p

Thursday*

9a

Thursday Close*

8p

Friday Open*

9a

Friday Close*

6p

Saturday Open*

9a

Saturday Close*

6p

Background Check Information

Additional Information Requested by the City of Framingham Police Department for Background Check

Please provide either your Social Security Number or your Employee I.D. Number if applicable below:

Social Security Number*

***-**-1749

Date of Birth*

[redacted]

First Name*

James

Last Name*

Balise, Jr

Workers' Compensation Insurance Affidavit

Are you an employer?*

I am an employer with full/part-time employees.

How many employees?*

87

Insurance Company Name*

Federated Mutual Insurance Company

Insurer's Address*

P.O. Box 328

Insurer's City*

Owatonna

Insurer's State*

MN

Insurer's Zip Code*

55060

Policy # or Self-ins. Lic. #*

[redacted]

Expiration Date*

12/31/2026

You will be required to attach a copy of the workers' compensation policy declaration page (showing the policy number and expiration date) later in this application.

Failure to secure coverage as required under Section 25A of MGL c. 152 can lead to the imposition of criminal penalties of a fine up to $1,500.00 and/or one-year imprisonment, as well as civil penalties in the form of a STOP WORK ORDER and a fine of up to $250.00 a day against the violator. Be advised that a copy of this statement may be forwarded to the Office of Investigations of the DIA for insurance coverage verification.

I do hereby certify under the pains and penalties of perjury that the information provided above is true and correct.

Signature*

James E Balise Jr
Sep 18, 2026

Today's Date*

09/18/2026

Acknowledgement

I, the Applicant, state that the information provided in this application, and associated attachments, is true and accurate to the best of my knowledge.

Tax Attestation: Furthermore, Pursuant to MGL Ch. 62C, Sec 49A, I certify under the penalties of perjury that I, to the best of my knowledge and belief, have filed all state tax returns and paid all state taxes required under law.

Digital Signature*

James E. Balise, Jr.
Sep 23, 2026

Timeline

Label	Activated	Completed	Assignee	Due Date	Status
License Fee Payment	10/2/2026, 4:27:27 PM	10/2/2026, 4:28:26 PM	James Balise	-	Completed
Application Completeness Review	10/2/2026, 4:28:26 PM	10/5/2026, 9:47:42 AM	Michael Royce	-	Completed
Police Review	10/5/2026, 9:47:43 AM	10/19/2026, 9:32:22 AM	Tyson Mohr	-	Completed
Inspectional Services Review	10/5/2026, 9:47:43 AM	10/5/2026, 10:09:23 AM	Fred Bray	-	Completed
Fire Department Approval	10/5/2026, 9:47:43 AM	10/13/2026, 1:38:01 PM	Will Gingras	-	Completed
Sealer of Weights & Measures Review	10/5/2026, 9:47:43 AM	10/6/2026, 10:16:35 AM	James Demeo	-	Completed
Board Approval	10/19/2026, 9:32:23 AM	10/22/2026, 10:29:40 AM	Michael Royce	-	Completed

Label	Activated	Completed	Assignee	Due Date	Status
Class I License	10/22/2026, 10:29:42 AM	10/22/2026, 10:29:42 AM	-	-	Completed
Board Approval	10/22/2026, 10:29:42 AM	-	Michael Royce	-	Active

THE COMMONWEALTH OF MASSACHUSETTS

City of Framingham

HEREBY GRANTS AN

AGENT'S OR SELLER'S LICENSE - CLASS I

FOR THE SALE OF MOTOR VEHICLES

In accordance with the provisions of Chapter 140 of the General Laws and Amendments thereto.

To: Balise BTF, Inc.
Licensee: Bernardi Toyota
At: 1626 WORCESTER RD Framingham, MA in said City on the premises described as follows:

Extracts From General Laws, Chapter 140

SECTION 57. No person, except one whose principal business is the manufacture and sale of new motor vehicles, but who incidentally acquires and sells second-hand vehicles, or a person whose principal business is financing the purchase of or insuring motor vehicles but who incidentally acquires and sells second-hand vehicles, shall engage in the business of buying, selling, exchanging, or assembling second-hand motor vehicles or parts thereof without securing a license as provided in section fifty-nine

SECTION 58. Licenses granted under the following section shall be classified as follows:

Class 1. - Any person who is the recognized agent of a motor vehicle manufacturer, or a seller of motor vehicles made by such manufacturer whose authority to sell the same is created by a written contract with such manufacturer or with some person authorized in writing by such manufacturer to enter into such contract, and whose principal business is the sale of new motor vehicles, the sale of second-hand motor vehicles being incidental thereto, may be granted an agent's or a seller's license.

Class 2. - Any person whose principal business is the buying and selling of second-hand vehicles may be granted a used car dealer's license.

Class 3. - Any person whose principal business is the buying of second-hand vehicles for the purpose of remodeling, taking apart or rebuilding the same, or the buying or selling of parts of second-hand motor vehicles or tires, or the assembling of second-hand motor vehicle parts may be granted a motor vehicle junk license.

SECTION 59. - The police commissioner in Boston and the licensing authorities in other cities and towns, may grant licenses under this section which shall expire on January First following the date of issue unless sooner revoked. The fees for the licenses shall be fixed by the licensing board or officer, but in no case shall exceed one hundred dollars. The license shall specify all the premises to be occupied by the licensee for the purpose of carrying on the licensed business. Permits for a change of situation of the licensed premises or for additions thereto may be granted at any time by the licensing board or officer in writing, a copy of which shall be attached to the license. Cities and towns by ordinance or by-law may regulate the situation of the premises of licensees within class three of section fifty-eight, and all licenses and permits issued hereunder to persons within said class three shall be subject to the provisions of ordinances and by-laws which are hereby authorized to be made. No license or permit shall be issued hereunder to a person within said class three until hereunder to a person within said class three until after a hearing, of which seven days' notice shall have been given to the owners of property abutting on the premises where such license or permit is proposed to be exercised. All licenses granted under this section shall be revoked by the licensing board or officer if it appears, after hearing, that the licensee is not complying with sections fifty-seven to sixty-nine, inclusive, or the rules and regulations made thereunder; and no new license shall be granted to such person thereafter, nor to any person for use on the same premises, without the approval of the Registrar of Motor Vehicles, in sections fifty-nine to sixty-six, inclusive, called the Registrar. The hearing may be dispensed with if the Registrar notifies the licensing board or officer that a licensee is not so complying.

THIS LICENSE EXPIRES December 31, 2027

IN TESTIMONY WHEREOF, the undersigned have hereunto affixed their official signature
Issued October 22, 2026

THIS LICENSE IS NOT TRANSFERABLE UNTIL APPROVED BY THE FRAMINGHAM BOARD OF LICENSE COMMISSIONERS

License No. AUTO-26-2 Fee: $240.00

License Commissioners

Stuart Pologe, Chair

Laura Medrano, Vice Chair

Joseph Sturniolo, Clerk

Alycia DeAngelis, Member

Shannon McCullough, Member

THIS LICENSE MUST BE POSTED IN A CONSPICUOUS PLACE UPON THE PREMISES

REAL PROPERTY PURCHASE AND SALE AGREEMENT

THIS REAL PROPERTY PURCHASE AND SALE AGREEMENT (this "Agreement"), is executed as of July 6, 2026 (the "Effective Date") between JAMES P. CARNEY, as a TRUSTEE OF VOLADOR REALTY TRUST, u/d/t dated May 6, 1999 recorded in Middlesex South Registry District of the Land Court as Document No. 1,109,379 with a principal place of business at 1626 Worcester Road, Framingham, Massachusetts 01702 ("Seller"), and James E. Balise, Jr. on behalf of an entity to be formed, with a principal place of business at 1441 Main Street, Suite 300, Springfield, MA 01103, or his nominee ("Buyer").

WHEREAS, simultaneously with the execution of this Agreement, Buyer shall enter into a Toyota Asset Purchase Agreement with Bernardi Automall, Inc. to purchase the assets associated with the ownership and operation of a Toyota Dealership (the "Toyota Asset Purchase Agreement") on the real property situated at 1600-1626 Worcester Road, Framingham, Massachusetts (the "Real Property") and the closing of the transaction contemplated hereunder are subject to and contingent upon the Buyer (or its affiliate) and Bernardi Automall, Inc., Seller's affiliate, closing under the Toyota Asset Purchase Agreement.

WHEREAS, in addition to the consummation of the Closing contemplated under this Agreement and the Toyota Asset Purchase Agreement, Buyer and Seller contemplate that this Agreement shall also be subject to and contingent upon the Buyer and its affiliates, and the Seller and its affiliates as follows, closing under the following agreements:

A. Honda Asset Purchase Agreement by and between Bernardi's, Inc. (d/b/a Bernardi Honda) as Seller, and Buyer or an affiliate as the Buyer thereunder, relating to the operation of the Bernardi Honda Dealership situated at 960 Worcester Street, Natick, Massachusetts;

B. Acura Asset Purchase Agreement by and between Boston Car Company, Inc. as Seller, and Buyer or an affiliate as the Buyer thereunder, relating to the operation of the Bernardi Acura Dealership situated at 1600 Soldiers Field Road, Boston, Massachusetts;

C. Audi Asset Purchase Agreement by and between Seller as Seller, and Buyer or an affiliate as the Buyer thereunder, related to the operation of the Audi Natick dealership operating at 549 Worcester St., Natick, Massachusetts;

D. Volvo Asset Purchase Agreement by and between Wellesley Car Company, Inc. (d/b/a Bernardi Volvo Cars Natick) as Seller, and Buyer or an affiliate as the Buyer thereunder, relating to the operation of Bernardi Volvo Cars Natick at 910 Worcester Street, Natick, Massachusetts;

E. A Real Estate Purchase Agreement by and between Volador Realty Trust, a nominee trust, u/d/t dated May 6, 1999 recorded Suffolk Registry, Book 23862, page 307 and Middlesex South Registry of District of the Land Court as Document No. 1,109,379 ("Volador") as Seller, and Buyer or an

affiliate as the purchaser thereunder, relative to the real estate situated at 960 Worcester Street, Natick, Massachusetts where Bernardi Honda operates (the "Honda Real Estate Purchase Agreement");

F. A Real Estate Purchase Agreement by and between Volador as Seller, and Buyer or an affiliate as the purchaser thereunder, relative to the real estate situated at 1600-1616 Soldiers Field Road, Boston, Massachusetts where Acura of Boston operates (the "Acura Real Estate Purchase Agreement");

G. A Real Estate Purchase Agreement by and between 549 Worcester Street LLC as Seller, and Buyer or an affiliate as the purchaser thereunder, relative to the ownership of real estate situated at 517, 521, 525 and 549 Worcester Street, Natick, Massachusetts where the Audi Dealership operates (the "Audi Real Estate Purchase Agreement");

H. A Real Estate Purchase Agreement by and between Volador as Seller, and Buyer or an affiliate as the purchaser thereunder, relative to the real estate situated at 910 Worcester Street, Natick, Massachusetts where the Volvo Dealership operates (the "Volvo Real Estate Purchase Agreement").

I. A Real Estate Purchase Agreement by and between 26 Willow Street LLC as Seller, and Buyer or an affiliate as the purchaser thereunder, relative to the ownership of real estate situated at 26 Willow Street and 5, 7, 9 Cochituate Street, Natick, Massachusetts, which operates as a wholesale parts warehouse and a Volvo offsite service department (the "Parts Warehouse and Volvo Offsite Service Real Estate Purchase Agreement").

For the purposes hereof, the agreements referenced in Subsections A through I above are hereinafter collectively the "Affiliated Agreements"; the agreements referenced in Subsections A through D are hereinafter collectively referred to as the "Affiliated Asset Purchase Agreements", and the Agreements referenced in Subsections E through I are hereinafter collectively referred to as the "Affiliated Real Estate Agreements".

NOW, THEREFORE, in consideration of this Explanatory Statement that shall be deemed to be a substantive part of this Agreement, the mutual covenants, promises, agreements representations and warranties contained in this Agreement, and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, Buyer and Seller as the parties hereby agree as follows:

ARTICLE I.
SALE OF PROPERTY

1.1 Agreement to Buy and to Sell. Subject to the terms and conditions set forth in this Agreement, Seller agrees to sell, transfer and convey to Buyer, and Buyer agrees to purchase and accept from Seller, at the price and upon the terms and conditions set forth in this Agreement, the following real and personal property (collectively, the "Property"):

1.1.1 The parcels of land located in Framingham, Middlesex County (South),

Massachusetts, being commonly known and numbered as 1600-1626 Worcester Road, and located in Natick, Middlesex Couty (South), Massachusetts, being commonly known and numbered as 974 Worcester Street and 1000 Worcester Street, as such property is more particularly described in Exhibit A hereto, together with all privileges, rights, covenants, easements, rights to any taking awards, and other appurtenances belonging to such land, and all right, title and interest (if any) of Seller in and to any streets, curbing, sidewalks, walkways, alleys, passages, and other rights-of-way or appurtenances included in, adjacent to or used in connection with such land, and all right, title and interest (if any) of Seller in all development rights appurtenant to such land (the "Land");

1.1.2 All buildings and other improvements located on the Land (hereinafter the "Buildings"), together with any and all other improvements located at, on or affixed to the Land (the Buildings and such improvements being hereinafter collectively referred to as the "Improvements," and the Land and the Improvements being hereinafter collectively referred to as the "Real Property");

1.1.3 All mechanical systems and related equipment attached to the Improvements or located upon the Land (including but not limited to, electrical systems, plumbing systems, heating systems and air conditioning systems, maintenance equipment, supplies and tools) owned by Seller (and not owned by Bernardi AutoMall, Inc. operating as Bernardi Toyota (the "Tenant")) and used in connection with the Improvements, and all other fixtures, equipment, furniture, furnishings, and appliances attached to the Improvements and owned by Seller (and not Tenant), or otherwise owned by Seller and located within the Real Property or used exclusively in connection with the Real Property, of every kind and character (the "Tangible Personalty"), excluding any items owned by Tenant and the items listed on Exhibit B hereto (collectively, the "Excluded Tangible Personalty");

1.1.4 All of Seller's assignable right, title and interest, if any, in all intangible assets of any nature relating to the Real Property or the Tangible Personalty, including without limitation, all of Seller's assignable right, title and interest in: (i) all warranties and guaranties relating to the Improvements or Tangible Personalty, if any; (ii) all entitlements, permits, certificates of occupancy, and approvals relating to the Real Property or the Tangible Personalty; (iii) the right to use (without warranty as to exclusivity or otherwise) any address designations employed in connection with the Real Property; and (iv) all plans, specifications and construction documents relating to the Real Property or the Tangible Personalty, in each case to the extent that Seller may legally transfer the same and to the extent in Seller's possession (the "Intangible Personalty").

ARTICLE II.
PURCHASE PRICE

2.1 Purchase Price. The purchase price for the Property and all of the other Properties that are the subject of the Affiliated Real Estate Agreements (the "Aggregate Real Estate Purchase Price"), is [redacted] to be paid by Buyer (or Buyer's affiliates/nominees) collectively to Seller and the Sellers under the Affiliated Real Estate Agreements as provided below, subject to the terms and conditions hereinafter set forth. Seller, Buyer and the parties to each of the Affiliated Real Estate Agreements have allocated the Purchase Price to be paid among the

Property to be sold under this Agreement and the properties to be sold under each of the other Affiliated Real Estate Agreements (collectively the "Real Estate Allocation"), as set forth in Exhibit C attached hereto and incorporated by this reference. Notwithstanding the Real Estate Allocation for the Property to be sold under this Agreement and each of the properties to be sold under each of the Affiliated Real Estate Agreements, the parties acknowledge that Buyer's right to consummate the transaction described in this Agreement, requires Buyer to simultaneously consummate the transactions in all of the Affiliated Agreements.

2.2 Deposit. Upon the execution of this Agreement by Buyer, Buyer shall deliver to Commonwealth Land Title Insurance Company, defined below, as the Escrow Agent hereunder ("Escrow Agent") a deposit in the amount of [redacted] DOLLARS (the "Deposit") to serve as the Deposit under this Agreement and the Affiliated Agreements in the aggregate, i.e., there is only one (1) Deposit in said amount for all of the combined Affiliated Agreements. The Deposit shall be credited towards the Aggregate Real Estate Purchase Price under the Affiliated Real Estate Agreements, and/or the Aggregate Asset Purchase Price under the Affiliated Asset Purchase Agreements, at the time of Closing. The Deposit will be held in an interest-bearing account and the accrued interest shall be paid to the party receiving the Deposit, and will be applied against the Purchase Price for the benefit of Buyer at the time of Closing. Buyer shall provide the Escrow Agent with a signed W-9 at the time the Initial Deposit is sent to the Escrow Agent.

2.3 Payment at Closing. At the Closing (defined below), the remaining amount of the Aggregate Real Estate Purchase Price to be paid in the aggregate for all of the transactions contemplated under this Agreement and the Affiliated Real Estate Agreements after the Deposit is allocated by the parties to those of the Affiliated Agreements they choose (subject to Section 5.4 of the Toyota Asset Purchase Agreement and the same Section 5.4 in each of the Affiliated Real Estate Purchase Agreements), shall be paid by Buyer to Seller by Federal Funds Wire Transfer.

ARTICLE III.
INSPECTION AND CONDITION OF THE PROPERTY

3.1 Title Matters. Prior to the expiration of the Title Inspection Period (as defined below), Buyer shall, at Buyer's expense, obtain a title commitment (the "Buyer's Title Commitment") issued by Commonwealth Land Title Insurance Company (the "Title Company") with such conditions as are standard within the title insurance industry for transactions of the size of the Aggregate Real Estate Purchase Price. Any matters that are disclosed as exceptions to title on such title commitment or that constitute title defects, takings, or other encumbrances of record existing as of the date of such title commitment are collectively referred to herein as "Title Matters".

3.2 Survey. Prior to the expiration of the Title Inspection Period, Buyer may, at Buyer's expense, employ a reputable surveyor or surveying firm, licensed by the Commonwealth of Massachusetts, to prepare and deliver to Buyer one or more surveys of the Real Property. Any and all matters that are or would be shown on such a survey of the Real Property, prepared in accordance with applicable ALTA/ACSM survey standards, are referred to herein as "Survey Matters". Within five (5) days hereof, Seller will deliver to Buyer any surveys of the Property in the possession of Seller or its professionals or its title company.

3.3 Title and Survey Review. Through 6:00 p.m. (EST) on the date which is sixty (60) days from the Effective Date (the "Title Inspection Period"), Buyer may object to any Title Matters or Survey Matters by so advising Seller in writing ("Buyer's Title Objection Notice"), setting forth with particularity the Title Matters or Survey Matters which must be removed, modified or added in order to render title to the Property satisfactory to Buyer (the "Objectionable Matters"). All Title Matters and Survey Matters not objected to by Buyer, as set forth in the Buyer's Title Objection Notice received by Seller prior to the end of the Title Inspection Period, shall be deemed to be "Permitted Exceptions". If Buyer does not deliver Buyer's Title Objection Notice prior to the expiration of the Title Inspection Period, Buyer shall be deemed to have approved all Title Matters and Survey Matters. Seller shall, not later than five (5) business days following receipt of Buyer's Title Objection Notice, notify Buyer either: (i) that Seller shall use reasonable efforts to cure the Objectionable Matters on or before the Closing Date, or Buyer and Seller shall mutually agree on a resolution for such Objectionable Matters, in which case the Permitted Exceptions shall not include such Objectionable Matters; or (ii) that if Seller cannot cure the Objectionable Matters and the Buyer and Seller cannot agree on a mutually acceptable resolution of the same, in which case Buyer shall have the right in its sole and absolute discretion, by written notice to Seller given not later than five (5) business days after receipt of Seller's notice, to terminate this Agreement and the Affiliated Agreements, whereupon the Deposit shall be promptly returned to Buyer and all obligations of the parties hereto and in the Affiliated Agreements, except those which by their terms survive termination, shall cease and be of no further force or effect. For clarification, Buyer and Seller hereby agree that unless otherwise agreed by Buyer and Seller, if Buyer wants to terminate this Agreement as provided herein, Buyer must terminate its right to purchase under all of the Affiliated Agreements. If Seller fails to notify Buyer of its election within said five (5) business day period, then Seller shall be deemed to have elected to cause the Objectionable Matters to be cured. If Buyer does not so elect (within the permitted time period) to terminate this Agreement and all of the Affiliated Agreements unless otherwise agreed by Buyer and Seller and the Sellers under the Affiliated Agreements (following notice from Seller that Seller shall not cure the Objectionable Matters), then this Agreement shall continue to be effective, and the Permitted Exceptions shall include all Title Matters and Survey Matters (including the Objectionable Matters). Notwithstanding the foregoing, Buyer need not object to any mortgages or other monetary liens (provided that Buyer shall give Seller written notice of the same) encumbering the Property, as Seller hereby agrees to cause all such mortgages and liens for which Buyer has provided notice to Seller) to be paid off at the time of Closing, with a discharge of such mortgage(s) and liens to be provided in accordance with local conveyancing practice. As used herein the use of "reasonable efforts" to cure any Objectionable Matters (or other due diligence objections) under this Agreement, the Toyota Asset Purchase Agreement and the Other Affiliated Agreements shall not require the expenditure by Seller in the aggregate of more than the amount set forth in Section 9.1 hereof.

3.4 Amendments to Title Commitment. Buyer shall have the right to object to any title matters of record that first arise of record after the date of the Buyer's Title Commitment and which are listed by the Title Company in any datedown endorsement to the Buyer's Title Commitment issued after the date of the Buyer's Title Commitment (which endorsement is obtained by Buyer after the Title Inspection Period either prior to or at the time of Closing), by giving written notice to Seller of the title exceptions to which Buyer is so objecting on or before the earlier of: (a) the date and time that is fifteen (15) days prior to Closing (or immediately if

such datedown is performed closer to Closing); and (b) five (5) days after the issuance of any such datedown endorsement (or immediately if such datedown is performed closer to Closing),. If Buyer does not object to any title exception first raised in any such datedown endorsement to the Buyer's Title Commitment issued after the expiration of the Title Inspection Period and at any point up to or at the time of Closing by giving timely written notice as herein provided, such title exception shall be a Permitted Exception. In the event Buyer gives timely written notice of an objection to any title exception as provided in this Section 3.4, the provisions of Section 9.1 shall apply with respect thereto as if set forth herein in full.

3.5 Buyer's Due Diligence Review. Through 6:00 p.m. (EST) on the date which is ninety (90) days from the Effective Date (the "Due Diligence Period"), provided however, Buyer shall perform its title and survey review within forty-five (45) days of the Effective Date (the "Title and Survey Review Period"). During the Due Diligence Period, Buyer and its appointed agents or independent contractors (collectively, "Buyer's Designees") may, at all reasonable times during normal business hours upon at least 24 hours' prior notice to Seller (which notice may be verbal), subject to the provisions of any lease relative to the Real Property, to enter the Real Property in the presence of Seller's designated representative only, to, at Buyer's sole risk, cost and expense, inspect, examine, test, measure, appraise, and survey the Real Property, including, but not limited to, investigations of the physical and structural condition thereof, and to determine the status of the Real Property, and to perform a Phase I Environmental inspection with respect to Hazardous Materials (defined below), and such other inspections of the records, correspondence and other documentation relating to the Property in the possession of Seller. Such physical inspections shall not interfere with the use of the Real Property by Tenant (defined below) and shall not disturb the condition of the Improvements. If Buyer would like to do any subsurface testing, the scope and type of any subsurface testing shall be approved by Seller and the scope of such testing shall be determined by mutual agreement of Buyer and Seller. By the expiration of the Title and Survey Review Period, Buyer shall, raise all title and survey objections in writing to Seller ("Buyer's Title and Survey Objection Notice") and Seller shall have fifteen (15) days after receipt of Buyer's Title and Survey Objection Notice to notify Buyer whether or not Seller will cure any objections raised in Buyer's Title and Survey Objection Notice, and if Seller cannot cure the same, Buyer and Seller shall reach a mutually acceptable solution to any such title or survey issues that Seller cannot reasonably cure, including entering into a lease of the Real Property if there is no other reasonable solution mutually acceptable to Buyer and Seller. Buyer shall have no further right to object to title and survey matters after the Title and Survey Review Period and shall accept all title and survey matters except for any new title matters arising after the date of Buyer's title commitment, for which Seller shall have the notice and cure rights provided for herein.

For all of Buyer's due diligence, Buyer shall, and does hereby covenant and agree: (a) to promptly repair any and all damage caused by the activities of Buyer or Buyer's Designees on the Property; (b) to promptly restore any disturbed portion of the Property to a state that is equal to the state that the disturbed portion of the Property was in prior to such disturbance; and (c) to indemnify, defend and hold Seller harmless from any actions, suits, liens, claims, damages, expenses, losses, obligations and liability of any nature arising out of any such entry by Buyer or Buyer's Designees or any acts performed in exercising Buyer's rights under this Section (including without limitation, any rights or claims of materialmen or mechanics to liens on the Property, but excluding the obligation to correct any previously existing conditions

that are merely discovered by, and not caused or exacerbated by, Buyer or Buyer's Designees). Buyer's obligations under this Section shall survive termination of this Agreement and shall survive delivery of the Deed. Buyer or Buyer's Designees shall provide Seller with evidence of adequate insurance before such parties access the Real Property to perform Buyer's Due Diligence and inspections hereunder.

Buyer shall not, and shall inform Buyer's Designees not to, have any discussions with any employees of Seller during any visit to the Property, and none of the foregoing parties shall reference this Agreement, or provide any information concerning the transaction contemplated under this Agreement, or why the inspections or due diligence is being performed. All conversations, questions, and inspections shall be directed to, and performed in the presence of the Seller representative specifically designated by Seller.

If Buyer is not satisfied with its due diligence review for all matters other than those raised in Buyer's Title and Survey Objection Notice for which Seller has agreed to not cure the same, title and in its sole discretion, Buyer may notify Seller accordingly as described in Section 3.10 of the Toyota Asset Purchase Agreement, and the rights and obligations therein shall apply to this Agreement.

3.6 Possession and Condition of Property. Prior to or at the time of the Closing, Seller shall terminate any and all leases relative to the Real Property so that Seller shall convey good and clear and marketable title free of all leasehold interests to Buyer at the time of Closing.

3.7 Inspection Prior to Closing. Buyer shall be entitled to an inspection of the Property immediately prior to the Closing in order to determine whether the condition thereof complies with the terms of this Agreement. If upon Buyer's inspection of the Real Property prior to the Closing, the condition of the Property is not as provided in this Agreement or otherwise consistent with the condition of the Property at the time of Buyer's Due Diligence Review, then Buyer shall provide Seller with a list of said nonconforming conditions and the Seller shall use reasonable efforts to deliver possession as provided herein, and to make the Property conform to the provisions hereof, and the provisions of Section 9.1 shall apply or Buyer and Seller shall endeavor to mutually agree on a resolution to such nonconforming conditions, with Seller agreeing to engage in commercially reasonable efforts to remedy any such nonconforming conditions prior to Closing, or after Closing if necessary.

3.8 Title Standards. It is understood and agreed by the parties that the Real Property shall not be in conformity with the title provisions of this Agreement unless title to the Real Property is insurable, for the benefit of Buyer or Buyer's nominee, by Commonwealth Land Title Insurance Company, in a fee owner's policy of title insurance as described above, on the American Land Title Association form currently in use on the Closing Date, subject only to: (a) those printed exceptions to title normally included in the "jacket" to such form or policy; (b) the standard exceptions other than the standard exceptions for mechanics liens and parties in possession (but including exceptions for the Lease and the possession of Tenant, with said exceptions to be eliminated in Buyer's final title insurance policy); and (c) the Permitted Exceptions.

3.9 AS IS SALE. Subject to Buyer's Due Diligence inspection rights as set forth

herein, Buyer acknowledges and agrees that it is acquiring the Property in "AS IS, WHERE IS, WITH ALL FAULTS AND DEFECTS" condition. Except for the representations, warranties and obligations of Seller set forth in this Agreement and any other agreements, transfer documents or other documents executed by the parties hereto with regard to the Property, Seller hereby specifically disclaims any representation or warranty, whether express, implied or statutory, whether oral or written, with respect to the Property, including, but not limited to those concerning: (i) the value, physical condition, good repair, condition of title, habitability, tenantability, suitability, merchantability, development potential, or fitness for a particular use or purpose of the Property; (ii) the area, shape, size, configuration, location, capacity, square footage, acreage, dimensions or zoning of the Land; (iii) the soil condition, topography, geology or drainage of the Land; (iv) the existence of any flood plain, floodway or flood hazard area affecting the Property; (v) the availability of utilities to the Property or the access to the Property by public road or otherwise; (vi) the nature or quality of any materials, labor, workmanship, construction, design, engineering, or composition of any improvements to the Property; (vii) environmental conditions (including, without limitation, the presence or absence of asbestos, lead-based paint, PCBs or any Hazardous Materials as may be defined herein or under federal, state or local law, regulations or ordinances) at or affecting the Property, including, without limitation, the condition of soils and groundwater; (viii) any law, statute, regulation, rule, ordinance, decree, or court order (including, without limitation, any zoning by law or ordinance) affecting the Property and the compliance of the Property or its operations with any law, statute, regulation, rule, ordinance, decree, or court order (including, without limitation any zoning by law or ordinance) affecting the Property; or (ix) the price at which Buyer might resell the Property. Buyer acknowledges that, other than as set forth herein or any other agreements, transfer documents or other documents executed by the parties hereto with regard to the Property, Buyer is not relying upon any such representation or warranty, and: (a) the Property may contain defects unknown to Seller; (b) Buyer bears the sole responsibility to inspect the Property and upon Closing, Buyer conclusively acknowledges and agrees that Buyer will have conducted all inspections that Buyer deems necessary or desirable, and will have determined that the Property is fit for Buyer's intended purpose; (c) any reports or information pertaining to the Property provided to Buyer by or through Seller are for informational purposes only and Seller does not warrant the content, accuracy, or completeness of such items; and (d) except as otherwise provided herein or any other agreements, transfer documents or other documents executed by the parties hereto with regard to the Property, Buyer is assuming all risks concerning the Property, whether known or unknown, suspected or unsuspected. Seller agrees to deliver to Buyer within five (5) days of this Agreement, all environmental reports and any other reports in the possession of Seller or its professionals, related to the condition of the Property.

ARTICLE IV.
REPRESENTATIONS AND WARRANTIES OF SELLER

Seller represents and warrants to Buyer as of the date hereof and as of the Closing Date as follows:

4.1 Organization and Authority. Seller is a realty trust duly organized and validly existing under the laws of the Commonwealth of Massachusetts. Seller has the full right and authority to enter into this Agreement and to transfer all of the Property and to consummate or cause to be consummated the transaction contemplated by this Agreement. The person signing

this Agreement on behalf of Seller is authorized to do so. Performance of this Agreement will not result in any breach of, or constitute any default under, or result in the imposition of a lien or encumbrance on the Property under, any agreement or other instrument to which Seller is a party or by which Seller or the Property might be bound. Other than the consent of the Trust beneficiaries, possible Hart-Scott-Rodino ("HSR") applications, waivers, and/or approvals, and Manufacturers' Approvals, as provided in the Toyota Asset Agreement and the Affiliated Agreements, no other consent or approval of any person or entity (or of any governmental authority, is required with respect to the execution and delivery of this Agreement by Seller, or the consummation by Seller of the transactions contemplated hereby, or the performance by Seller of its obligations hereunder.

4.2 Condemnation. Seller has not received any written notice, and has no actual knowledge, of any pending or threatened condemnation proceedings relating to all or any portion of the Property.

4.3 No Conflict. The execution, delivery and performance of this Agreement by Seller does not and will not conflict with or result in a breach of or default under the formation documents of Seller, and does not and will not result in a breach of any condition or provision of, or constitute a default under, or result in the acceleration, creation or imposition of any lien, charge or encumbrance upon the Property by reason of, the terms of any contract, mortgage, lien, agreement, indenture, instrument, decree or judgment to which Seller is a party, or which is binding upon Seller or the Property, which in each case will not be extinguished in connection with the Closing.

4.4 Property Rights. Except for any lease that will be terminated prior to or at Closing, and any easements of record as of the Effective Date, there are no other leases, licenses or other rental agreements or occupancy agreements (written or verbal) granted by Seller which grant any possessory interest in the Property, or that otherwise give rights with regard to the use of the Property, and there are no other written or oral agreements between Seller as the landlord under any lease and any tenant, including without limitation, any right to purchase or lease the Real Property, or any rights of first refusal given by Seller to any third party with respect to any leasehold, ownership, or other possessory interest in the Real Property. Notwithstanding the foregoing, Buyer hereby acknowledges and agrees that American Honda Motor Company may have certain rights of first refusal relating to the Tenant's operation of a Toyota dealership on the Property, and that the waiver of such rights by American Honda Motor Company, if applicable, is a condition to closing the transaction under this Agreement and the Toyota Asset Purchase Agreement. However, the exercise of such right of first refusal, if any, shall not affect the parties' rights and obligations under the Affiliated Agreements, other than under this Agreement and the Toyota Asset Purchase Agreement as described therein.

4.5 Contracts. Except for any Property Contracts which Buyer has agreed in writing to assume at the Closing by written notice to Seller at least thirty (30) days prior to Closing, there are no other outstanding service contracts, construction contracts, maintenance contracts, leasing commission contracts, management contracts, or any other contract made by Seller with respect to the Property which would be binding on Buyer or which will not be terminated and fully paid at or prior to Closing.

4.6 Assessments. Seller has received no written notice from any governmental authority or agency of any proposed municipal betterments assessments with respect to the Property.

4.7 Environmental. Except as may be disclosed in any Environmental Report prepared for Buyer as part of Buyer's due diligence review, Seller has not received any written notice of any underground storage tanks on the Property, or of the generation, storage or disposal of any Hazardous Materials (as defined below) on the Property or any property adjoining and within 300 feet of the Property in violation of applicable laws and excluding the generation, storage and disposal of Hazardous Materials by the Tenant in connection with the Tenant's operation of a car dealership and car repair facility. For the purposes of this Agreement, "knowledge" of Seller shall be deemed to refer to the actual personal knowledge of James P. Carney. For the purposes hereof, "Hazardous Materials" shall mean: (i) Hazardous Waste, Hazardous Materials and Oil, as such terms are defined in Chapters 21C, 21D and 21E of the General Laws of Massachusetts, and the regulations promulgated thereunder, as amended from time to time; (ii) radioactive material, including, without limitation, radon; (iii) asbestos; and (iv) any other chemical, material or other matter that is hazardous to health.

4.8 Compliance with Law. Seller has not received any written notice from any governmental authority or agency claiming that the Property does not materially comply with applicable laws, ordinances, rules and regulations. Seller is not aware of any zoning compliance issues or applicable building code issues regarding the Property or its use.

4.9 Bankruptcy. There is not pending any case, proceeding or other action seeking organization, arrangement, adjustments, liquidation, dissolution or re-composition of Seller (or its Trustees or beneficiaries of Seller) under any law relating to bankruptcy, insolvency, reorganization or the relief of debtors, or seeking the appointment of a receiver, trustee, custodian or similar official for the Seller or the Property.

4.10 Lawsuits. Seller is presently not a party to any lawsuit in reference to the Property, and Seller has no knowledge of any threatened or contemplated lawsuits against the Property or Seller (or its Trustees or beneficiaries) with respect to the ownership or sale of the Property.

4.11 No Impediments. There is no action, suit, arbitration, unsatisfied order or judgment, government investigation or proceeding pending against Seller or the Property or relating to the Property (including, without limitation, any eminent domain or condemnation proceedings), which, if adversely determined, could individually or in the aggregate materially interfere with the consummation of the transactions contemplated by this Agreement, or which would affect the Property or would challenge or impair Seller's ability to execute and perform under this Agreement, nor has Seller received any written notice and has no actual knowledge of any such threatened action, suit, arbitration, government investigation or proceeding.

4.12 Not a Foreign Person. Seller is not a foreign person within the meaning of Section 1445(f)(3) of the Internal Revenue Code of 1986, as amended.

If any events occur on or after the Effective Date and prior to the Closing that cause any of the

representations or warranties set forth in this Article IV to become inaccurate, then Seller shall have the right to deliver to Buyer prior to completion of the Closing a written statement correcting such representations and warranties, and if any such written statement modifies such representations and warranties to the material detriment of Buyer, then Buyer shall have five (5) business days after Buyer's receipt thereof to elect either: (a) to accept the modified representations and warranties, in which case the representations and warranties set forth above in this Article IV shall be deemed to be modified as set forth in such statement given to Buyer; or (b) Seller and Buyer shall reach a mutually acceptable resolution of how to remedy the situation so that the transactions contemplated under this Agreement and the Affiliated Agreements shall be able to simultaneously close; or (c) Buyer may terminate this Agreement and the Affiliated Agreements if (a) or (b) above do not occur provided that all of the Affiliated Agreements shall be terminated together unless Buyer and Seller agree to a lease situation as provided in Section 9.1below, or some other mutually acceptable resolution.

ARTICLE V.
REPRESENTATIONS AND WARRANTIES OF BUYER

Buyer hereby represents and warrants to Seller as follows:

5.1 Authority. Buyer is an individual residing in Massachusetts. At the time of Closing, Buyer will assign his rights under this Agreement to a newly formed entity that will be duly organized and validly existing under the laws of the Commonwealth of Massachusetts and will be duly authorized to transact business in the Commonwealth of Massachusetts. Buyer has, and his nominee entity will have the full right and authority to enter into this Agreement and to purchase the Property and to consummate or cause to be consummated the transactions contemplated by this Agreement. Performance of this Agreement will not result in any breach of, or constitute any default under, any agreement or other instrument to which Buyer is a party or by which Buyer might be bound. Except for possible HSR applications, waivers, and/or approvals, and Manufacturers' Approvals, as provided in the Toyota Asset Purchase Agreement and the Affiliated Agreements, no other consent or approval of any person or entity or of any governmental authority is required with respect to the execution and delivery of this Agreement by Buyer, or the consummation by Buyer of the transaction contemplated hereby, or the performance by Buyer of its obligations hereunder.

5.2 No Impediments. There is no action, suit, arbitration, unsatisfied order or judgment, government investigation or proceeding pending or threatened against Buyer or its affiliated entities which, if adversely determined, could individually or in the aggregate materially interfere with the consummation of the transactions contemplated by this Agreement. Neither the execution or delivery of this Agreement by Buyer nor the consummation by Buyer of the transactions contemplated herein will: (i) conflict with or result in a breach of, the terms, conditions or provisions of, or constitute a default under, or result in the creation of a lien or encumbrance on any of the property conveyed pursuant to this Agreement, pursuant to the formation, organizational and operating documents of Buyer;, or any indenture, mortgage, lease, agreement or other instrument to which Buyer or Buyer's affiliates is a party or by which any of the assets of Buyer or its affiliates may be bound or affected; or (ii) violate any law or regulation to which Buyer is or will be subject to whereby either them or any of the Assets conveyed pursuant to this Agreement is bound. Furthermore, no governmental agency has at any time challenged or questioned or commenced or given notice of intention to commence

any investigation relating to the Buyer's proposed ownership of the Property conveyed pursuant to this Agreement.

5.3 Buyer's Financing. Buyer based on its contemplated acquisition financing arrangements, has the financial capacity to pay the Purchase Price and the Purchase Price under the Toyota Asset Purchase Agreement and the Affiliated Asset Purchase Agreements . Buyer has delivered or will deliver to the Seller within forty-five (45) days hereof, a true, correct, and complete copy of evidence that Buyer has readily available funds to fund the transactions contemplated under this Agreement and the Affiliated Agreements. Such financing by Buyer will be in an amount sufficient to enable Buyer to perform its obligations under this Agreement and the Affiliated Agreements and to consummate the transactions contemplated hereby and thereby (including the repayment or refinancing of debt contemplated by this Agreement and the Affiliated Agreements), whether or not any additional financing is obtained. There are no side letters or other agreements, arrangements, contracts or understandings relating to the commitment for financing that could affect the availability of the financing, and the Buyer does not know of any facts or circumstances that may be expected to result in any of the conditions set forth in the commitment for such financing not being satisfied, or the additional funding or equity required from Buyer not being available to the Buyer on the Closing Buyer expects it will have on the Closing Date, funds sufficient whether debt financing or other sources of readily available funds to: (i) fund all of the amounts required to be provided by the Buyer for the consummation of the transactions contemplated hereby and under the Affiliated Agreements, including the payment of the Purchase Price (and any repayment or refinancing of debt contemplated by this Agreement) and any other amounts required to be paid in connection with the consummation of the transactions contemplated hereby and under the Affiliated Agreements including all related fees and expenses; and (ii) satisfy all of Buyer's obligations under this Agreement and the Affiliated Agreements.

5.4 Solvency. Immediately after giving effect to the transactions contemplated by this Agreement, Buyer and its businesses and affiliates shall: (a) be able to pay their respective debts as they become due and shall own property that has a fair saleable value greater than the amounts required to pay their respective debts (including a reasonable estimate of the amount of all contingent liabilities); and (b) have adequate capital to close the transactions contemplated hereunder and to carry on their respective businesses. No transfer of property is being made, and no obligation is being incurred in connection with the transactions contemplated by this Agreement with the intent to hinder, delay or defraud either present or future creditors of the Seller, or the selling owners.

5.5 No Filings/Disclosures. As of the Effective Date, there is no law or other requirement (contractual or otherwise) applicable to Buyer or its affiliates (other than a HSR filing) that would require the filing or disclosure of this Agreement in a manner that would cause this Agreement or the terms hereof to be generally available to the public.

ARTICLE VI.
CLOSING CONDITIONS

6.1 Conditions to Buyer's Obligations to Close. The obligation of Buyer to consummate the transaction contemplated hereunder is contingent upon the following:

6.1.1 As of the Closing Date, Seller shall have performed its obligations hereunder, and all deliveries required to be made by Seller hereunder on or before Closing have been tendered.

6.1.2 The physical condition (including the environmental condition) of the Property shall be substantially the same as that existing on the date of Buyer's inspections, reasonable wear and tear and damage from casualty excepted, subject however to Seller paying to Buyer, or assigning to Buyer Seller's rights to, the insurance proceeds payable to Seller under Seller's or Tenant's insurance policies for any casualty.

6.1.3 All of Seller's material representations and warranties set forth in this Agreement shall be true and correct in all material respects as of the Closing Date.

6.1.4 Delivery of the documents, certificates and resolutions described in this Agreement, in form and substance reasonably satisfactory to Buyer.

6.1.5 If the transactions contemplated under this Agreement and the Affiliated Agreements are subject to the Hart Scott Rodino Act ("HSR Act"), all filings with governmental authorities needed for the consummation of the transaction contemplated hereunder (and if required to be aggregated, under the Affiliated Agreements) have been made, and any necessary authorizations, consents or approvals, or as applicable under the HSR Act, waiting periods (and any extensions thereof) under the HSR Act applicable to the transaction contemplated hereunder and under the Affiliated Agreements, shall have either been obtained, expired or terminated, or the parties hereto shall have obtained a waiver of the applicability of the HSR Act.

6.1.6 Seller closing under this Agreement and Bernardi's, Inc., simultaneously closing under the Toyota Asset Purchase Agreement;

6.1.7 All of the parties who are parties to the Affiliated Agreements (in addition to the Toyota Asset Purchase Agreement) simultaneously closing all of the transactions contemplated under the other Affiliated Agreements with the Closing under this Agreement.

6.2 Conditions to the Seller's Obligations to Close. The obligation of Seller to consummate the transaction contemplated hereunder is contingent upon the following:

6.2.1 Buyer having performed its obligations hereunder and having tendered all deliveries to be made on or before Closing, including, without limitation, payment of the Purchase Price.

6.2.2 All of Buyer's representations and warranties set forth in this Agreement shall be true and correct in all material respects as of the Closing Date.

6.2.3 Buyer closing under this Agreement and Bernardi's, Inc., simultaneously closing under the Toyota Asset Purchase Agreement;

6.2.4 All of the parties who are parties to the Affiliated Agreements (in addition to the Toyota Asset Purchase Agreement) simultaneously closing all of the transactions contemplated under the other Affiliated Agreements with the Closing under this Agreement.

ARTICLE VII.
THE CLOSING

7.1 Closing. Except as otherwise provided in this Agreement or as otherwise agreed to in writing by the parties, the consummation of the transactions contemplated by this Agreement (the "Closing") shall take place at 10:00 a.m. local time on the day when Seller's affiliate and Buyer's nominee under this Agreement and Seller's and Buyer's affiliates who are parties to the Toyota Asset Purchase Agreement, and the Seller's Affiliates and Buyer's Affiliates are able to close under the Affiliated Agreements, but in no event shall such date be later than fifteen (15) days after Buyer has received the last Manufacturer's Approvals under the Affiliated Agreements (the actual date of the Closing being herein referred to as the "Closing Date"), and shall be held through escrow with the Escrow Agent, or at such other time or place as may be agreed upon by both parties in writing. At the Closing, Buyer and Seller shall perform their respective obligations as set forth in this Agreement, the performance of such obligations being concurrent conditions. In addition, Buyer and Seller shall execute such ministerial instruments and take such further ministerial actions as may be reasonably necessary to complete the transaction contemplated by this Agreement, all in a form reasonably satisfactory to Buyer and Seller. The recordation and filing of documents and instruments with registries of deeds and other government offices, and the transfer of the Purchase Price to Seller, shall be attended to by the Escrow Agent pursuant to instructions provided jointly by Buyer and Seller, or any other means reasonably satisfactory to Buyer and Seller, simultaneously with the closings of the transactions under the Toyota Asset Purchase Agreement and the other Affiliated Agreements.

7.2 Seller's Closing Obligations. At the Closing, Seller shall deliver the following to Buyer:

7.2.1 A quitclaim deed (the "Deed") conveying good and clear record and marketable title to the Real Property to Buyer or to the nominee designated by Buyer by written notice to Seller at least three (3) business days before the Closing, subject to: (a) any liens for municipal betterments assessed after the date of this Agreement; (b) such taxes for the then current tax fiscal year as are not due and payable on the Closing Date; and (c) the Permitted Exceptions;

7.2.2 A bill of sale (the "Bill of Sale") conveying good and clear title to any Tangible Personalty in the Property, excluding the Excluded Tangible Personalty, in form mutually satisfactory to Buyer and Seller;

7.2.3 Such customary affidavits, indemnities and documentation as the Title Company may reasonably require in order to omit from its title insurance policy all exceptions for parties in possession and mechanic's liens arising from work performed by or on behalf of Seller, and provide an executed Massachusetts Department of Revenue Transfer's Certification required pursuant to CMR 62B.2.4 (the "Regulation").

7.2.4 A certificate executed by Seller to the effect that all of the representations and warranties set forth in this Agreement remain true and correct as of the Closing Date;

7.2.5 Evidence reasonably acceptable to the Title Company as to the due

authorization of the delivery of the Deed and other documents required by this Agreement to be executed by Seller, including but not limited to a Trustee's Certificate;

7.2.6 An affidavit duly executed by Seller stating that Seller is not a "foreign person" within the meaning of Section 1445(f)(3) of the Internal Revenue Code of 1986, as amended, and setting forth the federal taxpayer identification number of Seller;

7.2.7 A closing statement describing the sources and uses of funds in connection with the Closing, executed by Buyer, Seller and the Escrow Agent (the "Closing Statement");

7.2.8 Any and all keys and access codes to the Property in Seller's possession; and

7.2.9 Copies of items related to the Property to the extent in Seller's possession, including any plans, surveys, maps, title documents, reports, inspections, warranties, materials, utility bills, correspondence related to the Property, information or documents relating to the operating systems, or any other reports, materials or documents relating to the Property, as may be in Seller's possession or control.

7.3 Possession. At the time of Closing, Seller shall deliver to Buyer the Property as provided herein, free and clear of any tenancy.

7.4 Buyer's Closing Obligations. At the Closing, Buyer shall:

7.4.1 Deliver the Purchase Price subject to any closing apportionment;

7.4.2 Countersign the Closing Statement describing the sources and uses of funds in connection with the Closing; and

7.4.3 Deliver a certificate to the effect that all representations and warranties of Buyer herein remain true and correct as of the Closing Date.

7.5 Expenses. Buyer shall pay all costs and expenses associated with its due diligence review during the Due Diligence Period, its own counsel fees, any fees and other amounts charged by parties providing debt or equity financing to Buyer or by counsel to such parties, all title insurance premiums and costs, any survey costs, the Title Company's title insurance and related costs, one-half of the Escrow Agent's fee, , recording fees and all such other closing costs as are customarily paid for by a buyer in the jurisdiction where the Property is located. Seller shall pay its own counsel fees, one-half of the Escrow Agent's fees, the excise or deed stamp taxes payable upon recordation of the Deed, recording fees and such other closing costs as are customarily paid by a seller in the jurisdiction where the Property is located.

ARTICLE VIII.
APPORTIONMENTS AND ADJUSTMENTS TO PURCHASE PRICE

8.1 Real Estate Taxes. Real estate taxes and sewer and water charges, calculated as of the close of business on the Closing Date, shall at the Closing be apportioned on a per diem basis between Buyer and Seller using the most recent assessment, invoice, meter reading or

billing. If the Closing shall occur before the applicable real estate tax rate or assessment is established, the apportionment of real estate taxes at the Closing shall be upon the basis of the most recently established tax rate applied to the most recent assessment.

ARTICLE IX.
FAILURE TO PERFORM

9.1 Defective Title or Condition. If Seller is unable to give title or to make conveyance, or to deliver possession of the Property to Buyer, or if on the Closing Date the Property does not conform with the provisions hereof, Seller shall use reasonable efforts to remove any defects in title, or to deliver possession as provided herein, or to make the Property conform to the provisions hereof, as the case may be, in which event the time for performance hereunder, under the Toyota Asset Purchase Agreement and under all of the Affiliated Agreements, may be extended (one or more times) for a period of up to thirty (30) days in total by notice from Seller to Buyer; provided that in no event shall Seller be required to expend more than [redacted] (including, without limitation, expenditures for legal fees) in the aggregate to remedy any title issue under this Agreement and the Affiliated Real Estate Agreements in using said reasonable efforts to cure as provided above. However, Seller shall be obligated to remove any mortgage liens on or before Closing, if any, regardless of the amounts. If at the final expiration of the extended time, Seller, despite the use of reasonable efforts as aforesaid, shall have failed to remove any defects in title, deliver possession, or make the Property conform, as the case may be, all as herein agreed, then Buyer may elect by written notice given to Seller at such extended Closing Date either: (a) to accept such title as Seller can deliver to the Property in its then condition and to pay the full Purchase Price therefor; or (b) that Seller and Buyer shall enter into a lease for the Property upon terms and conditions set forth in the current leases while Seller continues its best faith efforts to cure as provided above and upon such cure, Buyer shall purchase the Property.

9.2 Buyer's Default. The parties acknowledge that in the event of Buyer's failure to close the transaction under this Agreement and all of the other transactions contemplated under the Affiliated Agreements at Closing as and when required to do so, it is impossible to compute exactly the damage that Seller would suffer due to such failure. The parties have taken these facts into account in setting the amount of the Deposit hereunder and agree that: (i) the amount of the Deposit is the best estimate of the damages Seller and the Sellers under the Affiliated Agreements would suffer; (ii) the amount of the Deposit represents damages and not any penalty against Buyer; and (iii) if Buyer fails to pay the Purchase Price for the Property and for the other transactions contemplated under the other Affiliated Agreements at Closing as and when required to do so by the terms of this Agreement and the Affiliated Agreements, the Escrow Agent shall pay the Deposit to Seller and the other Sellers under the Affiliated Agreements as its full and liquidated damages in lieu of any additional recovery on account of Buyer's failure to close under this Agreement and the Affiliated Agreements; provided, however, that Buyer shall also be obligated to deliver to Seller all due diligence reports, surveys and plans prepared by or on behalf of Buyer in connection with the Property, the other properties which are the subject of the Affiliated Real Estate Agreements, and any other due diligence performed by Buyer and its affiliates under this Agreement and the other Affiliated Agreements. The payment of the Deposit to Seller and the Sellers under the Affiliated Agreements, as aforesaid, shall be Seller's sole and exclusive remedy at law or in equity for Buyer's (and its nominees) failure to close under this Agreement and the Affiliated

Agreements as and when required to do so by the terms of this Agreement. For clarity, Buyer and Seller hereby acknowledge and agree that the purchase of the Property contemplated under this Agreement is tied to and part of a larger transaction to purchase other properties and assets under the Affiliated Agreements, and that unless otherwise mutually agreed by Buyer and Seller, Buyer cannot purchase some of the properties and assets and not others, and that all transactions under this Agreement, the Toyota Asset Purchase Agreement and all of the Affiliated Agreements must close simultaneously or shall not close at all, unless otherwise mutually agreed, by Buyer (its nominees) and Seller (and all affiliated parties) or unless otherwise required hereunder.

9.3 Seller's Performance; Seller's Default. The acceptance of the Deed by Buyer or Buyer's nominee shall be deemed to be a full performance and discharge of every agreement and obligation of Seller herein contained and expressed, except such as are, by the express terms hereof or of any closing document, intended to survive the Closing as specifically set forth in this Agreement, provided however that the representations of Seller hereunder shall survive for a period of one (1) year from the Closing Date, and provided further that Buyer or Buyer's nominee shall have no rights or claims arising as a result of any breach of the Listed Representations except to the extent: (a) of any claim set forth in a written notice that Buyer or Buyer's nominee gives to Seller prior to the expiration of such one (1) ear period, which written notice must state in reasonable detail any alleged breach by Seller of the identified representations; or (b) that Buyer was not aware of the inaccuracy of any such identified representations prior to the Closing.

If Seller defaults by failing to convey the Property at Closing as and when required to do so by the terms of this Agreement and the Affiliated Agreements, then Buyer may elect, as Buyer's sole and exclusive remedy at law or in equity for such default, to either: (y) terminate this Agreement and the Affiliated Agreements, in which event the Escrow Agent shall return the Deposit to Buyer and this Agreement and the Affiliated Agreements shall be null and void and without further force or effect (other than with respect to provisions which survive termination by their respective terms); or (z) within sixty (60) days after such default, seek specific performance of Seller's obligations under this Agreement and the Affiliated Agreements provided that in all events of such specific performance, all transactions contemplated under this Agreement and the Affiliated Agreements have to close simultaneously and together and Buyer or Buyer's nominee cannot enforce specific performance to individual transactions whether under this Agreement or the Affiliated Agreements.

ARTICLE X.
BROKERAGE

10.1 Brokerage Fees. Seller and Buyer mutually represent and warrant that they have not dealt with any brokers in connection with this purchase and sale other than Ozog Consulting Group, Inc. (Joe Ozog) (the "Seller's Broker") and that neither Seller nor Buyer knows of any broker other than the Seller's Broker who has claimed or may have the right to claim a commission in connection with this purchase and sale based on dealings with either Seller or Buyer. Seller shall be responsible for the payment of all brokerage or other fees in connection with this transaction due

to the Seller's Broker pursuant to a separate agreement. Provided that such commission/fees shall only be due and payable if the Closing under this Agreement occurs and the deed is recorded, and the closings and all recordings under the Affiliated Agreements have also simultaneously occurred, and not otherwise. Seller and Buyer shall each indemnify and defend the other against any costs, losses, obligations, liabilities, claims or expenses, including reasonable attorneys' fees, arising out of the breach of their respective representations, warranties or agreements contained in this Section. The representations and obligations under this Section shall survive the Closing or, if the Closing does not occur, the termination of this Agreement.

ARTICLE XI.
NOTICES

11.1 Effective Notices. All notices under this Agreement shall be in writing and shall be delivered by national overnight courier service which provides evidence of receipt, personally, by telefax or e-mail transmission (with a hard copy delivered by U.S. mail or such further notice by U.S. mail may be waived by the recipient), or by prepaid registered or certified mail, return receipt requested, addressed as set forth at the beginning of this Agreement or as Seller or Buyer shall otherwise have given notice as herein provided. Notices shall be effective on the date received, provided that if sent by e-mail or telefax the same shall be effective on the same day that such e-mail is sent provided such e-mail is sent before 6:00 p.m., otherwise it will be deemed received the next day. If sent by certified or registered mail, it will be deemed to be received five (5) business days after it is sent. Copies of all such notices sent to Seller shall also be sent to Amy L. Fracassini, Esq. (e-mail: afracassini@davismalm.com; Davis, Malm & D'Agostine, P.C., 255 State Street, 11th Floor, Boston, MA 02109, or to such other address identified by any party in writing to such other parties, and copies of all such notices sent to Buyer shall also be sent to Joshua Teverow, Esq. (e-mail: teverowlaw@aol.com; Joshua Teverow, Esquire, Ltd., 100 Midway Road, Suite 22, Cranston, RI 02920). Any notice given by a party to this Agreement may be given on behalf of such party by such party's attorney.

ARTICLE XII.
MISCELLANEOUS PROVISIONS

12.1 Computation of Time Periods. If the date upon which the Due Diligence Period expires, the Closing Date or any other date or time period provided for in this Agreement is or ends on a Saturday, Sunday or federal, state or legal holiday, then such date shall automatically be extended until the next day which is not a Saturday, Sunday or federal, state or legal holiday.

12.2 Integration. This Agreement embodies and constitutes the entire understanding between the parties with respect to the transaction contemplated herein, and all prior agreements, understandings, representations and statements, verbal or written, are merged into and superseded by this Agreement. Neither this Agreement nor any provision hereof may be waived, modified, amended, discharged or terminated except by an instrument signed by the party against whom the enforcement of such waiver, modification, amendment, discharge or termination is sought, and then only to the extent set forth in such instrument.

12.3 Captions. The captions in this Agreement are inserted for convenience of reference only and in no way define, describe or limit the scope or intent of this Agreement or

any of the provisions hereof.

12.4 Drafts. This Agreement shall not be binding or effective until properly executed and delivered by both Seller and Buyer.

12.5 Number and Gender. As used in this Agreement, the masculine shall include the feminine and neuter, the singular shall include the plural and the plural shall include the singular, as the context may require.

12.6 Attachments. All attached exhibits and schedules are hereby incorporated as integral parts of this Agreement.

12.7 Further Assurances. Each party agrees that it will without further consideration execute and deliver such other ministerial documents and take such other ministerial action, whether prior or subsequent to Closing, as may be reasonably requested by the other party to consummate more effectively the purposes or subject matter of this Agreement; provided, however, that if such request is subsequent to Closing, such party's reasonable costs shall be paid by the requesting party. The provisions of this Section shall survive Closing.

12.8 Counterparts; Delivery. This Agreement may be executed in counterparts, and all such executed counterparts shall constitute the same agreement. It shall be necessary to account for only one such counterpart in proving this Agreement. ***Delivery of any signature on this document by facsimile or electronic transmission (including a pdf scan) shall be as fully effective as delivery of an original signature in person.***

12.9 Severability. If any provision of this Agreement is determined by a court of competent jurisdiction to be invalid or unenforceable, the remainder of this Agreement shall nonetheless remain in full force and effect.

12.10 Construction. The parties acknowledge that the parties and their counsel have reviewed and revised this Agreement and that the normal rules of construction to the effect that any ambiguities are to be resolved against the drafting party shall not be employed in the interpretation of this Agreement or any exhibit, schedule or amendments hereto. It is agreed that time is of the essence of this Agreement.

12.11 Liability. No member, manager, officer, director, shareholder, employee, trustee, or beneficiary of Seller or Buyer shall be personally liable for any obligation, express or implied, hereunder,. This Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective legal representatives, personal administrators, executors, successors and assigns. Except as and to the extent (if any) expressly provided to the contrary in this Agreement, no creditor or other third party shall obtain any rights under this Agreement or shall, by reason of this Agreement, be entitled to make any claim against any party hereto.

12.12 Termination of Agreement. It is understood and agreed that if either Buyer or Seller terminates this Agreement pursuant to a right of termination granted hereunder, such termination shall operate to relieve Seller and Buyer from all obligations under this Agreement, except for such obligations as are specifically stated herein to survive the termination of this Agreement.

12.13 Governing Law. This Agreement shall be governed by, and construed in accordance with, the laws of the Commonwealth of Massachusetts. Seller and Buyer hereby irrevocably submit to the jurisdiction of any state court sitting in Suffolk or Middlesex County in the Commonwealth of Massachusetts in any action or proceeding arising out of or relating to this Agreement and hereby irrevocably agree to waive their right to a jury trial and agree that all claims in respect of such action or proceeding shall be heard and determined by a judge sitting in a state court in Suffolk or Middlesex County in the Commonwealth of Massachusetts. Buyer and Seller agree that the provisions of this Section shall survive the Closing of the transaction contemplated by this Agreement.

[REMAINDER OF INTENTIONALLY LEFT BLANK;
SIGNATURES FOLLOW ON NEXT PAGE]

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date first above written.

SELLER:

James P. Carney, as a Trustee of Volador Realty Trust, u/d/t dated May 6, 1999, and not personally

BUYER:

JAMES E. BALISE, JR., on behalf of an entity to be formed

James E. Balise, Jr.

ESCROW AGENT:

COMMONWEALTH LAND TITLE INSURANCE COMPANY

By: _____
Name: _____

Title: _____

SIGNATURE PAGE TO
NATICK & FRAMINGHAM REAL ESTATE PURCHASE AND SALE AGREEMENT
(Toyota)

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date first above written.

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Title: _____

SIGNATURE PAGE TO
NATICK & FRAMINGHAM REAL ESTATE PURCHASE AND SALE AGREEMENT
(Toyota)

EXHIBIT A

DESCRIPTION OF REAL PROPERTY

EXHIBIT B

EXCLUDED TANGIBLE PERSONALTY

EXHIBIT C

REAL ESTATE ALLOCATION

FRANCHISE	PURCHASE PRICE
Toyota Real Estate	[redacted]
Honda Real Estate	
Audi Real Estate	
Volvo Real Estate	
Acura Real Estate	
Warehouse Real Estate	

Notice to City of Framingham – Class 1 License Documents

Oct 2, 2026 ·

City of Framingham Licensing Office / City Clerk Memorial Building, 150 Concord Street Framingham, MA 01702

Re: Class I License Application – Bernardi Toyota, 1626 Worcester Road, Framingham, MA

To Whom It May Concern:

Please accept this letter as part of our Class I license application. At this time, we are unable to provide the Membership Agreement and Operating Agreement between Balise BTF, Inc dba Bernardi Toyota and Toyota Motor Corporation.

The full application has been completed and is currently with Toyota Motor Corporation for review and approval. These agreements are not executed until the approval process is finalized, which we expect closer to our scheduled closing date of November 16, 2026.

We will forward copies of both agreements to the City as soon as they are available. All other required application materials are included with this submission.

Thank you for your understanding. Please contact me with any questions at 413-735-1002 or bbragga@baliseauto.com.

Sincerely,

Beckie Bragga

Executive Assistant to Jeb Balise
Real Estate Manager

BALISE BTF, INC.

ARTICLES OF ORGANIZATION
(Massachusetts General Laws Chapter 156D)

ARTICLE I. The exact name of the corporation is Balise BTF, Inc.

ARTICLE II. The corporation is organized for and shall have as its purpose automotive sales and service and any other lawful act or activity for which corporations may be formed.

ARTICLE III. The total number of shares of each class of stock that the corporation is authorized to issue is 275,000 shares, which shall consist of 275,000 common stock.

ARTICLE IV. If more than one class or series of shares is authorized, the preferences, limitations and relative rights of each class or series are as follows: Not applicable.

ARTICLE V. The restrictions imposed by the Articles of Organization upon the transfer of shares of any class or series of stock are as follows:

Right of First Refusal. No shareholder of the corporation shall sell, assign, pledge or otherwise transfer (collectively, "transfer") any of the shares of stock of the corporation or any right or interest therein, whether voluntarily or by operation of law, or by gift or otherwise, except by a transfer which meets the following requirements:

(a) If any shareholder (the "Selling Shareholder") proposes to transfer any shares of stock of the corporation (the "Offered Shares"), then the Selling Shareholder shall first give written notice of the proposed transfer (the "Transfer Notice") to the corporation. The Transfer Notice shall name the proposed transferee and state the number of Offered Shares, the price per share and all other material terms and conditions of the transfer.

(b) For 15 days following its receipt of such Transfer Notice, the corporation shall have the option to purchase all or any lesser part of the Offered Shares at the price and upon the terms set forth in the Transfer Notice. In the event the corporation elects to purchase all of the Offered Shares, it shall give written notice of its election to the Selling Shareholder within such 15-day period, and the settlement of the sale of such Offered Shares shall be made as provided below in Subsection (d).

(c) If the corporation does not elect to acquire all of the Offered Shares, the corporation shall, within 15 days after receipt of the Transfer Notice, give written notice of its decision to the holders of stock of the corporation other than the Selling Shareholder ("Eligible Shareholders"). Such notice shall state the number of Offered Shares available for purchase. Each Eligible Shareholder shall be entitled to purchase that proportion of the Offered Shares available for purchase as the number of shares of common stock owned by him or her bears to the total number of issued and outstanding shares of common stock of the corporation then

owned by all Eligible Shareholders. For this purpose, any shares of convertible preferred stock of the corporation then outstanding shall be treated as if converted into the number of shares of common stock into which such shares may then be converted. Within ten days after mailing of such notice to the Eligible Shareholders, each Eligible Shareholder shall give written notice to the corporation and the Selling Shareholder stating how many shares of his or her pro rata allotment he or she will purchase and how many additional shares he or she will purchase if additional Offered Shares are made available. If an Eligible Shareholder fails to respond in writing within this ten-day period to the notice given by the corporation, the right of such Eligible Shareholder to acquire his or her proportionate part of the Offered Shares of the Selling Shareholder shall terminate. If one or more Eligible Shareholders do not elect to acquire his or her full pro rata shares of the Offered Shares available, these Offered Shares shall be allocated to each other Eligible Shareholder in the same proportion as the Eligible Shareholder's holdings of common stock bears to the aggregate of all Eligible Shareholders' holdings of common stock (treating all shares of convertible preferred stock as if converted into common stock). If any Eligible Shareholder is thereby given the right to purchase a greater number of Offered Shares than he or she has subscribed for, the excess shall be reallocated to the other Eligible Shareholders on the same proportionate basis described above. The corporation shall allocate and reallocate the shares available according to this procedure, but it shall have discretion to allocate shares which amount to less than ten (10%) of all of the outstanding shares as it sees fit in its sole discretion. All allocations and reallocations pursuant to this Subsection (c) must be completed within 14 days after the end of the ten-day period referred to above.

(d) If the corporation and/or Eligible Shareholders elect to acquire all, but not less than all, of the Offered Shares, the corporation shall so notify the Selling Shareholder and settlement shall be made at the principal office of the corporation in cash within 30 days after the corporation receives the Transfer Notice; provided that if the terms of payment set forth in the Transfer Notice were other than cash against delivery of such consideration, the corporation and/or the Eligible Shareholders shall pay for the Offered Shares on the same terms and conditions set forth in the Transfer Notice.

(e) If the corporation and/or the Eligible Shareholders do not elect to acquire all of the Offered Shares, the Selling Shareholder may, within the 90-day period following the expiration of the option rights granted to the corporation and the Eligible Shareholders, transfer the Offered Shares to the proposed transferee or any other purchaser, provided that this sale shall not be on terms and conditions more favorable to the purchaser than those contained in the Transfer Notice. Notwithstanding any of the above, all Offered Shares transferred pursuant to this Section shall be subject to the provisions of this Section in the same manner and to the same extent as before the transfer.

(f) The following transactions shall be exempt from the provisions of this Section:

A shareholder's transfer of any or all of his or her shares either during his or her lifetime or on death by will or intestacy to his or her immediate family or to a trust the beneficiaries of which are exclusively one or more of the shareholder and a member or members of the shareholder's immediate family. "Immediate

family" shall mean spouse, lineal descendant, father, mother, brother or sister of the shareholder making the transfer;

A shareholder's bona fide pledge or mortgage of his or her shares with a commercial lending institution;

A transfer to a person who is already a shareholder of the corporation; and

A transfer to the guardian or conservator of the shareholder;.

provided, however, that in any such case, except as otherwise provided in Subsection (i) below, the transferee or other recipient shall receive and hold such shares of stock subject to the provisions of this Section and there shall be no further transfer of such shares of stock except in accordance with this Section.

(g) A shareholder of the corporation shall be deemed to have given a Transfer Notice to the corporation and to have offered to sell all of the shares of stock of the corporation then held by such shareholder:

if such shareholder dies and as a result any transfer of stock is to be made other than as permitted by Subsection (f) above;

if such shareholder applies for or consents to the appointment of a custodian, receiver, trustee or liquidator of any of his or her properties;

if such shareholder admits in writing his or her inability to pay his or her debts as they mature;

if there is a dissolution, termination of existence, liquidation, insolvency or business failure of the shareholder;

if there is a composition or an assignment or trust mortgage for the benefit of creditors by the shareholder;

upon the commencement by or against the shareholder of any proceeding under the United States Bankruptcy Code or any other federal or state bankruptcy, reorganization, receivership, insolvency or other similar law affecting the rights of creditors generally; or

if that shareholder's shares are subject to (i) attachment or execution of a judgment or (ii) any other transfer by court order, operation of law, by gift or otherwise without consideration (other than pursuant to Subsection (f)).

If any offer is deemed to have been made under this Subsection (g), the corporation and/or the Eligible Shareholders may elect to purchase all or any portion of such Offered Shares, and the price to be paid by the corporation and/or the Eligible Shareholders for the Offered Shares so deemed to be offered shall be

the most recent valuation for such shares of stock established by the Board of Directors. If the shares are not purchased by the corporation and/or the Eligible Shareholders but are transferred to other parties, the transferred shares shall thereafter be released from all restrictions under this Section.

(h) The corporation may assign its rights to purchase shares of stock in any particular transaction under this Section to one or more persons or entities.

(i) Any sale or transfer, or purported sale or transfer, of securities of the corporation shall be null and void unless the terms, conditions and provisions of this Section are strictly observed and followed.

(j) The following legend shall be noted conspicuously on the front or back of certificates representing certificated shares of stock of the corporation and shall be contained in the information statement required by Section 6.26(b) of the Massachusetts Business Corporation Act, as amended from time to time, for uncertificated shares of stock of the corporation:

> The shares represented by this certificate or described in this information statement are subject to a right of first refusal in favor of the corporation and its other shareholders, as provided in the Articles of Organization of the corporation, a copy of which can be obtained from the secretary of the corporation.

ARTICLE VI. Other lawful provisions:

1. Authority of directors to create new classes and series of shares. The board of directors, acting without the shareholders, may (a) reclassify any unissued shares of any authorized class or series into one or more existing or new classes or series, and (b) create one or more new classes or series of shares, specifying the number of shares to be included therein, the distinguishing designation thereof and the preferences, limitations and relative rights applicable thereto, provided that the board of directors may not approve an aggregate number of authorized shares of all classes and series which exceeds the total number of authorized shares specified in the Articles of Organization approved by the shareholders.

2. Minimum number of directors. The board of directors may consist of one or more individuals, notwithstanding the number of shareholders.

3. Personal liability of directors to corporation. No director shall have personal liability to the corporation for monetary damages for breach of his or her fiduciary duty as a director notwithstanding any provision of law imposing such liability, provided that this provision shall not eliminate or limit the liability of a director (a) for any breach of the director's duty of loyalty to the corporation or its shareholders, (b) for acts or omissions not in good faith or which involve intentional misconduct or a knowing violation of law, (c) for improper distributions under Section 6.40 of Chapter 156D of the General Laws of Massachusetts, or (d) for any transaction from which the director derived an improper personal benefit.

4. Shareholder vote required to approve matters acted on by shareholders. The affirmative vote of a majority of all the shares in a voting group eligible to vote on a matter

shall be sufficient for the approval of the matter, notwithstanding any greater vote on the matter otherwise required by any provision of Chapter 156D of the General Laws of Massachusetts.

5. Shareholder action without a meeting by less than unanimous consent. Action required or permitted by Chapter 156D of the General Laws of Massachusetts to be taken at a shareholders' meeting may be taken without a meeting by shareholders having not less than the minimum number of votes necessary to take the action at a meeting at which all shareholders entitled to vote on the action are present and voting.

6. Authorization of directors to make, amend or repeal bylaws. The board of directors may make, amend or repeal the bylaws in whole or in part, except with respect to any provision thereof which by virtue of an express provision in Chapter 156D of the General Laws of Massachusetts, the Articles of Organization or the bylaws requires action by the shareholders.

7. Right of First Offer. In the event the Corporation proposes to offer or sell any New Securities, the Corporation shall first make an offering of such New Securities to each holder of capital stock of the Corporation (the "Shareholders") in accordance with the following provisions of this section. For purposes hereof, New Securities shall mean any (i) shares of Common Stock, (ii) any other equity security of the Corporation, (iii) any debt security of the Corporation (other than debt with no equity feature) including without limitation, any debt security which by its terms is convertible into or exchangeable for any equity security of the Corporation, (iv) any security of the Corporation that is a combination of debt and equity, or (v) any option, warrant or other right to subscribe for, purchase or otherwise acquire any such equity security or any such debt security of the Corporation.

(a) The Corporation shall deliver a written notice (the "Offer Notice") to each of the Shareholders stating (i) its intention to offer such New Securities, (ii) the number of such New Securities to be offered, and (iii) the price and terms, if any, upon which it proposes to offer such New Securities.

(b) By written notification (a "Notice of Acceptance") received by the Corporation, within ten (10) business days after mailing of the Offer Notice, each of the Shareholders may elect to purchase or obtain, at the price and on the terms specified in the Offer Notice, (i) up to that portion of such New Securities which equals the proportion that the number of shares of Common Stock issued and held (assuming full conversion and exercise of all convertible or exercisable securities), by such Shareholder bears to the total number of shares of Common Stock of the Corporation then outstanding (assuming full conversion and exercise of all convertible or exercisable securities) (the "Basic Amount") and (ii) such additional portion of the New Securities as such Shareholder shall indicate it will purchase should the other Shareholders subscribe for less than their Basic Amounts (the "Undersubscription Amount"). If the Basic Amounts subscribed for by all Shareholders are less than the total New Securities, then each Shareholder who has set forth Undersubscription Amounts in its Notice of Acceptance shall be entitled to purchase, in addition to the Basic Amounts subscribed for, all Undersubscription Amounts it has subscribed for; provided, however, that should the Undersubscription Amounts subscribed for exceed the difference between the New Securities and the Basic Amounts subscribed for (the "Available Undersubscription Amount"), each Shareholder who has subscribed for any Undersubscription Amount shall be entitled to purchase only that portion of

the Available Undersubscription Amount as the Undersubscription Amount subscribed for by such Shareholder bears to the total Undersubscription Amounts subscribed for by all Shareholders, subject to rounding by the Board of Directors to the extent it reasonably deems necessary.

(c) If all New Securities referred to in the Offer Notice are not elected to be purchased or obtained as provided in section (b) herein, the Corporation may, during the one hundred twenty (120) day period following the expiration of the period provided in Section (b) hereof, offer the remaining unsubscribed portion of such New Securities (collectively, the "Refused Securities") to any person or persons at a price not less than, and upon terms no more favorable to the offeree than, those specified in the Offer Notice. If the Corporation does not enter into an agreement for the sale of the New Securities within such period, or if such agreement is not consummated within sixty (60) days of the execution thereof, the right provided hereunder shall be deemed to be revived and such New Securities shall not be offered unless first reoffered to the Shareholders in accordance with this Section.

(d) The right of first offer in this Section shall not be applicable to: (i) up to one thousand (1,000) shares of Common Stock issued or deemed issued to employees or directors of, or consultants to, the Corporation or any of its subsidiaries pursuant to a plan, agreement, or arrangement approved by the Board of Directors of the Corporation; (ii) shares of Common Stock issued in an initial public offering; (iii) the issuance of securities pursuant to the conversion or exercise of convertible or exercisable securities outstanding on the date hereof; (iv) securities issued in connection with any stock split or stock dividend of the Corporation; (v) the issuance of securities in connection with a bona fide business acquisition by the Corporation, whether by merger, consolidation, sale of assets, a sale or exchange of stock or otherwise; or (vi) the issuance of up to an aggregate of 1,000 shares of Common Stock, or the grant of options or warrants therefor, in connection with any borrowing, line of credit, leasing or similar financing arrangement approved by the Board of Directors of the Corporation.

(e) The right of first offer set forth in this Section may be waived upon the written consent of the holders of at least a majority in interest of the outstanding shares of capital stock and any such waiver will be binding on all Shareholders.

(f) In lieu of complying with the provisions of this Section, the Corporation may elect to give notice to the Shareholders within twenty (20) business days after the issuance of New Securities. Such notice shall describe the type, price and terms of the New Securities. Each Shareholder shall have ten (10) business days from the date of receipt of such notice to elect to purchase up to the number of New Securities that would, if purchased by such Shareholder, maintain such Shareholder's percentage ownership position, calculated as set forth in Section (b) prior to giving effect to the issuance of such New Securities. The closing of such sale shall occur within sixty (60) days of the date of notice to the Shareholders.

8. Cumulative Voting for Directors. The holders of shares of Common Stock of the Corporation are entitled to cumulate their votes for the election of directors.

9. Indemnification of Directors and Officers.

Section 1 – Definitions. In this paragraph 9 the following words shall have the following meanings unless the context requires otherwise:

"Corporation", includes any domestic or foreign predecessor entity of the corporation in a merger.

"Director" or "officer", an individual who is or was a director or officer, respectively, of the corporation or who, while a director or officer of the corporation, is or was serving at the corporation's request as a director, officer, partner, trustee, employee, or agent of another domestic or foreign corporation, partnership, joint venture, trust, employee benefit plan, or other entity. A director or officer is considered to be serving an employee benefit plan at the corporation's request if his or her duties to the corporation also impose duties on, or otherwise involve services by, him or her to the plan or to participants in or beneficiaries of the plan. "director" or "officer" includes, unless the context requires otherwise, the estate or personal representative of a director or officer.

"Disinterested director", a director who, at the time of a vote or selection referred to in Section 4 of this paragraph 9, is not (i) a party to the proceeding, or (ii) an individual having a familial, financial, professional, or employment relationship with the director whose indemnification or advance for expenses is the subject of the decision being made, which relationship would, in the circumstances, reasonably be expected to exert an influence on the director's judgment when voting on the decision being made.
"Expenses", includes counsel fees.

"Liability", the obligation to pay a judgment, settlement, penalty, fine including an excise tax assessed with respect to an employee benefit plan, or reasonable expenses incurred with respect to a proceeding.

"Party", an individual who was, is, or is threatened to be made, a defendant or respondent in a proceeding.

"Proceeding", any threatened, pending, or completed action, suit, or proceeding, whether civil, criminal, administrative, arbitrative, or investigative and whether formal or informal.

Section 2 -- Indemnification of Directors and Officers.

(a) Except as otherwise provided in this Section, the corporation shall indemnify to the fullest extent permitted by law an individual who is a party to a proceeding because he or she is a director or officer against liability incurred in the proceeding if: (1) (i) he or she conducted himself or herself in good faith; and (ii) he or she reasonably believed that his or her conduct was in the best interests of the corporation or that his or her conduct was at least not opposed to the best interests of the corporation; and (iii) in the case of any criminal proceeding, he or she had no reasonable cause to believe his or her conduct was unlawful; or (2) he or she engaged in conduct for which he or she shall not be liable under a provision of the

Articles of Organization authorized by Section 2.02(b)(4) of chapter 156D or any successor provision to such Section.

(b) A director's or officer's conduct with respect to an employee benefit plan for a purpose he or she reasonably believed to be in the interests of the participants in, and the beneficiaries of, the plan is conduct that satisfies the requirement that his or her conduct was at least not opposed to the best interests of the corporation.

(c) The termination of a proceeding by judgment, order, settlement, or conviction, or upon a plea of nolo contendere or its equivalent, is not, of itself, determinative that the director or officer did not meet the relevant standard of conduct described in this Section.

(d) Unless ordered by a court, the corporation may not indemnify a director or officer under this Section if his or her conduct did not satisfy the standards set forth in subsection (a) or subsection (b).

Section 3 – Advance for Expenses. The corporation shall, before final disposition of a proceeding, advance funds to pay for or reimburse the reasonable expenses incurred by a director or officer who is a party to a proceeding because he or she is a director or officer if he or she delivers to the corporation:

(a) a written affirmation of his or her good faith belief that he or she has met the relevant standard of conduct described in Section 2 of this paragraph 9 or that the proceeding involves conduct for which liability has been eliminated under a provision of the Articles of Organization as authorized by Section 2.02(b)(4) of chapter 156D or any successor provision to such Section; and

(b) his or her written undertaking to repay any funds advanced if he or she is not wholly successful, on the merits or otherwise, in the defense of such proceeding and it is ultimately determined pursuant to section 4 of this paragraph 9 or by a court of competent jurisdiction that he or she has not met the relevant standard of conduct described in Section 2 of this paragraph 9. Such undertaking must be an unlimited obligation of the director or officer but need not be secured and shall be accepted without reference to the financial ability of the director or officer to make repayment.

Section 4 – Determination of Indemnification. The determination of whether a director or officer has met the relevant standard of conduct set forth in Section 2 shall be made:

(a) if there are two or more disinterested directors, by the board of directors by a majority vote of all the disinterested directors, a majority of whom shall for such purpose constitute a quorum, or by a majority of the members of a committee of two or more disinterested directors appointed by vote;

(b) by special legal counsel (1) selected in the manner prescribed in clause (a); or (2) if there are fewer than two disinterested directors, selected by the board of directors, in which selection directors who do not qualify as disinterested directors may participate; or

(c) by the shareholders, but shares owned by or voted under the control of a director who at the time does not qualify as a disinterested director may not be voted on the determination.

Section 5 – Notification and Defense of Claim; Settlements.

(a) In addition to and without limiting the foregoing provisions of this paragraph 9 and except to the extent otherwise required by law, it shall be a condition of the corporation's obligation to indemnify under Section 2 of this paragraph 9 (in addition to any other condition provide in these Bylaws or by law) that the person asserting, or proposing to assert, the right to be indemnified, must notify the corporation in writing as soon as practicable of any action, suit, proceeding or investigation involving such person for which indemnity will or could be sought, but the failure to so notify shall not affect the corporation's objection to indemnify except to the extent the corporation is adversely affected thereby. With respect to any proceeding of which the corporation is so notified, the corporation will be entitled to participate therein at its own expense and/or to assume the defense thereof at its own expense, with legal counsel reasonably acceptable to such person. After notice from the corporation to such person of its election so to assume such defense, the corporation shall not be liable to such person for any legal or other expenses subsequently incurred by such person in connection with such action, suit, proceeding or investigation other than as provided below in this subsection (a). Such person shall have the right to employ his or her own counsel in connection with such action, suit, proceeding or investigation, but the fees and expenses of such counsel incurred after notice from the corporation of its assumption of the defense thereof shall be at the expense of such person unless (1) the employment of counsel by such person has been authorized by the corporation, (2) counsel to such person shall have reasonably concluded that there may be a conflict of interest or position on any significant issue between the corporation and such person in the conduct of the defense of such action, suit, proceeding or investigation or (3) the corporation shall not in fact have employed counsel to assume the defense of such action, suit, proceeding or investigation, in each of which cases the fees and expenses of counsel for such person shall be at the expense of the corporation, except as otherwise expressly provided by this paragraph 9. The corporation shall not be entitled, without the consent of such person, to assume the defense of any claim brought by or in the right of the corporation or as to which counsel for such person shall have reasonably made the conclusion provided for in clause (2) above.

(b) The corporation shall not be required to indemnify such person under this paragraph 9 for any amounts paid in settlement of any proceeding unless authorized in the same manner as the determination that indemnification is permissible under Item 10. of this paragraph 9, except that if there are fewer than two disinterested directors, authorization of indemnification shall be made by the board of directors, in which authorization directors who do not qualify as disinterested directors may participate. The corporation shall not settle any action, suit, proceeding or investigation in any manner which would impose any penalty or limitation on such person without such person's written consent. Neither the corporation nor such person will unreasonably withhold their consent to any proposed settlement.

Section 6 – Insurance. The corporation may purchase and maintain insurance on behalf of an individual who is a director or officer of the corporation, or who, while a director or officer of the corporation, serves at the corporation's request as a director, officer, partner, trustee, employee, or agent of another domestic or foreign corporation, partnership, joint venture, trust, employee benefit plan, or other entity, against liability asserted against or incurred by him or her in that capacity or arising from his or her status as a director or officer, whether or not the corporation would have power to indemnify or advance expenses to him or her against the same liability under this paragraph 9.

Section 7 – Application of this paragraph 9.

(a) The corporation shall not be obligated to indemnify or advance expenses to a director or officer of a predecessor of the corporation, pertaining to conduct with respect to the predecessor, unless otherwise specifically provided.

(b) This paragraph 9 shall not limit the corporation's power to (1) pay or reimburse expenses incurred by a director or an officer in connection with his or her appearance as a witness in a proceeding at a time when he or she is not a party or (2) indemnify, advance expenses to or provide or maintain insurance on behalf of an employee or agent.

(c) The indemnification and advancement of expenses provided by, or granted pursuant to, this paragraph 9 shall not be considered exclusive of any other rights to which those seeking indemnification or advancement of expenses may be entitled.

(d) Each person who is or becomes a director or officer shall be deemed to have served or to have continued to serve in such capacity in reliance upon the indemnity provided for in this paragraph 9. All rights to indemnification under this paragraph 9 shall be deemed to be provided by a contract between the corporation and the person who serves as a director or officer of the corporation at any time while this paragraph 9 and the relevant provisions of chapter 156D are in effect. Any repeal or modification thereof shall not affect any rights or obligations then existing.

(e) If the laws of the Commonwealth of Massachusetts are hereafter amended from time to time to increase the scope of permitted indemnification, indemnification hereunder shall be provided to the fullest extent permitted or required by any such amendment.

ARTICLE VII. The effective date of organization of the corporation will be:

The date and time the articles were received for filing.

ARTICLE VIII. The information contained in this Article is not a permanent part of the Articles of Organization.

(a) The street address of the initial registered office of the corporation in the Commonwealth is 1441 Main Street, Suite 300, Springfield, Massachusetts 01103.

(b) The name of its initial registered agent at its registered office is James E. Balise, Jr.

(c) The names of the individuals who will serve as the initial directors, president, treasurer and secretary of the corporation (whose addresses are in each case the principal office of the corporation) are:

President: James E. Balise, Jr.

Treasurer: Timothy Ingerson

Secretary: Timothy Ingerson

Director(s): James E. Balise, Jr.
Timothy Ingerson
Alexandra Balise McEwen

(d) The fiscal year of the corporation ends on December 31.

(e) The corporation intends to engage in the business of automobile sales and service

(f) The street address of the principal office of the corporation is 1441 Main Street, Suite 300, Springfield, Massachusetts, 01103.

(g) The records of the corporation required to be kept in the Commonwealth will be kept at its principal office.

Signed this 14 day of July, 2026 by the incorporator.

Signature: _____
James E. Balise, Jr.

Contact information to be filled in by corporation:

Timothy P. Mulhern, Esq.
Shatz, Schwartz and Fentin, P.C.
1441 Main Street, Suite 1100
Springfield, MA 01103
Telephone: (413) 737-1131
Fax (413) 736-0375
Email: rgrimes@ssfpc.com

Balise BCO, Inc.
Balise Bridgeport Zone, LLC
1441 Main Street, Suite 300
Springfield, MA 01103
Tel. (413) 735-1002

July 14 2026

The Commonwealth of Massachusetts
Office of the Secretary of State
Corporations Division
One Ashburton Place
Boston, MA 02108

Re: **Use of the Name "Balise BTF, Inc."**

Dear Sir/Madam:

We hereby authorize the use of the name, "Balise BTF, Inc.", by a new corporation, "Balise BTF, Inc.".

If you have any questions, please do not hesitate to contact us.

Thank you for your assistance in this matter.

Very truly yours,

James E. Balise, Jr.

/rg

11\0294\Balise BTF, Inc\5Use of Name.9601

Balise BHO, Inc.
400 Riverdale Street
West Springfield, MA 01089
Tel. (413) 735-1002

July 14, 2026

The Commonwealth of Massachusetts
Office of the Secretary of State
Corporations Division
One Ashburton Place
Boston, MA 02108

Re: **Use of the Name "Balise BTF, Inc."**

Dear Sir/Madam:

We hereby authorize the use of the name, "Balise BTF, Inc.", by a new corporation, "Balise BTF, Inc.".

If you have any questions, please do not hesitate to contact us.

Thank you for your assistance in this matter.

Very truly yours,

James E. Balise, Jr.

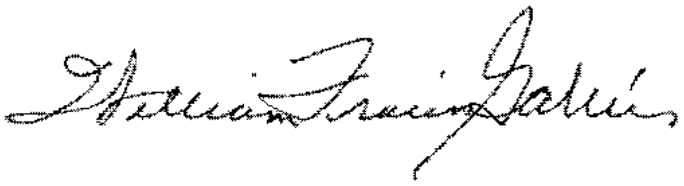
/rg

11\0294\Balise BTF, Inc\5Use of Name.9602

THE COMMONWEALTH OF MASSACHUSETTS

I hereby certify that, upon examination of this document, duly submitted to me, it appears that the provisions of the General Laws relative to corporations have been complied with, and I hereby approve said articles; and the filing fee having been paid, said articles are deemed to have been filed with me on:

July 16, 2026 09:40 AM



WILLIAM FRANCIS GALVIN

Secretary of the Commonwealth

D
PC

The Commonwealth of Massachusetts

William Francis Galvin
Secretary of the Commonwealth
One Ashburton Place, Boston, Massachusetts 02108-1512

FORM MUST BE TYPED **Articles of Amendment** FORM MUST BE TYPED

(General Laws Chapter 156D, Section 10.06; 950 CMR 113.34)

(1) Exact name of corporation: Balise BTF, Inc.

(2) Registered office address: 1441 Main Street, Suite 300, Springfield, MA 01103
(number, street, city or town, state, zip code)

(3) These articles of amendment affect article(s): III-IV
(specify the number(s) of article(s) being amended (I-VI))

(4) Date adopted: August 19, 2026
(month, day, year)

(5) Approved by:

(check appropriate box)

- ☐ the incorporators.
- ☑ the board of directors without shareholder approval and shareholder approval was not required.
- ☐ the board of directors and the shareholders in the manner required by law and the articles of organization.

(6) State the article number and the text of the amendment. Unless contained in the text of the amendment, state the provisions for implementing the exchange, reclassification or cancellation of issued shares.

ARTICLE III

The total number of shares shall be 275,000 shares with no par value per share, of which 100,000 shares are designated as Class A Voting Common Stock and 175,000 shares are designated as Class B Non-Voting Common Stock.

ARTICLE IV

All of the rights of the Corporation's Class A Voting Common Stock and Class B Non-Voting Common Stock shall be identical in all respects except that the Class A Voting Common Stock shall have all voting rights and the Class B Non-Voting Common Stock shall have no voting rights; and the holders of such Class B Non-Voting Common Stock shall not be entitled to notice of or participation in the meeting of the stockholders of the corporation, except as specifically required by law.

To change the number of shares and the par value, * if any, of any type, or to designate a class or series, of stock, or change a designation of class or series of stock, which the corporation is authorized to issue, complete the following:

Total authorized prior to amendment:

WITHOUT PAR VALUE		WITH PAR VALUE		
TYPE	NUMBER OF SHARES	TYPE	NUMBER OF SHARES	PAR VALUE
Common	275,000			

Total authorized after amendment:

WITHOUT PAR VALUE		WITH PAR VALUE		
TYPE	NUMBER OF SHARES	TYPE	NUMBER OF SHARES	PAR VALUE
	See attached Addendum			

(7) The amendment shall be effective at the time and on the date approved by the Division, unless a later effective date not more than 90 days from the date and time of filing is specified: _____

G.L. Chapter 156D eliminates the concept of par value, however a corporation may specify par value in Article III. See G.L. Chapter 156D, Section 6.21, and the comments relative thereto.

ADDENDUM TO ARTICLES OF AMENDMENT

BALISE BTF, INC.

August 19, 2026

(6) Total Authorized After Amendment:

WITHOUT PAR VALUE	
TYPE	NUMBER OF SHARES
Class A Voting Common	100,000
Class B Non-Voting Common	175,000

Signed by: _____
James E. Balise, Jr. *(signature of authorized individual)*

- ☐ Chairman of the board of directors,
- ☑ President,
- ☐ Other officer,
- ☐ Court-appointed fiduciary,

on this 31st day of August, 2026.

THE COMMONWEALTH OF MASSACHUSETTS

I hereby certify that, upon examination of this document, duly submitted to me, it appears that the provisions of the General Laws relative to corporations have been complied with, and I hereby approve said articles; and the filing fee having been paid, said articles are deemed to have been filed with me on:

September 08, 2026 10:06 AM

WILLIAM FRANCIS GALVIN

Secretary of the Commonwealth

Toyota

715 A
715 AB
715 AD
715 AG
715 AL
715 AT
715 BA
715 BC
715 BE
715 BF
715 BH
715 BL
715 BM
715 AV
715 B
715 BJ
715 BK
715 Y

These are the current dealer plates for Bernardi Toyota. We will turn these one in and get new plates under the new legal name.

[redacted] Framingham, MA

October 22, 2026

Police Review

Record No.**AUTO-26-2**

Status Completed

Type Approval

Assignee Tyson Mohr

Became Active October 5, 2026

Due Date None

Record No: AUTO-26-2

Auto Dealer - Class I, II, III License

Status: Active

Submitted On: 10/2/2026

Messages

Tyson Mohr [redacted] **Internal**

October 19, 2026 at 9:28 am

Provided the
requirements of other City departments are met, the Framingham Police approve
the application submitted by James Balise.

CITY OF FRAMINGHAM
LICENSING DEPARTMENT

Michael Royce
Licensing Coordinator

o 508-532-5402
f 508-532-5769
e licensing@framinghamma.gov
w www.framinghamma.gov

MEMORIAL BUILDING
150 Concord Street, Room 213
Framingham, MA 01702

Agenda Item 3a

New Common Victualer License

Space Café Inc
DBA Space Cafe
121 Concord St
Framingham, MA 01702

Proposed Hours: Sun-Mon 10am-11pm

Hearing Date: November 2, 2026

1. OpenGov Application
2. Draft License
3. Floor Place
4. Site Plan
5. List of Equipment & Costs
6. Lease
7. Articles of Organization
8. Menu
9. Advertisement
10. All Departments Approve

Record No: LIC-26-45

Common Victualer

Status: Active

Submitted On: 8/18/2026

Primary Location

121 CONCORD ST
FRAMINGHAM, MA 01702

Owner

VTT FRAMINGHAM RENAISSANCE, LL
101 CLARKS HILL #102
FRAMINGHAM, MA 01702

Applicant

Samir Bouchareb
[redacted]
spacecafe121@gmail.com
121 Concord st
Framimgham, Ma 01702

Common Victualer Type

Is this a renewal?*

No

Is this a new application or transfer*

New Application

Type of Common Vic License*

Common Victualer Only

Date*

08/12/2026

New field

Applicant Information

Applicant Name*

samir bouchareb

Telephone Number*

[redacted]

Business Information

Business Name*

Space Cafe Inc

D/B/A (Doing Business As)*

Space Cafe

Business Address

121 Concord St Framingham MA 01702

Business Phone

508-405-1110

Business Email

spacecafe121@gmail.com

Is this a sole proprietorship?

No

Tax Id (EIN)

-*7742

Manager

Manager Name

samir bouchareb

Establishment

Name of Proposed Establishment:

space cafe

Days and hours of Operation

Monday to Sunday 10:00am to 11:00pm

Maximum Seating

24

Maximum Occupancy

24

Manager Name **Assistant Manager Name**

samir bouchareb

Written description must include the following: If no changes to existing floor and/or site plan indicate on application.
*FLOOR PLAN AND DESCRIPTION (CONTENTS)
• Address
• Type of Building
• Number of Entrances and Exits
• Number of Rooms
• Number of Tables & Chairs
• Bar Area & Number of Seats
• Storage Area with Square Footage
• Kitchen Area with Square Footage
• Dance Area/Band Area
• Outside Serving/Seating Area

WRITTEN DESCRIPTION EXAMPLE – 228 Main St., Framingham, MA. Wood frame building with two entrances on Main St. Two exits rear of building. Tables and chairs with seating for 96 people. One bar with seating for 15 people. A basement storage area with 1000 square feet. Kitchen area has 750 square feet. No dance floor. No outside serving area.

Written Description*

121 Concord st., Framingham, MA. Commercial property building, with two entrances one on Concord Street and the second entrence at the rear of the building (rear 121 R Concord Street) . Two exits rear of building. Tables and chairs with seating for 24 people. A basement storage area with approximately 8000 square feet. Kitchen area has 200 square feet. No dance floor. No outside serving area.

Property Information

Property Owner Name*

VTT Management

Property Owner Address*

1 Clarks Hill Lane Ste 100 Framingham, MA 01702

Signature

I, the undersigned, state that the information provided in this application, and associated attachments, is true and accurate to the best of my knowledge. Furthermore, I certify under the penalties of perjury, that all taxes, fees, and fines owned have been paid:

I have read the above and agree to above statement*

Samir Bouchareb
Aug 12, 2026

Timeline

Label	Activated	Completed	Assignee	Due Date	Status
Custom Payment	8/18/2026, 8:26:18 PM	8/18/2026, 8:31:13 PM	Samir Bouchareb	-	Completed
Licensing Review Approval	8/18/2026, 8:31:13 PM	8/20/2026, 8:55:01 AM	Michael Royce	-	Completed
Building	8/20/2026, 8:55:02 AM	8/27/2026, 4:33:10 PM	Fred Bray	-	Completed
Public Health	8/20/2026, 8:55:02 AM	8/20/2026, 8:57:19 AM	Bethany Yates	-	Completed

Label	Activated	Completed	Assignee	Due Date	Status
DPW	8/20/2026, 8:55:02 AM	8/20/2026, 2:13:15 PM	Brian McCarthy	-	Completed
Police Approval	8/20/2026, 8:55:02 AM	8/20/2026, 12:05:28 PM	Tyson Mohr	-	Completed
Fire Approval	8/20/2026, 8:55:02 AM	8/28/2026, 3:27:25 PM	Will Gingras	-	Completed
Treasury Approval	8/20/2026, 8:55:02 AM	8/20/2026, 8:57:41 AM	Carolyn Lyons	-	Completed
Board Vote	8/28/2026, 3:27:25 PM	-	Michael Royce	-	Active
Custom Document	-	-	-	-	Inactive

Commonwealth of Massachusetts

THE BOARD OF LICENSE COMMISSIONERS OF THE CITY OF FRAMINGHAM
HEREBY GRANTS A

Common Victualer's License

To: **Space Cafe**

Licensee: **Space Cafe Inc**

At: **121 CONCORD ST** **FRAMINGHAM, MA in said City.**

Hours: **Monday to Sunday 10:00am to 11:00pm**

Until December 31, 2026

and at that place only.

This license is granted and accepted upon the express condition that the person or persons above licensed, shall, in all respects, fulfill, and conform to all requirements of the laws relating to licensing of Common Victualers; and it may be suspended or revoked for any violation of such.

Non Alcoholic Common Victualer licensees are not permitted to keep alcoholic beverages on the premises except for a reasonable small quantity that is used in preparation of certain specialty foods

THIS LICENSE IS NOT TRANSFERABLE UNTIL APPROVED BY THE FRAMINGHAM BOARD OF LICENSE COMMISSIONERS

EXTRACTS FROM THE GENERAL LAWS, CHAPTER 140.

SECTION 8. A common victualer who, upon request, on any day but Sunday, refuses to supply food to a stranger or traveler shall be punished by a fine of not more than fifty dollars.

SECTION 9. If, in the opinion of the licensing authorities, a licensee as an innholder or a common victualer ceases to be engaged in the business he is licensed to pursue, or fails to maintain upon his premises the implements and facilities required by this chapter, they shall immediately revoke his license. If a licensee at any time conducts his licensed business in an improper manner, the licensing authorities, after notice to the licensee and reasonable opportunity for a hearing, may upon satisfactory proof thereof suspend or revoke his license. A common victualer who violates section eight shall forfeit his license. A licensee who is convicted a second time of the violation of any of the provisions of sections six to eighteen, inclusive, shall forfeit his license.

SECTION 20. Whoever assumes to be an innholder or common victualer without being licensed as such under this chapter shall forfeit one hundred dollars.

SECTION 21. Whoever is convicted a third time of a violation of any provision of the preceding sections, except those contained in sections seven and eight, shall, in addition to the penalties before provided, be punished by imprisonment for not more than three months.

IN TESTIMONY WHEREOF, the undersigned have hereunto affixed their official signatures,
Issued September 28, 2026

Stuart Pologe, Chair

License Commissioners of Framingham

Joseph Sturniolo, Vice Chair

Laura Medrano, Clerk

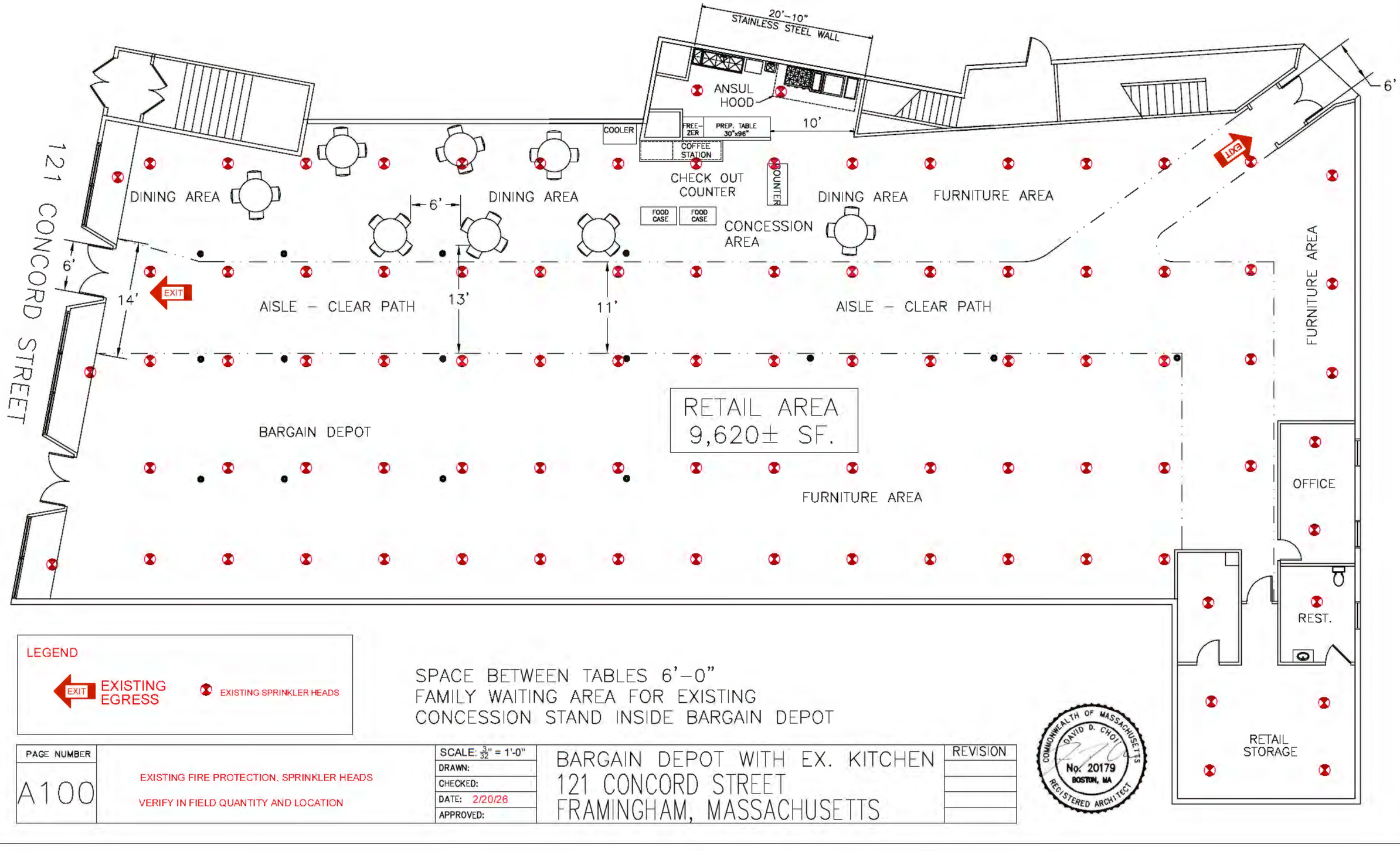
Alycia DeAngelis, Member

Shannon McCullough, Member

FEE: $50.00

FRA: LIC-26-45

MERCANTILE US 60 GROSS SQUARE FEET PER PERSON
PROPOSED MAX. CAPACITY OF 32 SEATS



LEGEND

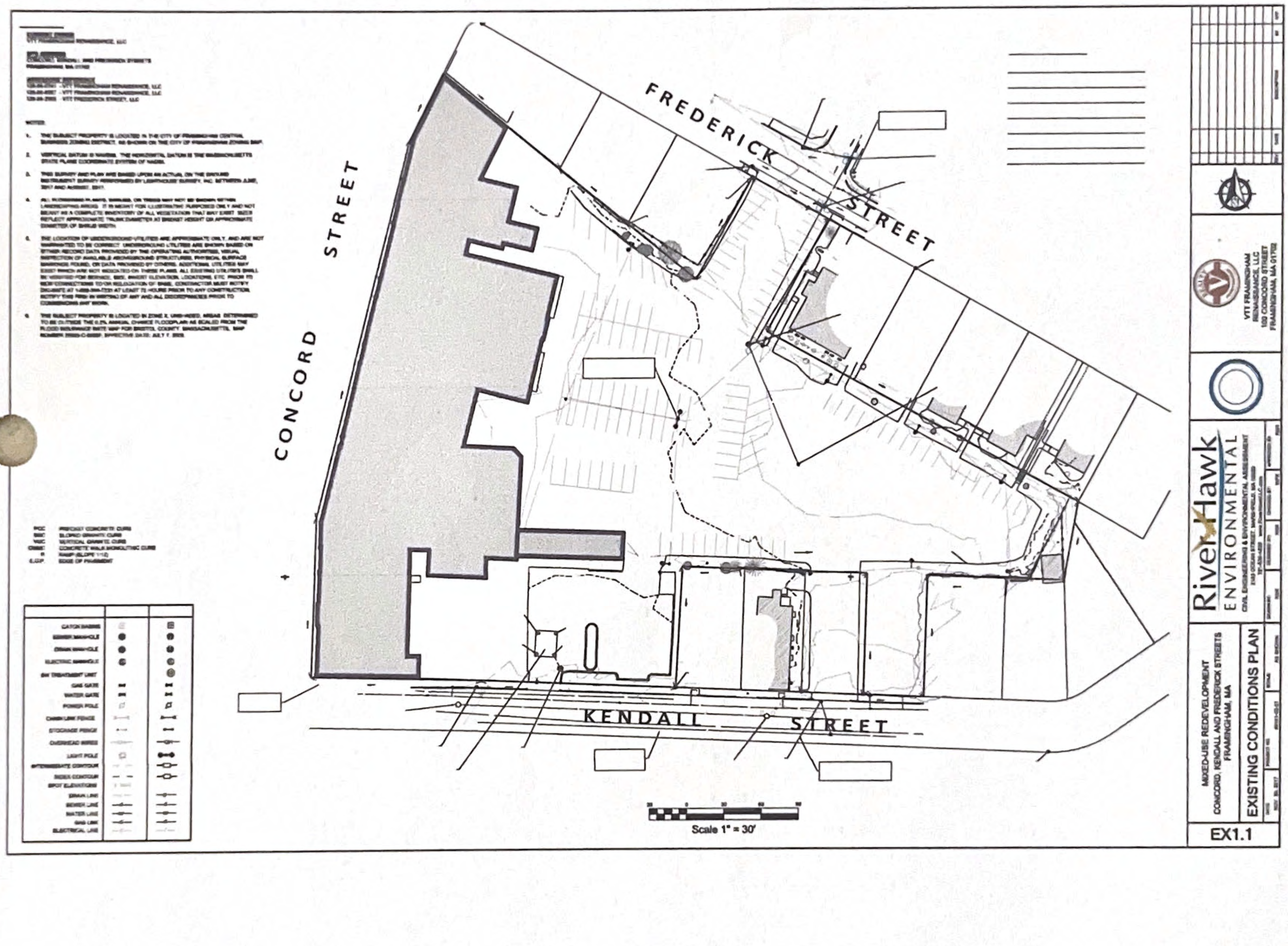
EXIT EXISTING EGRESS

EXISTING SPRINKLER HEADS

SPACE BETWEEN TABLES 6'-0"
FAMILY WAITING AREA FOR EXISTING
CONCESSION STAND INSIDE BARGAIN DEPOT

COMMONWEALTH OF MASSACHUSETTS
DAVID D. CHOI
No. 20179
BOSTON, MA
REGISTERED ARCHITECT

PAGE NUMBER		SCALE: 3/32" = 1'-0"	BARGAIN DEPOT WITH EX. KITCHEN 121 CONCORD STREET FRAMINGHAM, MASSACHUSETTS	REVISION
A100	EXISTING FIRE PROTECTION, SPRINKLER HEADS VERIFY IN FIELD QUANTITY AND LOCATION	DRAWN:		
		CHECKED:		
		DATE: 2/20/26		
		APPROVED:		


FREDERICK STREET
CONCORD STREET
KENDALL STREET
Scale 1" = 30'
VTI FRAMINGHAM RENAISSANCE, LLC
100 CONCORD STREET
FRAMINGHAM, MA 01702
River Hawk
ENVIRONMENTAL
MIXED-USE REDEVELOPMENT
CONCORD, KENDALL AND FREDERICK STREETS
FRAMINGHAM, MA
EXISTING CONDITIONS PLAN
EX1.1

Quote

12/05/2019

Project:
BARGAIN DEPOT

From:

Marjorie Solomon
Restaurant Depot
82 Boston St
Everett, MA 02149-4702
(617)889-2244
smware.834@jetrord.com
Fax 617-389-0012

Job Reference Number: 337

Note: Prices are based on the entire package being ordered; individual items purchased may be subject to a re-quote.

Purchasing this equipment through monthly lease payments is available, please see the Equipment and Supplies Manager for details.

Thank you for giving us the opportunity to serve you!

Item	Qty	Description	Sell	Sell Total
1	1 ea	**REACH-IN REFRIGERATOR**	$1,850.00	$1,850.00
		Asber Model No. ARR-49-H Refrigerator, reach-in, two-section, 49 cu. ft., (2) solid doors, digital controller, (6) adjustable epoxy coated shelves, incandescent interior lighting, CFC polyurethane insulation, temperature from 33° to 38°, environmentally friendly R134A refrigerant, bottom mounted compressor, self closing doors with 90° stay, magnetic door gasket, stainless steel floor, interior & exterior, galvanized back panel, 4" swivel casters (2 with brakes), 1/3 HP, cETLus, ETL-Sanitation, Made in North America		
	1 ea	1 year parts & labor warranty, Continental USA & Canada, standard		
	1 ea	5 year compressor warranty, Continental USA & Canada, standard		
	1 ea	115v/60/1-ph, 6.9 amps, NEMA 5-15P, standard		
			ITEM TOTAL:	**$1,850.00**
2	1 ea	**REACH-IN FREEZER**	$1,525.00	$1,525.00
		Asber Model No. ARF-23-H Freezer, reach-in, one-section, 23 cu. ft., (1) solid door, digital controller, (3) adjustable epoxy coated shelves, incandescent interior lighting, CFC polyurethane insulation, maintain temperature at -10°, environmentally friendly R404A refrigerant, bottom mounted compressor, self closing doors with 90° stay, magnetic door gasket, stainless steel floor, interior & exterior, galvanized back panel, 4" swivel casters (2 with brakes), 3/4 HP, cETLus, ETL-Sanitation, Made in North America		
	1 ea	1 year parts & labor warranty, Continental USA & Canada, standard		

Initial: _____

Item	Qty	Description	Sell	Sell Total
	1 ea	5 year compressor warranty, Continental USA & Canada, standard		
	1 ea	115v/60/1-ph, 8.5 amps, NEMA 5-15P, standard		
			ITEM TOTAL:	$1,525.00
3	1 ea	**REFRIGERATED MERCHANDISER**	$2,230.00	$2,230.00
		Asber Model No. ARMD-47A-SD Refrigerated Merchandiser, one-section, 47 cu. ft., 54"W x 32"D x 78-5/8"H, bottom-mounted self-contained refrigeration, (2) glass sliding doors, analog controller, (8) adjustable epoxy coated shelves, LED interior lighting, temperature range 33° to 38°F, white interior with stainless steel floor, black exterior, R134A refrigerant, 1/3 HP, cETLus, ETL-Sanitation, Made in North America		
	1 ea	1 year parts & labor warranty, Continental USA & Canada, standard		
	1 ea	5 year compressor warranty, Continental USA & Canada, standard		
	1 ea	115v/60/1-ph, 6.9 amps, NEMA 5-15P, standard		
			ITEM TOTAL:	$2,230.00
4	1 ea	**SANDWICH / SALAD PREPARATION REFRIGERATOR**	$985.00	$985.00
		Asber Model No. APTS-27-8 Sandwich/Salad Top Prep Table, 27" wide, (1) solid door, (1) adjustable epoxy coated shelf, includes (6) standard full set of 1/6 size pans & (2) 1/9 size pans (4" deep), insulated lid, 10" removable/reversible white poly cutting board, CFC polyurethane insulation, temperature from 33° to 41°, environmentally friendly R134A refrigerant, front breathing, self-contained refrigeration, magnetic door gasket, stainless steel interior & exterior, galvanized back panel, 4" swivel casters (2 with brakes), 1/6 HP, cETLus, ETL-Sanitation, Made in North America		
	1 ea	1 year parts & labor warranty, Continental USA & Canada, standard		
	1 ea	5 year compressor warranty, Continental USA & Canada, standard		
	1 ea	115v/60/1-ph, 2.7 amps, NEMA 5-15P, standard		
			ITEM TOTAL:	$985.00
5	1 ea	**GAS FLOOR FRYER**	$1,489.00	$1,489.00
		Royal Range of California Model No. REEF-35 Fryer, gas, floor model, 35 lb. oil capacity, full tank, (3) 24,000 BTU/hr. burners, thermostatic control, millivolt temp control with 200° - 400°F range, (2) twin baskets, 1-1/4" full port drain valve, 6" adjustable legs, stainless steel front & sides, 72,000 BTU, cETLus, ETL-Sanitation, Made in USA, ENERGY STAR®		
	1 ea	Two year limited parts and labor warranty, five year limited warranty on fry tank, standard		
	1 ea	Gas type to be specified		
			ITEM TOTAL:	$1,489.00
6		**ROYAL FRYER QUALLIFIES FOR $1000.00 INSTANT REBATE WITH COPY OF GAS BILL**		
7	1 ea	**BLENDER, BAR**	$370.00	$370.00

Initial: _____

Item	Qty	Description	Sell	Sell Total
		Waring Model No. MX1000XTX Xtreme High-Power Blender, heavy duty, The Raptor™ 64 oz. BPA Free Copolyester container, high, low, off & pulse paddle switches, one piece removable jar pad, 120v, 3.5 HP, NSF, cUL & UL, Made in USA		
	1 ea	3 year limited warranty on motor; and 2 year parts & labor warranty, standard		
		For Customer Care & Product Service, please contact: (800) 269-6640 waring_service@conair.com		
		Waring Customer Care 314 Ella T. Grasso Ave Torrington, CT 06790		
			ITEM TOTAL:	**$370.00**
8	1 ea	**GAS COUNTERTOP GRIDDLE**	$575.00	$575.00
		Asber Model No. AEMG-36 Griddle, natural gas, countertop, 36"W x 32-1/4"D x 13"H, (3) 24,000 BTU burner, 5/8" thick polished steel griddle plate, manual controls, 4"D grease trough, 14 gauge stainless steel splash guard, pressure regulator, stainless steel front, sides & ledge, adjustable feet, 72,000 BTU, cETLus, (ships with LP conversion kit) Made in North America		
	1 ea	1 year parts & labor warranty, Continental USA & Canada, standard		
			ITEM TOTAL:	**$575.00**
9	1 ea	**VERTICAL BROILER (GYRO), GAS**	$1,355.94	$1,355.94
		MVP Group LLC Model No. AX-VB3 Axis Vertical Broiler, natural gas, (3) individual controlled infrared burners, 88 lbs. capacity, 24" spit, adjustable heat deflectors on left & right, removable drip tray, dual rails, enclosed motor, stainless steel, includes: 24" x 31" octagonal drip pan, 34,140 BTU, 120v/60/1-ph, cord with NEMA 5-15P, NSF, cETlus (LP conversion kit is included)		
	1 ea	1 year parts & 1 year labor "on site" warranty is standard		
			ITEM TOTAL:	**$1,355.94**
10	1 ea	**MICROWAVE OVEN**	$259.85	$259.85
		ACP Model No. RMS10DSA Amana® Commercial Microwave Oven, countertop, 0.8 cu. ft. capacity, 1000 watts, low volume, single stage cooking, (1) power level, lighted control dial, 6-minute max cooking time, touch control, interlock safety switch, audible end of cycle signal, side hinged door with tempered glass, LED lighted interior, stainless steel interior & exterior, 120v/60/1-ph, 15.0 amps, 15 MCA, 1500 watts (total), cord, NEMA 5-15P, cETLus, ETL-Sanitation		
	1 ea	3-year limited warranty (1 year full)		
			ITEM TOTAL:	**$259.85**
11	1 ea	**COFFEE BREWER**	$335.00	$335.00

Initial: _____

Item	Qty	Description	Sell	Sell Total
		BUNN Model No. 13300.0003 13300.0003 VP17-3 Coffee Maker, pourover type, brews 3.8 gallons per hour capacity, (3) lower warmer, plastic funnel, stainless decor, 120v/60/1-ph, 13.9 amp, 1670 watts, NEMA 5-15P, cord attached, UL, NSF		
	1 ea	Equipment discount category net prices must be rounded to the nearest dollar		
			ITEM TOTAL:	**$335.00**
12	1 ea	**CHEST FREEZER**	$851.30	$851.30
		Kelvinator Commercial Model No. KCCF170WH (738231) Chest Freezer, 17 cubic feet capacity, sealed cabinet interior, white exterior, lift up lid with lock, power on light, defrost drain, self-contained refrigeration system, thermometer, heavy duty wire storage basket, heavy-duty casters, R290 Hydrocarbon refrigerant, 115v/60/1, 1/5 hp, NEMA 5-15P, cETLus, ETL-Santation, ENERGY STAR®		
	1 ea	1 year parts & labor warranty, standard		
	1 ea	5 year compressor warranty		
			ITEM TOTAL:	**$851.30**
13		**$200.00 ENERGY REBATE**		
14	1 ea	**RANGE, 24", 4 OPEN BURNERS**	$950.00	$950.00
		Asber Model No. AER-4-24 Restaurant Range, natural gas, 24", (4) 30,000 BTU open burners, removable cast iron grates, manual controls, full width grease trough, standard oven base, stainless steel high shelf with reinforced backguard riser, pressure regulator, stainless steel front, sides, backguard & landing ledge, 6" adjustable steel feet, 144,000 BTU, cETLus, (ships with LP conversion kit) Made in North America		
			ITEM TOTAL:	**$950.00**
15	1 ea	**GAS FLOOR FRYER**	$1,489.00	$1,489.00
		Royal Range of California Model No. REEF-35 Fryer, gas, floor model, 35 lb. oil capacity, full tank, (3) 24,000 BTU/hr. burners, thermostatic control, millivolt temp control with 200° - 400°F range, (2) twin baskets, 1-1/4" full port drain valve, 6" adjustable legs, stainless steel front & sides, 72,000 BTU, cETLus, ETL-Sanitation, Made in USA, ENERGY STAR®		
	1 ea	Two year limited parts and labor warranty, five year limited warranty on fry tank, standard		
	1 ea	Gas type to be specified		
			ITEM TOTAL:	**$1,489.00**
16		**$1000.00 ENERGY REBATE**		
17	1 ea	**GROOVED PANAIN**	$365.00	$365.00
		Custom GROOVED PANINI 120 VOLT		
			ITEM TOTAL:	**$365.00**
18	1 ea	**SINK, (3) THREE COMPARTMENT**	$599.00	$599.00
		Custom 3 COMP SINK 18 X 18 X18		

Initial: _____

Item	Qty	Description	Sell	Sell Total
			ITEM TOTAL:	**$599.00**
19	1 ea	**MEGA TOP SANDWICH / SALAD PREPARATION REFRIGERATOR**	$2,303.00	$2,303.00
		Everest Refrigeration Model No. EPBR2 Sandwich Prep Table, Mega-Top, two-section, 47-1/2"W, 13.0 cu. ft. capacity, self-contained rear mounted refrigeration, stainless steel top with opening for (18) 1/6 size pans, (1) 1/2" thick insulated top lid, removable 9-1/8" deep cutting board, (2) solid hinged self-closing doors, (2) epoxy coated wire shelves, height adjustable clips, digital controls with LED display, auto defrost, front air breathing, stainless steel interior, stainless steel top, bottom & sides, galvanized steel bottom & rear, R290 Hydrocarbon refrigerant, 1/4 HP, 115v/60/1, 3.5 amps, cord, NEMA 5-15P, NSF, cETLus, ETL-Sanitation		
	1 ea	Parts and labor: Total 3 years from installation date (there is no more additional 6 months warranty this time)		
	1 ea	Compressor: Total 5 years from installation date		
	1 ea	CASA5-01 5" Overall Height Casters Set of 4, (front 2 locking), standard		
			ITEM TOTAL:	**$2,303.00**
20	1 ea	**DISPLAY CASE, REFRIGERATED DELI**	$2,215.00	$2,215.00
		Ojeda USA Model No. RDCH 4 Refrigerated Deli Case, curved glass front, sliding rear doors, 13.1 cu. ft. capacity, 32° - 42°F operating temperature, electronic controls, (2) adjustable shelves, LED lighting, painted steel interior, stainless steel bottom, self-contained refrigeration with condensate evaporator, R290 refrigerant, powder coated black exterior, 1/6 HP, 120v/60/1-ph, 4 amps, NEMA 5-20P, ETL-Sanitation, cETLus		
	1 ea	3 year parts and labor warranty, 5 year compressor parts only, standard		
			ITEM TOTAL:	**$2,215.00**
21	1 ea	**PLANETARY MIXER**	$700.00	$700.00
		Admiral Craft Model No. BDPM-10 Black Diamond Planetary Mixer, 10 qt., 3-speed, gear driven transmission, stainless steel wire bowl guard, includes: stainless steel mixing bowl with clamps, wire whisk, dough hook, & flat beater attachments, rubber feet, 3/4 HP, 120v/60/1-ph, 600 watts, 5.0 amps, cord, NEMA 5-15P, cETLus, ETL-Sanitation (Priced NET/NET DELIVERED - Shipping is included in price, no further discounts or rebates apply. This item cannot be added to an order to meet the free freight minimum.) (NET/NET delivered pricing is only valid for items that are delivered to your physical business address. Deliveries to any address, other than your physical business address, will be assessed a $130 all-inclusive drop-ship fee for the first item. Each additional item will incur a $10 fee.)		
	1 ea	1 year limited warranty, (contact factory for details)		
			ITEM TOTAL:	**$700.00**
22	1 ea	**GREASE INTERCEPTOR**	$340.00	$340.00

Initial: _____

Item	Qty	Description	Sell	Sell Total
		Endura Grease Management Model No. 3915A02 Endura® Grease Interceptor, 15 GPM, 35.14 lbs. grease capacity, 300 lbs.+ load rated cover, 220° F (104° C) temperature range discharge (continuous discharge), EZ-open cover latches, odor lock cover gasket, one-piece polypropylene tank, 1-piece PVC flow control (external) with air intake, 2" inlet & outlet, UPC & IAPMO listed, MASS Approved, PDI Certified, ASME A112.14.3 certified, CSA certified		
	1 ea	10 Year limited warranty, (contact factory for more information)		
	2 ea	Extended warranty applies when warranty card is filled out & sent back within 30 days of installation, otherwise standard 1 year warranty applies.		
	1 ea	Flow control, standard		
			ITEM TOTAL:	**$340.00**

Subtotal	$20,787.09
Total	$20,787.09

Please verify all sizes, electrical and gas requirements, drains (if necessary,) to ensure items will fit into available space PRIOR to ordering.

Special order items are NOT returnable.

By agreeing to the terms above, customer acknowledges that they alone have determined the suitability of the product or goods for their intended use and is not relying on any representation of Restaurant Depot in this regard. In the event of a legal dispute the parties agree that the prevailing party should be entitled to recover attorney's fees and associated costs.

Items ordered at store level will be available for pick up at Restaurant Depot. **Limited area deliveries MAY be available** - see Manager for details. Items ordered at the RDStore are available for delivery by courier or common carrier.

All quoted prices will expire in 30 days UNLESS OTHERWISE NOTED.

ANY DROP SHIPPED ITEM WILL REQUIRE 100% PRE-PAYMENT IN FULL.

SET IN PLACE AND INSTALLATION BY OTHERS

Acceptance: _____ Date: _____

Printed Name: _____

Project Grand Total: $20,787.09

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STANDARD FORM COMMERCIAL LEASE

1. PARTIES

VTT Framingham Renaissance LLC c/o VTT Management Inc shall include heirs, successors, and assigns where the context so admits, does hereby lease to **Bargain Depot LLC**, LESSEE, which expression shall include successors, executors, administrators, and assigns where the context so admits, and the LESSEE hereby leases the following described premises:

2. PREMISES

121 Concord Street, Framingham, MA 01702, measuring approximately **11,000 square feet,** with the right to use in common, with others entitled thereto, the hallways, stairways, and elevators necessary for access to said leased premises and lavatories nearest thereto.

3. TERM

The term of this Lease shall be for **FIVE (5) YEARS** (hereinafter the Lease Term) commencing on **December 1, 2024** (hereinafter called the Commencement Date) and ending on **November 30, 2029.**

At the election of the LESSEE, and with written notice given to the LESSOR no more than twelve (12) and no less than three (3) months prior to the end of the Lease Term, **LESSEE shall have an option to renew the lease for five (5) additional years at rent TBD based on fair market value at that time.**

LESSEE must give 90 day's written notice if electing not to renew the Lease.

4. BASE RENT

LESSEE shall pay to the LESSOR rent at the rate of:

Term	Annual Base Rent	Monthly Base [redacted]
[redacted]	[redacted]	[redacted]
12/01/2025-11/30/2026	[redacted]	[redacted]
12/01/2026-11/30/2027	[redacted]	[redacted]
12/01/2027-11/30/2028	[redacted]	[redacted]
12/01/2028-11/30/2029	[redacted]	[redacted]

5. Security Deposit

Upon execution of this Lease, the LESSEE has paid to the LESSOR the amount of [redacted] which is being held as last month's rent and security deposit. At the conclusion of the LESSEE's performance as herein provided; the Security Deposit [redacted] shall be refunded to the LESSEE subject to the LESSEE's satisfactory compliance with the conditions hereof. The portion held upon execution of the Lease shall be [redacted] represents a portion of the last month's rent, and will be held until the end of the Lease Term.

6. UTILITIES

The LESSEE shall pay, as they become due, all bills for electricity and other utilities (whether they are used for furnishing heat or other purposes) that are furnished to the

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leased premises **and presently separately metered,** and all bills for fuel furnished to a separate tank servicing the leased premises exclusively. The LESSOR agrees to provide all other utility service and to make available *(***not pay for**) reasonably hot and cold water and reasonable heat and air conditioning (except to the extent the same are furnished through separately metered utilities or separate fuel tanks as set forth above) to the leased premises, the hallways, stairways, elevators if any, and lavatories during normal business hours on regular business days of the heating and air conditioning seasons of each year, to furnish elevator service if already existing at site and to light passageways and stairways during business hours, and to furnish such cleaning service as customary in similar buildings in said city or town, all subject to interruption due to accident, to the making of repairs, alterations or improvements, to labor difficulties, to trouble in obtaining fuel, electricity, service, or supplies from the sources from which they are usually obtained for said building, or to any cause beyond the LESSOR'S control.

LESSOR shall have no obligation to provide utilities or equipment other than the utilities and equipment within the premises as of the Commencement Date of this Lease. In the event LESSEE requires additional utilities or equipment, the installation and maintenance thereof shall be the LESSEE'S sole obligation, provided that such installation shall be subject to the written consent of the LESSOR.

7. USE OF LEASED PREMISES

The LESSEE shall use the leased premises only for the purpose of **discount store for clothing and other items.**

8. COMPLIANCE WITH LAWS

The LESSEE acknowledges that no trade or occupation shall be conducted in the leased premises or use made thereof which will be unlawful, improper, noisy, or offensive, or contrary to any law or any municipal by-law or ordinance in force in the city or town in which the premises are situated.

9. FIRE INSURANCE

The LESSEE shall not permit any use of the leased premises that will make voidable any insurance on the property of which the leased premises are a part, or on the contents of said property or that shall be contrary to any law or regulation from time to time established by the New England Fire Insurance Rating Association, or any similar body succeeding to its powers. The LESSEE shall on demand reimburse the LESSOR, and all other tenants, all extra insurance premiums caused by the LESSEE'S use of the premises.

10. MAINTENANCE

The LESSEE agrees to maintain the leased premises in good condition, damage by fire and other casualty only excepted, and whenever necessary, to replace plate glass and other glass therein, acknowledging that the leased premises are now in good order and the glass whole. LESSEE shall not permit the leased premises to be overloaded, damaged, stripped, or defaced, nor suffer any waste. LESSEE shall obtain written consent of LESSOR and the city or town in which the premises are situated, if required, before erecting any sign on the premises.

A. LESSEE'S OBLIGATIONS

B. LESSOR'S OBLIGATIONS

The LESSOR agrees to maintain the structure of the building of which the leased premises are a part in the same condition as it is as of the Commencement Date of this Lease or as it may be put in during the term of this lease, reasonable wear and tear, damage by fire, and other casualty only excepted, unless such maintenance is required due to action of the LESSEE or those for whose conduct the LESSEE is legally responsible.

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11. ALTERATIONS, ADDITIONS

The LESSEE shall not make structural alterations or additions to the leased premises but may make non-structural alterations provided the LESSOR consents thereto in writing, which consent shall not be unreasonably withheld or delayed. All such allowed alterations shall be at LESSEE'S expense and shall be in quality at least equal to the present construction. LESSEE shall not permit any mechanics' liens, or similar liens, to remain upon the leased premises for labor and material furnished to LESSEE or claimed to have been furnished to LESSEE in connection with work of any character performed or claimed to have been performed at the direction of LESSEE and shall cause any such lien to be released of record forthwith without cost to LESSOR. Any alterations or improvements made by the LESSEE shall become the property of the LESSOR at the termination of occupancy as provided herein. Including any equipment which has become a fixture within the normal course.

12. ASSIGNMENT – SUB-LEASING

The LESSEE shall not assign or sublet the whole or any part of the leased premises without LESSOR'S prior written consent. Notwithstanding such consent, LESSEE shall remain liable to LESSOR for the payment of all rent and for the full performance of the covenants and conditions of this lease.

13. SUBORDINATION

This Lease shall be subject and subordinate to any and all mortgages, deeds of trust, and other instruments in the nature of a mortgage, now or at any time hereafter, a lien or liens on the property of which the leased premises are a part and the LESSEE shall, when requested, promptly execute and deliver such written instruments as shall be necessary to show the subordination of this Lease to said mortgages, deeds of trust or other such instruments in the nature of a mortgage.

14. LESSOR'S ACCESS

The LESSOR or agents of the LESSOR may, at reasonable times, enter to view the leased premises and may remove placards and signs not approved and affixed as herein provided, and make repairs and alterations as LESSOR should elect to do and may show the leased premises to others, and at any time within three (3) months before the expiration of the Lease Term, may affix to any suitable part of the leased premises a notice for letting or selling the leased premises or property of which the leased premises are a part and keep the same so affixed without hindrance or molestation.

15. INDEMNIFICATION AND LIABILITY

The LESSEE shall save the LESSOR harmless from all loss and damage occasioned by the use or escape of water or by the bursting of pipes, as well as from any claim or damage resulting from neglect in not removing snow and ice from the roof of the building or from the sidewalks bordering upon the premises so leased, or by any nuisance made or suffered on the leased premises, unless such loss is caused by the neglect of the LESSOR. LESSEE shall obtain and shall maintain insurance to cover such losses and damages occasioned by the use or escape of water or by the bursting of pipes or damages resulting from the neglect in not removing the snow and ice from the roof of the building or sidewalks. Said insurance shall have a minimum coverage amount of at least $1,000,000.00.

16. LESSEE'S LIABILITY INSURANCE

The LESSEE shall maintain with respect to the leased premises and the property of which the leased premises are a part, comprehensive public liability insurance in the amount of $1,000,000 with property damage insurance in limits of $100,000 in responsible companies qualified to do business in Massachusetts and in good standing therein, insuring the LESSOR as well as LESSEE against injury to persons or damage to property as provided. The LESSEE shall deposit with the LESSOR certificates for such insurance at or prior to the Commencement Date, and thereafter within thirty (30) days prior to the expiration of any such policies. All such

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insurance certificates shall provide that such policies shall not be canceled without at least ten (10) days prior written notice to each insured named therein.

17. FIRE, CASUALTY, EMINENT DOMAIN

Should a substantial portion of the leased premises or of the property of which the leased premises are a part be substantially damaged by fire or another casualty, or be taken by eminent domain, the LESSOR may elect to terminate this Lease. When such fire, casualty, or taking renders the leased premises substantially unsuitable for their intended use, a just and proportionate abatement of rent shall be made, and the LESSEE may elect to terminate this lease if:

(a) The LESSOR fails to give written notice within thirty (30) days of intention to restore leased premises, or

(b) The LESSOR fails to restore the leased premises to a condition substantially suitable for their intended use within ninety (90) days of said fire, casualty, or taking.

The LESSOR reserves, and the LESSEE grants to the LESSOR, all rights which the LESSEE may have for damages or injury to the leased premises for any taking by eminent domain, except for damage to the LESSEE'S fixtures, property, or equipment.

18. DEFAULT AND BANKRUPTCY

In the event that:

(a) The LESSEE shall default in the payment of any installment of rent or other sum herein specified and such default shall continue for ten (10) days after written notice thereof; or

(b) The LESSEE shall default in the observance or performance of any other of the LESSEE'S covenants, agreements, or obligations hereunder and such default shall not be corrected within thirty (30) days after written notice thereof; or

(c) The LESSEE shall be declared bankrupt or insolvent according to law, or, if any assignment shall be made of LESSEE'S property for the benefit of creditors;

then the LESSOR shall have the right thereafter, while such default continues, to reenter and take complete possession of the leased premises, to declare the term of this lease ended, and remove the LESSEE'S effects, without prejudice to any remedies which might be otherwise used for arrears of rent or other default. The LESSEE shall indemnify the LESSOR against all loss of rent and other payments which the LESSOR may incur by reason of such termination during the residue of the term. If the LESSEE shall default, after reasonable notice thereof, in the observance or performance of any conditions or covenants on LESSEE'S part to be observed or performed under or by virtue of any of the provisions in any article of this Lease, the LESSOR, without being under any obligation to do so and without thereby waiving such default, may remedy such default for the account and at the expense of the LESSEE. If the LESSOR makes any expenditures or incurs any obligations for the payment of money in connection therewith, including but not limited to, reasonable attorney's fees in instituting, prosecuting, or defending any action or proceeding, such sums paid or obligations insured, with interest at the rate

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of 18 percent per annum and costs, shall be paid to the LESSOR by the LESSEE as additional rent.

19. NOTICE

Any notice from the LESSOR to the LESSEE relating to the leased premises or to the occupancy thereof, shall be deemed duly served, if left at the leased premises addressed to the LESSEE, or if mailed to the leased premises, registered or certified mail, return receipt requested, postage prepaid, addressed to the LESSEE, **121 Concord Street, Framingham, MA 01702**

Any notice from the LESSEE to the LESSOR relating to the leased premises or to the occupancy thereof, shall be deemed duly served, if mailed to the LESSOR by registered or certified mail, return receipt requested, postage prepaid, addressed to the LESSOR at such address as the LESSOR may from time to time advise in writing. All rent and notices shall be paid and sent to LESSOR at VTT Management 1 Clarks Hill, Suite 100, Framingham MA 01702.

20. SURRENDER

The LESSEE shall at the expiration or other termination of this Lease remove all LESSEE'S goods and effects from the leased premises, (including, without hereby limiting the generality of the foregoing, all signs and lettering affixed or painted by the LESSEE, either inside or outside the leased premises). LESSEE shall deliver to the LESSOR the leased premises and all keys, locks thereto, and other fixtures connected therewith, and all alterations and additions made to or upon the leased premises, in good condition, damage by fire or other casualty only excepted. In the event of the LESSEE'S failure to remove any of LESSEE'S property from the premises, LESSOR is hereby authorized, without liability to LESSEE for loss or damage thereto, and at the sole risk of LESSEE, to remove and store any of the property at LESSEE'S expense, or to retain same under LESSOR'S control or to sell at public or private sale, without notice any or all of the property not so removed and to apply the net proceeds of such sale to the payment of any sum due hereunder, or to destroy such property.

21. ADDITIONAL PROVISIONS

1. LESSEE pays for heat and electric that is separately metered.
2. LESSEE to accept the space in “AS IS” condition and any work to the space is to be done by LESSEE at LESSEE’S expense.
3. LESSEE shall not erect or affix any sign on or around the premises without obtaining the LESSOR’S prior written approval.
4. LESSEE shall provide proof of insurance with VTT Management, Inc. listed as additionally insured.
5. It shall be the SOLE responsibility of LESSEE to maintain, repair and replace all HVAC equipment and machinery at commencement of lease.
6. LESSEE is responsible for all electrical and plumbing inside space.
7. LESSEE shall provide ninety (90) days written notice prior to expiration of the Lease if LESSEE is electing not to renew.

22.ADDITIONAL COVENANTS OF LESSEE

Lessee convents that Lessee shall maintain the premise, specifically including the basement and storage areas, in neat, tidy and broom clean condition at all times and shall in no event block access to any hallways, stairways, entrances, exits and fire exits.

23. MISCELLANEOUS

This instrument contains the entire and only agreement between the parties and no

Docusign Envelope ID: BB56CAB4-26FF-4398-AA4A-D746E4BC5849

oral statements or representations, or prior written material not incorporated into this agreement shall have any force or effect.

The headings and numeration used herein are used only as a matter of convenience for the reference and are not to be considered a part of this lease or to be used in determining the intent of the parties to this lease.

IN WITNESS WHEREOF, the said parties hereunto set their hands and seal this _____ day of _____, 2024.

Signed by:
Samir Bouchareb 11/6/2024
40827E7CE1AD4C3...

LESSEE – **Bargain Depot LLC**

DocuSigned by:
Anthony Odoardi 11/6/2024
8E2DF1E2B285477...

LESSOR – **VTT Framingham Renaissance LLC**

The Commonwealth of Massachusetts
William Francis Galvin

Minimum Fee: $250.00

Secretary of the Commonwealth, Corporations Division
One Ashburton Place, 17th floor
Boston, MA 02108-1512
Telephone: (617) 727-9640

Articles of Organization
(General Laws, Chapter 156D, Section 2.02; 950 CMR 113.16)

Identification Number: 001649497

ARTICLE I

The exact name of the corporation is:

SPACE CAFE INC

ARTICLE II

Unless the articles of organization otherwise provide, all corporations formed pursuant to G.L. C156D have the purpose of engaging in any lawful business. Please specify if you want a more limited purpose:

TO ENGAGE IN THE SERVICE OF RETAIL SELLING OF PREPARED FOODS, INCLUDING BUT NOT LIMITED TO THE PURCHASE, SALE AND RESALE OF ALL ITEMS AND PROPERTIES. TO CARRY ON ANY BUSINESS OR OTHER ACTIVITY WHICH MAY BE LAWFULLY CARRIED ON BY A CORPORATION ORGANIZED UNDER THE BUSINESS CORPORATION LAW OF THE COMMONWEALTH OF MASSACHUSETTS.

ARTICLE III

State the total number of shares and par value, if any, of each class of stock that the corporation is authorized to issue. All corporations must authorize stock. If only one class or series is authorized, it is not necessary to specify any particular designation.

Class of Stock	Par Value Per Share Enter 0 if no Par	Total Authorized by Articles of Organization or Amendments		Total Issued and Outstanding
		Num of Shares	*Total Par Value*	*Num of Shares*
CNP	$0.00000	200,000	$0.00	0

G.L. C156D eliminates the concept of par value, however a corporation may specify par value in Article III. See G.L. C156D Section 6.21 and the comments thereto.

ARTICLE IV

If more than one class of stock is authorized, state a distinguishing designation for each class. Prior to the issuance of any shares of a class, if shares of another class are outstanding, the Business Entity must provide a description of the preferences, voting powers, qualifications, and special or relative rights or privileges of that class and of each other class of which shares are outstanding and of each series then established within any class.

ARTICLE V

The restrictions, if any, imposed by the Articles of Organization upon the transfer of shares of stock of any class are:

ARTICLE 5A: RESTRICTIONS. THE RESTRICTIONS, IF ANY IMPOSED BY THE ARTICLES OF ORGANIZATION UPON THE TRANSFER OF SHARES OF ANY CLASS ARE AS FOLLOWS: ANY STOCKHOLDER, INCLUDING THE HEIRS, ASSIGNS, EXECUTORS OR ADMINISTRATORS OF A DECEASED STOCKHOLDER, DESIRING TO SELL OR TRANSFER ANY SHARES OF COMMON STOCK IN THE CORPORATION OWNED BY HIM (HER) OR THEM SHALL FIRST BE OFFERED SAID SHARES TO THE CORPORATION THROUGH THE BOARD OF DIRECTORS IN THE FOLLOWING MANNER: 1) THE SELLER OF SUCH STOCK SHALL NOTIFY THE DIRECTORS IN WRITING OF ITS DESIRE TO SELL OR TRANSFER. THIS NOTICE SHALL SPECIFY THE PRICE AT WHICH HE (SHE) IS WILLING TO SELL OR TRANSFER. THE DIRECTORS MAY AT ANY TIME WITHIN THE THIRTY DAYS ACCEPT OR REJECT IN WRITING, OR ELECT TO HAVE THE PRICE DETERMINED BY ARBITRATORS. IF ANY ARBITRATORS SHALL NEGLECT OR REFUSE TO APPEAR AT ANY OF THE MEETINGS, THEN A MAJORITY MAY ACT IN THE ABSENCE OF SUCH ARBITRATOR. 2) IF THE CORPORATION ACCEPTS THIS ARBITRATORS' NEW VALUE OF THE STOCK(S), THEN THE DIRECTORS SHALL PURCHASE THE SHARES WITHIN THIRTY DAYS. 3) IF THE CORPORATION FAILS TO PURCHASE THE SHARES WITHIN THIRTY DAYS, THE OWNER OF THE STOCK MAY AT ANY TIME SELL, TRANSFER OR DISPOSE OF THE STOCK IN ANY MANNER HE (SHE) MAY SEE FIT. 4) FROM TIME TO TIME, THE BOARD OF DIRECTORS, MAY WAIVE, AMEND OR IMPLEMENT THESE PROVISIONS AND AFTER THE DECISION HAS BEEN REACHED, ALL STOCKHOLDERS SHALL BE NOTIFIED ON THE NEXT BUSINESS DAY.

ARTICLE VI

Other lawful provisions, and if there are no provisions, this article may be left blank.

ARTICLE 6A: LIMITATION OF LIABILITY OF DIRECTORS. NO DIRECTOR OF THIS CORPORATION SHALL BE PERSONALLY LIABLE TO THE CORPORATION OR ITS STOCKHOLDERS FOR MONETARY DAMAGES, FOR BREACH OF FIDUCIARY DUTY AS A DIRECT NOTWITHSTANDING ANY PROVISION OF LAW IMPOSING SUCH LIABILITY; PROVIDED HOWEVER THAT THIS ARTICLE SHALL NOT ELIMINATE OR LIMIT ANY LIABILITY OF A DIRECTOR; (I) FOR ANY BREACH OF THE DIRECTOR'S DUTY OF LOYALTY TO THE CORPORATION OR ITS STOCKHOLDERS, (II) FOR ACTS OR OMISSIONS NOT IN GOOD FAITH OR WHICH INVOLVE INTENTIONAL MISCONDUCT OR A KNOWING VIOLATION OF LAW, (III) UNDER CURRENT PROVISIONS OF THE MGL, CHAPTER 156D, OR (IV) WITH DERIVED AN IMPROPER PERSONAL BENEFIT. NO AMENDMENT OR REPEAL OF THIS ARTICLE SHALL AFFECT THE RIGHTS AND PROTECTION AFFORDED TO A DIRECTOR OF THIS CORPORATION UNDER THIS ARTICLE FOR ACTS OR OMISSIONS OCCURRING PRIOR TO SUCH AMENDMENT OR REPEAL. ARTICLE 6B: TRANSACTIONS WITH INTERESTED THIRD PARTIES. 1) NO CONTRACT OR TRANSACTION BY THIS CORPORATION SHALL BE VOID, VIOLABLE OR IN ANY WAY AFFECTED BY REASON OF THE FACT THAT IT IS WITH AN INTERESTED THIRD PARTY. 2) FOR THE PURPOSE OF THIS ARTICLE "INTERESTED THIRD PARTY" MEANS ANY PERSON OR ORGANIZATION IN ANY WAY INTERESTED IN THIS CORPORATION, WHETHER AS AN OFFICER, DIRECTOR, STOCKHOLDER, EMPLOYEE OR OTHERWISE AND ANY OTHER ENTITY IN WHICH ANY SUCH PERSON OR ORGANIZATION OR THIS CORPORATION IS IN ANY WAY INTERESTED 3) UNLESS SUCH CONTRACT WAS ENTERED NOT IN A GOOD FAITH, NO INTERESTED PERSON SHALL BE LIABLE TO THIS CORPORATION OR TO ANY OTHER PERSON OR ORGANIZATION FOR ANY LOSS OR EXPENSES INCURRED BY REASON OF SUCH TRANSACTION OR SHALL BE ACCOUNTABLE FOR ANY GAIN OR PROFIT REALIZED FROM SUCH CONTRACT OR TRANSACTION. 4) THE PROVISION OF THIS ARTICLE SHALL BE OPERATIVE NOTWITHSTANDING THE FACT THAT THE PRESENCE OF AN INTERESTED PERSON WAS NECESSARY TO CONSTITUTE A QUORUM AT A MEETING OF DIRECTORS OR STOCKHOLDERS OF THIS CORPORATION AT WHICH SUCH CONTRACT OR TRANSACTION WAS AUTHORIZED OR THE VOTE OF AN INTERESTED PERSON WAS NECESSARY FOR THE AUTHORIZATION OF SUCH CONTRACT OR TRANSACTION. ARTICLE 6C: STOCKHOLDERS MEETINGS. MEETINGS OF STOCKHOLDER'S OF THIS CORPORATION MAY BE HELD ANYWHERE IN UNITED STATES. ARTICLE 6D: AMENDMENT OF BY-LAWS. THE BYLAWS MAY PROVIDE THAT THE BOARD OF DIRECTOR AS WELL AS THE STOCKHOLDERS MAY

EXPEDITE, AMEND OR REPEAL THE BYLAWS OF THE CORPORATION, EXCEPT WITH RESPECT TO ANY PROVISION THEREOF WHICH BY LAW, BY THESE ARTICLES OR BY THE BYLAWS REQUIRES CERTAIN ACTION BY THE STOCKHOLDERS. ARTICLE 6E: ACTING AS A PARTNER. THIS CORPORATION MAY BECOME A PARTNER IN ANY BUSINESS ACTIVITY OR ENTERPRISE WHICH IT WOULD HAVE POWER TO CONDUCT ITS TRANSACTION BY ITSELF.

Note: The preceding six (6) articles are considered to be permanent and may be changed only by filing appropriate articles of amendment.

ARTICLE VII

The effective date of organization and time the articles were received for filing if the articles are not rejected within the time prescribed by law. If a *later* effective date is desired, specify such date, which may not be later than the *90th day* after the articles are received for filing.

Later Effective Date: 4/9/2023 **Time:** 00:00 AM

ARTICLE VIII

The information contained in Article VIII is not a permanent part of the Articles of Organization.

a,b. The street address of the initial registered office of the corporation in the commonwealth and the name of the initial registered agent at the registered office:

Name: SAMIR BOUCHAREB
No. and Street: 121 CONCORD ST
City or Town: FRAMINGHAM State: MA Zip: 01702 Country: USA

c. The names and street addresses of the individuals who will serve as the initial directors, president, treasurer and secretary of the corporation (an address need not be specified if the business address of the officer or director is the same as the principal office location):

Title	**Individual Name** First, Middle, Last, Suffix	**Address** (no PO Box) Address, City or Town, State, Zip Code
PRESIDENT	SAMIR BOUCHAREB	121 CONCORD ST FRAMINGHAM, MA 01702 USA
TREASURER	SAMIR BOUCHAREB	121 CONCORD ST FRAMINGHAM, MA 01702 USA
SECRETARY	SAMIR BOUCHAREB	121 CONCORD ST FRAMINGHAM, MA 01702 USA
VICE PRESIDENT	SAMIR BOUCHAREB	121 CONCORD ST FRAMINGHAM, MA 01702 USA
DIRECTOR	SAMIR BOUCHAREB	121 CONCORD ST FRAMINGHAM, MA 01702 USA

d. The fiscal year end (i.e., tax year) of the corporation:
December

e. A brief description of the type of business in which the corporation intends to engage:

RETAIL OF FRESHLY PREPARED FOOD

f. The street address *(post office boxes are not acceptable)* of the principal office of the corporation:

No. and Street: 121 CONCORD ST
City or Town: FRAMINGHAM State: MA Zip: 01702 Country: USA

g. Street address where the records of the corporation required to be kept in the Commonwealth are located *(post office boxes are not acceptable)*:

No. and Street: 121 CONCORD ST
City or Town: FRAMINGHAM State: MA Zip: 01702 Country: USA
which is

X its principal office
__ an office of its transfer agent
__ an office of its secretary/assistant secretary
__ its registered office

Signed this 8 Day of April, 2023 at 10:55:02 AM by the incorporator(s). *(If an existing corporation is acting as incorporator, type in the exact name of the business entity, the state or other jurisdiction where it was incorporated, the name of the person signing on behalf of said business entity and the title he/she holds or other authority by which such action is taken.)*
SAMIR BOUCHAREB, PRESIDENT

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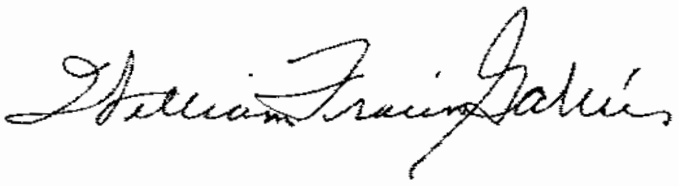
THE COMMONWEALTH OF MASSACHUSETTS

I hereby certify that, upon examination of this document, duly submitted to me, it appears that the provisions of the General Laws relative to corporations have been complied with, and I hereby approve said articles; and the filing fee having been paid, said articles are deemed to have been filed with me on:

April 08, 2023 10:52 AM



WILLIAM FRANCIS GALVIN

Secretary of the Commonwealth

حلال HALAL

SPACE CAFE SHAWARMA

AUTHENTIC MIDDLE EASTERN CUISINE

Fresh Authentic Delicious

SANDWICHES

All sandwiches are wrapped in warm pita bread.

CHICKEN SHAWARMA
Slow-roasted and thinly sliced chicken breast, seasoned.
$11.99

MEAT SHAWARMA
Slow-roasted and thinly sliced beef or lamb, seasoned.
$12.99

MIX SHAWARMA
Slow-roasted and thinly sliced beef or lamb and chicken breast, seasoned.
$13.99

FALAFEL
Ground fava beans, chickpeas, parsley, onion, coriander, pepper, cumin, and flour. Shaped and lightly fried in vegetable oil.
$10.99

CAULIFLOWER SHAWARMA
Cauliflower florets with our shawarma spice over rice topped with pickles and tahini sauce, served with a side of homemade hummus and salad.
$13.99

KOFTA
Ground beef patties seasoned with herbs and spices.
$15.99

BEEF BURGER
Juicy beef patty with fresh lettuce, tomatoes, onions and our special sauce.
$8.99

DINNER PLATES

Served with rice, tahini sauce, hummus or baba ghanoush, and salad.

CHICKEN SHAWARMA PLATE $14.99

CHICKEN KABOB
Two skewers of marinated chicken (6 pieces each).
$15.99

MEAT SHAWARMA PLATE $15.99

BEEF KABOB
Two skewers of marinated beef (6 pieces each).
$16.99

KOFTA PLATE
Seasoned ground beef meatballs with herbs and spices.
$15.99

ADD EXTRA MEAT TO ANY PLATE FOR ONLY $3.99

SIDE ORDERS

FRENCH FRIES	$4.50
HUMMUS	$4.50
GRAPE LEAVES	$4.50
BABA GHANOUSH	$4.50
RICE	$4.50
SIDE HOT SAUCE	$0.99
SIDE GARLIC SAUCE	$0.99
SIDE TAHINI SAUCE	$0.99

SALADS

FALAFEL SALAD $12.99
Lettuce, tomatoes, cucumbers, onions, sumac and parsley.

CHICKEN SALAD $13.99
Lettuce, tomatoes, cucumbers, onions, sumac and parsley.

KOFTA SALAD $14.99
Lettuce, tomatoes, cucumbers, onions, sumac and parsley.

MIX SALAD $15.99
Lettuce, tomatoes, cucumbers, onions, sumac and parsley.

PIES & SNACKS

SPINACH PIE $4.50

SPANAKOPITA $4.50

DESSERT

BAKLAVA $3.50

DRINKS

Coca-Cola	Coca-Cola Zero	Pepsi	Sprite	Water
$1.75	$1.75	$1.75	$1.75	$1.50

WE CATER! FOR EVENTS AND PARTIES

123 Main Street
Framingham, MA 01702

(508) 123-4567

Follow us

Ad Preview

121 Concord St

LEGAL NOTICE

A public hearing will be held remotely via Zoom on **Monday, September 28, 2026 at 7:00 PM** on the application for a New Common Victualer License for Space Café Inc DBA Space Cafe, 121 Concord St, Framingham, MA 01702.

Join from PC, Mac, iPad, or Android:
https://us02web.zoom.us/j/88128427265?pwd=Lb8lQw0za2sz59QTHaVKI5hipisYSP.1
Passcode:023114

Join via audio:
+1 929 205 6099 US (New York)
Webinar ID: 881 2842 7265
Passcode: 023114

Stuart Pologe, Chair
Laura Medrano, Clerk
Alycia DeAngelis, Member
Joseph Sturniolo, Vice Chair
Shannon McCullough, Member
Framingham Board of License Commissioners

Reference: masspublicnotices.org
AD#12619360
DN 09/11/2026

CITY OF FRAMINGHAM
LICENSING DEPARTMENT

Michael Royce
Licensing Coordinator

o 508-532-5402
f 508-532-5769
e licensing@framinghamma.gov
w www.framinghamma.gov

MEMORIAL BUILDING
150 Concord Street, Room 213
Framingham, MA 01702

Agenda Item 3b

Change of Manager, Officer/Director/LLC Manager, and Ownership Interest

World Market of Massachusetts LLC
DBA Cost Plus World Market
1 Worcester Rd
Framingham, MA 01701

Proposed Manager: Adriano Julio-Kuthan
Current Manager: Julie Donaldson

Hearing Date: November 2, 2026

1. OpenGov Application
2. Draft License
3. ABCC Application
4. Adriano Julio-Kuthan – CORI, Passport, Framingham Alcohol ID
5. CORI Forms
6. Advertisement
7. City Department Approvals

Record No: 1706

Change to an Existing Alcohol License Application

Status: Active

Submitted On: 10/5/2026

Primary Location

No location

Owner

No owner information

Applicant

Amanda Talbot
617-830-5738
atalbot@ucdlaw.com
112 Water Street, Ste 201
Boston, MA 02109

Change Type

Change Type*

CHANGE OF OFFICERS/DIRECTORS/LLC MANAGER

Application

License No.*

00196-PK-0428

License Type*

Package Store

ABCC License Number*

00196-PK-0428

License Holder Name*

World Market of Massachusetts, LLC

Doing Business as (D/B/A)*

World Market

Business Address*

1 Worcester Road 5, Framingham, MA 01701

Primary Contact Name*

Andrew Upton

Phone Number*

617-227-3277

Email Address*

aupton@ucdlaw.com

Change Requested*

Change of LLC Manager/Officer, Change of Manager of Record, and Change of Ownership Interest

Signature

Signature*

Andrew Upton

Signature Date*

10/05/2026

Telephone/Cellphone*

617-227-3277

Email Address*

aupton@ucdlaw.com

Relation to Business*

Attorney for licensee

Timeline

Label	Activated	Completed	Assignee	Due Date	Status
Administrative Fees	10/5/2026, 4:29:33 PM	10/5/2026, 4:30:22 PM	Amanda Talbot	-	Completed
Application Content and Attachments	10/5/2026, 4:30:22 PM	10/6/2026, 10:23:56 AM	Michael Royce	-	Completed
Police Approval	10/6/2026, 10:23:57 AM	10/13/2026, 1:04:32 PM	Tyson Mohr	-	Completed

Label	Activated	Completed	Assignee	Due Date	Status
Fire Approval	10/6/2026, 10:23:57 AM	10/7/2026, 12:27:07 PM	Will Gingras	-	Completed
Health Approval	10/6/2026, 10:23:57 AM	10/6/2026, 11:07:31 AM	Bethany Yates	-	Completed
Treasurer Approval	10/6/2026, 10:23:57 AM	10/13/2026, 3:51:00 PM	Allison Larson	-	Completed
Building Approval	10/6/2026, 10:23:57 AM	10/6/2026, 11:41:33 AM	Fred Bray	-	Completed
Schedule Hearing	10/13/2026, 3:51:01 PM	-	Michael Royce	-	Active
License Commission Board Vote	-	-	-	-	Inactive

Commonwealth of Massachusetts
City of Framingham
HEREBY GRANTS A

Malt and Wine License - Retail

TO SELL MALT AND WINE BEVERAGES CONTAINING NOT LESS THAN 1/2 OF 1 PERCENT ALCOHOL
NOT TO BE DRUNK ON THE PREMISES

To: Cost Plus World Market

At: 1 WORCESTER RD **Manager:** Adriano Julio-Kuthan

In said City on the premises described as follows: **Assistant Manager:** Michael Hess

SHOPPERS' WORLD. BUILDING APP.18,268 SQ.FT., APP.14,731 SQ.FT. SALES FLOOR, OFFICES, EMPLOYEE BREAK RM & STOCK RM. PRIMARY WINE-MALT AREA LOCATED REAR OF STORE APP. 1,100 SQ. FT.WINE-MALT WILL BE CROSS MERCHANDISED IN OTHER AREAS OF SALES FLOOR. 1 ENTR/EXIT AT FRONT OF BUILD.. 2 EMERGENCY/EXITS AT BACK RIGHT SIDE OF SALES FLOOR & FROM STOCK RM. DELIVERY ENTR. AT BACK OF STORE. ALCOHOL STORED IN STOCK RM AT BACK OF STORE. HOLIDAY HRS MON-SAT 8 AM-11 PM, SUN 10 AM-11 PM.

THE HOURS FOR THE SALE OF ALCOHOLIC BEVERAGES UNDER THIS LICENSE ARE:

Sun: 10am - 8pm Mon: 10am - 9pm Tue: 10am - 9pm Wed: 10am - 9pm Thr:10am - 9pm Fri: 10am - 9pm Sat: 9am - 9pm

THIS LICENSE WILL EXPIRE: December 31, 2026

THIS LICENSE IS SUBJECT TO THE FOLLOWING CONDITIONS, AND TO REGULATIONS, GENERAL OR SPECIAL, AT ANY TIME MADE BY THE LICENSING AUTHORITIES

- There shall be no disorder, indecency, prostitution, lewdness, or illegal gaming on the licensed premises or any premises connected therewith by an interior communication.
- No alcoholic beverages shall be sold to be taken from the premises.
- No licensee shall keep for sale or sell alcoholic beverages in any part of the premises not specified by this license.
- The licensed premises shall be subject to inspection by the police of the City of Framingham.

The Board of License Commissioners takes seriously the responsibility of granting liquor licenses & expects all licensees & employees to adhere to Framingham Rules & Regulations Governing Alcoholic Beverages.

Alcohol Training Program Certification is required for all employees serving alcohol or viewing identification cards to determine age of patrons for service of alcoholic beverages. Manager & Assistant Manager shall obtain Management ID cards prior to assuming duties as Manager or Assistant Manager.

THIS LICENSE SHALL BE DISPLAYED ON THE PREMISES IN A CONSPICUOUS POSITION WHERE IT CAN EASILY BE SEEN AND READ

IN TESTIMONY WHEREOF, the undersigned have hereunto affixed their official signatures Issued December 11, 2025

Stuart Pologe, Chair

In case of fire notify Board at once.

Joseph Sturniolo, Vice Chair

Laura Medrano, Clerk

Board of License Commissioners

If you close your premises for any cause, notify Board at once.

Alycia DeAngelis, Member

Shannon McCullough, Member

FRA: LIQ-20-296

ABCC: 00196-PK-0428

The Commonwealth of Massachusetts
Alcoholic Beverages Control Commission
95 Fourth Street, Suite 3, Chelsea, MA 02150-2358
www.mass.gov/abcc

RETAIL ALCOHOLIC BEVERAGES LICENSE APPLICATION
MONETARY TRANSMITTAL FORM

APPLICATION FOR MULTIPLE AMENDMENTS

APPLICATION SHOULD BE COMPLETED ON-LINE, PRINTED, SIGNED, AND SUBMITTED TO THE LOCAL LICENSING AUTHORITY.

ECRT CODE: RETA

Please make $200.00 payment here: ABCC PAYMENT WEBSITE

PAYMENT MUST DENOTE THE NAME OF THE LICENSEE CORPORATION, LLC, PARTNERSHIP, OR INDIVIDUAL AND INCLUDE THE PAYMENT RECEIPT

ABCC LICENSE NUMBER (IF AN EXISTING LICENSEE, CAN BE OBTAINED FROM THE CITY) 00196- PK- 0428

ENTITY/ LICENSEE NAME World Market of Massachusetts, LLC d/b/a World Market

ADDRESS 1 Worcester Road 5

CITY/TOWN Framingham **STATE** MA **ZIP CODE** 01701

For the following transactions (Check all that apply):

- ☐ New License
- ☐ Transfer of License
- ☑ Change of Manager
- ☑ Change of Officers/ Directors/LLC Managers
- ☐ Change of Location
- ☐ Alteration of Licensed Premises
- ☐ Change Corporate Name
- ☑ Change of Ownership Interest (LLC Members/ LLP Partners, Trustees)
- ☐ Change of Class (i.e. Annual / Seasonal)
- ☐ Change of License Type (i.e. club / restaurant)
- ☐ Change of Category (i.e. All Alcohol/Wine, Malt)
- ☐ Issuance/Transfer of Stock/New Stockholder
- ☐ Other
- ☐ Change Corporate Structure (i.e. Corp / LLC)
- ☐ Pledge of Collateral (i.e. License/Stock)
- ☐ Management/Operating Agreement
- ☐ Change of Hours
- ☐ Change of DBA

THE LOCAL LICENSING AUTHORITY MUST SUBMIT THIS APPLICATION ONCE APPROVED VIA THE ePLACE PORTAL

Alcoholic Beverages Control Commission
95 Fourth Street, Suite 3
Chelsea, MA 02150-2358

Your Information | Payment | Receipt

Payment Confirmation

YOUR PAYMENT HAS PROCESSED AND THIS IS YOUR RECEIPT

Your account has been billed for the following transaction. You will receive a receipt via email.

Transaction Processed Successfully.
INVOICE #: 06f542e9-c777-4e1b-9ad8-4a207ec226c9

Description	Applicant, License or Registration Number	Amount
FILING FEES-RETAIL	World Market of Massachusetts LLC	$200.00
		$200.00

Total Convenience Fee: $5.18

Date Paid: 10/5/2026 4:15:19 PM EDT

Total Amount Paid: $205.18

Payment On Behalf Of

License Number or Business Name:
World Market of Massachusetts, LLC

Fee Type:
FILING FEES-RETAIL

Billing Information

First Name:
Joseph

Last Name:
Devlin

Address:
112 Water Street, Ste 201

City:
Boston

State:
MA

Zip Code:
02109

Email Address:
atalbot@ucdlaw.com

Commonwealth of Massachusetts
Department of Revenue
Geoffrey E. Snyder, Commissioner

mass.gov/dor

Letter ID: L0102371168
Notice Date: September 8, 2026
Case ID: 0-003-525-133

CERTIFICATE OF GOOD STANDING AND/OR TAX COMPLIANCE

WORLD MARKET OF MASSACHUSETTS, LL
1201 MARINA VILLAGE PKWY
ALAMEDA CA 94501-1046

Why did I receive this notice?

The Commissioner of Revenue certifies that, as of the date of this certificate, WORLD MARKET OF MASSACHUSETTS, LLC dba:WORLD MARKET LLC is in compliance with its tax obligations under Chapter 62C of the Massachusetts General Laws.

This certificate doesn't certify that the taxpayer is compliant in taxes such as unemployment insurance administered by agencies other than the Department of Revenue, or taxes under any other provisions of law.

This is not a waiver of lien issued under Chapter 62C, section 52 of the Massachusetts General Laws.

What if I have questions?

If you have questions, call us at (617) 887-6400, Monday through Friday, 9:00 a.m. to 4:00 p.m.

Visit us online!

Visit mass.gov/dor to learn more about Massachusetts tax laws and DOR policies and procedures, including your Taxpayer Bill of Rights, and MassTaxConnect for easy access to your account:

- Review or update your account
- Contact us using e-message
- Sign up for e-billing to save paper
- Make payments or set up autopay

Edward W. Coyle, Jr., Chief
Collections Bureau

Department of Unemployment Assistance
Commonwealth of Massachusetts
Executive Office of Labor & Workforce Development

Certificate of Compliance

Date: September 9, 2026
Letter ID: [redacted]
Employer ID (FEIN): XX-XXX2154

COST PLUS OF MASSACHUSETTS, LLC
1201 MARINA VILLAGE PKWY
ALAMEDA CA 94501-1046

Certificate ID: [redacted]

FEIN: [redacted]

The Department of Unemployment Assistance certifies that as of September 8, 2026, COST PLUS OF MASSACHUSETTS, LLC is current in all its obligations relating to contributions, payments in lieu of contributions, and the employer medical assistance contribution established in G.L. c. 149, § 189.

This certificate expires on 08-Oct-2026 .

Sincerely,

Katie Dishnica

Katie Dishnica, Director
Department of Unemployment Assistance

Questions?
Revenue Enforcement Unit
Department of Unemployment Assistance
Email us: Revenue.Enforcement@mass.gov
Call us: (617) 626-5750

Department of Unemployment Assistance
Commonwealth of Massachusetts
Executive Office of Labor & Workforce Development

Letter ID: L0017788470

IMPORTANT NOTICE

The enclosed notice contains important information about unemployment insurance. The notice may contain important deadlines. It may tell you how to appeal an unemployment decision or tell you what your next steps are. You should have it translated immediately. If you need help translating the notice or have questions, please call the Multilingual Services Unit at 1-888-822-3422, and select your language. If you are claiming unemployment benefits, you must continue to certify weekly for each week that you are unemployed. For general help, claimants can call (617) 626-6800. Employers can call (617) 626-5075. Translators are available.

El aviso adjunto contiene información importante sobre el seguro de desempleo. Puede incluir fechas límite importantes. Puede indicarle cómo apelar una decisión sobre el seguro de desempleo o cuáles son sus próximos pasos. Debe traducirlo de inmediato. Si necesita ayuda para traducir el aviso o tiene alguna pregunta, llame a la Unidad de Servicios Multilingües al 1-888-822-3422 y seleccione **1 para español.** Si solicita beneficios de desempleo, debe seguir certificando semanalmente por cada semana que esté desempleado. Para obtener ayuda general, los reclamantes pueden llamar al (617) 626-6800. Los empleadores pueden llamar al (617) 626-5075. Hay intérpretes disponibles.

Avi ki anekse a gen enfòmasyon enpòtan sou asirans chomaj. Avi a ka genyen dat limit ki enpòtan. Li ka di w fason pou fè apèl yon desizyon sou chomaj oswa pwochen etap ou dwe swiv. Ou dwe fè yo tradui li touswit. Si ou bezwen èd pou fè tradwi l oubyen gen okenn kesyon, tanpri rele nimewo Telefòn Gratis lan nan 1-888-822-3422 epi chwazi opsyon **2 pou Kreyòl Ayisyen.** Si ou ap reklame benefis chomaj yo, ou dwe kontinye deklare pou chak semèn ou fè san travay. Pou moun k ap reklame yo jwenn èd jeneral, yo kapab rele (617) 626-6800. Anplwayè yo kapab rele (617) 626-5075. Gen tradiktè ki disponib.

隨附的通知包含有關失業保險的重要信息. 該通知可能包含重要的截止日期. 它可能會告訴您如何對失業決定上訴或告訴您下一個步驟. 你應該立即翻譯它. 如果您需要協助翻譯該通知或有疑問. 请致電多語言服務部門 1-888-822-3422, 并选**3** 给廣東話.
如果您正在領取失業金, 您必須繼續每週證明自己失業 . 如果需一般協助, 索賠人士可以致電 (617) 626-6800. 雇主們可以致電 (617) 626-5075. 可以提供口譯服務

随附的通知包含有关失业保险的重要信息. 该通知可能包含重要的截止日期. 它可能会告诉您如何对失业决定上诉或告诉您下一个步骤. 你应该立即翻译它. 如果您需要协助翻译该通知或有疑问, 请致电多语言服务部门 1-888-822-3422, 并选**4** 给普通話.
如果您正在领取失业金, 您必须继续每周证明自己失业 . 如果需一般協助, 索赔人士可以致电 (617) 626-6800. 雇主们可以致电 (617) 626-5075. 可以提供口译服务.

Thông báo kèm theo có chứa thông tin quan trọng về bảo hiểm thất nghiệp. Thông báo có thể chứa các thời hạn quan trọng. Thông báo có thể cho bạn biết cách kháng cáo quyết định thất nghiệp hoặc cho bạn biết các bước tiếp theo cần làm. Bạn nên dịch thông báo ngay lập tức. Nếu bạn cần trợ giúp dịch thông báo hoặc có thắc mắc, xin vui lòng gọi đến đơn vị dịch vụ đa ngôn ngữ theo số 1-888-822-3422 và chọn **5 cho tiếng Việt.** Nếu bạn đang yêu cầu tiền thất nghiệp, bạn phải tiếp tục chứng nhận hàng tuần cho mỗi tuần bạn còn thất nghiệp. Để được trợ giúp chung, người yêu cầu có thể gọi đến số (617) 626-6800. Người sử dụng lao động có thể gọi đến số (617) 626-5075. Phiên dịch viên có nếu cần.

O aviso anexo contém informações importantes sobre o seguro-desemprego. O aviso pode conter prazos importantes. Pode lhe dizer como apelar de uma decisão de desemprego ou dizer quais são seus próximos passos. Você deve traduzi-lo imediatamente. Se você precisar de ajuda com a tradução ou tiver alguma dúvida, por favor ligue para o Serviço de Ligação Gratúita através do número 1-888-822-3422 e selecione **6 para Português.** Se você estiver solicitando o seguro-desemprego, deverá continuar a certificar-se semanalmente para cada semana que estiver desempregado. Para obter ajuda geral, os requerentes podem ligar para (617) 626-6800. Os empregadores podem ligar para (617) 626-5075. Há intérpretes disponíveis.

В прилагаемом уведомлении содержится важная информация о страховании по безработице. В этом уведомлении могут указываться важные сроки. В нём может описываться, как обжаловать решение относительно пособия по безработице или что делать дальше. Вам следует срочно сделать его перевод. Если вам нужна помощь в переводе уведомления или у вас есть вопросы, позвоните в Отдел языкового обслуживания (Multilingual Services Unit) по телефону 1-888-822-3422 и нажмите **7, чтобы выбрать русский язык.** Если вы подаёте заявление о получении пособия по безработице, вы должны и далее еженедельно подтверждать, что вы являетесь безработным. За помощью общего характера заявители могут обращаться по телефону (617) 626-6800. Работодатели могут звонить по телефону (617) 626-5075. Предлагаются услуги перевода.

Department of Unemployment Assistance
Commonwealth of Massachusetts
Executive Office of Labor & Workforce Development

Letter ID: L0017788470

L'avviso qui allegato contiene informazioni importanti riguardanti l'assicurazione di disoccupazione. Questa comunicazione potrebbe contenere delle scadenze importanti. Potrebbe spiegare come fare ricorso contro una decisione o quali potrebbero essere i passi successivi. Vi preghiamo di farla tradurre immediatamente. Se avete bisogno di aiuto per la traduzione o in caso di dubbi, chiamate il numero gratuito 1–888–822–3422 e selezionate **8 per l'Italiano.** Se ricevete il sussidio di disoccupazione, dovrete continuare a mandare i resoconti settimanali per ogni settimana in cui siete disoccupati. Per un aiuto di carattere generale, chiamate il numero (617) 626-6800. I datori di lavoro possono chiamare il (617) 626-5075. Ci sono traduttori disponibili.

សេចក្តីជូនដំណឹងដាក់ជ្ជាប់មាននូវព័ត៌មានសំខាន់អំពីការធានារ៉ាប់រងខាងមិនមានការងារធ្វើ។ សេចក្តីជូនដំណឹងអាចមានជាកំណត់ថ្ងៃ។
វាអាចប្រាប់អ្នកអំពីរបៀបដាក់បណ្តឹងឧទ្ធរណ៍ការសម្រេចចិត្តខាងការមិនមានការងារធ្វើ ឬប្រាប់អ្នកអំពីជំហានបន្ទាប់របស់អ្នក។
អ្នកគួរតែធ្វើការបកប្រែយ៉ាងឆាប់រហ័ស។ ប្រសិនបើអ្នកត្រូវការការបកប្រែសេចក្តីជូនដំណឹង ឬមាន
សំណួរសូមទាក់ទងទៅអង្គភាពសេវាពហុភាសាលេខ 1-888-822-3422, ហើយជ្រើសយកលេខ **9** សម្រាប់ភាសាខ្មែរ។
ប្រសិនបើអ្នកទាមទារអត្ថប្រយោជន៍មិនការងារធ្វើធ្វើ អ្នកត្រូវតែបន្តបញ្ជាក់ប្រចាំសប្តាហ៍ ស្រាប់រៀងរាល់សប្តាហ៍ដែលអ្នកមិនមានការងារធ្វើ។
សម្រាប់ជំនួយទូទៅ អ្នកដាក់ទាមទារអាចទូរស័ព្ទទៅលេខ (617) 626-6800។ និយោជកអាចទូរស័ព្ទទៅលេខ (617) 626-5075។
មានអ្នកបកប្រែជូន។

ເອກະສານແຈ້ງການທີ່ຕິດຄັດມານີ້ມີຂໍ້ມູນສຳຄັນກ່ຽວກັບປະກັນການຫວ່າງງານ. ເອກະສານແຈ້ງການອາດລະບຸກຳນົດເວລາທີ່ສຳຄັນ.
ເອກະສານນີ້ອາດຈະແຈ້ງໃຫ້ທ່ານຮູ້ວິທີການອຸທອນຄຳຕັດສິນກ່ຽວກັບການຫວ່າງງານ ຫຼືແຈ້ງໃຫ້ທ່ານຮູ້ເຖິງຂັ້ນຕອນຕໍ່ໄປຂອງທ່ານ.
ທ່ານຄວນແປເອກະສານແຈ້ງການສະບັບນີ້ທັນທີ. ຖ້າທ່ານຕ້ອງການຄວາມຊ່ວຍເຫຼືອໃນການແປເອກະສານແຈ້ງການ ຫຼືມີຂໍ້ສົງໄສ
ກະລຸນາໂທຫາໜ່ວຍບໍລິການຫຼາຍພາສາທີ່ໝາຍເລກ 1-888-822-3422 ແລະເລືອກ **10 ສຳລັບພາສາລາວ.** ຖ້າທ່ານກຳລັງຮ້ອງຂໍເງິນຊ່ວຍເຫຼືອການຫວ່າງງານ
ທ່ານຕ້ອງສືບຕໍ່ດຳເນີນການຢັ້ງຢືນເປັນປະຈຳທຸກອາທິດສຳລັບແຕ່ລະອາທິດ ທີ່ທ່ານຫວ່າງງານ. ສຳລັບຄວາມຊ່ວຍເຫຼືອທົ່ວໄປ
ຜູ້ຂໍຮັບສິດປະໂຫຍດສາມາດໂທໄປທີ່ໝາຍເລກ (617) 626-6800. ນາຍຈ້າງສາມາດໂທໄປທີ່ໝາຍເລກ (617) 626-5075. ມີນັກແປພາສາພ້ອມໃຫ້ບໍລິການ.

동봉된 안내문에는 실업 보험에 대한 중요한 정보가 포함되어 있습니다. 안내문에는 중요한 마감일이 포함되어 있을 수 있습니다. 안내문을 통해 실업 결정에 대해 이의 제기를 하는 방법이나 다음 단계에 대한 정보를 알려줄 수 있습니다. 이 안내문을 즉시 번역 조치를 하여야 합니다. 안내문 번역에 도움이 필요하거나 질문이 있는 경우, 1-888-822-3422번으로 다국어 서비스 부서(Multilingual Services Unit)에 전화하신 다음, **한국어 서비스를 원하시면 11번을** 선택하십시오. 실업 급여를 청구하고 있는 경우, 각 주마다 매주 실직 상태임을 계속 증명해야 합니다. 일반적인 도움을 원하시면, 청구인은 (617) 626-6800번으로 문의할 수 있습니다. 고용주는 (617) 626-5075번으로 문의할 수 있습니다. 통역 서비스를 이용할 수 있습니다.

L'avis ci-joint comporte des informations importantes sur l'assurance chômage. Il peut contenir des échéances importantes. Il peut vous indiquer comment faire appel d'une décision en matière de chômage ou quelles sont vos prochaines démarches. Si vous avez besoin d'assistance pour la traduction ou si vous avez des questions, veuillez appeler le numéro gratuit 1–888–822–3422 et choisir le **12 pour le français.** Si vous demandez des allocations chômage, vous devez continuer à certifier chaque semaine de chômage. Pour obtenir une aide générale, les demandeurs peuvent appeler le (617) 626-6800. Les employeurs peuvent appeler le (617) 626-5075. Des interprètes sont disponibles.

The Commonwealth of Massachusetts
Alcoholic Beverages Control Commission
95 Fourth Street, Suite 3, Chelsea, MA 02150-2358
www.mass.gov/abcc

APPLICATION FOR MULTIPLE AMENDMENTS

Please select all of the amendments you are applying for:

☐ **CHANGE OF CATEGORY**

$200 fee via ABCC website and Payment Receipt
Monetary Transmittal Form
DOR Certificate of Good Standing
DUA Certificate of Compliance
Change of Category Application
Vote of the Entity Board
Advertisement*
Abutter's Notification*

☐ **CHANGE OF LICENSE TYPE**

$200 fee via ABCC website and Payment Receipt
Monetary Transmittal Form
Change of License Type Application
Vote of the Entity Board
Advertisement*

☐ **CHANGE OF CORPORATE STRUCTURE**

$200 fee via ABCC website and Payment Receipt
Monetary Transmittal Form
DOR Certificate of Good Standing
DUA Certificate of Compliance
Change of Corporate Structure Application
Vote of the Entity Board
Business Structure Documents
If Sole Proprietor, **Business Certificate**
If partnership, **Partnership Agreement**
If corporation or LLC, **Articles of Organization** from the Secretary of the Commonwealth

☐ **CHANGE OF CLASSIFICATION**

$200 fee via ABCC website and Payment Receipt
Monetary Transmittal Form
DOR Certificate of Good Standing
DUA Certificate of Compliance
Change of Classification Application
Vote of the Entity Board
Abutter's Notification*
Advertisement*

**If abutter notification and advertisement are required for transaction, please see the local licensing authority.*

The Commonwealth of Massachusetts
Alcoholic Beverages Control Commission
95 Fourth Street, Suite 3, Chelsea, MA 02150-2358
www.mass.gov/abcc

APPLICATION FOR MULTIPLE AMENDMENTS

Please select all of the amendments you are applying for(continued):

☑ **CHANGE OF OFFICERS/DIRECTORS/LLC MANAGERS**

$200 fee via ABCC website and Payment Receipt
Monetary Transmittal Form
DOR Certificate of Good Standing
DUA Certificate of Compliance
Change of Officers/Directors Application
Vote of the Entity Board
CORI Authorization Complete one for the proposed manager of record. This form **must** be *notarized with a stamp or raised seal.*
Business Structure Documents
If Sole Proprietor, **Business Certificate**
If partnership, **Partnership Agreement**
If corporation or LLC, **Articles of Organization** from the Secretary of the Commonwealth

☑ **CHANGE OF OWNERSHIP INTEREST (e.g. LLC Members, LLP Partners, Trustees etc.)**

$200 fee via ABCC website and Payment Receipt
Monetary Transmittal Form
DOR Certificate of Good Standing
DUA Certificate of Compliance
Change of Officers/Directors Application
Financial Statement
Vote of the Entity Board
CORI Authorization Complete one for the proposed manager of record. This form **must** be *notarized with a stamp or raised seal.*
Business Structure Documents
If Sole Proprietor, Business Certificate
If partnership, **Partnership Agreement**
If corporation or LLC, Articles of Organization from the Secretary of the Commonwealth
Purchase and Sale Agreement
Supporting Financial Records
Advertisement*

☐ **CHANGE OF STOCK INTEREST (e.g. New Stockholders or Transfer or Issuance of Stock)**

$200 fee via ABCC website and Payment Receipt
Monetary Transmittal Form
DOR Certificate of Good Standing
DUA Certificate of Compliance
Change of Officers/Directors Application
Financial Statement
Vote of the Entity Board
CORI Authorization Complete one for the proposed manager of record. This form **must** be *notarized with a stamp or raised seal.*
Business Structure Documents
If Sole Proprietor, Business Certificate
If partnership, **Partnership Agreement**
If corporation or LLC, Articles of Organization from the Secretary of the Commonwealth
Purchase and Sale Agreement
Supporting Financial Records
Advertisement*

**If abutter notification and advertisement are required for transaction, please see the local licensing authority.*

The Commonwealth of Massachusetts
Alcoholic Beverages Control Commission
95 Fourth Street, Suite 3, Chelsea, MA 02150-2358
www.mass.gov/abcc

APPLICATION FOR MULTIPLE AMENDMENTS

Please select all of the amendments you are applying for(continued):

☐ **CHANGE OF CORPORATE NAME OR DBA**

$200 fee via ABCC website and Payment Receipt (Corporate Name Only)
Monetary Transmittal Form
DOR Certificate of Good Standing (Corporate Name Only)
DUA Certificate of Compliance (Corporate Name Only)
Change of Corporate Name/DBA Application
Vote of the Entity Board
Business Structure Documents
If Sole Proprietor, **Business Certificate**
If partnership, **Partnership Agreement**
If corporation or LLC, **Articles of Organization** from the Secretary of the Commonwealth

☐ **CHANGE OF PLEDGE OF LICENSE, STOCK OR INVENTORY**

$200 fee via ABCC website and Payment Receipt
Monetary Transmittal Form
DOR Certificate of Good Standing
DUA Certificate of Compliance
Change of Pledge of License, Stock or Inventory Application
Vote of the Entity Board
Pledge documentation
Promissory note

☑ **CHANGE OF MANAGER**

$200 fee via ABCC website and Payment Receipt
Monetary Transmittal Form
Change of Manager Application
Vote of the Entity Board
CORI Authorization Complete one for the proposed manager of record. This form **must** be *notorized with o stamp or raised seal.*
Proof of Citizenship/Qualified Alien for the proposed Manager of Record *(Manager must be a U.S citizen or a Qualified Alien under the Immigration and Nationality Act, 8 U.S.C. 1101).* Please Include one of the following:

- U.S. Passport
- Voter's Certificate
- Birth Certificate
- Naturalization Papers
- Permanent Resident Card "Green Card"
- Employment Authorization Document

**If abutter notification and advertisement are required for transaction, please see the local licensing authority.*

The Commonwealth of Massachusetts
Alcoholic Beverages Control Commission
95 Fourth Street, Suite 3, Chelsea, MA 02150-2358
www.mass.gov/abcc

APPLICATION FOR MULTIPLE AMENDMENTS

Please select all of the amendments you are applying for(continued):

☐ **CHANGE OF LOCATION**

$200 fee via ABCC website and Payment Receipt
Monetary Transmittal Form
Alteration of Premises/Change of Location Application
Vote of the Entity Board
Supporting financial records
Legal Right to Occupy
Floor Plan
Abutter's Notification*
Advertisement*

☐ **ALTERATION OF PREMISES**

$200 fee via ABCC website and Payment Receipt
Monetary Transmittal Form
Alteration of Premises/Change of Location Application
Vote of the Entity Board
Supporting financial records
Legal Right to Occupy
Floor Plan
Abutter's Notification*
Advertisement*

☐ **MANAGEMENT AGREEMENT**

$200 fee via ABCC website and Payment Receipt
Monetary Transmittal Form
Management Agreement Application
Management Agreement
Vote of the Entity Board
CORI Forms for all listed in Section 8A and attachments

IMPORTANT NOTE: A management agreement is where a licensee authorizes a third party to control the daily operations of the license premises, while retaining ultimate control over the license, through a written contract. *This does **not** pertain to a liquor license manager that is employed directly by the entity.*

**If abutter notification and advertisement are required for transaction, please see the local licensing authority.*

The Commonwealth of Massachusetts
Alcoholic Beverages Control Commission
95 Fourth Street, Suite 3, Chelsea, MA 02150-2358
www.mass.gov/abcc

APPLICATION FOR MULTIPLE AMENDMENTS

Please select all of the amendments you are applying for(continued):

Non-Profit Club's ONLY

e.g. Veteran's Club

☐ *Non-Profit Club* **CHANGE OF OFFICERS/DIRECTORS**

DOR Certificate of Good Standing
DUA Certificate of Compliance
Change of Officers/Directors Application
Vote of the club signed by an approved officer
Business Structure Documents-Articles of Organization from the Secretary of the Commonwealth
Monetary Transmittal Form
$200 fee via ABCC website and Payment Receipt

☐ *Non-Profit Club* **CHANGE OF MANAGER**

$200 fee via ABCC website and Payment Receipt
Monetary Transmittal Form
Change of Manager Application
Vote of the club signed by an approved officer
CORI Authorization Complete one for the proposed manager of record. This form **must** be *notarized with a stamp or raised seal.*
Updated Officers and Directors*
*Please ensure to update your officers and directors ***simultaneously*** or **PRIOR** to applying for a change of manager. It will be returned with no action taken if the officers and directors do not match ABCC records.
Proof of Citizenship/Qualified Alien for the proposed Manager of Record *(Manager must be a U.S citizen or a Qualified Alien under the Immigration and Nationality Act, 8 U.S.C. 1101).* Please Include one of the following:

- U.S. Passport
- Voter's Certificate
- Birth Certificate
- Naturalization Papers
- Permanent Resident Card "Green Card"
- Employment Authorization Document

The Commonwealth of Massachusetts
Alcoholic Beverages Control Commission
95 Fourth Street, Suite 3, Chelsea, MA 02150-2358
www.mass.gov/abcc

APPLICATION FOR MULTIPLE AMENDMENTS

1. BUSINESS ENTITY INFORMATION

Entity Name	Municipality	ABCC License Number
World Market of Massachusetts, LLC	Framingham	00196- PK- 0428

Please provide a narrative overview of the transaction(s) being applied for. On-premises applicants should also provide a description of the intended theme or concept of the business operation. Attach additional pages, if necessary.

The Licensee has replaced Julie Donaldson as LLC Manager and Manager of record with Adriano Julio-Kuthan. Ownership Interest in Kingswood Capital Opportunities Fund 1-A, L.P. has been amended with additional individual owners. The addition of these owners results in no practical changes to the operational control of the Licensee.

APPLICATION CONTACT

The application contact is the person who should be contacted with any questions regarding this application.

Name	Title	Email	Phone
Andrew Upton	Attorney	aupton@ucdlaw.com	617-227-3277

2. AMENDMENT-Change of License Classification

☐ **Change of License Category** All Alcohol, Wine and Malt, Wine Malt and Cordials	Last-Approved License Category	
	Requested New License Category	
☐ **Change of License Class** Seasonal or Annual	Last-Approved License Class	
	Requested New License Class	
☐ **Change of License Type*** i.e. Restaurant to Club *Certain License Types CANNOT change once issued*	Last-Approved License Type	
	Requested New License Type	

3. AMENDMENT-Change of Business Entity Information

☐ **Change of Corporate Name**	Last-Approved Corporate Name:	
	Requested New Corporate Name:	
☐ **Change of DBA**	Last-Approved DBA:	
	Requested New DBA:	
☐ **Change of Corporate Structure** LLC, Corporation, Sole Proprietor, etc	Last-Approved Corporate Structure	
	Requested New Corporate Structure	

4. AMENDMENT-Pledge Information

☐ **Pledge of License**
☐ **Pledge of Inventory**
☐ **Pledge of Stock**

To whom is the pledge being made:

5. AMENDMENT-Change of Manager

☑ Change of License Manager

A. MANAGER INFORMATION

The individual that has been appointed to manage and control the licensed business and premises.

Proposed Manager Name: Adriano Julio-Kuthan Date of Birth: [redacted] SSN: [redacted]

Residential Address: [redacted]

Email: [redacted] Phone: [redacted]

Please indicate how many hours per week you intend to be on the licensed premises: 40 Last-Approved License Manager: Julie Donaldson

B. CITIZENSHIP/BACKGROUND INFORMATION

Are you a U.S. Citizen/Qualified Alien under the Immigration and Nationality Act? (•) Yes ( ) No

If yes, attach one of the following documents: US Passport, Voter's Certificate, Birth Certificate, Naturalization Papers, Permanent Resident Card "Green Card," or Employment Authorization Document.

Have you ever been convicted of a state, federal, or military crime? ( ) Yes (•) No

If yes, fill out the table below and attach an affidavit providing the details of any and all convictions. Attach additional pages, if necessary, utilizing the format below.

Date	Municipality	Charge	Disposition

C. EMPLOYMENT INFORMATION

Please provide your employment history. Attach additional pages, if necessary, utilizing the format below.

Start Date	End Date	Position	Employer	Supervisor Name
2025	Present	GM	World Market	
2022	2025	DSD	Target	[redacted]
2013	2022	Store Manager	Walmart	[redacted]

D. PRIOR DISCIPLINARY ACTION

Have you held a beneficial or financial interest in, or been the manager of, a license to sell alcoholic beverages that was subject to disciplinary action? ( ) Yes (•) No If yes, please fill out the table. Attach additional pages, if necessary, utilizing the format below.

Date of Action	Name of License	State	City	Reason for suspension, revocation or cancellation

I hereby swear under the pains and penalties of perjury that the information I have provided in this application is true and accurate:

Manager's Signature: [signature] Date: 3/30/26

6. AMENDMENT-Change of Officers, Stock or Ownership Interest

☑ Change of Officers/Directors ☑ Change of Ownership Interest (LLC Managers/LLP Partners, Trustees) ☐ Change of Stock (E.g. New Stockholder/ Transfer or Issuance of Stock)

List all individuals or entities that will have a direct or indirect, beneficial or financial interest in this license (E.g. Stockholders, Officers, Directors, LLC Managers, LLP Partners, Trustees etc.). Attach additional page(s) provided, if necessary, utilizing Addendum A.

- The individuals and titles listed in this section must be identical to those filed with the Massachusetts Secretary of State.
- The individuals identified in this section, as well as the proposed Manager of Record, must complete a CORI Release Form.
- Please note the following statutory requirements for Directors and LLC Managers:
  On Premises (E.g.Restaurant/ Club/Hotel) Directors or LLC Managers - At least 50% must be US citizens;
  Off Premises(Liquor Store) Directors or LLC Managers - All must be US citizens and a majority must be Massachusetts residents.
- If you are a Multi-Tiered Organization, please attach a flow chart identifying each corporate interest and the individual owners of each entity as well as the Articles of Organization for each corporate entity. Every individual must be identified in Addendum A.

Name of Principal	Residential Address	SSN	DOB
Adriano Julio-Kuthan	[redacted]1	[redacted]	

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
LLC Manager	0%	◉ Yes ○ No	◉ Yes ○ No	◉ Yes ○ No

Name of Principal	Residential Address	SSN	DOB
Jane Baughman	[redacted]2	[redacted]	

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
SOC Signatory	0%	○ Yes ◉ No	◉ Yes ○ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB
World Market, LLC	[redacted]	n/a	n/a

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
LLC Member	100%	○ Yes ◉ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Additional pages attached? ◉ Yes ○ No

CRIMINAL HISTORY
Has any individual listed in question 6, and applicable attachments, ever been convicted of a State, Federal or Military Crime? If yes, attach an affidavit providing the details of any and all convictions. ○ Yes ○ No

MANAGEMENT AGREEMENT
Are you requesting approval to utilize a management company through a management agreement? Please provide a copy of the management agreement. ○ Yes ◉ No

EXHIBIT A

OWNERSHIP STRUCTURE OF WORLD MARKET OF MASSACHUSETTS, LLC

A-1 Structure Chart and Beneficial Interest Disclosure Exemption Request for World Market of Massachusetts, LLC (Licensee);

A-2 MA SOC Summary for World Market of Massachusetts, LLC; CORI – Adriano Julio-Kuthan; CORI – Jane Baughman;

A-3 MA ABCC Addendum; MA SOC Summary for World Market, LLC; CORI's provided above.

A-4 MA ABCC Addendum; MA SOC Summary for Cost Plus World Market, LLC; CORI - Michael Neigsch; CORI - Alexander Wolf;

A-5 MA ABCC Addendum; Certificate of Formation for Cost Plus Parent, LLC; CORIs provided above.

A-6 MA ABCC Addendum; Certificate of Formation for Kingswood Capital Opportunities Fund I, L.P.; CORIs provided above.

A-7 MA ABCC Addendum; Certificate of Formation for Cost Plus Holdings, LLC; CORIs provided above.

A-8 MA ABCC Addendum; Certificate of Formation for Cost Plus Splitter, LLC; CORIs provided above.

A-9 MA ABCC Addendum; Certificate of Formation for Cost Plus Blocker, LLC; CORIs provided above.

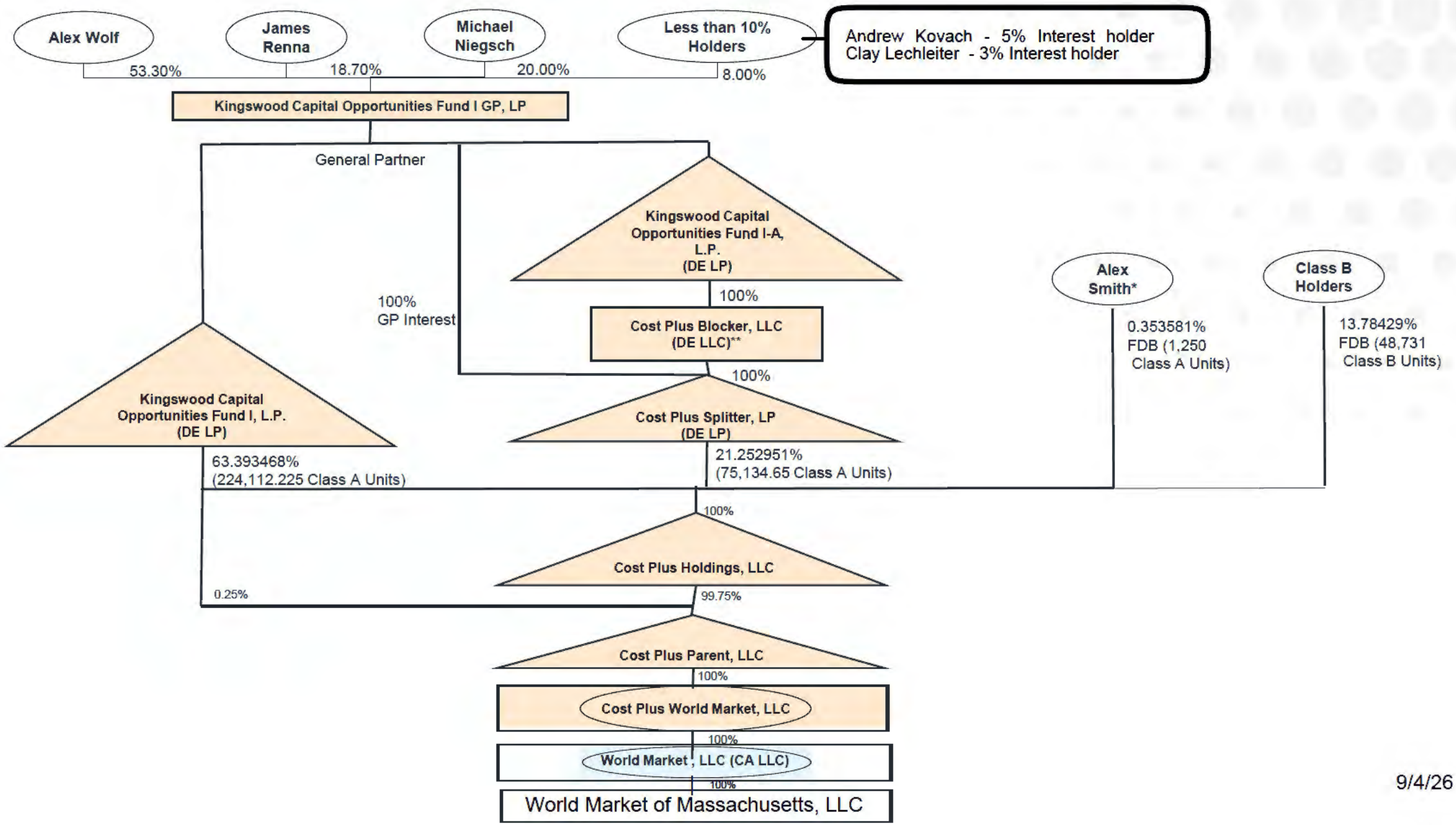
A-10 MA ABCC Addendum; Certificate of Formation for Kingswood Capital Opportunities Fund I-A, L.P.; CORIs provided above.

A-11 MA ABCC Addendum; Certificate of Formation for Kingswood Capital Opportunities Fund I GP, L.P.; CORI - James Renna.

EXHIBITS B

Exhibit B **INTERESTS IN OTHER ALCOHOLIC BEVERAGES LICENSES**

World Market of Massachusetts, LLC - Structure Chart



Alcoholic Beverages Control Commission
239 Causeway Street
Boston, Massachusetts 02114
Telephone: (617) 727-3040
Fax: (617) 727-1510

Deborah B. Goldberg
Treasurer and Receiver General

Jean Lorizio, Esq.
Chairman

BENEFICIAL INTEREST DISCLOSURE EXEMPTION REQUEST

Applicant Name: World Market of Massachusetts, LLC

Primary Contact Person for Applicant:

Name: Andrew Upton

Telephone Number: 617-227-3277

Email Address: Aupton@ucdlaw.com

The Applicant is seeking an exemption from disclosure under M.G.L. c. 138, §§ 15A & 23, for the following individuals and/or entities (the "Indirect Investors") (use additional pages if necessary):

Name	% ownership in license	Control operation of liquor license?
Andrew Kovach, 5.00% interest in Kingswood Capital Opportunities Fund I GP, LP	0%	No
Clay Lechleiter, 3.00% interest in Kingswood Capital Opportunities Fund I GP, LP	0%	No
Alex Smith, 0.35% interest in Cost Plus Holdings, LLC	0%	No

The Applicant is seeking an exemption from disclosing to the Licensing Authorities the following regarding the above-named individuals and/or entities (check all that apply):

X Criminal Offender Record Information ("CORI") Authorization Forms

X Personal Information Forms

_ Identity of Individuals and/or Entities

Please explain why an exemption from the disclosure requirements of M.G.L. c. 138, §§ 15A & 23, is being sought, including, but not limited to, a description of the hardship(s) posed in obtaining the required information from the individuals and/or entities, and any other information that the Applicant believes would be of assistance to the Commission in considering whether to grant an exemption of the disclosure laws (use additional pages if necessary):

World Market of Massachusetts, LLC (the "Applicant" or "Licensee") requests a waiver from providing the above-referenced information for the individuals associated with the upper-tier parent companies of the licensee. The individuals have no impact on the day-to-day business of the licensee. Obtaining CORI forms for these individuals and venture funds (some of which may contain hundreds of de minimis beneficiaries) would be an economic cost and hardship for the applicant and would delay approval of the application. The individuals for whom a waiver is requested have no impact on the day-to-day business of the individual store in the Commonwealth of Massachusetts.

I do hereby declare under the pains and penalties of perjury that I have personal knowledge of the information submitted in this Request, and as such affirm that all statement and representations therein are true to the best of my knowledge and belief.

Signature: _____

Printed Name: Jane Baughman

Title: President

Date: 8/26/26

Secretary of the Commonwealth of Massachusetts
William Francis Galvin

Business Entity Summary

ID Number: 001114477 [Request certificate] [New search]

Summary for: WORLD MARKET OF MASSACHUSETTS, LLC

The exact name of the Domestic Limited Liability Company (LLC): WORLD MARKET OF MASSACHUSETTS, LLC	
The name was changed from: COST PLUS OF MASSACHUSETTS, LLC **on** 08-27-2021	
Entity type: Domestic Limited Liability Company (LLC)	
Identification Numbe [redacted]	
Date of Organization in Massachusetts: 08-20-2013	**Date of Revival:**
	Last date certain:

The location or address where the records are maintained (A PO box is not a valid location or address):

Address: 84 STATE STREET C/O CORPORATION SERVICE COMPANY
City or town, State, Zip code, Country: BOSTON, MA 02190 USA

The name and address of the Resident Agent:

Name: CORPORATION SERVICE COMPANY
Address: 84 STATE STREET
City or town, State, Zip code, Country: BOSTON, MA 02190 USA

The name and business address of each Manager:

Title	Individual name	Address
MANAGER	ADRIANO JULIO-KUTHAN	[redacted]

In addition to the manager(s), the name and business address of the person(s) authorized to execute documents to be filed with the Corporations Division:

Title	Individual name	Address
SOC SIGNATORY	JANE BAUGHMAN	[redacted]

The name and business address of the person(s) authorized to execute, acknowledge, deliver, and record any recordable instrument purporting to affect an interest in real property:

Title	Individual name	Address
REAL PROPERTY	JANE BAUGHMAN	[redacted]

Consent **Confidential Data** **Merger Allowed** **Manufacturing**

View filings for this business entity:

ALL FILINGS
Annual Report
Annual Report - Professional
Articles of Entity Conversion
Certificate of Amendment
Certificate of Cancellation

[View filings]

Comments or notes associated with this business entity:

[New search]

CERTIFICATE OF AMENDMENT
OF CERTIFICATE OF ORGANIZATION

(Pursuant to the provisions of Section 13 of the Massachusetts Limited Liability Company Act)

To the State Secretary
of the Commonwealth of Massachusetts

F.E.I. Number_____

It is hereby certified that:

FIRST: The name of the limited liability company (the "company") is
Cost Plus of Massachusetts, LLC

SECOND: The date of filing of the company's certificate of organization is
August 20, 2013

THIRD: The name of a manager, if any, of the company is
Edward Kopil

FOURTH: The name of a person who is authorized to execute any documents to be filed in the Office of the State Secretary is
Jane Baughman

FIFTH: The name of a person, if any, authorized to execute, acknowledge, deliver, and record any recordable instrument purporting to affect an interest in real property, whether to be recorded with a Registry of Deeds or with a District Office of the Land Court, is
Jane Baughman

SIXTH: The amendment[s] to the company's certificate of organization are as follows:

The name of the LLC is World Market of Massachusetts, LLC

The name of a manager, if any, of the company is
Edward Kopil

The name of a person who is authorized to execute any documents to be filed in the Office of the State Secretary is

Jane Baughman

The name of a person, if any, authorized to execute, acknowledge, deliver, and record any recordable instrument purporting to affect an interest in real property, whether to be recorded with a Registry of Deeds or with a District Office of the Land Court, is

Jane Baughman

SEVENTH: This certificate of amendment shall be effective at the time of its filing with the Secretary of State.

DocuSign Envelope ID: F328D944-3120-4F61-BD30-9244C8259B8D

Executed on 8/9/2021, 2021.

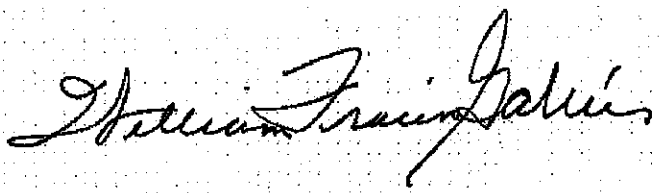
DocuSigned by:
Jane Baughman
352485046DE84E4...

Name: Jane Baughman
Title: Authorized Signer

THE COMMONWEALTH OF MASSACHUSETTS

I hereby certify that, upon examination of this document, duly submitted to me, it appears that the provisions of the General Laws relative to corporations have been complied with, and I hereby approve said articles; and the filing fee having been paid, said articles are deemed to have been filed with me on:

August 27, 2021 02:10 PM



WILLIAM FRANCIS GALVIN

Secretary of the Commonwealth

State of Delaware
Secretary of State
Division of Corporations
Delivered 03:30 PM 11/20/2020
FILED 03:30 PM 11/20/2020
SR 20208460023 - File Number 4207041

CERTIFICATE OF FORMATION

OF

COST PLUS WORLD MARKET, LLC

This Certificate of Formation of Cost Plus World Market, LLC (the "LLC"), dated November 20, 2020, is being duly executed and filed by Bryan Snyder, as an authorized person, to form a limited liability company under the Delaware Limited Liability Company Act (6 Del.C §18-101, et seq.).

FIRST: The name of the LLC formed hereby is Cost Plus World Market, LLC.

SECOND: The address of the registered office of the LLC in the State of Delaware is c/o is Corporation Trust Center, 1209 Orange Street, Wilmington, New Castle County, Delaware 19801.

THIRD: The name and address of the registered agent for service of process of the LLC in the State of Delaware is The Corporation Trust Company, 1209 Orange Street, Wilmington, New Castle County, Delaware 19801.

IN WITNESS WHEREOF, the undersigned has executed this Certificate of Formation as of the date first set forth above.

/s/ Bryan Snyder
Bryan Snyder, Authorized Person

ADDENDUM A

6. PROPOSED OFFICERS, STOCK OR OWNERSHIP INTEREST (Continued...)

List all individuals or entities that will have a direct or indirect, beneficial or financial interest in this license (E.g. Stockholders, Officers, Directors, LLC Managers, LLP Partners, Trustees etc.).

Entity Name: World Market, LLC

Percentage of Ownership in Entity being Licensed (Write "NA" if this is the entity being licensed): 100%

Name of Principal	Residential Address	SSN	DOB
Cost Plus World Market LL	[redacted]	n/a	n/a

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
LLC Member	100%	○ Yes ◉ No	○ Yes ○ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB
Jane Baughman	[redacted]	[redacted]	

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
SOC Signatory	0%	○ Yes ◉ No	◉ Yes ○ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

CRIMINAL HISTORY

Has any individual identified above ever been convicted of a State, Federal or Military Crime? ○ Yes ◉ No

If yes, attach an affidavit providing the details of any and all convictions.

Secretary of the Commonwealth of Massachusetts
William Francis Galvin

Business Entity Summary

ID Number: 001566908 [Request certificate] [New search]

Summary for: WORLD MARKET, LLC

The exact name of the Foreign Limited Liability Company (LLC): WORLD MARKET, LLC
Converted from COST PLUS, INC. on 03-04-2022
Entity type: Foreign Limited Liability Company (LLC)
Identification Number: [redacted]
Date of Registration in Massachusetts: 03-03-2022 **Date of Revival:**
Last date certain:
Organized under the laws of: State: CA **Country:** USA **on:** 09-01-2021
The location of the Principal Office:
Address: [redacted]
City or town, State, Zip code, Country: [redacted]
The location of the Massachusetts office, if any:
Address:
City or town, State, Zip code, Country:
The name and address of the Resident Agent:
Name: CORPORATION SERVICE COMPANY
Address: 84 STATE STREET
City or town, State, Zip code, Country: BOSTON, MA 02109 USA

The name and business address of each Manager:

Title	Individual name	Address

The name and business address of the person(s) authorized to execute, acknowledge, deliver, and record any recordable instrument purporting to affect an interest in real property:

Title	Individual name	Address
REAL PROPERTY	JANE BAUGHMAN	[redacted]

Consent **Confidential Data** **Merger Allowed** **Manufacturing**

View filings for this business entity:

ALL FILINGS
Annual Report
Annual Report - Professional
Application For Registration
Certificate of Amendment

[View filings]

Comments or notes associated with this business entity:

[New search]

ADDENDUM A

6. PROPOSED OFFICERS, STOCK OR OWNERSHIP INTEREST (Continued...)

List all individuals or entities that will have a direct or indirect, beneficial or financial interest in this license (E.g. Stockholders, Officers, Directors, LLC Managers, LLP Partners, Trustees etc.).

Entity Name: Cost Plus World Market, LLC

Percentage of Ownership in Entity being Licensed (Write "NA" if this is the entity being licensed): 0%

Name of Principal	Residential Address	SSN	DOB
Cost Plus Parent LLC	[redacted]	n/a	n/a

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
LLC Member	100%	○ Yes ◉ No	○ Yes ○ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB
Michael Niegsch	[redacted]		

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
President	0%	○ Yes ◉ No	◉ Yes ○ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB
Alex Wolf	[redacted]		

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
Authorized Officer	0%	○ Yes ◉ No	◉ Yes ○ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

CRIMINAL HISTORY

Has any individual identified above ever been convicted of a State, Federal or Military Crime? ○ Yes ◉ No

If yes, attach an affidavit providing the details of any and all convictions.

Secretary of the Commonwealth of Massachusetts
William Francis Galvin

Business Entity Summary

ID Number: 001476962 [Request certificate] [New search]

Summary for: COST PLUS WORLD MARKET, LLC

The exact name of the Foreign Limited Liability Company (LLC): COST PLUS WORLD MARKET, LLC	
Entity type: Foreign Limited Liability Company (LLC)	
Identification Number: [redacted]	
Date of Registration in Massachusetts: 12-22-2020	**Date of Revival:**
	Last date certain:
Organized under the laws of: State: DE **Country:** USA **on:** 11-22-2020	
The location of the Principal Office:	
Address: [redacted]	
City or town, State, Zip code, Country: [redacted]	
The location of the Massachusetts office, if any:	
Address:	
City or town, State, Zip code, Country:	
The name and address of the Resident Agent:	
Name: CORPORATION SERVICE COMPANY	
Address: 84 STATE STREET	
City or town, State, Zip code, Country: BOSTON, MA 02109 USA	

The name and business address of each Manager:

Title	Individual name	Address

The name and business address of the person(s) authorized to execute, acknowledge, deliver, and record any recordable instrument purporting to affect an interest in real property:

Title	Individual name	Address
REAL PROPERTY	MICHAEL NIEGSCH	[redacted]

Consent **Confidential Data** **Merger Allowed** **Manufacturing**

View filings for this business entity:

ALL FILINGS
Annual Report
Annual Report - Professional
Application For Registration
Certificate of Amendment

[View filings]

Comments or notes associated with this business entity:

[New search]

ADDENDUM A

6. PROPOSED OFFICERS, STOCK OR OWNERSHIP INTEREST (Continued...)

List all individuals or entities that will have a direct or indirect, beneficial or financial interest in this license (E.g. Stockholders, Officers, Directors, LLC Managers, LLP Partners, Trustees etc.).

Entity Name: Cost Plus Parent LLC

Percentage of Ownership in Entity being Licensed (Write "NA" if this is the entity being licensed): 0%

Name of Principal	Residential Address	SSN	DOB
Cost Plus Holdings, LLC	[redacted]	n/a	n/a

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
LLC Member	99.75%	○ Yes ◉ No	○ Yes ○ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB
Michael Niegsch	[redacted]	[redacted]	[redacted]

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
President	0%	○ Yes ◉ No	◉ Yes ○ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB
Alex Wolf	[redacted]	[redacted]	[redacted]

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
Authorized Officer	0%	○ Yes ◉ No	◉ Yes ○ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB
Kingswood Capital Opportunities Fund I, L.P.		n/a	n/a

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
Owner	0.25%	○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

CRIMINAL HISTORY

Has any individual identified above ever been convicted of a State, Federal or Military Crime? ○ Yes ◉ No

If yes, attach an affidavit providing the details of any and all convictions.

State of Delaware
Secretary of State
Division of Corporations
Delivered 03:03 PM 12/03/2020
FILED 03:03 PM 12/03/2020
SR 20208550850 - File Number 4325689

CERTIFICATE OF FORMATION

OF

COST PLUS PARENT, LLC

This Certificate of Formation of Cost Plus Parent, LLC (the "LLC"), dated December 3, 2020, is being duly executed and filed by Bryan Snyder, as an authorized person, to form a limited liability company under the Delaware Limited Liability Company Act (6 Del.C §18-101, et seq.).

FIRST: The name of the LLC formed hereby is Cost Plus Parent, LLC.

SECOND: The address of the registered office of the LLC in the State of Delaware is c/o is Corporation Trust Center, 1209 Orange Street, Wilmington, New Castle County, Delaware 19801.

THIRD: The name and address of the registered agent for service of process of the LLC in the State of Delaware is The Corporation Trust Company, 1209 Orange Street, Wilmington, New Castle County, Delaware 19801.

IN WITNESS WHEREOF, the undersigned has executed this Certificate of Formation as of the date first set forth above.

/s/ Bryan Snyder
Bryan Snyder, Authorized Person

ADDENDUM A

6. PROPOSED OFFICERS, STOCK OR OWNERSHIP INTEREST (Continued...)

List all individuals or entities that will have a direct or indirect, beneficial or financial interest in this license (E.g. Stockholders, Officers, Directors, LLC Managers, LLP Partners, Trustees etc.).

Entity Name: **Kingswood Capital Opportunities Fund I, L.P.**

Percentage of Ownership in Entity being Licensed (Write "NA" if this is the entity being licensed): 0%

Name of Principal	Residential Address	SSN	DOB
Kingswood Capital Opportunities Fund I GP, LP		n/a	n/a

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
Owner and General Partner	100%	○ Yes ◉ No	○ Yes ○ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ◉ No	○ Yes ◉ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ◉ No	○ Yes ◉ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

CRIMINAL HISTORY

Has any individual identified above ever been convicted of a State, Federal or Military Crime? ○ Yes ◉ No

If yes, attach an affidavit providing the details of any and all convictions.

Delaware

The First State

I, JEFFREY W. BULLOCK, SECRETARY OF STATE OF THE STATE OF DELAWARE, DO HEREBY CERTIFY THE ATTACHED IS A TRUE AND CORRECT COPY OF THE CERTIFICATE OF LIMITED PARTNERSHIP OF "KINGSWOOD CAPITAL OPPORTUNITIES FUND I, L.P.", FILED IN THIS OFFICE ON THE THIRTEENTH DAY OF JUNE, A.D. 2019, AT 11:01 O`CLOCK P.M.

7466111 8100
SR# 20195433775

Authentication: 203025791
Date: 06-14-19

You may verify this certificate online at corp.delaware.gov/authver.shtml

State of Delaware
Secretary of State
Division of Corporations
Delivered 11:01 PM 06/13/2019
FILED 11:01 PM 06/13/2019
SR 20195433775 - File Number 7466111

CERTIFICATE OF LIMITED PARTNERSHIP OF KINGSWOOD CAPITAL OPPORTUNITIES FUND I, L.P.

* * * *

The undersigned, desiring to form a limited partnership pursuant to and in accordance with the Delaware Revised Uniform Limited Partnership Act (6 Del. C. §§ 17-101, et seq.), as amended from time to time, does hereby certify as follows:

FIRST

The name of the limited partnership is Kingswood Capital Opportunities Fund I, L.P.

SECOND

The address of the limited partnership's registered office in the State of Delaware is 1209 Orange Street, City of Wilmington, New Castle County, Delaware 19801. The name and address of the registered agent for service of process on the limited partnership in the State of Delaware are The Corporation Trust Company, 1209 Orange Street, City of Wilmington, New Castle County, Delaware 19801.

THIRD

The name and mailing address of the general partner are as follows:

Kingswood Capital Opportunities Fund I GP, L.P.
11777 San Vicente Boulevard
Suite 650
Los Angeles, California 90049

IN WITNESS WHEREOF, the undersigned being the general partner hereinbefore named, declaring and certifying that the facts herein stated are true for the purpose of forming a limited partnership pursuant to the Delaware Revised Uniform Limited Partnership Act, hereby makes this Certificate of Limited Partnership as of the 13th day of June, 2019.

KINGSWOOD CAPITAL OPPORTUNITIES FUND I GP, L.P.

By: Kingswood Capital UGP, LLC
Its: General Partner

By: /s/ Alex Wolf
Name: Alex Wolf
Title: Managing Member

ADDENDUM A

6. PROPOSED OFFICERS, STOCK OR OWNERSHIP INTEREST (Continued...)

List all individuals or entities that will have a direct or indirect, beneficial or financial interest in this license (E.g. Stockholders, Officers, Directors, LLC Managers, LLP Partners, Trustees etc.).

Entity Name: Cost Plus Holdings, LLC

Percentage of Ownership in Entity being Licensed (Write "NA" if this is the entity being licensed): 0%

Name of Principal	Residential Address	SSN	DOB
Kingswood Capital Opportunities Fund I, L.P.		n/a	n/a

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
LLC Member	63.39%	○ Yes ◉ No	○ Yes ○ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB
Cost Plus Splitter, LP		n/a	n/a

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
LLC Member	21.25%	○ Yes ◉ No	◉ Yes ○ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB
Alex Smith			

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
LLC Member - See BIDER	0.35%	○ Yes ◉ No	◉ Yes ○ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB
Class B Holders			

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
LLC Members - See BIDER	13.78%	○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

CRIMINAL HISTORY

Has any individual identified above ever been convicted of a State, Federal or Military Crime? ○ Yes ◉ No

If yes, attach an affidavit providing the details of any and all convictions.

State of Delaware
Secretary of State
Division of Corporations
Delivered 03:01 PM 12/03/2020
FILED 03:01 PM 12/03/2020
SR 20208550849 - File Number 4325561

CERTIFICATE OF FORMATION

OF

COST PLUS HOLDINGS, LLC

This Certificate of Formation of Cost Plus Holdings, LLC (the "LLC"), dated December 3, 2020, is being duly executed and filed by Bryan Snyder, as an authorized person, to form a limited liability company under the Delaware Limited Liability Company Act (6 Del.C §18-101, et seq.).

FIRST: The name of the LLC formed hereby is Cost Plus Holdings, LLC.

SECOND: The address of the registered office of the LLC in the State of Delaware is c/o is Corporation Trust Center, 1209 Orange Street, Wilmington, New Castle County, Delaware 19801.

THIRD: The name and address of the registered agent for service of process of the LLC in the State of Delaware is The Corporation Trust Company, 1209 Orange Street, Wilmington, New Castle County, Delaware 19801.

IN WITNESS WHEREOF, the undersigned has executed this Certificate of Formation as of the date first set forth above.

/s/ Bryan Snyder
Bryan Snyder, Authorized Person

ADDENDUM A

6. PROPOSED OFFICERS, STOCK OR OWNERSHIP INTEREST (Continued...)

List all individuals or entities that will have a direct or indirect, beneficial or financial interest in this license (E.g. Stockholders, Officers, Directors, LLC Managers, LLP Partners, Trustees etc.).

Entity Name: Cost Plus Splitter, LP

Percentage of Ownership in Entity being Licensed (Write "NA" if this is the entity being licensed): 0%

Name of Principal	Residential Address	SSN	DOB
Cost Plus Blocker, LLC	[redacted]	n/a	n/a

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
Owner	100%	○ Yes ◉ No	○ Yes ○ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB
Kingswood Capital Opportunities Fund I	GP, LP	n/a	n/a

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
General Partner	0%	○ Yes ◉ No	○ Yes ◉ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ◉ No	○ Yes ◉ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

CRIMINAL HISTORY

Has any individual identified above ever been convicted of a State, Federal or Military Crime? ○ Yes ◉ No

If yes, attach an affidavit providing the details of any and all convictions.

Delaware

The First State

I, JEFFREY W. BULLOCK, SECRETARY OF STATE OF THE STATE OF DELAWARE, DO HEREBY CERTIFY THE ATTACHED IS A TRUE AND CORRECT COPY OF THE CERTIFICATE OF LIMITED PARTNERSHIP OF "COST PLUS SPLITTER, LP", FILED IN THIS OFFICE ON THE TWELFTH DAY OF JANUARY, A.D. 2021, AT 6:18 O`CLOCK P.M.

Jeffrey W. Bullock, Secretary of State

4711389 8100
SR# 20210093637

Authentication: 202277032
Date: 01-13-21

You may verify this certificate online at corp.delaware.gov/authver.shtml

State of Delaware
Secretary of State
Division of Corporations
Delivered 06:18 PM 01/12/2021
FILED 06:18 PM 01/12/2021
SR 20210093637 - File Number 4711389

CERTIFICATE OF LIMITED PARTNERSHIP

OF

COST PLUS SPLITTER, LP

This Certificate of Limited Partnership of Cost Plus Splitter, LP (the "Partnership"), dated as of January 12, 2021, has been duly executed and is being filed by the undersigned, the sole general partner of the Partnership, to form a limited partnership under the Delaware Revised Uniform Limited Partnership Act (6 *Del. C.* § 17-101 *et seq.*) (the "Act").

1. Name of Limited Partnership. The name of the limited partnership formed hereby is Cost Plus Splitter, LP.

2. Registered Office and Agent. The address of the Partnership's registered office in Delaware is c/o The Corporation Trust Company, Corporation Trust Center, 1209 Orange Street, Wilmington, DE 19801, County of New Castle. The name and address of the Partnership's registered agent for service of process in the State of Delaware are The Corporation Trust Company, Corporation Trust Center, 1209 Orange Street, Wilmington, DE 19801, County of New Castle.

3. General Partner. The name and mailing address of the sole general partner of the Partnership is: Kingswood Capital Opportunities Fund I GP, L.P., 11111 Santa Monica Blvd., Suite 1700, Los Angeles, California 90025.

This Certificate was duly executed in accordance with and is being filed pursuant to the provisions of §17-201 of the Act.

IN WITNESS WHEREOF, the undersigned general partner has executed this Certificate of Limited Partnership of Cost Plus Splitter, LP as of the date first above written.

GENERAL PARTNER:

By: Kingswood Capital Opportunities Fund I GP, L.P.
Its: General Partner

By: Kingswood Capital UGP, LLC
Its: General Partner

By: /s/ Alex Wolf
Name: Alex Wolf
Title: Managing Member

ADDENDUM A

6. PROPOSED OFFICERS, STOCK OR OWNERSHIP INTEREST (Continued...)

List all individuals or entities that will have a direct or indirect, beneficial or financial interest in this license (E.g. Stockholders, Officers, Directors, LLC Managers, LLP Partners, Trustees etc.).

Entity Name: Cost Plus Blocker, LLC

Percentage of Ownership in Entity being Licensed (Write "NA" if this is the entity being licensed): 0%

Name of Principal	Residential Address	SSN	DOB
Kingswood Capital Opportunities Fund I-A, L.P.		n/a	n/a

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
LLC Member	100%	○ Yes ◉ No	○ Yes ○ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ◉ No	○ Yes ◉ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ◉ No	○ Yes ◉ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

CRIMINAL HISTORY

Has any individual identified above ever been convicted of a State, Federal or Military Crime? ○ Yes ◉ No

If yes, attach an affidavit providing the details of any and all convictions.

Delaware

The First State

I, JEFFREY W. BULLOCK, SECRETARY OF STATE OF THE STATE OF DELAWARE, DO HEREBY CERTIFY THE ATTACHED IS A TRUE AND CORRECT COPY OF THE CERTIFICATE OF FORMATION OF "COST PLUS BLOCKER, LLC", FILED IN THIS OFFICE ON THE TWELFTH DAY OF JANUARY, A.D. 2021, AT 4:27 O`CLOCK P.M.

4708604 8100
SR# 20210090980

Authentication: 202276184
Date: 01-13-21

You may verify this certificate online at corp.delaware.gov/authver.shtml

State of Delaware
Secretary of State
Division of Corporations
Delivered 04:27 PM 01/12/2021
FILED 04:27 PM 01/12/2021
SR 20210090980 - File Number 4708604

CERTIFICATE OF FORMATION

OF

COST PLUS BLOCKER, LLC

This Certificate of Formation of Cost Plus Blocker, LLC (the "LLC"), dated January 12, 2021, is being duly executed and filed by Bryan Snyder, as an authorized person, to form a limited liability company under the Delaware Limited Liability Company Act (6 Del.C §18-101, et seq.).

FIRST: The name of the LLC formed hereby is Cost Plus Blocker, LLC.

SECOND: The address of the registered office of the LLC in the State of Delaware is c/o is Corporation Trust Center, 1209 Orange Street, Wilmington, New Castle County, Delaware 19801.

THIRD: The name and address of the registered agent for service of process of the LLC in the State of Delaware is The Corporation Trust Company, 1209 Orange Street, Wilmington, New Castle County, Delaware 19801.

IN WITNESS WHEREOF, the undersigned has executed this Certificate of Formation as of the date first set forth above.

/s/ Bryan Snyder
Bryan Snyder, Authorized Person

ADDENDUM A

6. PROPOSED OFFICERS, STOCK OR OWNERSHIP INTEREST (Continued...)

List all individuals or entities that will have a direct or indirect, beneficial or financial interest in this license (E.g. Stockholders, Officers, Directors, LLC Managers, LLP Partners, Trustees etc.).

Entity Name: **Kingswood Capital Opportunities Fund I-A, L.P.**

Percentage of Ownership in Entity being Licensed (Write "NA" if this is the entity being licensed): 0%

Name of Principal	Residential Address	SSN	DOB
Kingswood Capital Opportunities Fund I GP, LP		n/a	n/a

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
Owner and General Partner	100%	○ Yes ◉ No	○ Yes ○ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB
		n/a	n/a

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ◉ No	○ Yes ◉ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ◉ No	○ Yes ◉ No	○ Yes ◉ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
		○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

CRIMINAL HISTORY

Has any individual identified above ever been convicted of a State, Federal or Military Crime? ○ Yes ◉ No

If yes, attach an affidavit providing the details of any and all convictions.

Delaware

The First State

I, JEFFREY W. BULLOCK, SECRETARY OF STATE OF THE STATE OF DELAWARE, DO HEREBY CERTIFY THE ATTACHED IS A TRUE AND CORRECT COPY OF THE CERTIFICATE OF LIMITED PARTNERSHIP OF "KINGSWOOD CAPITAL OPPORTUNITIES FUND I-A, L.P.", FILED IN THIS OFFICE ON THE THIRTEENTH DAY OF JUNE, A.D. 2019, AT 11:03 O`CLOCK P.M.

7466112 8100
SR# 20195433776

Authentication: 203025853
Date: 06-14-19

You may verify this certificate online at corp.delaware.gov/authver.shtml

State of Delaware
Secretary of State
Division of Corporations
Delivered 11:03 PM 06/13/2019
FILED 11:03 PM 06/13/2019
SR 20195433776 - File Number 7466112

CERTIFICATE OF LIMITED PARTNERSHIP
OF
KINGSWOOD CAPITAL OPPORTUNITIES FUND I-A, L.P.

* * * *

The undersigned, desiring to form a limited partnership pursuant to and in accordance with the Delaware Revised Uniform Limited Partnership Act (6 Del. C. §§ 17-101, et seq.), as amended from time to time, does hereby certify as follows:

FIRST

The name of the limited partnership is Kingswood Capital Opportunities Fund I-A, L.P.

SECOND

The address of the limited partnership's registered office in the State of Delaware is 1209 Orange Street, City of Wilmington, New Castle County, Delaware 19801. The name and address of the registered agent for service of process on the limited partnership in the State of Delaware are The Corporation Trust Company, 1209 Orange Street, City of Wilmington, New Castle County, Delaware 19801.

THIRD

The name and mailing address of the general partner are as follows:

Kingswood Capital Opportunities Fund I GP, L.P.
11777 San Vicente Boulevard
Suite 650
Los Angeles, California 90049

IN WITNESS WHEREOF, the undersigned being the general partner hereinbefore named, declaring and certifying that the facts herein stated are true for the purpose of forming a limited partnership pursuant to the Delaware Revised Uniform Limited Partnership Act, hereby makes this Certificate of Limited Partnership as of the 13th day of June, 2019.

KINGSWOOD CAPITAL OPPORTUNITIES FUND I GP, L.P.

By: Kingswood Capital UGP, LLC
Its: General Partner

By: /s/ Alex Wolf
Name: Alex Wolf
Title: Managing Member

ADDENDUM A

6. PROPOSED OFFICERS, STOCK OR OWNERSHIP INTEREST (Continued...)

List all individuals or entities that will have a direct or indirect, beneficial or financial interest in this license (E.g. Stockholders, Officers, Directors, LLC Managers, LLP Partners, Trustees etc.).

Entity Name: **Kingswood Capital Opportunities Fund I-GP, L.P.**

Percentage of Ownership in Entity being Licensed (Write "NA" if this is the entity being licensed): 0%

Name of Principal	Residential Address	SSN	DOB	Title and or Position	Percentage of Ownership	Director/ LLC Manager	US Citizen	MA Resident
Alexander Wolf	[redacted]	[redacted]	[redacted]	Owner	52.8%	○ Yes ◉ No	◉ Yes ○ No	○ Yes ◉ No
James Renna	[redacted]	[redacted]	[redacted]	Owner	18.7%	○ Yes ◉ No	◉ Yes ○ No	○ Yes ◉ No
Michael Niegsch	[redacted]	[redacted]	[redacted]	Owner	20%	○ Yes ◉ No	◉ Yes ○ No	○ Yes ◉ No
Individual Holders	n/a	n/a	n/a	See BIDER for additional information	8.5%	○ Yes ○ No	○ Yes ○ No	○ Yes ○ No
						○ Yes ○ No	○ Yes ○ No	○ Yes ○ No
						○ Yes ○ No	○ Yes ○ No	○ Yes ○ No
						○ Yes ○ No	○ Yes ○ No	○ Yes ○ No

CRIMINAL HISTORY

Has any individual identified above ever been convicted of a State, Federal or Military Crime? ○ Yes ◉ No

If yes, attach an affidavit providing the details of any and all convictions.

Delaware

The First State

I, JEFFREY W. BULLOCK, SECRETARY OF STATE OF THE STATE OF DELAWARE, DO HEREBY CERTIFY THE ATTACHED IS A TRUE AND CORRECT COPY OF THE CERTIFICATE OF LIMITED PARTNERSHIP OF "KINGSWOOD CAPITAL OPPORTUNITIES FUND I GP, L.P.", FILED IN THIS OFFICE ON THE THIRTEENTH DAY OF JUNE, A.D. 2019, AT 10:57 O`CLOCK P.M.

7466110 8100
SR# 20195433772

Authentication: 203025759
Date: 06-14-19

You may verify this certificate online at corp.delaware.gov/authver.shtml

State of Delaware
Secretary of State
Division of Corporations
Delivered 10:57 PM 06/13/2019
FILED 10:57 PM 06/13/2019
SR 20195433772 - File Number 7466110

CERTIFICATE OF LIMITED PARTNERSHIP
OF
KINGSWOOD CAPITAL OPPORTUNITIES FUND I GP, L.P.

* * * *

The undersigned, desiring to form a limited partnership pursuant to and in accordance with the Delaware Revised Uniform Limited Partnership Act (6 Del. C. §§ 17-101, et seq.), as amended from time to time, does hereby certify as follows:

FIRST

The name of the limited partnership is Kingswood Capital Opportunities Fund I GP, L.P.

SECOND

The address of the limited partnership's registered office in the State of Delaware is 1209 Orange Street, City of Wilmington, New Castle County, Delaware 19801. The name and address of the registered agent for service of process on the limited partnership in the State of Delaware are The Corporation Trust Company, 1209 Orange Street, City of Wilmington, New Castle County, Delaware 19801.

THIRD

The name and mailing address of the general partner are as follows:

Kingswood Capital UGP, LLC
11777 San Vicente Boulevard
Suite 650
Los Angeles, California 90049

IN WITNESS WHEREOF, the undersigned being the general partner hereinbefore named, declaring and certifying that the facts herein stated are true for the purpose of forming a limited partnership pursuant to the Delaware Revised Uniform Limited Partnership Act, hereby makes this Certificate of Limited Partnership as of the 13th day of June, 2019.

KINGSWOOD CAPITAL UGP, LLC

By: /s/ Alex Wolf
Name: Alex Wolf
Title: Managing Member

Commonwealth of Massachusetts
Alcoholic Beverages Control Commission
95 Fourth Street, Suite 3
Chelsea, MA 02150

JEAN M. LORIZIO, ESQ.
CHAIRMAN

CORI REQUEST FORM

The Alcoholic Beverages Control Commission ("ABCC") has been certified by the Criminal History Systems Board to access conviction and pending Criminal Offender Record Information ("CORI"). For the purpose of approving each shareholder, owner, licensee or applicant for an alcoholic beverages license, I understand that a criminal record check will be conducted on me, pursuant to the above. The information below is correct to the best of my knowledge.

ABCC LICENSE INFORMATION

ABCC NUMBER: (IF EXISTING LICENSEE)	00196-PK-0428	**LICENSEE NAME:**	World Market of Massachusetts, LLC	**CITY/TOWN:**	Framingham

APPLICANT INFORMATION

LAST NAME:	Renna	FIRST NAME:	James	MIDDLE NAME:	Robert
MAIDEN NAME OR ALIAS (IF APPLICABLE):		PLACE OF BIRTH:	Framingham, MA		
DATE OF BIRTH	[redacted]	ID THEFT INDEX PIN (IF APPLICABLE):			
MOTHER'S MAIDEN NAME:	Keliher	DRIVER'S LICENSE #	[redacted]	STATE LIC. ISSUED:	[redacted]
GENDER:	Male	HEIGHT:	6' 0"	WEIGHT:	215 lbs
EYE COLOR:	Blue				
CURRENT ADDRESS:	[redacted]				
CITY/TOWN:	[redacted]	STATE:	[redacted]	ZIP:	[redacted]
FORMER ADDRESS:	[redacted]				
CITY/TOWN:	[redacted]	STATE:	[redacted]	ZIP:	[redacted]

PRINT AND SIGN

PRINTED NAME:	James Renna	APPLICANT/EMPLOYEE SIGNATURE:	[signature]

NOTARY INFORMATION

On this 8th day of April 2026 before me, the undersigned notary public, personally appeared James Renna (name of document signer), proved to me through satisfactory evidence of identification, which were drivers license to be the person whose name is signed on the preceding or attached document, and acknowledged to me that (he) (she) signed it voluntarily for its stated purpose.

[signature]
NOTARY

CAROLINE CLAIRE SANGER
My Notary ID # 135517777
Expires May 30, 2029

DIVISION USE ONLY

REQUESTED BY: _____
SIGNATURE OF CORI-AUTHORIZED EMPLOYEE

The DCJI Identity Theft Index PIN Number is to be completed by those applicants that have been issued an Identity Theft PIN Number by the DCJI. Certified agencies are required to provide all applicants the opportunity to include this information to ensure the accuracy of the CORI request process. **All CORI request forms that include this field are required to be submitted to the DCJI via mail or by fax to (617) 660-4614.**

6. AMENDMENT-Change of Officers, Stock or Ownership Interest

6B. CURRENT OFFICERS, STOCK OR OWNERSHIP INTEREST

List the individuals and entities of the current ownership. Attach additional pages if necessary utilizing the format below.

Name of Principal	Title/Position	Percentage of Ownership
Julie Donaldson	LLC Manager	0%
Jane Baughman	Pres., Sec., Treas. of Parent Company	0%
World Market, LLC	LLC Member / Parent	100%

6A. INTEREST IN AN ALCOHOLIC BEVERAGES LICENSE

Does any individual or entity identified in question 6, and applicable attachments, have any direct or indirect, beneficial or financial interest in any other license to sell alcoholic beverages? Yes ☑ No ☐ If yes, list in table below. Attach additional pages, if necessary, utilizing the table format below.

Name	License Type	License Name	Municipality
See Exhibit B			

6B. PREVIOUSLY HELD INTEREST IN AN ALCOHOLIC BEVERAGES LICENSE

Has any individual or entity identified identified in question 6, and applicable attachments, ever held a direct or indirect, beneficial or financial interest in a license to sell alcoholic beverages, which is not presently held? Yes ☑ No ☐

If yes, list in table below. Attach additional pages, if necessary, utilizing the table format below.

Name	License Type	License Name	Municipality
Cost Plus / World Market	Annual Wine & Malt	Cost Plus of Massachusetts LLC	Hyannis / Barnstable

6C. DISCLOSURE OF LICENSE DISCIPLINARY ACTION

Have any of the disclosed licenses listed in question 6A or 6B ever been suspended, revoked or cancelled?

Yes ☐ No ☑ If yes, list in table below. Attach additional pages, if necessary, utilizing the table format below.

Date of Action	Name of License	City	Reason for suspension, revocation or cancellation

7. AMENDMENT-Change of Premises Information

☐ Alteration of Premises: (must fill out attached financial information form)

7A. ALTERATION OF PREMISES

Please summarize the details of the alterations and highlight any specific changes from the last-approved premises.

PROPOSED DESCRIPTION OF PREMISES

Please provide a complete description of the proposed premises, including the number of floors, number of rooms on each floor, any outdoor areas to be included in the licensed area, and total square footage. You must also submit a floor plan.

Total Sq. Footage		Seating Capacity		Occupancy Number	
Number of Entrances		Number of Exits		Number of Floors	

☐ Change of Location: (must fill out attached financial information form)

7B. CHANGE OF LOCATION

Last-Approved Street Address

Proposed Street Address

DESCRIPTION OF PREMISES

Please provide a complete description of the premises to be licensed, including the number of floors, number of rooms on each floor, any outdoor areas to be included in the licensed area, and total square footage. You must also submit a floor plan.

Total Sq. Footage		Seating Capacity		Occupancy Number	
Number of Entrances		Number of Exits		Number of Floors	

OCCUPANCY OF PREMISES

Please complete all fields in this section. Please provide proof of legal occupancy of the premises. (E.g. Deed, lease, letter of intent)

Please indicate by what means the applicant has to occupy the premises

Landlord Name

Landlord Phone

Landlord Email

Landlord Address

Lease Beginning Date

Rent per Month

Lease Ending Date

Rent per Year

Will the Landlord receive revenue based on percentage of alcohol sales? ◯Yes ◯No

8. AMENDMENT-Management Agreement

☐ Management Agreement: (must fill out all pages in section 8)

Are you requesting approval to utilize a management company through a management agreement?
If yes, please fill out section 8.

◯ Yes ◉ No

Please provide a narrative overview of the Management Agreement. Attach additional pages, if necessary.

IMPORTANT NOTE: A management agreement is where a licensee authorizes a third party to control the daily operations of the license premises, while retaining ultimate control over the license, through a written contract. *This does **not** pertain to a liquar license manager that is employed directly by the entity.*

8A. MANAGEMENT ENTITY

List all proposed individuals or entities that will have a direct or indirect, beneficial or financial interest in the management Entity (E.g. Stockholders, Officers, Directors, LLC Managers, LLP Partners, Trustees etc.).

Entity Name	Address	Phone

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director	US Citizen	MA Resident
		◯ Yes ◯ No	◯ Yes ◯ No	◯ Yes ◯ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director	US Citizen	MA Resident
		◯ Yes ◯ No	◯ Yes ◯ No	◯ Yes ◯ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director	US Citizen	MA Resident
		◯ Yes ◯ No	◯ Yes ◯ No	◯ Yes ◯ No

Name of Principal	Residential Address	SSN	DOB

Title and or Position	Percentage of Ownership	Director	US Citizen	MA Resident
		◯ Yes ◯ No	◯ Yes ◯ No	◯ Yes ◯ No

CRIMINAL HISTORY

Has any individual identified above ever been convicted of a State, Federal or Military Crime?
If yes, attach an affidavit providing the details of any and all convictions.

◯ Yes ◯ No

8B. EXISTING MANAGEMENT AGREEMENTS AND INTEREST IN AN ALCOHOLIC BEVERAGES LICENSE

Does any individual or entity identified in question 8A, and applicable attachments, have any direct or indirect, beneficial or financial interest in any other license to sell alcoholic beverages; and or have an active management agreement with any other licensees?

Yes ☐ No ☐ If yes, list in table below. Attach additional pages, if necessary, utilizing the table format below.

Name	License Type	License Name	Municipality

8. AMENDMENT-Management Agreement

8C. PREVIOUSLY HELD INTEREST IN AN ALCOHOLIC BEVERAGES LICENSE

Has any individual or entity identified in question 8A, and applicable attachments, ever held a direct or indirect, beneficial or financial interest in a license to sell alcoholic beverages, which is not presently held?

Yes ☐ No ☐ If yes, list in table below. Attach additional pages, if necessary, utilizing the table format below.

Name	License Type	License Name	Municipality

8D. PREVIOUSLY HELD MANAGEMENT AGREEMENT

Has any individual or entity identified in question 8A, and applicable attachments, ever held a management agreement with any other Massachusetts licensee?

Yes ☐ No ☐ If yes, list in table below. Attach additional pages, if necessary, utilizing the table format below.

Licensee Name	License Type	Municipality	Date(s) of Agreement

8E. DISCLOSURE OF LICENSE DISCIPLINARY ACTION

Have any of the disclosed licenses listed in question 8B, 8C or 8D ever been suspended, revoked or cancelled?

Yes ☐ No ☐ If yes, list in table below. Attach additional pages, if necessary, utilizing the table format below.

Date of Action	Name of License	City	Reason for suspension, revocation or cancellation

8F. TERMS OF AGREEMENT

a. Does the agreement provide for termination by the licensee? Yes ☐ No ☐

b. Will the licensee retain control of the business finances? Yes ☐ No ☐

c. Does the management entity handle the payroll for the business? Yes ☐ No ☐

d. Management Term Begin Date _____ e. Management Term End Date _____

f. How will the management company be compensated by the licensee? (check all that apply)

☐ $ per month/year (indicate amount) _____

☐ % of alcohol sales (indicate percentage) _____

☐ % of overall sales (indicate percentage) _____

☐ other (please explain) _____

ABCC Licensee Officer/LLC Manager

Signature: _____

Title: _____

Date: _____

Management Agreement Entity Officer/LLC Manager

Signature: _____

Title: _____

Date: _____

9. FINANCIAL DISCLOSURE

Required for the following transactions:

- Change of Officers, Stock or Ownership Interest (E.g. New Stockholder/Transfer or Issuance of Stock)
- Change of Premises Information
- Pledge of License, Inventory or Stock

Purchase Price(s): n/a

SOURCE OF CASH CONTRIBUTION

Please provide documentation of available funds. (E.g. Bank or other Financial institution Statements, Bank Letter, etc.)

Name of Contributor	Amount of Contribution
Total:	

SOURCE OF FINANCING

Please provide signed financing documentation.

Name of Lender	Amount	Type of Financing	Is the lender a licensee pursuant to M.G.L. Ch. 138.
			◯Yes ◯No
			◯Yes ◯No
			◯Yes ◯No
			◯Yes ◯No

FINANCIAL INFORMATION

Provide a detailed explanation of the form(s) and source(s) of funding for the cost identified above.

n/a

APPLICANT'S STATEMENT

I, Adriano Julio-Kuthan the: ☐ sole proprietor; ☐ partner; ☐ corporate principal; ☑ LLC/LLP manager
Authorized Signatory

of World Market of Massachusetts, LLC
Name of the Entity/Corporation

hereby submit this application (hereinafter the "Application"), to the local licensing authority (the "LLA") and the Alcoholic Beverages Control Commission (the "ABCC" and together with the LLA collectively the "Licensing Authorities") for approval.

I do hereby declare under the pains and penalties of perjury that I have personal knowledge of the information submitted in the Application, and as such affirm that all statements and representations therein are true to the best of my knowledge and belief. I further submit the following to be true and accurate:

(1) I understand that each representation in this Application is material to the Licensing Authorities' decision on the Application and that the Licensing Authorities will rely on each and every answer in the Application and accompanying documents in reaching its decision;

(2) I state that the location and description of the proposed licensed premises are in compliance with state and local laws and regulations;

(3) I understand that while the Application is pending, I must notify the Licensing Authorities of any change in the information submitted therein. I understand that failure to give such notice to the Licensing Authorities may result in disapproval of the Application;

(4) I understand that upon approval of the Application, I must notify the Licensing Authorities of any change in the ownership as approved by the Licensing Authorities. I understand that failure to give such notice to the Licensing Authorities may result in sanctions including revocation of any license for which this Application is submitted;

(5) I understand that the licensee will be bound by the statements and representations made in the Application, including, but not limited to the identity of persons with an ownership or financial interest in the license;

(6) I understand that all statements and representations made become conditions of the license;

(7) I understand that any physical alterations to or changes to the size of the area used for the sale, delivery, storage, or consumption of alcoholic beverages, must be reported to the Licensing Authorities and may require the prior approval of the Licensing Authorities;

(8) I understand that the licensee's failure to operate the licensed premises in accordance with the statements and representations made in the Application may result in sanctions, including the revocation of any license for which the Application was submitted; and

(9) I understand that any false statement or misrepresentation will constitute cause for disapproval of the Application or sanctions including revocation of any license for which this Application is submitted.

(10) I confirm that the applicant corporation and each individual listed in the ownership section of the application is in good standing with the Massachusetts Department of Revenue and has complied with all laws of the Commonwealth relating to taxes, reporting of employees and contractors, and withholding and remitting of child support.

Signature: [signature] Date: 3/30/26

Title: LLC Manager

ENTITY VOTE

The Board of Directors or LLC Managers of World Market of Massachusetts, LLC (Entity Name)

duly voted to apply to the Licensing Authority of Framingham (City/Town) and the

Commonwealth of Massachusetts Alcoholic Beverages Control Commission on March 19, 2026 (Date of Meeting)

For the following transactions (Check all that apply):

☐ New License	☐ Change of Location	☐ Change of Class (i.e. Annual / Seasonal)	☐ Change Corporate Structure (i.e. Corp / LLC)
☐ Transfer of License	☐ Alteration of Licensed Premises	☐ Change of License Type (i.e. club / restaurant)	☐ Pledge of Collateral (i.e. License/Stock)
☑ Change of Manager	☐ Change Corporate Name	☐ Change of Category (i.e. All Alcohol/Wine, Malt)	☐ Management/Operating Agreement
☑ Change of Officers/ Directors/LLC Managers	☒ Change of Ownership Interest (LLC Members/ LLP Partners, Trustees)	☐ Issuance/Transfer of Stock/New Stockholder	☐ Change of Hours
		☐ Other	☐ Change of DBA

"VOTED: To authorize Adriano Julio-Kuthan (Name of Person)

to sign the application submitted and to execute on the Entity's behalf, any necessary papers and do all things required to have the application granted."

"VOTED: To appoint Adriano Julio-Kuthan (Name of Liquor License Manager)

as its manager of record, and hereby grant him or her with full authority and control of the premises described in the license and authority and control of the conduct of all business therein as the licensee itself could in any way have and exercise if it were a natural person residing in the Commonwealth of Massachusetts."

A true copy attest,

Corporate Officer /LLC Manager Signature

Adriano Julio-Kuthan

(Print Name)

For Corporations ONLY

A true copy attest,

Corporate Clerk's Signature

(Print Name)

Commonwealth of Massachusetts
Alcoholic Beverages Control Commission
95 Fourth Street, Suite 3
Chelsea, MA 02150

JEAN M. LORIZIO, ESQ.
CHAIRMAN

CORI REQUEST FORM

The Alcoholic Beverages Control Commission ("ABCC") has been certified by the Criminal History Systems Board to access conviction and pending Criminal Offender Record Information ("CORI"). For the purpose of approving each shareholder, owner, licensee or applicant for an alcoholic beverages license, I understand that a criminal record check will be conducted on me, pursuant to the above. The information below is correct to the best of my knowledge.

ABCC LICENSE INFORMATION

ABCC NUMBER: (IF EXISTING LICENSEE)	00196- PK- 0428	**LICENSEE NAME:**	World Market of Massachusetts, LLC	**CITY/TOWN:**	Framingham

APPLICANT INFORMATION

LAST NAME:	Julio-Kuthan	FIRST NAME:	Adriano	MIDDLE NAME:	
MAIDEN NAME OR ALIAS (IF APPLICABLE):	n/a	PLACE OF BIRTH:	[redacted]		
DATE OF BIRTH:	[redacted]	SSN:	[redacted]	ID THEFT INDEX PIN (IF APPLICABLE):	
MOTHER'S MAIDEN NAME:	Maria Theresa Alves Julio	DRIVER'S LICENSE #:	[redacted]	STATE LIC. ISSUED:	[redacted]
GENDER:	MALE	HEIGHT:	5 11	WEIGHT:	230
EYE COLOR:					
CURRENT ADDRESS:	[redacted]				
CITY/TOWN:	[redacted]	STATE	[redacted]	ZIP:	[redacted]
FORMER ADDRESS:					
CITY/TOWN:		STATE:		ZIP:	

PRINT AND SIGN

PRINTED NAME:	Adriano Julio-Kuthan	APPLICANT/EMPLOYEE SIGNATURE:	Adriano Julio-Kuthan

NOTARY INFORMATION

On this MAR 30 2026 before me, the undersigned notary public, personally appeared Adriano Julio-Kuthan (name of document signer), proved to me through satisfactory evidence of identification, which were MASS DRIVERS LICENSE to be the person whose name is signed on the preceding or attached document, and acknowledged to me that (he) (she) signed it voluntarily for its stated purpose.

NOTARY

ARVIND BASIL
My Commission Expires JUNE 21ST, 2030
NOTARY PUBLIC
COMMONWEALTH OF MASSACHUSETTS

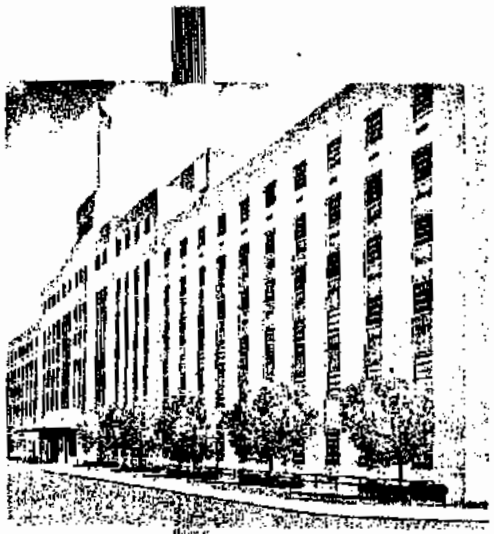
DIVISION USE ONLY

REQUESTED BY:

SIGNATURE OF CORI-AUTHORIZED EMPLOYEE

The OCII Identity Theft Index PIN Number is to be completed by those applicants that have been issued an Identity Theft PIN Number by the OCII. Certified Agencies are required to provide all applicants the opportunity to include this information to ensure the accuracy of the CORI request process. ALL CORI request forms that include this field are required to be submitted to the OCII via mail or by fax to (617) 660-4614.

USA
JULIO-KURIAN
ADRIANO



MIAMI VALLEY HOSPITAL

DAYTON, OHIO

Hospital Birth Record

75TH MVH Anniversary

This Certifies that Jane Lynn Baughman

was born to [redacted]

in this Hospital at 9:01 o'clock A [redacted]

the [redacted]

In Witness Whereof the said Hospital has caused this Certificate to be signed by its duly authorized officer, and its Official Seal to be hereunto affixed

W. E. Clancy M.D.
ATTENDING PHYSICIAN

Frank C. Sutton M.D.
DIRECTOR

Commonwealth of Massachusetts
Alcoholic Beverages Control Commission
95 Fourth Street, Suite 3
Chelsea, MA 02150

JEAN M. LORIZIO, ESQ.
CHAIRMAN

CORI REQUEST FORM

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ABCC LICENSE INFORMATION

ABCC NUMBER: (IF EXISTING LICENSEE)	00196- PK- 0428	LICENSEE NAME:	World Market of Massachusetts, LLC	CITY/TOWN:	Framingham

APPLICANT INFORMATION

LAST NAME:	Niegsch	FIRST NAME:	Michael	MIDDLE NAME:	
MAIDEN NAME OR ALIAS (IF APPLICABLE):				PLACE OF BIRTH:	[redacted]
DATE OF BIRTH:	[redacted]	SSN:	[redacted]	ID THEFT INDEX PIN (IF APPLICABLE):	
MOTHER'S MAIDEN NAME:	[redacted]	DRIVER'S LICENSE #:	[redacted]	STATE LIC. ISSUED:	[redacted]
GENDER:	MALE	HEIGHT:	6 6	WEIGHT:	230
EYE COLOR:	Blue				
CURRENT ADDRES	[redacted]				
CITY/TOWN:	[redacted]	STATE:	[redacted]	ZIP:	[redacted]
FORMER ADDRESS:	[redacted]				
CITY/TOWN:	[redacted]	STATE:	[redacted]	ZIP:	[redacted]

PRINT AND SIGN

PRINTED NAME:	Michael Niegsch	APPLICANT/EMPLOYEE SIGNATURE:	

NOTARY INFORMATION

On this 04/13/2026 before me, the undersigned notary public, personally appeared Michael Niegsch (name of document signer), proved to me through satisfactory evidence of identification, which were CA Driver License to be the person whose name is signed on the preceding or attached document, and acknowledged to me that (he) (she) signed it voluntarily for its stated purpose.

RYAN MATTHEW MCDUFFIE
Comm. No. 2533143
NOTARY PUBLIC - CALIFORNIA
LOS ANGELES COUNTY
My Comm. Exp. OCT. 19, 2029

NOTARY

DIVISION USE ONLY

REQUESTED BY:

SIGNATURE OF CORI-AUTHORIZED EMPLOYEE

The DCJI Identity Theft Index PIN Number is to be completed by those applicants that have been issued an Identity Theft PIN Number by the DCJI. Certified agencies are required to provide all applicants the opportunity to include this information to ensure the accuracy of the CORI request process. ALL CORI request forms that include this field are required to be submitted to the DCJI via mail or by fax to (617) 660-4614.

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95 Fourth Street, Suite 3
Chelsea, MA 02150

JEAN M. LORIZIO, ESQ.
CHAIRMAN

CORI REQUEST FORM

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ABCC LICENSE INFORMATION

ABCC NUMBER: (IF EXISTING LICENSEE)	00196-PK-0428	LICENSEE NAME:	World Market of Massachusetts, LLC	CITY/TOWN:	Framingham

APPLICANT INFORMATION

LAST NAME:	Wolf	FIRST NAME:	Alexander	MIDDLE NAME:	Mattison
MAIDEN NAME OR ALIAS (IF APPLICABLE):	[redacted]	PLACE OF BIRTH:	[redacted]		
DATE OF BIRTH:	[redacted]	SSN:	[redacted]	ID THEFT INDEX PIN (IF APPLICABLE):	
MOTHER'S MAIDEN NAM	[redacted]	DRIVER'S LICENSE #:	[redacted]	STATE LIC. ISSUED:	[redacted]
GENDER:	MALE	HEIGHT:	5 9	WEIGHT:	165
EYE COLOR:	Blue				
CURRENT ADDRESS:	[redacted]				
CITY/TOWN:	[redacted]	STA	[redacted]	ZIP:	[redacted]
FORMER ADDRESS:	[redacted]				
CITY/TOWN:	[redacted]	STATE:	[redacted]	ZIP:	[redacted]

PRINT AND SIGN

PRINTED NAME:	Alexander Wolf	APPLICANT/EMPLOYEE SIGNATURE:	Alexander Wolf

NOTARY INFORMATION

On this 04/13/2026 before me, the undersigned notary public, personally appeared Alexander Wolf (name of document signer), proved to me through satisfactory evidence of identification, which were CA Driver License to be the person whose name is signed on the preceding or attached document, and acknowledged to me that (he) (she) signed it voluntarily for its stated purpose.

RYAN MATTHEW MCDUFFIE
Comm. No. 2533143
NOTARY PUBLIC - CALIFORNIA
LOS ANGELES COUNTY
My Comm. Exp. OCT. 19, 2029

NOTARY

DIVISION USE ONLY

REQUESTED BY:

SIGNATURE OF CORI-AUTHORIZED EMPLOYEE

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Ad Preview

WORLD MARKET/
FRAMINGHAM

LEGAL NOTICE

A public hearing will be held remotely via Zoom on **Monday, November 2, 2026 at 7:00 PM** under the provisions of M.G.L.c. 138 §12 on the application for a Change of LLC Managers/Officers/Directors, Change of Ownership Interest, and a Change of Manager for World Market of Massachusetts DBA Cost Plus World Market, 1 Worcester Rd, Framingham, MA 01701.

Join from PC, Mac, iPad, or Android:
https://us02web.zoom.us/j/86134843803?pwd=Ru8Qi8WWVOSF9XFQOwlbtl8XcEtcSV.1
Passcode:995955

Join via audio:
+1 929 205 6099 US (New York)
Webinar ID: 861 3484 3803
Passcode: 995955

Stuart Pologe, Chair
Laura Medrano, Clerk
Alycia DeAngelis, Member
Joseph Sturniolo, Vice Chair
Shannon McCullough, Member
Framingham
Board of License
Commissioners

Reference:
masspublicnotices.org

AD#12707127
DN 10/16/2026

Police Approval

Record No.**1706**

Status Completed

Type Approval

Assignee Tyson Mohr

Became Active October 6, 2026

Due Date None

Record No: 1706

Change to an Existing Alcohol License Application

Status: Active

Submitted On: 10/5/2026

Messages

Tyson Mohr **Internal** October 13, 2026 at 1:04 pm

Provided the
requirements of other City departments are met, the Framingham Police approve
the application submitted by Amanda Talbot.

Board of License Commissioners

October 5, 2026 7:00 PM
REMOTE

PRESENT:

Stuart Pologe, Chair
Joseph Sturniolo, Vice Chair
Laura Medrano, Clerk
Shannon McCullough
Alycia DeAngelis

STAFF PRESENT: Michael Royce, Licensing Coordinator

GENERAL PUBLIC COMMENTS: None

LICENSING HEARINGS:

Change of Hours
135 Bar Restaurant and Lounge Corp DBA Caipy
672 Waverly St
Framingham, MA 01702

Current Hours: Alcohol & CV: Sun-Sat 11am-1am
Entertainment: Wed-Thurs 7pm-12am

Proposed Hours: Alcohol & CV: Sun-Thurs 11am-1am, Fri-Sat 11am-2am
Entertainment: Wed-Thurs 7pm-12am, Fri-Sat 7pm-2am

The Board Review the following documents

1. OpenGov Application

2. Draft Licenses

3. ABCC Application

4. City Department Approvals

a. PD Opposition Letter

b. Fire Opposition

Wesley Silva owner presented the application for the change of hours from Friday to Saturday to 2:00 AM. Mr. Wesley stated that he had followed all the suggestions given by the Board at previous meetings. They have doble the number of bouncers, trained the staff and meet all requirements. The past summer they had the chance to go until 2:00 Am during the World Cup without incidents.

Board members asked questions, on how deal with the influx other people drinking at other establishments and coming in after 12:00 AM. According to Mr. Silva, patrons coming in after 12:00 AM only will be allowed to the Lounge area not to the live music section, but still will be able to drink and the staff is trained not to overserve. Commissioner DeAngelis pointed out that if these hours were to be granted this will be the only establishment operating until 2:00 AM in the City of Framingham. As they hold private parties perhaps, they should be treated like the other event venues in Route 9.

Commissioner Sturniolo stated that Caipy do not meet the requirements of nightclub designation and they permit dancing.

Lt. Mohr was a guest and expressed that the opposition is based on data. Route 9 it is largely a commercial district and this establishment is located in a residential neighborhood and the police gets multiple complains. There have been 35 calls from service from January 10th through August 29th just for this address without counting the one from any adjacent business. 54% of the call occurred between midnight and 3:00AM. One hour extension matters because the extension is not occurring during a period of low activity. But when the police resources are at the most minimum.

District 8 Councilor John Stefanini talk in favor of the petition in the context of equity and fairness as this establishment caters to a young immigrant population and licenses should be available to everyone regardless of their ethnicities not to what is convenient or not.

Mr. Silva, reinstated that he has been following the police recommendations as well, hired more bouncers , have meet with the Chief of Police and taken steps to increase security.

Commissioner DeAngelis made a motion to approve the change of hours in the application for 135 Restaurant and grill doing business as Caipy located at 672 Waverly Street for the alcohol, CV Sunday though Thursday to 1:00 AM and Friday through Saturday to 2:00 AM and to extend the entertainment hours Wednesday through Thursday, extending to 12 AM. Friday and Saturday to 2:00AM , pending all city approvals and payment of taxes. It wasn't seconded.
Second motion was introduced to extend the all licenses for one hour only on a Friday, Alcohol and CV until 2:00 AM. Commissioner Medrano seconded.

Voted in favor, 2-3

DeAngelis: Aye
Sturniolo: Nay
Medrano: Aye
McCullough: Nay
Pologe: Nay

Motion Failed

COMMISSIONERS REPORTS/CONCERNS:

None

LICENSE COORDINATOR UPDATES:

None.

APPROVAL OF OPEN SESSION MEETING MINUTES:

None

Adjourn

Commissioner Medrano made a motion to adjourn. Commissioner DeAngelis seconded the motion.

All voted in favor

DeAngelis: Aye
Sturniolo: Aye
Medrano: Aye
McCullough: Aye
Pologe: Aye

Board of License Commissioners

October 19, 2026 7:00 PM
REMOTE

PRESENT:

Stuart Pologe, Chair
Joseph Sturniolo, Vice Chair
Laura Medrano, Clerk
Alycia DeAngelis

ABSENT:

Shannon McCullough

STAFF PRESENT: Michael Royce, Licensing Coordinator

GENERAL PUBLIC COMMENTS: None

LICENSING HEARINGS:

License Update

The Fresh Market of Massachusetts Inc DBA The Fresh Market
84 Worcester Rd

Fresh Market attorney Upton informed the Board that they have a Letter of Intent for a multi-store deal with an expected close by year end. Mr. Upton will provide an update on the license transfer as soon as the paperwork is official.

New Fortune Teller License

Ashpath LLC DBA The Rue and Sickle
111 Speen Street

Proposed Hours: Sun – Sat by Appointment Only

The Board reviewed the following documents

1. OpenGov Application
2. Draft Licenses
3. Business Certificate
4. Workbar Payment Confirmation
5. CORI
6. City Departments Approvals
    a. All Departments Approvals

Application was presented by Alana Santillo, a business to promote personal empowerment, spiritual education and self-exploration, combining the spiritual, modern techniques of psychology. The primary place of operation is 111 Space Street is called Work Bar, a co-op working space.

Motion was made by Commissioner Sturniolo to approve the Fortune Teller license for Ashpath LLC DBA The Rue and Sickle, 111 Speen Street. Proposed Hours: Sun – Sat by Appointment Only. Conditional payment of all taxes and fees and approval of all city departments included required documents and receipts of department inspections. Commissioner Medrano seconded.

Voted 4-0-1

DeAngelis: Aye
Sturniolo: Aye
Medrano: Aye
McCullough: Absent
Pologe: Aye

Change of Manager and Assistant Manager

Framingham Country Club DBA Framingham Country Club
16 Gates Street

Proposed Manager: Connor Poirier
Proposed Assistant Manager: Peter Campanario

Current Manager: Peter Campanario
Current Assistant Manager: Sarah Ivanic

The Board Review the following documents

1. OpenGov Application
2. Draft License
3. $200 ePay Receipt
4. ABCC Application
5. Connor Poirier – CORI, Passport, TIPS, Framingham Alcohol ID
6. Framingham Country Club Letter
7. Assistant Manager Application
8. Peter Campanario – Passport, Framingham Alcohol ID, TIPS
9. City Department Approvals

Connor Poirier, Director of Club Operations presented the application for a change of manager and assistant manager as change of responsibilities as one of the managers is no longer at the club.
Commissioner Medrano made a motion for the change of manager and assistant manager, the proposed manager, Connor Poirier, and the proposed assistant manager, Peter Campanario, appending payment of fees and taxes. Commissioner Sturniolo seconded.

Change of Manager and Assistant Manager

Framingham Country Club DBA The Willow Brook Grille
25 Parker Road

Proposed Manager: Connor Poirier
Proposed Assistant Manager: Peter Campanario

Current Manager: Peter Campanario
Current Assistant Manager: Sarah Ivanic

The Board Review the following documents

1. OpenGov Application
2. Draft License
3. $200 ePay Receipt
4. ABCC Application
5. Connor Poirier – CORI, Passport, TIPS, Framingham Alcohol ID
6. Framingham Country Club Letter
7. Assistant Manager Application
8. Peter Campanario – Passport, Framingham Alcohol ID, TIPS
9. City Department Approvals

Connor Poirier, Director of Club Operations presented the application for a change of manager and assistant manager for the Willow Brook Grille, the 19th hole auxiliary location.
Commissioner Sturniolo made a motion for the change of manager and assistant manager, the proposed manager, Connor Poirier, and the proposed assistant manager, Peter Campanario, appending payment of fees and taxes. Commissioner Medrano seconded.

Voted 4-0-1

DeAngelis: Aye
Sturniolo: Aye
Medrano: Aye
McCullough: Absent
Pologe: Aye

Public Hearings

New Common Victualer License

Family Circle ADHC Metro West, LLC DBA Oasis Adult Day Health Center
655 Cochituate Rd

Proposed Hours: Sun-Sat 9am-4pm

The Board Review the following documents

1. OpenGov Application

2. Draft Licenses

3. Floor Plan

4. Site Plan

5. List of Equipment and Costs

6. Lease

7. Articles of Organization

8. Menu

9. Advertisement

10. City Department Approvals

a. All Departments Approve

Ms. Lima Agranovich, lawyer and principal made the presentation for a license for the adult day health center as will be serving breakfast and lunch for the clients. Looking for a 7 days license 9:00 am to 4:00 pm although initially will be open just Monday thru Friday. The Center will take private pay and MassHealth. Commissioner DeAngelis made a motion New Common Victualer License for Oasis Adult Day Health Center Family Circle DBA ADHC Metro West, LLC, 655 Cochituate Rd. Proposed Hours: Sun-Sat 9am-4pm. Pending all city approvals and payment of fees and taxes. Commissioner Medrano seconded.

Voted 4-0-1

DeAngelis: Aye
Sturniolo: Aye
Medrano: Aye
McCullough: Absent
Pologe: Aye

New Common Victualer License

Halal Eatz Inc DBA Halal Eatz
341 Cochituate Rd Framingham, MA 01701

Proposed Hours: Sun-Sat 11am-3am

The Board Review the following documents

1. OpenGov Application

2. Draft Licenses

3. Floor Plan

4. Site Plan

5. List of Equipment and Costs

6. Lease

7. Articles of Organization

8. Menu

9. Advertisement

10. City Departments Approvals

    a. All Departments Approved

Application was presented by owners Sarfaraz Jinwala and Fahd Issa Noor Mohamed who will also be the Manager and Assistant Manager, Framingham is the latest addition, they have a restaurant in Burlington and another in Revere. Framingham would be the flagship location. Commissioners inquired about the 3:00 am closing time as in general is not issued. Me. Jinwala explained that Ramadan is observed for 30 days and they introduce the Suhur menu, people eat before their fasting which starts a 3:00 am and break the fast in the evening at dawn. The request is more a religious exception. Jinwala also stated that there are similar locations in Framingham that have late hours. There was some discussion about the hours of different fast-food restaurants in the area.

Commissioner Sturniolo made a motion to approve the Common Victualer license for Halal Eatz Inc DBA Halal Eatz, 341 Cochituate Rd Framingham, MA 01701. Proposed Hours: Sun-Sat 11am-3am, pending payment all feed and taxes. Commissioner Medrano seconded. Commissioner DeAngelis amended the motion for the closing hours of 2;00am. Commissioner Sturniolo seconded. Commissioner Medrano suggested a compromise to comeback before Ramadan for a temporary extension of hours. All parties agreed.

Voted 4-0-1

DeAngelis: Aye
Sturniolo: Aye
Medrano: Aye
McCullough: Absent
Pologe: Aye

New Common Victualer License

Space Café Inc. DBA Space Café, 121 Concord Street

Requesting continuance to 11/2. Commissioner DeAngelis made a motion to continue the Space Café application hearing to November 2nd. Commissioner Sturniolo seconded.

Voted 4-0-1

DeAngelis: Aye
Sturniolo: Aye
Medrano: Aye
McCullough: Absent
Pologe: Aye

COMMISSIONERS REPORTS/CONCERNS:

None

LICENSE COORDINATOR UPDATES:

Renewals went out, except for alcohol which will go out on November 1st. Working on the 1st draft for the 2027 meeting calendar.

APPROVAL OF OPEN SESSION MEETING MINUTES:

Commissioner DeAngelis made a motion to approve the Meeting Minutes from Sept 28th. Commissioner Sturniolo seconded.

Voted 4-0-1

DeAngelis: Aye
Sturniolo: Aye
Medrano: Aye
McCullough: Absent
Pologe: Aye

Adjourn

Commissioner Medrano made a motion to adjourn. Commissioner Sturniolo seconded the motion.

Voted 4-0-1

DeAngelis: Aye
Sturniolo: Aye
Medrano: Aye
McCullough: Absent
Pologe: Aye